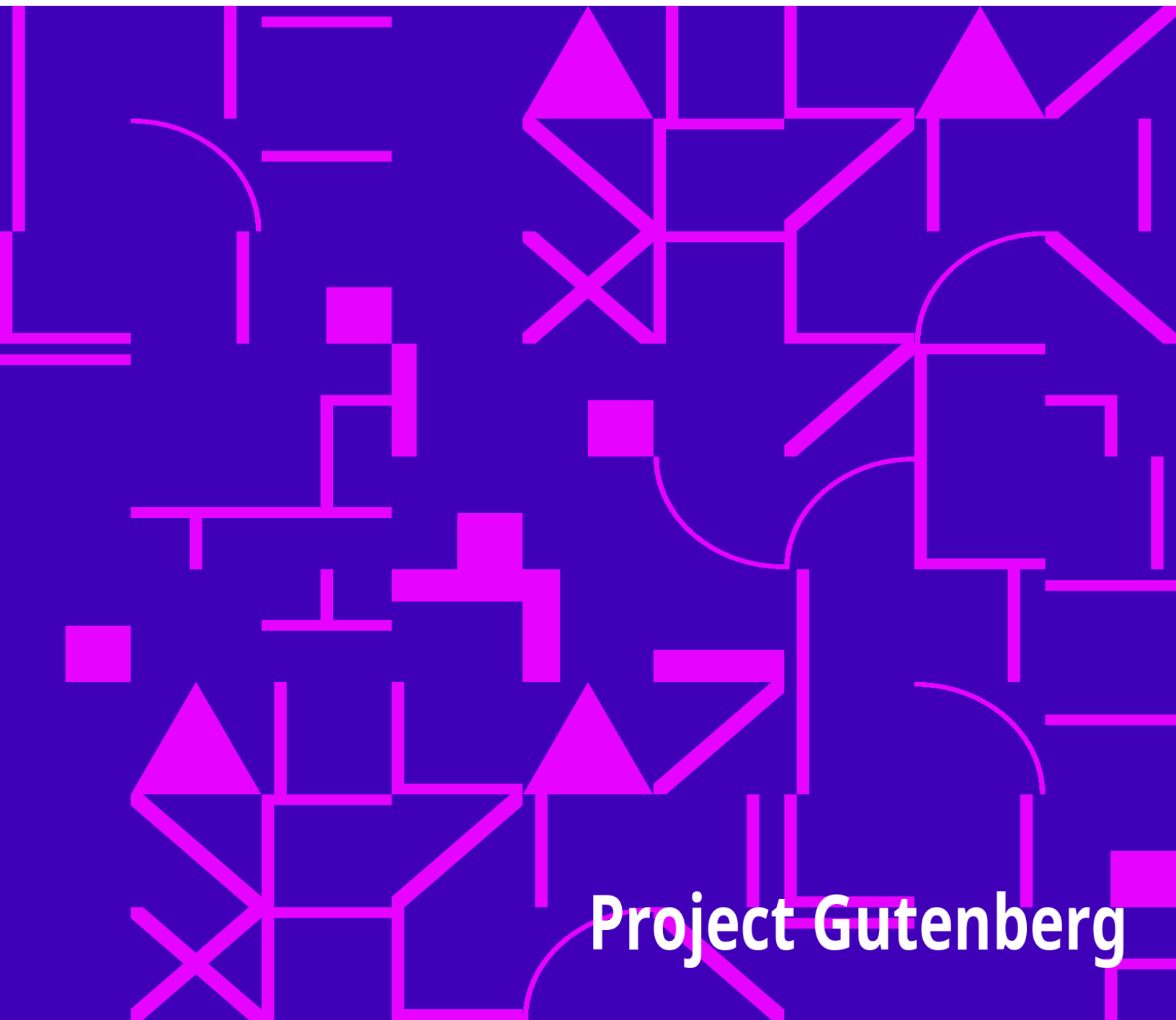


The Atlantic Monthly, Volume 04, No. 21, July, 1859

Various

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**The Atlantic Monthly, Volume 04, No. 21,
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THE ATLANTIC MONTHLY.

A MAGAZINE OF LITERATURE, ART, AND POLITICS.

VOL. IV.—JULY, 1859.—NO. XXI.

THOMAS PAINE'S

SECOND APPEARANCE IN THE UNITED STATES.

"Nay, so far did he carry his obstinacy, that he absolutely invited a professed Anti-Diluvian from the Gallic Empire, who illuminated the whole country with his principles and his nose."—Salmagundi.

We lukewarm moderns can hardly conceive the degree of violence and bitterness reached by party-feeling in the early years of the United States Constitution. A Mississippi member of Congress listening to a Freesoil speech is mild in demeanor and expression, if we compare his ill-nature with the spiteful fury of his predecessors in legislation sixty years ago. The same temper was visible throughout the land. Nobody stood aloof. Two hostile camps were pitched over against each other, and every man in Israel was to be found in his tent. Our great experiment was a new one; on its success depended the personal welfare of every citizen, and naturally every citizen was anxious to train up that experiment in the way which promised to his reason or to his feelings the best result.

The original Federalists of 1787 were in favor of effacing as much as possible the boundary-lines of the Thirteen Colonies, and of consolidating them into a new, united, and powerful people, under a strong central government. The first Anti-Federalists were made up of several sects: one

branch, sincere republicans, were fearful that the independence of the States was in danger, and that consolidation would prepare the way for monarchy; another, small, but influential, still entertained the wish for reunion with England, or, at least, for the adoption of the English form of government,—and, hoping that the dissensions of the old Confederation might lead to some such result, drank the health of the Bishop of Osnaburg in good Madeira, and objected to any system which might place matters upon a permanent republican basis; and a third party, more numerous and noisy than either, who knew by long experience that the secret of home popularity was to inspire jealousy of the power of Congress, were unwilling to risk the loss of personal consequence in this new scheme of centralization, and took good care not to allow the old local prejudices and antipathies to slumber. The two latter classes of patriots are well described by Franklin in his "Comparison of the Ancient Jews with the Modern Anti-Federalists,"—a humorous allegory, which may have suggested to the Senator from Ohio his excellent conceit of the Israelite with Egyptian principles. "Many," wrote Franklin, "still retained an affection for Egypt, the land of their nativity, and whenever they felt any inconvenience or hardship, though the natural and unavoidable effect of their change of situation, exclaimed against their leaders as the authors of their trouble, and were not only for returning into Egypt, but for stoning their deliverers.... Many of the chiefs thought the new Constitution might be injurious to their particular interests,—that the profitable places would be engrossed by the families and friends of Moses and Aaron, and others, equally well born, excluded."

Time has decided this first point in favor of the Unionists. None of the evils prophesied by their opponents have as yet appeared. The independence of the individual States remains inviolate, and, although the central executive has grown yearly more powerful, a monarchy seems as remote as ever. Local distinctions are now little prized in comparison with federal rank. It is not every man who can recollect the name of the governor

of his own State; very few can tell that of the chief of the neighboring Commonwealth. The old boundaries have grown more and more indistinct; and when we look at the present map of the Union, we see only that broad black line known as Mason and Dixon's, on one side of which are neatness, thrift, enterprise, and education,—and on the other, whatever the natives of that region may please to call it.

After 1789, the old Egypt faction ceased to exist, except as grumblers; but the States-Rights men, though obliged to acquiesce in the Constitution, endeavored, by every means of "construction" their ingenuity could furnish, to weaken and restrict the exercise and the range of its power. The Federalists, on the other hand, held that want of strength was the principal defect of the system, and were for adding new buttresses to the Constitutional edifice. It is curious to remark that neither party believed in the permanency of the Union. Then came into use the mighty adjectives "constitutional" and "unconstitutional,"—words of vast import, doing equally good service to both parties in furnishing a word to express their opinion of the measures they urged and of those they objected to. And then began to be strained and frayed that much-abused piece of parchment which Thomas Paine called the political Bible of the American people, and foolishly thought indispensable to liberty in a representative government. "Ask an American if a certain act be constitutional," says Paine, "he pulls out his pocket volume, turns to page and verse, and gives you a correct answer in a moment." Poor Mr. Paine! if you had lived fifty years longer, you would have seen that paper constitutions, like the paper money you despised so justly, depend upon honesty and confidence for their value, and are at a sad discount in hard times of fraud and corruption. Unprincipled men find means of evading the written agreement upon their face by ingenious subterfuges or downright repudiation. An arbitrary majority will construe the partnership articles to suit their own interests, and *stat pro*

constitutione voluntas. It is true that the *litera scripta* remains, but the meaning is found to vary with the interpreter.

In 1791, when the two parties were fairly formed and openly pitted against each other, a new element of discord had entered into politics, which added the bitterness of class-feeling to the usual animosity of contention. Society in the Middle and Southern States had been composed of a few wealthy and influential families, and of a much more numerous lower class who followed the lead of the great men. These lesser citizens had now determined to set up for themselves, and had enlisted in the ranks of the Anti-Federalists, who soon assumed the name and style of Democrats, an epithet first bestowed upon them in derision, but joyfully adopted,—one of the happiest hits in political nomenclature ever made. *In hoc verbo vinces*: In that word lay victory. If any one be tempted, in this age, to repeat the stupid question, "What's in a name?" let him be answered,—Everything: place, power, pelf, perhaps we may add peculation. "The Barons of Virginia," chiefs of State-Rights, who at home had been in favor of a governor and a senate for life, and had little to fear from any lower class in their own neighborhood, saw how much was to be gained by "taking the people into partnership," as Herodotus phrases it, and commenced that alliance with the proletaries of the North which has proved so profitable to Southern leaders. In New England, the land of industry, self-control, and superior cultivation, (for the American Parnassus was then in Connecticut, either in Hartford, or on Litchfield Hill,) there was, comparatively speaking, no lower class. The Eastern men, whose levelling spirit and equality of ranks had been so much disliked and dreaded by the representatives from other Colonies in the Ante-Revolutionary Congresses, had undergone little or no social change by the war, and probably had at that period a more correct idea of civil liberty and free government than any other people on the face of the earth. General Charles Lee wrote to an English friend, that the New-Englanders were the only Americans who

really understood the meaning of republicanism, and many years later De Tocqueville came to nearly the same opinion:—"*C'est dans la Nouvelle Angleterre que se sont combinées les deux ou trois idées principales, qui aujourd'hui forment les bases de la théorie sociale des États-Unis.*" In this region Federalism reigned supreme. The New-Englanders desired a strong, honest, and intelligent government; they thought, with John Adams, that "true equality is to do as you would be done by," and agreed with Hamilton, that "a government in which every man may aspire to any office was free enough for all purposes"; and judging from what they saw at home, they looked upon Anti-Federalism not only as erroneous in theory, but as disreputable in practice. "The name of Democrat," writes a fierce old gentleman to his son, "is despised; it is synonymous with infamy." Out of New England a greater social change was going forward. Already appeared that impatience of all restraint which is so alarming a symptom of our times. Every rogue, "who felt the halter draw," wanted to know if it was for tyranny like this that the Colonies had rebelled. "Such a monster of a government has seldom or never been known on earth. A blessed Revolution, a blessed Revolution, indeed!—*but farmers, mechanics, and laborers had no share in it.* We are the asses who pay." This was the burden of the Democratic song.

But the real issue between the two parties, which underlay all their proposed measures and professed principles, was the old struggle of classes, modified of course by the time and the place. The Democrats contended for perfect equality, political and social, and as little power as possible in the central government so long as their party was not in command. The Federalists, who held the reins, were for a strong conservative administration, and a wholesome distinction of classes. The two parties were not long in waiting for flags to rally around, and fresh fields on which to fight. The French Revolution furnished both. In its early stages it had excited a general sympathy in America; and, indeed, so has every foreign

insurrection, rebellion, or riot since, no matter where or why it occurred, provided good use has been made of the sacred words Revolution and Liberty. This cry has never been echoed in this country without exciting a large body of men to mass-meetings, dinners, and other public demonstrations, who do not stop to consider what it means, or whether, in the immediate instance, it has any meaning at all. John Adams said in his "Defence of American Constitutions," "Our countrymen will never run delirious after a word or a name." Mr. Adams was much mistaken. If, according to the Latin proverb, a word is sufficient for a wise man, so, in another sense, it is all that is needful for fools. But as the Revolution advanced in France towards republicanism, the Federalists, who thought the English system, less the king and the hereditary lords, the best scheme of government, began to grow lukewarm. When it became evident that the New Era was to end in bloodshed, instead of universal peace and good-will towards men,—that the Rights of Man included murder, confiscation, and atheism,—that the Sovereignty of the People meant the rule of King Mob, who seemed determined to carry out to the letter Diderot's famous couplet,

"Et des boyaux du dernier prêtre
Serrez le cou du dernier des rois,"—

then the adjective *French* became in Federal mouths an epithet of abhorrence and abuse; up went the flag of dear Old England, the defender of the faith and of social order. The opposition party, on the contrary, saw in the success of the French people, in their overthrow of kings and nobles, a cheerful encouragement to their own struggle against the aristocratic Federalists, and would allow no sanguinary irregularities to divert their sympathy from the great Democratic triumph abroad. The gay folds of the tricolor which floated over them seemed to shed upon their heads a mild influence of that Gallic madness that led them into absurdities we could not

now believe, were they not on record. The fashions, sartorial and social, of the French were affected; amiable Yankees called each other *citizen*, invented the feminine *citess*, and proposed changing our old calendar for the Ventose and Fructidor arrangement of the one and indivisible republic. (We wish they had adopted their admirable system of weights and measures.) Divines are said to have offered up thanks to the Supreme Being for the success of the good *Sans-culottes*. At all events, their victories were celebrated by civic festivals and the discharge of cannon; the English flag was burned as a sacrifice to the Goddess of Liberty; a French frigate took a prize off the Capes of the Delaware, and sent her in to Philadelphia; thousands of the populace crowded the wharves, and, when the British colors were seen reversed, and the French flying over them, burst into exulting hurras. When a report came that the Duke of York was a prisoner and shown in a cage in Paris, all the bells of Philadelphia rang peals of joy for the downfall of tyrants. Here is the story of a civic *fête* given at Reading, in Massachusetts, which we extract from a newspaper of the time as a specimen of the Gallo-Yankee absurdities perpetrated by our grandfathers:

"The day was ushered in by the ringing of the bells, and a salute of fifteen discharges from a field-piece. The American flag waved in the wind, and the flag of France over the British in inverted order. At noon a large number of respectable citizens assembled at Citizen Raynor's, and partook of an elegant entertainment. After dinner, Captain Emerson's military company in uniform assembled and escorted the citizens to the meeting-house, where an address pertinent to the occasion was delivered by the Rev. Citizen Prentiss, and united prayers and praises were offered to God, and several hymns and anthems were well sung; after which they returned in procession to Citizen Raynor's, where three farmers, with their frocks and utensils, and with a tree on their shoulders, were escorted by the military company formed in a hollow square to the Common, where the tree was

planted in form, as an emblem of freedom, and the Marseillaise Hymn was sung by a choir within a circle round the tree. Major Boardman, by request, superintended the business of the day, and directed the manoeuvres."

In the Gallic jargon then fashionable, England was "an insular Bastille of slaves," and New England "the Vendée of America." On the other side, the Federalists returned cheer for cheer,—looked with true British contempt on the warlike struggles of the restless Frenchman,—chuckled over the disasters which befell "his little popgun fleets,"—and damned the Democrats for a pack of poor, dirty, blasphemous cutthroats. Hate one another was the order of the day. The religious element, which always exasperates dissension, was present. French Democrats had set up the Goddess of Reason (in private life Mme. Momoro) as an object of worship; American Democrats were accused of making Tom Paine's "Age of Reason" their Bible; "Atheist" and "Infidel" were added to the epithets which the Federalists discharged at their foes. So fierce and so general was the quarrel on this European ground, that a distinguished foreigner, then travelling in this country, said that he saw many French and English, but scarcely ever met with an American. Weld, a more humble tourist, put into his book, that in Norfolk, Virginia, he found half the town ready to fight the other half on the French question. Meanwhile, both French and English treated us with ill-disguised contempt, and inflicted open outrages upon our commerce. But it made little difference. One faction was willing to be kicked by England; and the other took a pleasure in being *souffleté* by France. The rival flags were kept flying until the close of the war of 1812.

An outbreak of Democratic fury bordering upon treason took place, when Senator Mason of Virginia violated the oath of secrecy, and sent a copy of Jay's treaty with England to the "Aurora." Meetings passed condemnatory resolutions expressed in no mild language. Jay was "a slave, a traitor, a coward, who had bartered his country's liberties for British gold." Mobs

burned Jay in effigy, and pelted Alexander Hamilton. At a public meeting in Philadelphia, Mr. Blair threw the treaty to the crowd, and advised them to kick it to hell. They carried it on a pole in procession, and burned it before the English minister's house. A Democratic society in Richmond, Virginia, full of the true modern South Carolina "sound and fury," gave public notice, that, if the treaty entered into by "that damned arch traitor, John Jay, with the British tyrant should be ratified, a petition will be presented to the next General Assembly of Virginia praying that the said State may recede from the Union, and be left under the government and protection of one hundred thousand free and independent Virginians!" A meeting at Pittsburg, Pennsylvania, resolved, "that it was weary of the tardiness of Congress in not going to war with England, and that they were *almost ready* to wish for a state of revolution and the guillotine of France for a short space, in order to punish the miscreants who enervate and disgrace the government." Mr. Jefferson's opinion of the treaty is well known from his rhetorical letter to Rutledge, which, in two or three lines, contains the adjectives, *unnecessary, impolitic, dangerous, dishonorable, disadvantageous, humiliating, disgraceful, improper, monarchical, impeachable*. The Mazzei letter, written not long after the ratification, displays the same bitter feeling.

The Federalists had a powerful ally in William Cobbett, who signed himself Peter Porcupine, adopting for his literary *alias* a nickname bestowed by his enemies. This remarkable writer, who, like Paine, figured in the political conflicts of two nations, must have come into the world bristling with pugnacity. A more thorough game-cock never crowed in the pit. He had been a private in the English army, came to the United States about 1790, and taught French to Americans, and English to Frenchmen, (to Talleyrand among others,) until 1794, when the dogmatic Dr. Priestley arrived here, fresh from the scene of his persecutions. The Doctor losing no time in laying his case before the American public, Cobbett answered his publication, ridiculing it and the Doctor's political career in a pamphlet

which became immediately popular with the Federalists. From that time until his departure for England, in 1800, Cobbett's pen was never idle. His "Little Plain English in Favor of Mr. Jay's Treaty" was altogether the best thing published on that side of the question. Cobbett had more than one point of resemblance to Paine, the object of his early invective, but later of his unqualified admiration. These two men were the best English pamphleteers of their day. In shrewdness, in practical sense, Cobbett was fully Paine's equal. He was as coarse and as pithy in expression, but with more wit, a better education, more complete command of language, and a greater variety of resources. Cobbett was a quicker and a harder hitter than Paine. His personal courage gave him a great advantage in his warfaring life. In 1796, in the hottest of the French and English fight, the well-known Porcupine opened a shop in Philadelphia. He filled his show-window with all the prints of English kings, nobles, and generals he could collect, and "then," he says, "I took down the shutters, and waited."

Party-feeling reached the boiling-point when Washington retired to Mount Vernon. Mr. Adams, his successor, had none of that divinity which hedged the Father of his Country to protect him. Under the former administration, he had been, as Senator Grayson humorously called him, "his superfluous Excellency," and out of the direct line of fire. He could easily look down upon such melancholy squibs as Freneau's "Daddy Vice" and "Duke of Braintree." But when raised above every other head by his high office, he became a mark for the most bitter personal attacks. Mr. Adams unfortunately thought too much about himself to be the successful chief of a party. He allowed his warm feelings to divert him from the main object and end of his followers. He was jealous of Hamilton,—unwilling, in fact, to seem to be governed by the opinion of any man, and half inclined to look for a reelection outside of his own party. Hamilton, the soul of the Federalists, mistrusted and disliked Mr. Adams, and made the sad mistake of publishing his mistrust and dislike. It must be confessed that the

gentlemen who directed the Administration party were no match as tacticians for such file-leaders as Jefferson and Burr. Many of their pet measures were ill-judged, to say the least. The provisional army furnished a fertile theme for fierce declamation. The black cockade became the badge of the supporters of government, so that in the streets one could tell at a glance whether friend or foe was approaching. The Alien and Sedition Laws caused much bitter feeling and did great damage to the Federalists. To read these acts and the trials under them now excites somewhat of the feeling with which we look upon some strange and clumsy engine of torture in a mediaeval museum. How the temper of this people and their endurance of legal inflictions have changed since then! There was Matthew Lyon, a noted Democrat of Irish origin, who had published a letter charging the President with "ridiculous pomp, idle parade, and selfish avarice." He was found guilty of sedition, and sentenced to four months' imprisonment and a fine of one thousand dollars. There was Cooper, an Englishman, who fared equally ill for saying or writing that the President did not possess sufficient capacity to fulfil the duties of his office. What should we think of the sanity of James Buchanan, should he prosecute and obtain a conviction against some Black-Republican Luther Baldwin of 1859, for wishing that the wad of a cannon, fired in his honor, might strike an unmentionable part of his august person? What should we say, if Horace Greeley were to be arrested on a warrant issued by the Supreme Court of New York for a libel on Louis Napoleon, as was William Cobbett by Judge McKean of Pennsylvania for a libel on the King of Spain?

Fiercer and more bitter waxed party-discord, and both sides did ample injustice to one another. Mr. Jefferson wrote, that men who had been intimate all their lives would cross the street and look the other way, lest they should be obliged to touch their hats. And Gouverneur Morris gives us a capital idea of the state of feeling when he says that a looker-on, who took no part in affairs, felt like a sober man at a dinner when the rest of the

company were drunk. Civil war was often talked of, and the threat of secession, which has become the rhetorical staple of the South, produced solely for exportation to the North, to be used there in manufacturing pro-slavery votes out of the timidity of men of large means and little courage or perspicacity, was then freely made by both divisions of the Union. Had we been of French or Spanish descent, there would have been barricades, *coup-d'états*, *pronunciamentos*; but the English race know better how to treat the body-politic. They never apply the knife except for the most desperate operations. But where hard words were so plenty, blows could not fail. Duels were frequent, cudgellings not uncommon,—although as yet the Senate-Chamber had not been selected as the fittest scene for the use of the bludgeon. It is true that molasses-and-water was the beverage allowed by Congress in those simple times, and that charged to stationery.

What terrible fellows our ancestors were for calling names,—particularly the gentlemen of the press! If they had been natives of the Island of Frozen Sounds, along the shore of which Pantagruel and Panurge coasted, they would have stood up to their chins in scurrilous epithets. The comical sketch of their rhetoric in "Salmagundi" is literally true:—"Every day have these slangwhangers made furious attacks on each other and upon their respective adherents, discharging their heavy artillery, consisting of large sheets loaded with scoundrel, villain, liar, rascal, numskull, nincompoop, dunderhead, wiseacre, blockhead, jackass." As single words were not always explosive enough to make a report equal to their feelings, they had recourse to compounds;—"pert and prating popinjay," "hackneyed gutscraper," "maggot of corruption," "toad on a dung-heap," "snivelling sophisticating hound," are a few of the chain-shot which strike our eyes in turning over the yellow faded files. They are all quiet now, those eager, snarling editors of fifty years since, and mostly forgotten. Even the ink which records their spiteful abuse is fading away;—

"Dunne no more the halter dreads,
The torrent of his lies to check,
No gallows Cheetham's dreams invades,
Nor lours o'er Holt's devoted neck."

Emerson's saying, that involuntarily we read history as superior beings, is never so true as when we read history before it has been worked up for the public, in the raw material of letters, pamphlets, and newspapers. Feverish paragraphs, which once excited the enthusiasm of one party and the fiercest opposition of the other, lie before us as dead and as unmeaning as an Egyptian mummy. The passion which once gave them life is gone. The objects which the writers considered all-important we perceive to have been of no real significance even in their day. We read on with a good-natured pity, akin to the feeling which the gods of Epicurus might be supposed to experience when they looked down upon foolish mortals,—and when we shut the book, go out into our own world to fret, fume, and wrangle over things equally transitory and frivolous.

When it became evident that the Administration party ran the risk of being beaten in the election of 1800, their trumpeters sounded the wildest notes of alarm. "People! how long will you remain blind? Awake! be up and doing! If Mr. Jefferson is elected, the equal representation of the small States in the Senate will be destroyed, the funding system swept away, the navy abolished, all commerce and foreign trade prohibited, and the fruits of the soil left to rot on the hands of the farmer. The taxes will all fall on the landed interest, all the churches will be overturned, none but Frenchmen employed by government, and the monstrous system of liberty and equality, with all its horrid consequences, as experienced in France and St. Domingo, will inevitably be introduced." Thus they shouted, and no doubt many of the shouters sincerely believed it all. Nevertheless, and in spite of these

alarums, the Revolution of '99, as Mr. Jefferson liked to call it, took place without bloodshed, and in 1801 that gentleman mounted the throne.

After this struggle was over, the Federalists, some from conviction and some from disgust at being beaten, gave up the country as lost. Worthy New-Englanders, like Cabot, Fisher Ames, and Wolcott, had no longer hope. They sank into the position of mere grumblers, with one leading principle,—admiration of England, and a willingness to submit to any insults which England in her haughtiness might please to inflict. "We are sure," says the "Boston Democrat," "that George III. would find more desperately devoted subjects in New England than in any part of his dominions." The Democrats, of course, clung to their motto, "Whatever is in France is right," and even accepted the arbitrary measures of Bonaparte at home as a mere change of system, and abroad as forced upon him by British pirates. It is curious to read the high Federalist papers in the first days of their sorrow. In their contradictory fault-finding sulkiness, they give some color of truth to Mr. Jefferson's accusation, that the Federal leaders were seeking to establish a monarchy,—a charge well known to be unfounded, as Washington said at the time. "What is the use of celebrating the Fourth of July?" they asked. "Freedom is a stale, narcotic topic. The Declaration of Independence a useless, if not an odious libel upon a friendly nation connected with us by the silken band of amity." Fenno, in his paper, said the Declaration was "a placard of rebellion, a feeble production, in which the spirit of rebellion prevailed over the love of order." Dennie, in the "Portfolio," anticipating Mr. Choate, called it "an incoherent accumulation of indigestible and impracticable political dogmas, dangerous to the peace of the world, and seditious in its local tendency, and, as a composition, equally at variance with the laws of construction and the laws of regular government." The Federalist opinion of the principles of the Administration party was avowed with equal frankness in their papers. "A democracy is the most absurd constitution, productive of anarchy and mischief, which must

always happen when the government of a nation depends upon the caprice of the ignorant, harebrained vulgar. All the miseries of men for a long series of years grew out of that infamous mode of polity, a democracy; which is to be reckoned to be only the corruption and degeneracy of a republic, and not to be ranked among the legitimate forms of government. If it be not a legitimate government, we owe it no allegiance. He is a blind man who does not see this truth; he is a base man who will not assert it. Democratic power is tyranny, in the principle, the beginning, the progress, and the end. It is on its trial here, and the issue will be civil war, desolation, and anarchy." These and other foolish excerpts were kept before their readers by the "Aurora" and "Boston Chronicle," leading Democratic organs, and served to sweeten their triumph and to seal the fate of the unlucky Federalists.

The difference between the tone of these extracts and that of our present journalists, when they touch upon the abstract principles of government, may indicate to us the firm hold which the Democratic theory has taken of our people. As that conquering party marched onward, the opposition was forced to follow after, and to encamp upon the ground their powerful enemy left behind him. To-day when we see gentlemen who consider themselves Conservatives in the ranks of the Democrats, we may suppose that the tour of the political circle is nearly completed.

A momentary lull had followed the storm of the election, when Mr. Jefferson boldly threw down another "bone for the Federalists to gnaw." He wrote to Thomas Paine, inviting him to America, and offering him a passage home in a national vessel. "You will, in general, find us," he added, "returned to sentiments worthy of former times; in these it will be your glory to have steadily labored, and with as much effect as any man living. That you may live long, to continue your useful labors and reap the reward in the thankfulness of nations, is my sincere prayer. Accept the assurance of

my high esteem and affectionate attachment." Mr. Jefferson went even farther. He openly announced his intention of giving Paine an office, if there were one in his gift suitable for him. Now, although Paine had been absent for many years, he had not been forgotten by the Americans. The echo of the noise he made in England reached our shores; and English echoes were more attentively listened to then even than at present. His "Rights of Man" had been much read in this country. Indeed, it was asserted, and upon pretty good authority, that Jefferson himself, when Secretary of State, had advised and encouraged the publication of an American edition as an antidote to the "Davila" of Mr. Adams. Even the "Age of Reason" had obtained an immense circulation from the great reputation of the author. It reminded the Rev. Mr. Goodrich, and other Orthodox New-Englanders, of Milton's description of Death,—

"Black it stood as night,
Fierce as ten furies, terrible as hell."

Yet numbers of people, nothing frightened, would buy and read. "No work," Dr. Francis tells us, "had a demand for readers comparable to that of Paine. The 'Age of Reason,' on its first appearance in New York, was printed as an orthodox book by orthodox publishers,—doubtless deceived," the charitable Doctor adds, "by the vast renown which the author of 'Common Sense' had obtained, and *by the prospects of sale.*" Paine's position in the French Convention, his long imprisonment, poverty, slovenly habits, and fondness for drink, were all well known and well talked over. William Cobbett, for one, never lost an opportunity of dressing up Paine as a filthy monster. He wrote his life for the sake of doing it more thoroughly. The following extract, probably much relished at the time, will give some idea of the tone and temper of this performance:—

"How Tom gets a living now, or what brothel he inhabits, I know not, nor does it much signify. He has done all the mischief he can do in this world; and whether his carcass is at last to be suffered to rot on the earth, or to be dried in the air, is of very little consequence. Whenever or wherever he breathes his last, he will excite neither sorrow nor compassion; no friendly hand will close his eyes, not a groan will be uttered, not a tear will be shed. Like Judas, he will be remembered by posterity; men will learn to express all that is base, malignant, treacherous, unnatural, and blasphemous by the single monosyllable of Paine."

Cobbett also wrote an *ante-mortem* epitaph, a fit inscription for the life he had composed. It ends thus:—

"He is crammed in a dungeon and preaches up Reason;
Blasphemes the Almighty, lives in filth like a hog;
Is abandoned in death, and interred like a dog."

This brutal passage does not exaggerate the opinion of Paine's character held by the good people of America. He was an object of horror to them,—a rebel against government and against God,—a type of Jacobinism, a type of Infidelity, and, with what seemed to them, no doubt, a beautiful consistency, a type of all that was abandoned and vile. Thomas Paine, a Massachusetts poet of *ci-devant* celebrity, petitioned the General Court for permission to call himself Robert Treat Paine, on the ground that he had no Christian name. In New England, Christianity and Federalism were looked upon as intimately connected, and Democracy as a wicked thing, born of Tom Paine, Tom Jefferson, and the Father of Lies. In this Trinity of Evil, Thomas Paine stood first.

During the struggle for the Presidency, Mr. Jefferson had been accused, from every Federal stump, of the two unpardonable sins to Yankee minds,—namely, that his notes could be bought for five shillings in the pound, and

that he did not believe in Revolution. Since his election, he had been daily reminded of his religious short-comings by keen newspaper attacks. He knew that he strengthened the hands of his enemies by inviting home the Arch-Infidel. We are and were then a religious people, in spite of the declaration in Mr. Adams's Tripolitan treaty that the government of the United States was "not in any sense founded on the Christian religion," and Paine could find few admirers in any class. Mr. Jefferson, too, was well aware that the old man was broken, that the fire had gone out of him, and that his presence in the United States could be of no use whatever to the party. But he thought that Paine's services in the Revolution had earned for him an asylum, and their old acquaintance made him hasten to offer it. We think that the invitation to Paine was one of the manliest acts of Jefferson's life.

When the matter became public, there arose a long, loud cry of abuse, which rang from Massachusetts Bay to Washington City. Anarchy, confusion, and the downfall of not only church, but state, were declared to be the unavoidable consequences of Paine's return to our shores,—that impious apostate! that Benedict Arnold, once useful, and then a traitor! The "United States Gazette" had ten leaders on the text of Tom Paine and Jefferson, "whose love of liberty was neither more rational, generous, or social, than that of the wolf or the tiger." The "New England Palladium" fairly shrieked:—"What! invite to the United States that lying, drunken, brutal infidel, who rejoices in the opportunity of basking and wallowing in the confusion, devastation, bloodshed, rapine, and murder, in which his soul delights?" Why, even the French called him the English orang-outang! He was exposed with a monkey and a bear in a cage in Paris. In 1792, he was forbidden to haunt the White-Bear Tavern in London. He subsisted for eight years on the charity of booksellers, who employed him in the morning to correct proofs; in the afternoon he was too drunk. He lodged in a cellar. He helped the *poissardes* to clean fish and open oysters. He lived in misery,

filth, and contempt. Not until Livingston went to France did any respectable American call upon him. Livingston's attentions to him not only astonished, but disgusted the First Consul, and gave him a very mean opinion of Livingston's talents. The critical Mr. Dennie caused his "Portfolio" to give forth this solemn strain: "If, during the present season of national abasement, infatuation, folly, and vice, any portent could surprise, sober men would be utterly confounded by an article current in all our newspapers, that the loathsome Thomas Paine, a drunken atheist and the scavenger of faction, is invited to return in a national ship to America by the first magistrate of a free people. A measure so enormously preposterous we cannot yet believe has been adopted, and it would demand firmer nerves than those possessed by Mr. Jefferson to hazard such an insult to the moral sense of the nation. If that rebel rascal should come to preach from his Bible to our populace, it would be time for every honest and insulted man of dignity to flee to some Zoar as from another Sodom, to shake off the very dust of his feet and to abandon America." "He is coming," wrote Noah Webster, ("the mender and murderer of English,") "to publish in America the third part of the 'Age of Reason.'" And the epigrammatists, such as they were, tried their goose-quills on the subject:—

"He passed his forces in review,
Smith, Cheetham, Jones, Duane:
'Dull rascals,—these will never do,'
Quoth he,—'I'll send for Paine.'

"Then from his darling den in France
To tempt the wretch to come,
He made Tom's brain with flattery dance
And took the tax from rum."

The Administration editors held their tongues;—the religious side of the question was too strong for them.

Paine was unable to accept the passage offered him in the frigate, and returned in a merchant-vessel in the autumn of the next year (1802). The excitement had not subsided. Early in October, the "Philadelphia Gazette" announced that "a kind of tumultuous sensation was produced in the city yesterday evening in consequence of the arrival of the ship Benjamin Franklin from Havre. It was believed, for a few moments, that the carcass of Thomas Paine was on board, and several individuals were seen disgracing themselves by an impious joy. It was finally understood that Paine had missed his passage by this vessel and was to sail in a ship to New York. Under the New York news-head we perceive a vessel from Havre reported. Infidels! hail the arrival of your high-priest!"

A few days later, the infidel Tom Paine, otherwise Mr. Paine, arrived safely at Baltimore and proceeded thence to Washington. The journalists gave tongue at once: "Fire! Age of Reason! Look at his nose! He drank all the brandy in Baltimore in nine days! What a dirty fellow! Invited home by a brother Tom! Let Jefferson and his blasphemous crony dangle from the same gallows." The booksellers, quietly mindful of the opportunity, got out an edition of his works in two volumes.

As soon as he was fairly on shore, Paine took sides with his host, and commenced writing "Letters to the People of the United States." He announced in them that he was a genuine Federalist,—not one of that disguised faction which had arisen in America, and which, losing sight of first principles, had begun to contemplate the people as hereditary property: No wonder that the author of the "Rights of Man" was attacked by this faction: His arrival was to them like the sight of water to canine madness: He served them for a standing dish of abuse: The leaders during the Reign

of Terror in France and during the late despotism in America were the same men in character; for how else was it to be accounted for that he was persecuted by both at the same time? In every part of the Union this faction was in the agonies of death, and, in proportion as its fate approached, gnashed its teeth and struggled: He should lose half his greatness when they ceased to lie. Mr. Adams, as the late chief of this faction, met with harsh and derisive treatment in these letters, and did not attempt to conceal his irritation in his own later correspondence.

Paine's few defenders tried to back him with weak paragraphs in the daily papers: His great talents, his generous services, "in spite of a few indiscreet writings about religion," should make him an object of interest and respect. The "Aurora's" own correspondent sent to his paper a favorable sketch of Paine's appearance, manner, and conversation: He was "proud to find a man whom he had admired free from the contaminations of debauchery and the habits of inebriety which have been so grossly and falsely sent abroad concerning him." But the enemy had ten guns to Paine's one, and served them with all the fierceness of party-hate. A shower of abusive missiles rattled incessantly about his ears. However thick-skinned a man may be, and protected over all by the *oes triplex* of self-sufficiency, he cannot escape being wounded by furious and incessant attacks. Paine felt keenly the neglect of his former friends, who avoided him, when they did not openly cut him. Mr. Jefferson, it is true, asked him to dinners, and invited the British minister to meet him; at least, the indignant Anglo-Federal editors said so. Perhaps he offered him an office. If he did, Paine refused it, preferring "to serve as a disinterested volunteer." Poor old man! his services were no longer of much use to anybody. The current of American events had swept past him, leaving him stranded, a broken fragment of a revolutionary wreck.

When the nine days of wonder had expired in Washington, and the inhabitants had grown tired of staring at Paine and of pelting him with abuse, he betook himself to New York. On his way thither, he met with an adventure which shows the kind of martyrdom suffered by this political and religious heretic. He had stopped at Bordentown, in New Jersey, to look at a small place he owned there, and to visit an old friend and correspondent, Colonel Kirkbride. When he departed, the Colonel drove him over to Trenton to take the stage-coach. But in Trenton the Federal and Religious party had the upperhand, and when Paine applied at the booking-office for a seat to New York the agent refused to sell him one. Moreover, a crowd collected about his lodgings, who groaned dismally when he drove away with his friend, while a band of musicians, provided for the occasion, played the Rogue's March.

Among the editorial celebrities of 1803, James Cheetham, in New York, was almost as famous as Duane of the "Aurora." Cheetham, like many of his contemporaries, Gray, Carpenter, Callender, and Duane himself, was a British subject. He was a hatter in his native land; but a turn for politics ruined his business and made expatriation convenient. In the United States, he had become the editor of the "American Citizen," and was at that time busily engaged in attacking the Federalists and Burr's "Little Band," for their supposed attempt to elect Mr. Burr in the place of Mr. Jefferson. To Cheetham, accordingly, Paine wrote, requesting him to engage lodgings at Lovett's, afterwards the City Hotel. He sent for Cheetham, on the evening of his arrival. The journalist obeyed the summons immediately. This was the first interview between Paine and the man who was to hang, draw, and quarter his memory in a biography. This libellous performance was written shortly after Paine's death. It was intended as a peace-offering to the English government. The ex-hatter had made up his mind to return home, and he wished to prove the sincerity of his conversion from radicalism by trampling on the remains of its high-priest. So long as Cheetham remained

in good standing with the Democrats, Paine and he were fast friends; but when he became heretical and schismatic on the Embargo question, some three or four years later, and was formally read out of the party, Paine laid the rod across his back with all his remaining strength. He had vigor enough left, it seems, to make the "Citizen" smart, for Cheetham cuts and stabs with a spite which shows that the work was as agreeable to his feelings as useful to his plans. His reminiscences must be read *multis cum granis*.

In New York Paine enjoyed the same kind of second-rate ovation as in Washington. A great number of persons called upon him, but mostly of the laboring class of emigrants, who had heard of the "Rights of Man," and, feeling disposed to claim as many rights as possible in their new country, looked with reverence upon the inventor of the system. The Democratic leaders, with one or two exceptions, avoided Paine. Respectabilities shunned him as a contamination. Grant Thorburn was suspended from church-membership for shaking hands with him. To the boys he was an object of curious attention; his nose was the burden of their songs.

Cheetham carried round a subscription-list for a public dinner. Sixty or seventy of Paine's admirers attended. It went off brilliantly, and was duly reported in the "American Citizen." Then the effervescence of New York curiosity subsided; Paine became an old story. He left Lovett's Hotel for humble lodgings in the house of a free-thinking farrier. Thenceforward the tale of his life is soon told. He went rarely to his farm at New Rochelle; he disliked the country and the trouble of keeping house; and a bullet which whizzed through his window one Christmas Eve, narrowly missing his head, did not add agreeable associations to the place. In the city he moved his quarters from one low boarding-house to another, and generally managed to quarrel with the blacksmiths, bakers, and butchers, his landlords. Unable to enjoy society suited to his abilities and large experience of life, Paine called in low company to help him bear the burden

of existence. To the men who surrounded him, his opinions on all subjects were conclusive, and his shrewd sayings revelations. Among these respectful listeners, he had to fear neither incredulity nor disputation. Like his friend Elihu Palmer, and the celebrated Dr. Priestley, Paine would not tolerate contradiction. To differ with him was, in his eyes, simply to be deficient in understanding. He was like the French lady who naïvely told Dr. Franklin, "*Je ne trouve que moi qui aie toujours raison.*" Professing to adore Reason, he was angry, if anybody reasoned with him. But herein he was no exception to the general rule,—that we find no persons so intolerant and illiberal as men professing liberal principles.

His occupation and amusement was to write for the papers articles of a somewhat caustic and personal nature. Whatever subject occupied the public mind interested Paine and provoked his remarks. He was bitter in his attacks upon the Federalists and Burrists for attempting to jockey Jefferson out of the Presidency. Later, when Burr was acquitted of treason, Paine found fault with Chief-Justice Marshall for his rulings during the trial, and gave him notice, that he (Marshall) was "a suspected character." He also requested Dr. Mitchell, then United States Senator for New York, to propose an amendment to the Constitution, authorizing the President to remove a judge, on the address of a majority of both houses of Congress, for reasonable cause, when sufficient grounds for impeachment might not exist. General Miranda's filibustering expedition against Caracas, a greater failure even than the Lopez raid on Cuba, furnished Paine with a theme. He wrote a sensible paper on the yellow fever, by request of Jefferson, and one or two on his iron bridge. He was ardent in the defence of Mr. Jefferson's pet scheme of a gun-boat navy, and ridiculed the idea of fortifying New York. "The cheapest way," he said, "to fortify New York will be to banish the scoundrels that infest it." The inhabitants of that city would do well, if they could find an engineer to fortify their island in this way.

When the Pennsylvanians called a Convention in 1805 to amend the Constitution of the State, Paine addressed them at some length, giving them a summary of his views on Government, Constitutions, and Charters. The Creoles of Louisiana sent to Congress a memorial of their "rights," in which they included the importation of African slaves. Paine was indignant at this perversion of his favorite specific for all political ailments, and took the Franco-Americans soundly to task:—"How dare you put up a petition to Heaven for such a power, without fearing to be struck from the earth by its justice?" It is manifest that Paine could not be a Democrat in good standing now. Mingled with these graver topics were side-blows at the emissary Cullen, *alias* Carpenter, an Englishman, who edited a Federal paper,—replies to Cheetham, reprimands to Cheetham, and threats to prosecute Cheetham for lying, "unless he makes a public apology,"—and three letters to Governor Morgan Lewis, who had incensed Paine by bringing an action for political libel against a Mr. Thomas Farmer, laying his damages at one hundred thousand dollars.

Among his last productions were two memorials to the House of Representatives. One can see in these papers that old age had weakened his mind, and that harsh treatment had soured his feelings towards the land of his adoption.

"Ma république à jamais grande et libre,
Cette terre d'amour et d'égalité,"

no longer seemed to him as lovely as when he composed these verses for a Fourth-of-July dinner in Paris. He claimed compensation for his services in Colonel Laurens's mission to France in 1781. For his works he asked no reward. "All the civilized world knows," he writes, "I have been of great service to the United States, and have generously given away talents that would have made me a fortune. The country has been benefited, and I make

myself happy in the knowledge of it. It is, however, proper for me to add, that the mere independence of America, were it to have been followed by a system of government modelled after the corrupt system of the English government, would not have interested me with the unabated ardor it did." "It will be convenient to me to know what Congress will decide on, because it will determine me, whether, after so many years of generous services and that in the most perilous times, and after seventy years of age, I shall continue in this country, or offer my services to some other country. It will not be to England, unless there should be a revolution."

The memorial was referred to the Committee on Claims. When Paine heard of its fate, he addressed an indignant letter to the Speaker of the House. "I know not who the Committee on Claims are; but if they were men of younger standing than 'the times that tried men's souls,' and consequently too young to know what the condition of the country was at the time I published 'Common Sense,'—for I do not believe that independence would have been declared, had it not been for the effect of that work,—they are not capable of judging of the whole of the services of Thomas Paine. If my memorial was referred to the Committee on Claims for the purpose of losing it, it is unmanly policy. After so many years of service, my heart grows cold towards America."

His heart was soon to grow cold to all the world. In the spring of 1809, it became evident to Paine's attendants that his end was approaching. As death drew near, the memories of early youth arose vividly in his mind. He wished to be buried in the cemetery of the Quakers, in whose principles his father had educated him. He sent for a leading member of the sect to ask a resting-place for his body in their ground. The request was refused.

When the news got abroad that the Arch-Infidel was dying, foolish old women and kindred clergymen, who "knew no way to bring home a

wandering sheep but by worrying him to death," gathered together about his bed. Even his physician joined in the hue-and-cry. It was a scene of the Inquisition adapted to North America,—a Protestant *auto da fé*. The victim lay helpless before his persecutors; the agonies of disease supplied the place of rack and fagot. But nothing like a recantation could be wrung from him. And so his tormentors left him alone to die, and his freethinking smiths and cobblers rejoiced over his fidelity to the cause.

He was buried on his farm at New Rochelle, according to his latest wishes. "Thomas Paine. Author of 'Common Sense,'" the epitaph he had fixed upon, was carved upon his tomb. A better one exists from an unknown hand, which tells, in a jesting way, the secret of the sorrows of his later life:

"Here lies Tom Paine, who wrote in liberty's defence,
And in his 'Age of Reason' lost his 'Common Sense.'"

Ten years after, William Cobbett, who had left England in a fit of political disgust and had settled himself on Long Island to raise hogs and ruta-bagas, resolved to go home again. Cobbett had become an admirer, almost a disciple of Paine. The "Constitution-grinder" of '96 was now "a truly great man, a truly philosophical politician, a mind as far superior to Pitt and Burke as the light of a flambeau is superior to that of a rush-light." Above all, Paine had been Cobbett's teacher on financial questions. In 1803, Cobbett read his "Decline and Fall of the English System," and then "saw the whole matter in its true light; and neither pamphleteers nor speech-makers were after that able to raise a momentary puzzle in his mind." Perhaps Cobbett thought he might excite a sensation in England and rally about him the followers of Paine, or it may be that he wished to repair the gross injustice he had done him by some open act of adherence; at all events, he exhumed Paine's body and took the bones home with him in

1819, with the avowed intention of erecting a magnificent monument to his memory by subscription. In the same manner, about two thousand two hundred and fifty years ago, the bones of Theseus, the mythical hero of Democracy, were brought from Skyros to Athens by some Attic [Greek: Kobbetaes]. The description of the arrival in England we quote from a Liverpool journal of the day:—"When his last trunk was opened at the Custom-House, Cobbett observed to the surrounding spectators, who had assembled in great numbers,—'Here are the bones of the late Thomas Paine.' This declaration excited a visible sensation, and the crowd pressed forward to see the contents of the package. Cobbett remarked,—'Great, indeed, must that man have been whose very bones attract such attention!' The officer took up the coffin-plate inscribed, 'Thomas Paine, Aged 72. Died January 8, 1809,' and, having lifted up several of the bones, replaced the whole and passed them. They have since been forwarded from this town to London."

At a public dinner given to Cobbett in Liverpool, Paine was toasted as "the Noble of Nature, the Child of the Lower Orders"; but the monument was never raised, and no one knows where his bones found their last resting-place.

Cobbett himself gained nothing by this resurrectionist performance, except an additional couplet in the party-songs of the day:—

"Let Cobbett of borough-corruption complain,
And go to the De'il with the bones of Tom Paine."

The two were classed together by English Conservatives, as "pestilent fellows" and "promoters of sedition."

It is now fifty years since Paine died; but the *nil de mortuis* is no rule in his case. The evil associations of his later days have pursued him beyond

the grave. A small and threadbare sect of "liberals," as they call themselves,—men in whom want of skill, industry, and thrift has produced the usual results,—have erected an altar to Thomas Paine, and, on the anniversary of his birth, go through with a pointless celebration, which passes unnoticed, unless in an out-of-the-way corner of some newspaper. In this class of persons, irreligion is a mere form of discontent. They have no other reason to give for the faith which is not in them. They like to ascribe their want of success in life to something out of joint in the thoughts and customs of society, rather than to their own shortcomings or incapacity. In France, such persons would be Socialists and *Rouges*; in this country, where the better classes only have any reason to rebel, they cannot well conspire against government, but attack religion instead, and pride themselves on their exemption from prejudice. The "Age of Reason" is their manual. Its bold, clear, simple statements they can understand; its shallowness they are too ignorant to perceive; its coarseness is in unison with their manners. Thus the author has become the Apostle of Free-thinking tinkers and the Patron Saint of unwashed Infidelity.

To this generation at large, he is only an indistinct shadow,—a faint reminiscence of a red nose,—an ill-flavored name, redolent of brandy and of brimstone, his beverage in life and his well-earned punishment in eternity, which suggests to the serious mind dirt, drunkenness, and hopeless damnation. Mere worldlings call him "Tom Paine," in a tone which combines derision and contempt. A bust of him, by Jarvis, in the possession of the New York Historical Society, is kept under lock and key, because it was defaced and defiled by visitors, while a dozen other plaster worthies that decorate the institution remained intact. Nevertheless, we suspect that most of our readers, if they cannot date back to the first decade of the century, will find, when they sift their information, that they have only a speaking acquaintance with Thomas Paine, and can give no good reason for their dislike of him.

And it is not easy for the general reader to become intimate with him. He will find him, of course, in Biographical Dictionaries, Directories of the City of the Great Dead, which only tell you where men lived, and what they did to deserve a place in the volume; but as to a life of him, strictly speaking, there is none. Oldys and Cobbett tried to flay him alive in pamphlets; Sherwin and Clio Rickman were prejudiced friends and published only panegyrics. All are out of print and difficult to find. Cheetham's work is a political libel; and the attempt of Mr. Vail of the "Beacon" to canonize him in the "Infidel's Calendar," cannot be recommended to intelligent persons. We might expect to meet with him in those books of lives so common with us,—collections in which a certain number of deceased gentlemen are bound up together, so resembling each other in feature that one might suppose the narratives ground out by some obituary-machine and labelled afterward to suit purchasers. Even this "sign-post biography," as the "Quarterly" calls it, Paine has escaped. He was not a marketable commodity. There was no demand for him in polite circles. The implacable hand of outraged orthodoxy was against him. Hence his memory has lain in the gutter. Even his friend Joel Barlow left him out of the "Columbiad," to the great disgust of Clio Rickman, who thought his name should have appeared in the Fifth Book between Washington and Franklin. Surely Barlow might have found room for him in the following "Epic List of Heroes":—

"Wythe, Mason, Pendleton, with Henry joined,
Rush, Rodney, Langdon, friends of humankind,
Persuasive Dickinson, the farmer's boast,
Recording Thompson, pride of all the host,
Nash, Jay, the Livingstons, in council great,
Rutledge and Laurens, held the rolls of fate."

But no! Neither author nor authorling liked to have his name seen in company with Thomas Paine. And when a curious compiler has taken him up, he has held him at arm's length, and, after eyeing him cautiously, has dropped him like some unclean and noxious animal.

Sixty years ago, Paine's friends used to say, that, "in spite of some indiscreet writings on the subject of religion," he deserved the respect and thanks of Americans for his services. We think that he deserves something more at the present day than this absolute neglect. There is stuff enough in him for one volume at least. His career was wonderful, even for the age of miraculous events he lived in. In America, he was a Revolutionary hero of the first rank, who carried letters in his pocket from George Washington, thanking him for his services. And he managed besides to write his radical name in large letters in the History of England and of France. As a mere literary workman, his productions deserve notice. In mechanics, he invented and put up the first iron bridge of large span in England; the boldness of the attempt still excites the admiration of engineers. He may urge, too, another claim to our attention. In the legion of "most remarkable men" these United States have produced or imported, only three have achieved infamy: Arnold, Burr, and Paine. What are Paine's titles to belong to this trio of disreputables? Only these three: he wrote the "Age of Reason"; was a Democrat, perhaps an unusually dirty one; and drank more brandy than was good for him. The "Age of Reason" is a shallow deistical essay, in which the author's opinions are set forth, it is true, in a most offensive and irreverent style. As Dr. Hopkins wrote of Ethan Allen,—

"One hand was clenched to batter noses,
While t'other scrawled 'gainst Paul and Moses."

But who reads it now? On the other hand, no one who has studied Paine's career can deny his honesty and his disinterestedness; and every

unprejudiced reader of his works must admit not merely his great ability in urging his opinions, but that he sincerely believed all he wrote. Let us, then, try to forget the carbuncled nose, the snuffy waistcoat, the unorthodox sneer. We should wipe out his later years, cut his life short at 1796, and take Paine when he wrote "Common Sense," Paine when he lounged at the White Bear in Piccadilly, talking over with Horne Tooke the answer to Mr. Burke's "Reflections," and Paine, when, as "foreign benefactor of the species," he took his seat in the famous French Convention.

It would repay some capable author to dig him up, wash him, and show him to the world as he was. A biography of him would embrace the history of the struggle which established the new theory of politics in government. He is the representative man of Democracy in both hemispheres,—a good subject in the hands of a competent artist; and the time has arrived, we think, when justice may be done him. As a general rule, it is yet too soon to write the History of the United States since 1784. Half a century has not been sufficient to wear out the bitter feeling excited by the long struggle of Democrats and Federalists. Respectable gentlemen, who, more pious than Aeneas, have undertaken to carry their grandfathers' remains from the ruins of the past into the present era, seem to be possessed with the same demon of discord that agitated the deceased ancestors. The quarrels of the first twenty years of the Constitution have become chronic ink-feuds in certain families. A literary *vendetta* is carried on to this day, and a stab with the steel pen, or a shot from behind the safe cover of a periodical, is certain to be received by any one of them who offers to his enemy the glorious opportunity of a book. Where so much temper exists, impartial history is out of the question.

Our authors, too, as a general rule, have inherited the political jargon of the last century, and abound in "destiny of humanity," "inalienable rights," "virtue of the sovereign people," "base and bloody despots," and all that sort

of phrase, earnest and real enough once, but little better than cant and twaddle now. They seem to take it for granted that the question is settled, the rights of man accurately defined, the true and only theory of government found,—and that he who doubts is blinded by aristocratic prejudice or is a fool. We must say, nevertheless, that Father Time has not yet had years enough to answer the great question of governing which was proposed to him in 1789. Some of the developments of our day may well make us doubt whether the last and perfect form, or even theory, is the one we have chosen. "*Les monarchies absolues avaient deshonoré le despotisme: prenons garde que les républiques démocratiques ne le réhabilitent.*" But Paine's part in the history of this country after 1783 is of so small importance, that in a life of him all such considerations may be safely waived. The democratic movement of the last eighty years, be it a "finality," or only a phase of progress towards a more perfect state, is the grand historical fact of modern times, and Paine's name is intimately connected with it. One is always ready to look with lenity on the partiality of a biographer,—whether he urge the claims of his hero to a niche in the Valhalla of great men, or act as the *Advocatus Diaboli* to degrade his memory.

OF BOOKS AND THE READING THEREOF.

BEING A THIRD LETTER FROM PAUL POTTER, OF NEW YORK, IN THE CITY AND COUNTY OF NEW YORK, ESQ., TO THE DON ROBERTO WAGONERO, OF WASHINGTON, *olim*, BUT *nunc* OF NOWHEREINPARTICULAR.

If any person, O my Bobus, had foretold that all these months would go by before I should again address you, he would have exhibited prescient talent great enough to establish twenty "mediums" in a flourishing cabalistic business. Alas! they have been to me months of fathomless distress, immensurate and immeasurable sorrow, and blank, blind, idiotic indifference, even to books and friends, which, next to the nearest and dearest, are the world's most priceless possession. But now that I have a little thrown off the stupor, now that kindly Time has a little balmed my cruel wounds, I come back to my books and to you,—to the *animi remissionem* of Cicero,—to these gentle sympathizers and faithful solacements,—to old studies and ancient pursuits. There is a Latin line, I know not whose, but Swift was fond of quoting it,—

"Vertiginosus, inops, surdus, male gratus amicis,"—

which I have whispered to myself, with prophetic lips, in the long, long watches of my lonesome nights. Do you remember—but who that has read

it does not?—that affecting letter, written upon the death of his wife, by Sir James Mackintosh to Dr. Parr? "Such was she whom I have lost; and I have lost her when her excellent natural sense was rapidly improving, after eight years of struggle and distress had bound us fast together and moulded our tempers to each other,—when a knowledge of her worth had refined my youthful love into friendship, before age had deprived it of much of its original ardor. I lost her, alas! (the choice of my youth, and the partner of my misfortunes,) at a moment when I had the prospect of her sharing my better days."

But if I am getting old, although perhaps prematurely, I must be casting about for the *subsidia senectuti*. Swift wrote to Gay, that these were "two or three servants about you and a convenient house"; justly observing, that, "when a man grows hard to please, few people care whether he be pleased or no"; and adding, sadly enough, "I should hardly prevail to find one visitor, if I were not able to hire him with a bottle of wine"; and so the sorrowful epistle concludes with the sharpest grief of all: "My female friends, who could bear with me very well a dozen years ago, have now forsaken me." It is odd that Montaigne should have hit upon the wine also as among the *subsidia senectuti*; although the sage Michael complains, as you will remember, that old men do not relish their wine, or at least the first glass, because "the palate is furred with phlegms." But I care little either for the liquor or the lackeys, and not much, I fear, at present, for "the female friends." I have, then, nothing left for it but to take violently to books; for I doubt not I shall find almost any house convenient, and I am sure of one at last which I can claim by a title not to be disturbed by all the precedents of Cruise, and in which no mortal shall have a contingent remainder.

To books, then, I betake myself,—to books, "the immortal children" of "the understanding, courage, and abilities" of the wise and good,—ay! and to inane, drivelling, doting books, the bastard progeny of vanity and

ignorance,—books over which one dawdles in an amusing dream and pleasant spasm of amazement, and which teach us wisdom as tipsy Helots taught the Spartan boys sobriety. Montaigne "never travelled without books, either in peace or war"; and as I found them pleasant in happier days, so I find them pleasant now. Of course, much of this omnivorous reading is from habit, and, *invitâ Minervâ*, cannot be dignified by the name of study,—that stiff, steady, persistent, uncompromising application of the mind, by virtue of which alone the *Pons Asinorum* can be crossed, and the Forty-Seventh Problem of Euclid—which I entirely disbelieve—mastered.

I own to a prodigious respect, entertained since my Sophomore year at the University, for those collegiate youth whose terribly hard study of Bourdon and Legendre seems to have such a mollifying effect upon their heads,—but, as the tradesmen say, that thing is "not in my line." I would rather have a bundle of bad verses which have been consigned to the pastry-cook. I suppose—for I have been told so upon good authority—that, if "equals be taken from equals, the remainders are equal." I do not see why they should not be, and, as a citizen of the United States of America, the axiom seems to me to be entitled to respect. When a youthful person, with a piece of chalk in his hand, before commencing his artistic and scientific achievements upon the black-board, says: "Let it be granted that a straight line may be drawn from any one point to any other point," I invariably answer, "Of course,—by all manner of means,"—although you know, dear Don, that, if I should put him upon mathematical proof of the postulate, I might bother him hugely. But when we come to the Fourteenth Proposition of Euclid's *Data*,—when I am required to admit, that, "if a magnitude together with a given magnitude has a given ratio to another magnitude, the excess of this other magnitude above a given magnitude has a given ratio to the first magnitude; and if the excess of a magnitude above a given magnitude has a given ratio to another magnitude, this other magnitude together with a given ratio to the first magnitude,"—I own to a slight

confusion of my intellectual faculties, and a perfect contempt for John Buteo and Ptolemy. Then, there is Butler's "Analogy"; an excellent work it is, I have been told,—a charming work to master,—quite a bulwark of our faith; but as, in my growing days, it was explained to me, or rather was not explained, before breakfast, by a truculent Doctor of Divinity, whom I knew to be ugly and felt to be great, of course, the good Bishop and I are not upon the best of terms.

I suppose that for drilling, training, and pipe-claying the human mind all these things are necessary. I suppose, that, in our callow days, it is proper that we should be birched and wear fetters upon our little, bandy, sausage-like legs. But let me, now that I have come to man's estate, flout my old pedagogues, and, playing truant at my will, dawdle or labor, walk, skip, or run, go to my middle in quagmires, or climb to the hill-tops, take liberties with the venerable, snub the respectable, and keep the company of the disreputable,—dismiss the Archbishop without reading his homily,—pass by a folio in twenty grenadier volumes to greet a little black-coated, yellow-faced duodecimo,—speak to the forlorn and forsaken, who have been doing dusty penance upon cloistered shelves in silent alcoves for a century, with none so poor to do them reverence,—read here one little catch which came from lips long ago as silent as the clod which they are kissing, and there some forgotten fragment of history, too insignificant to make its way into the world's magnificent chronologies,—snapping up unconsidered trifles of anecdote,—tasting some long-interred *bon-mot* and relishing some disentombed scandal,—pausing over the symphonic prose of Milton, only to run, the next moment, to the Silenian ribaldry of Tom Brown the younger,—and so keeping up a Saturnalia, in which goat-footed sylvans mix with the maidens of Diana, and the party-colored jester shakes his truncheon in the face of Plato. Only in this wild and promiscuous license can we taste the genuine joys of true perusal.

I suppose, my dear friend, that, when you were younger and foolisher than you now are, you were wont, after the reading of some dismal work upon diet and health, to take long, constitutional walks. You "toddled"—pardon the vulgar word!—so many miles out and so many miles in, at just such a pace, in just the prescribed time, during hours fixed as the Fates; and you wondered, when you came home to your Graham bread and cold water, that you did not bring an appetite with you. You had performed incredible pedestrian achievements, and were not hungry, but simply weary. It is of small use to try to be good with malice prepense. Nature is nothing, if not natural. If I am to read to any purpose, I must read with a relish, and browse at will with the bridle off. Sometimes I go into a library, the slow accretion of a couple of centuries, or perhaps the mushroom growth from a rich man's grave, a great collection magically convoked by the talisman of gold. At the threshold, as I ardently enter, the flaming sword of regulation is waving. Between me and the inviting shelves are fences of woven iron; the bibliographic Cerberus is at his sentryship; when I want a full draught, I must be content with driblets; and the impatient messengers are sworn to bring me only a single volume at a time. To read in such a hampered and limited way is not to read at all; and I go back, after the first fret and worry are over, to the little collection upon my garret-shelf, to greet again the old familiar pages. I leave the main army behind,—“the lordly band of mighty folios,” “the well-ordered ranks of the quartos,” “the light octavos,” and “humbler duodecimos,” for

“The last new play, and frittered magazine,”—

for the sutlers and camp-followers, “pioneers and all,” of the grand army,—for the prizes, dirty, but curious, rescued from the street-stall, or unearthed in a Nassau-Street cellar,—for the books which I thumbed and dogs-eared in my youth.

I have, in my collection, a little Divinity, consisting mostly of quaint Quaker books bequeathed to me by my grandmother,—a little Philosophy, a little Physic, a little Law, a little History, a little Fiction, and a deal of Nondescript stuff. Once, when the *res angusta domi* had become *angustissima*, a child of Israel was, in my sore estate, summoned to inspect the dear, shabby colony, and to make his sordid aureat or argent bid therefor. Well do I remember how his nose, which he could not, if his worthless life had depended upon it, render *retroussé*, grew sublimely curvilinear in its contempt, as his hawk-eyes estimated my pitiful family. I will not name the sum which he offered, the ghoul, the vampire, the anthropophagous jackal, the sneaking would-be incendiary of my little Alexandrian, the circumcised Goth! He left me, like Churchill's Scotch lassie, "pleased, but hungry"; and I found, as Valentine did in Congreve's "Love for Love," "a page doubled down in Epictetus which was a feast for an emperor."

I own, my excellent Robert, that a bad book is, to my taste, sometimes vastly more refreshing than a good one. I do not wonder that Crabbe, after he had so sadly failed in his medical studies, should have anathematized the medical writers in this fine passage:—

"Ye frigid tribe, on whom I waited long
The tedious hours, and ne'er indulged in song!
Ye first seducers of my easy heart,
Who promised knowledge ye could not impart!
Ye dull deluders, Truth's destructive foes!
Ye Sons of Fiction, clad in stupid prose!
Ye treacherous leaders, who, yourselves in doubt,
Light up false fires, and send us far about!—
Still may yon spider round your pages spin,
Subtle and slow, her emblematic gin!

Buried in dust and lost in silence dwell!

Most potent, grave, and reverend friends,—farewell!"

I acknowledge the vigor of these lines, which nobody could have written who had not been compelled, in the sunny summer-days, to bray drugs in a mortar. Yet who does not like to read a medical book?—to pore over its jargon, to muddle himself into a hypo, and to imagine himself afflicted with the dreadful disease with the long Latin name, the meaning of which he does not by any means comprehend? And did not the poems of our friend Bavius Blunderbore, Esq., which were of "a low and moderate sort," cause you to giggle yourself wellnigh into an asphyxy,—calf and coxcomb as he was? Is not ——'s last novel a better antidote against melancholy, stupendously absurd as it is, than foalfoot or plantain, featherfew or savin, agrimony or saxifrage, or any other herb in old Robert Burton's pharmacopoeia? I am afraid that we are a little wanting in gratitude, when we shake our sides at the flaying of Marsyas by some Quarterly of Apollo, —to the dis-cuticld, I mean. If he had not piped so stridently, we should not have had half so much sport; yet small largess does the miserable minstrel get for tooting tunelessly. Let us honor the brave who fall in the battle of print. 'Twas a noble ambition, after all, which caused our asinine friend to cloak himself in that cast leonine skin. Who would be always reciting from a hornbook to Mistress Minerva? What, I pray you, would become of the corn, if there were no scarecrows? All honor to you, then, my looped and windowed sentinel, standing upon the slope of Parnassus,—standing so patiently there, with your straw bowels, doing yeoman-service, spite of the flouts and gibes and cocked thumbs of Zoilus and his sneering, snarling, verjuicy, captious crew,—standing there, as stood the saline helpmate of Lot, to fright our young men and virgins from the primrose-pitfalls of Poesy,—standing there to warn them against the seductions of Phoebus, and to teach them that it is better to hoe than to hum!

The truth is, that the good and clever and *polyphloisboic* writers have too long monopolized the attention of the world, so that the little, well-intentioned, humble, and stupid plebeians of the guild have been snubbed out of sight. Somebody—the name is not given, but I shrewdly suspect Canon Smith—wrote to Sir James Mackintosh,—“Why do you not write three volumes quarto? You only want this to be called the greatest man of your time. People are all disposed to admit anything we say of you, but I think it unsafe and indecent to put you so high without something in quarto.” This was, of course, half fun and half truth. As there is, however, little need of setting the world on fire to demonstrate some chemical theory, so it is possible that the flame of culture may be cherished without kindling a conflagration, and truth transmitted from sire to son without the construction of edificial monsters too big for the knees, too abstruse for the brains, and too great for the lifetime of humanity. I am not a very constant reader of Mr. Robert Browning, but I own to many a pleasant grin over his Sibrandus Schafnabrugensis dropped into the crevice of the plum-tree, and afterward pitifully reclaimed, and carried to its snug niche with the promise,

"A.'s book shall prop you up, B.'s shall cover you,
Here's C. to be grave with, or D. to be gay;
And with E. on each side, and F. right over you,
Dry-rot at ease till the Judgment Day!"

How often, when one is roving through a library in search of adventures, is he encountered by some inflated champion of huge proportions, who turns out to be no better than a barber, after all! Gazing upon

"That weight of wood, with leathern coat o'erlaid,
Those ample clasps, of solid metal made,
The close-pressed leaves, unloosed for many an age,

The dull red edging of the well-filled page,
On the broad back the stubborn ridges rolled,
Where yet the title stands, in burnished gold,"—

what wisdom, what wit, what profundity, what vastness of knowledge, what a grand gossip concerning all things, and more beside, did we anticipate, only to find the promise broken, and a big impostor with no more muscle than the black drone who fills the pipes and sentries the seraglio of the Sophi or the Sultan! The big, burly beggars! For a century nobody has read them, and therefore everybody has admitted them to be great. They are bulky paradoxes, and find a good reputation in neglect,—as some fools pass for philosophers by preserving a close mouth and a grave countenance.

"Safe in themselves, the ponderous works remain."

It was a keen sense of this disproportion between size and sense which barbed the sharpest arrows of Dr. Swift. Nobody ever imposed upon him either by bigness or by bluster. "The Devil take stupidity," once cried the Dean of St. Patrick's, "that it will not come in to supply the want of philosophy!" So in the Introduction to "The Tale of a Tub," he, half in jest and half in earnest, declares that "wisdom is like a cheese, whereof to a judicious taste the maggots are the best." *Vive la bagatelle!* trembled upon his lips at the age of threescore; and he amused himself with reading the most trifling books he could find, and writing upon the most trifling subjects. Lord Bolingbroke wrote to him to beg him "to put on his philosophical spectacles," and wrote with but small success. Pope wrote to him, "to beg it of him, as a piece of mercy, that he would not laugh at his gravity, but permit him to wear the beard of a philosopher until he pulled it off and made a jest of it himself." Old Weymouth, in the latter part of Anne's reign, said to him, in his lordly Latin, "*Philosophia verba ignava*

opera," and Swift frequently repeated the sarcasm. One cannot figure him as the "laughing old man" of Anacreon, for there was certainly a dreadful dash of vinegar in his composition; but if he did not hate hard enough, hit hard enough, and weigh men, motives, and books, nicely enough to satisfy Dr. Johnson, the Bolt-Courtier must have been a very leech of verjuice. There is a passage in one of his letters to Pope,—I cannot just now put my hand upon it,—in which he suggests, in rather coarse language, the subject of "The Beggar's Opera" as a capital subject for their common friend, Gay. And yet one can barely suppress a sigh at all this luxury of levity, when he remembers that dreadful "*Ubi saeva indignatio ulterius cor lacerare nequit*," and reflects upon the hope deferred which vented itself in that stinging couplet,—

"In every court the parallel will hold; And kings, like private folks, are bought and sold."

I remember a hack-writer,—and of such, I am afraid, is too exclusively my literary kingdom,—who classified the vices which Swift smote so fearfully in "The Voyage to the Houyhnhnms"; and the curious catalogue contained "avarice, fraud, cheating, violence, rapine, extortion, cruelty, oppression, tyranny, rancor, envy, malice, detraction, hatred, revenge, murder, bribery, corruption, pimping, lying, perjury, subornation, treachery, ingratitude, gaming, flattery, drunkenness, gluttony, luxury, vanity, effeminacy, cowardice, pride, impudence, hypocrisy, infidelity, blasphemy, idolatry, and innumerable other vices, many of them the notorious characteristics of the bulk of humankind." Delightful catalogue! How odd, indeed, that a man with such work to do should not have sported with Amaryllis, or played with the tangles of Neaera's hair,—should not have worn well-anointed love-locks and snowy linen,—should, on the other hand, have bared his brawny arm, and sent the hissing flail down swiftly upon the waled and blistered back of Sham! How much better would it have

been, if he had written a history, in twelve elephantine volumes, of the rise, culmination, and decay of the Empire of Barataria, which we would have gone to prison, the rack, and the drop, with rapture rather than read!

How low seems Fielding, with his pot-house heroes, Tom Jones, Squire Western, and Jonathan Wild, when we contrast them with the elegant, cleanly-polished, and extremely proper Sir Charles Grandison! What a coarse drab is Molly Seagrim, when juxtaposited with the princess of all prudes, the indomitably virtuous Pamela! How childish was it of Cowper to sing of sofas, poultry, rabbits, orchards, meadows, and barnyards! How much more nobly employed was John Dryden in manufacturing a brand-new, truculent, loud-voiced, massively-calved, ensiferous Alexander! Who but an addle-headed sot would have wandered up and down the lanes, like Morland, chalking out pigs and milkmaids, when he might have been painting, like Barry, pictures, by the acre, of gods and goddesses enacting incomprehensible allegories! Let us be respectable, O my Bobus, and wear good coats and the best hats to be had for money or upon credit; let us carefully conceal our connection with "The Gotham Revolver," although the honest people who print it do give us our beer and mutton; let us write great histories which nobody will read, engage in tractations to which nobody will listen, build twelve-storied epics which nobody will publish, and invent Gordian philosophies which nobody can untie. Surely it is quite time for Minerva to have a general house-cleaning, to put on a fresh smock, and to live cleanly. Rabelais shall be washed, and Sterne sad-ironed into gravity; De Foe shall be made as decorous as a tract; Mandeville shall be reburned, and we will kindle the fire with half the leaves of this dry and yellow Montaigne. Nobody shall approach the waters of Castaly save upon stilts; and whoever may giggle, as he takes his physic, shall be put upon a dreadfully plentiful allowance of Guiciardini for bread, and of the poems of ——- ——- for water.

But, alas! Brother Bobus, where to begin our purification, and where to end it? We may, like the curate in "Don Quixote," reprieve Amadis de Gaul, but shall we, therefore, make Esplandian, "his lawful-begotten son," a foundation for the funeral-pile we are to set a-blazing presently? To be sure, there is sense in the observation of the good and holy priest upon that memorable occasion. "This," said the barber, "is Amadis of Greece; and it is my opinion that all those upon this side are of the same family." "Then pitch them all into the yard," responded the priest; "for, rather than miss the satisfaction of roasting Queen Pintiquiniestra and the pastorals of Darinel the Shepherd and his damned unintelligible speculations, I would burn my own father along with them, if I found him playing at knight-errantry." So into the yard went "Olivante de Laura, the nonsensical old blockhead," "rough and dull Florismart of Hyrcania," "noble Don Platir," with nothing in him "deserving a grain of pity," Bernardo del Carpio, and Roncesvalles, and Palmerin de Oliva. What a delicious scene it is! The fussy barber, tired of reading titles and proceeding to burn by wholesale, passing down books in armfuls to the eager housekeeper, more ready to burn them than ever she had been to weave the finest lace. And how charming is the hit of the Curate! "Certainly, these cannot be books of knight-errantry, they are too small; you'll find they are only poets,"—the supplication of the niece that the singers should not be spared, lest her uncle, when cured of his knight-errantry, should read them, become a shepherd, and wander through forests and fields,—"nay, and what is more to be dreaded, turn poet, which is said to be a disease absolutely incurable." So down went "the longer poems" of Diana de Montemayor, the whole of Salmantino, with the Iberian Shepherd and the Nymphs of Henares. The impatience of the curate, who, completely worn out, orders all the rest to be burned *á canga cerrada*, fitly rounds the chapter, and sends us in good-humor from the *auto da fé*, while the poor knight is in his bedchamber, all unconscious of the purification in progress, which, if he had known it, mad as he was, would have made his madness

starker still, thrashing about with his sword, back-stroke and fore-stroke, and, as Motteux translates it, "making a heavy bustle." 'Tis all droll enough; especially when we find that the housekeeper made such clean work of it in the evening, in spite of the good curate's reservations, and burnt all the books, not only those in the yard, but all those that were in the house; but I should think twice before I let Freston the necromancer into any library with which I am acquainted.

Let us be gentle with the denizens of Fame's proud temple, no matter how they came there. You remember, I suppose, Swift's couplet,—

"Fame has but two gates,—a white and a black one;
The worst they can say is I got in at the back one."

"I have nothing," wrote Pope to his friend Cromwell, "to say to you in this latter; but I was resolved to write to tell you so. Why should not I content myself with so many great examples of deep divines, profound casuists, grave philosophers, who have written, not letters only, but whole tomes and voluminous treatises about nothing? Why should a fellow like me, who all his life does nothing, be ashamed to write nothing, and that, too, to one who has nothing to do but read it?" And so, with "*ex nihilo nil fit*," he laughingly ends his letter.

And now, while I am at it, I must quote a passage, somewhat germane, from the very next letter, which Pope wrote to the same friend:—"You talk of fame and glory, and of the great men of antiquity. Pray, tell me, what are all your great dead men, but so many living letters? What a vast reward is here for all the ink wasted by writers and all the blood spilt by princes! There was in old time one Severus, a Roman Emperor. I dare say you never called him by any other name in your life; and yet in his days he was styled Lucius, Septimius, Severus, Pius, Pertinax, Augustus, Parthicus, Adiabenicus, Arabicus, Maximus, and what not? What a prodigious waste

of letters has time made! What a number have here dropped off, and left the poor surviving seven unattended! For my own part, four are all I have to take care of; and I'll be judged by you, if any man could live in less compass. Well, for the future, I'll drown all high thoughts in the Lethe of cowslip-wine; as for fame, renown, reputation, take 'em, critics! If ever I seek for immortality here, may I be damn'd, for there's not much danger in a poet's being damn'd,—

'Damnation follows death in other men,
But your damn'd Poet lives and writes agen."

And so they do, even unto the present, otherwise blessed day. But, dear old friend, is not this sublime sneering? and is there not an honest ray or two of truth mingled here and there in the colder coruscations of this wit? Of the sincerity of this repudiation and renunciation so fashionable in the Pope circle I have nothing to say; but in certain moods of the mind it is vastly entertaining, and cures one's melancholy as cautery cures certain physical afflictions. It may be amusing for you also to notice that Don Quixote's niece and Pope were of the same mind. She called poetry "a catching and incurable disease," and Pope's unfortunate Poet "lives and writes agen."

And, after all, Bobus, why should we not be tender with all the gentlemen who crowd the catalogues and slumber upon the shelves? It may be all very well for you or me, whose legend should be

"Prandeo, poto, cano, ludo, lego, coeno, quiesco,"

to laugh at them; but who shall say that they did not do their best, and, if they were stupid, pavonian, arrogant, self-sufficient, and top-heavy, that they were not honestly so? I always liked that boast of Flaccus about his "monument harder than brass." It is a cheerful sight to see a poor devil of an

author in his garret, snapping his fingers at the critics. "No beggar," wrote Pope, "is so poor but he can keep a cur, and no author so beggarly but he can keep a critic." And, after all, abuse is pleasanter than contemptuous and silent neglect. I do honestly believe, that, if it were not for a little too much false modesty, every author, and especially the poets, would boldly and publicly anticipate posthumous fame. Do you think that Sir Thomas Urquhart, when he wrote his "[Greek: EKSKUBALAURON], or, The Discovery of a most Precious Jewel," etc., fancied that the world would willingly let his reverberating words faint into whispers, and, at last, into utter silence?—his "metonymical, ironical, metaphorical, and synecdochal instruments of elocution, in all their several kinds, artificially affected, according to the nature of the subject, with emphatical expressions in things of great concernment, with catachrestical in matters of meaner moment; attended on each side respectively with an epileptic and exegetic modification, with hyperbolical, either epitatically or hypocoristically, as the purpose required to be elated or extenuated, they qualifying metaphors, and accompanied with apostrophes; and, lastly, with allegories of all sorts, whether apologetical, affabulatory, parabolary, aenigmatic, or paroemial"? Would you have thought that so much sesquipedality could die? Certainly the Knight of Cromartie did not, and fully believing Posterity would feel an interest in himself unaccorded to any one of his contemporaries, he kindly and prudently appended the pedigree of the family of Urquharts, preserving every step from Adam to himself. This may have been a vanity, but after all it was a good sturdy one, worthy of a gentleman who could not say "the sun was setting," but who could and did say "our occidental rays of Phoebus were upon their turning oriental to the other hemisphere of the terrestrial globe." Alas! poor Sir Thomas, who must needs babble the foolish hopes which wiser men reticently keep cloistered in their own bosoms! who confessed what every scribbler thinks, and so gets laughed at,—as wantons are carried to the round-house for airing their incontinent phraseology in the

street, while Blowsalinda reads romances in her chamber without blushing. Modesty is very well; but, after all, do not the least self-sufficient of us hope for something more than the dirty dollars,—for kindness, affection, loving perusal, and fostering shelter, long after our brains have mouldered, and the light of our eyes has been quenched, and our deft fingers have lost their cunning, and the places that knew us have forgotten our mien and speech and port forever? Very, very few of us can join in Sir Boyle Roche's blundering sneer at posterity, and with the hope of immortality mingles a dread of utter oblivion here. Will it not be consoling, standing close by the graves which have been prepared for us, to leave the world some little legacy of wisdom sedulously gleaned from the fields of the fading past,—some intangible, but honest wealth, the not altogether worthless accumulation of an humble, but earnest life,—something which may lighten the load of a sad experience, illuminate the dark hours which as they have come to all must come to all through all the ages, or at least divert without debauching the mind of the idler, the trifler, and the macaroni? I believe this ingenuous feeling to be very far removed from the wheezy aspirations of windy ignorance, or the spasms for fame which afflict with colic the bowels, empty and flatulent, of sheer scribblers and dunces who take a mean advantage of the invention of printing. Let us be tender of the honest gentlemen who, to quote Cervantes, "aim at somewhat, but conclude nothing." I cannot smile at the hopes of the boy Burns,—

"That *he*, for poor auld Scotland's sake,
Some usefu' plan or beuk could make,
Or sing a sang at least."

And while I am in a humor for quotation, I must give you this muscular verse from Henry More's "Platonic Song of the Soul":—

"Their rotten relics lurk close under ground;
With living weight no sense or sympathy
They have at all; nor hollow thundering sound
Of roaring winds that cold mortality
Can wake, ywraught in sad Fatality:
To horse's hoof that beats his grassie dore
He answers not: the moon in silency
Doth passe by night, and all bedew him o'er
With her cold, humid rayes; but he feels not Heaven's power."

How we shiver in the icy, midnight moonbeams of the recluse of Christ's College! How precious golden seem the links of our universal brotherhood, when the Fates are waving their dark wings around us, and menace us with their sundering! I am not sure, my worthy Wagonero, that, rather than see my own little cord finally cut, I would not consent to be laughed at by a dozen generations, in the hope that it might happen to me that the thirteenth, out of sheer weariness at the prolonged lampooning, might grow pitiful at my purgatorial experiences, and so betake itself to nursing and fondling me into repute, furnishing me with half-a-dozen of those lynx-eyed commentators who would discern innumerable beauties and veracities through the calfskin walls of my beatified bantling. They might find, at last, that I had "the gold-strung harp of Apollo" and played a "most excellent diapason, celestial music of the spheres,"—hearing the harmony

"As plainly as ever Pythagoras did,"

when "Venus the treble ran sweet division upon Saturn the bass."

Write for posterity! Pray, whom should we write for, in this age which makes its own epic upon sounding anvils, and whose lyric is yelled from the locomotive running a muck through forest and field and beside the

waters no longer still? Write poetry now, when noise has become normal, and we are like the Egyptians, who never heard the roaring of the fall of Nilus, because the racket was so familiar to them! The age "capers in its own fee simple" and cries with the Host in "The Merry Devil of Edmonton," "Away with punctilios and orthography!" Write poetry now! Thank you, my ancient friend! "My fiddlestick cannot play without rosin." To be sure, I am, like most minstrels, ready for an offer; and should any lover of melody propose

"Two hundred crowns, and twenty pounds a year
For three good lives,"

I should not be slow in responding, "Cargo! hai Trincalo!" and in presently getting into the best possible trim and tune. But the poet may say now, with the Butler in the old play, "Mine are precious cabinets, and must have precious jewels put into them; and I know you to be merchants of stock-fish, dry meat, and not men for my market; then vanish!"

Barrow said that "poetry was a kind of ingenious nonsense"; and I think, that, deceived by the glut, the present time is very much of Barrow's mind. But, courage, my music-making masters! Your warbling, if it be of genuine quality, shall echo upon the other side of the hill which hides the unborn years. Only be sure, the song be pure; and you may "give the *fico* to your adversaries." You may live in the hearts and upon the lips of men and women yet unborn; and should the worst come, you may figure in "The Bibliographer's Manual," with a star of honor against your name, to indicate that you are exceedingly scarce and proportionally valuable; rival collectors, with fury in their faces, will run you up to a fabulous price at the auction, and you will at last be put into free quarters for life in some shady alcove upon some lofty shelf, with unlimited rations of dust, as you glide into a vermiculate dotage. Why should you be faint-hearted, when the men

of the stalls ask such a breath-stretching price for the productions of William Whitehead, Esq., who used to celebrate the birthdays of old George the Third after this fashion:—

"And shall the British lyre be mute,
Nor thrill through all its trembling strings,
With oaten reed and pastoral flute
While every vale responsive rings?"

Ben Jonson called Inigo Jones Sir Lanthorn Leatherhead, but St. Paul's still stands; and how many flies are there in the sparkling amber of "The Dunciad"! Have the critics, poor birdling, torn your wings, and mocked at your recording? I know, as Howell wrote to "Father Ben," that "the fangs of a bear and the tusks of a wild-boar don't bite worse and make deeper gashes than a goose-quill sometimes; no, not the badger himself, who is said to be so tenacious of his bite that he will not give over his hold until he feels his teeth meet and bone crack." I know all about it, my minstrel boy! for have I not, in my day, given and taken, and shouldered back again when I have been shouldered? Pray, do not finger your eyes any longer! Screw your lyre up to concert pitch, and go on with your stridulous performances! Neither you nor I know how bad may be the taste of our grandchildren, or how high you may stand when they have

"Made prostitute and profligate the Muse."

If you cannot be a poet, be a poetaster; and if you cannot be that, be a poetess, or "she-poet," as Johnson, in his big dictionary, defines the word. So "gently take all that ungently comes," and hammer away as sedulously as old Boileau. Somebody will, undoubtedly, in the next age, relish your rinsings. A poet, you know, is a prophet. Console yourself by vaticinating in the bower of your bed-chamber, as you count the feet upon your fingers, your own immortality. If 'tis a delusion, 'tis a cheap one, to which even a

poet can afford to treat himself. Play with and humor your life, till you fall asleep, and then the care will be over! Meanwhile, you must be more stupid than I think, if you cannot find somebody to give you your fodder of flattery. You need not blush, for I know that you like it, and you need not be ashamed of liking it. We all do,—we are all women in that regard; although the honestest man to confess it that I ever heard of was Sir Godfrey Kneller, who said to Pope, when he was painting his picture, "I can't do so well as I should do, unless you flatter me a little; pray, flatter me, Mr. Pope! You know I love to be flattered."

You see, my excellent Robert, that, by some hocus-pocus which I do not exactly comprehend, myself, I have introduced a wheel within a wheel, a letter within a letter, a play within a play, after the manner of the old dramatists; and I beg you to make a note that the foregoing admonitions and most sapient counsels are not addressed to you. You are something of a philosopher; but you are not, like Mr. Stephen Duck, "something of a philosopher *and* something of a poet"; for I do not believe, O fortunate youth, that you ever invoked the ten ladies *minus* one in your life; and I shrewdly suspect, that, so far from knowing the difference between a male and a female rhyme, you are unfamiliar with the close family connection between "trees" and "breeze," or between "love" and "dove." My episodic remarks are for the benefit of young Dolce Pianissimo, who has taken, I am sorry to say, to gin, shirt-collars prodigious, and the minor magazines, and whose friends are standing aghast and despairing at his lunacy. But, after all, 'tis my best irony quite thrown away; for the foolish boy will believe me quite in earnest, and will still be making love to that jade, Mistress Fame, although he knows well enough how many she has jilted. But as he grows in stature, he may grow in sense. If you see him very savagely cut up in "The Revolver," you will recognize the kindly hands which held the bistoury, scalpel, and tenaculum, and the gentleman who wept while he wounded.

But I have long enough, I fear too long, tormented you with my drivel. It must be your consolation, that, in spirit, you have been with me to-night, as I have thought of the old days, pausing for a moment over these mute but eloquent companions, to dream or to sigh, and then once more turning the old familiar pages as I try to forget, for just a little while, that dear familiar face. If something of indifference has tintured these hurried lines, if I have been unjust in my estimate of the world's honors and the rewards of the Muses, you will forgive me, if you will remember how the great Burke reduced the value of earthly honors and emoluments to less than that of a peck of wheat. My fire is gone out. My candle is flickering in the socket. There is light in the cold, gray East. Good-morning, Don Bob!—good-morning!

AFTER THE BALL.

They sat and combed their beautiful hair,
Their long, bright tresses, one by one,
As they laughed and talked in the chamber there,
After the revel was done.

Idly they talked of waltz and quadrille,
Idly they laughed, like other girls,
Who over the fire, when all is still,
Comb out their braids and curls.

Robe of satin and Brussels lace,
Knots of flowers and ribbons, too,
Scattered about in every place,
For the revel is through.

And Maud and Madge in robes of white,
The prettiest night-gowns under the sun,
Stockingless, slipperless, sit in the night,
For the revel is done,—

Sit and comb their beautiful hair,
Those wonderful waves of brown and gold,

Till the fire is out in the chamber there,
And the little bare feet are cold.

Then out of the gathering winter chill,
All out of the bitter St. Agnes weather,
While the fire is out and the house is still,
Maud and Madge together,—

Maud and Madge in robes of white,
The prettiest night-gowns under the sun,
Curtained away from the chilly night,
After the revel is done,—

Float along in a splendid dream,
To a golden gittern's tinkling tune,
While a thousand lustres shimmering stream,
In a palace's grand saloon.

Flashing of jewels, and flutter of laces,
Tropical odors sweeter than musk,
Men and women with beautiful faces
And eyes of tropical dusk,—

And one face shining out like a star,
One face haunting the dreams of each,
And one voice, sweeter than others are,
Breaking into silvery speech,—

Telling, through lips of bearded bloom,
An old, old story over again,
As down the royal bannered room,
To the golden gittern's strain,

Two and two, they dreamily walk,
While an unseen spirit walks beside,
And, all unheard in the lovers' talk,
He claimeth one for a bride.

Oh, Maud and Madge, dream on together,
With never a pang of jealous fear!
For, ere the bitter St. Agnes weather
Shall whiten another year,

Robed for the bridal, and robed for the tomb,
Braided brown hair, and golden tress,
There'll be only one of you left for the bloom
Of the bearded lips to press,—

Only one for the bridal pearls,
The robe of satin and Brussels lace,—
Only one to blush through her curls
At the sight of a lover's face.

Oh, beautiful Madge, in your bridal white,
For you the revel has just begun;
But for her who sleeps in your arms to-night
The revel of Life is done!

But robed and crowned with your saintly bliss,
Queen of heaven and bride of the sun,
Oh, beautiful Maud, you'll never miss
The kisses another hath won!

ROCK, TREE, AND MAN.

It is an interesting thought, that will occur to a contemplative mind, that the world contained, from the time when it was a nebulous mass, all the materials of the future individuals of the animate and inanimate creation,—that the elaborate creatures of the vegetable and animal kingdoms, as well as every mineral, were floating in amorphous masses through space. Human beings, like genius that was condensed from vapor at the rubbing of Aladdin's lamp, were diffused in gases, waiting the touch of the Great Magician's wand to bring them into form and infuse them with life. In all the distinct creations of God, from the time when the waters first subsided and the dry land appeared, in everything organized and inorganized, earth, air, sea, and their inhabitants, there is no element which was not in existence when the earth was without form and void.

Philosophers tell us that three hundred and fifty millions of years elapsed after the globe began to solidify, before it was fitted for the lowest plants. And more than one million years more were necessary, after the first plants began to grow upon its young surface, to bring it forward to the condition which the Divine Father deemed suitable for the reception of man. If the days of Cain and Abel were the infancy of the world,—as we have sometimes heard,—when will it come to maturity? Its divisions of life cannot follow the plan of animated beings; for, with an embryonic condition of an indefinite period, and an infancy of three hundred and fifty millions of

years, more or less, we can hardly expect that it will really have begun to enjoy the freedom of adult life, before the human race will have attained to its earthly limit of perfectibility, or have so overstocked the surface of the globe as to make it necessary to remove to some larger sphere.

It is curious, we say, to think that everything now on the earth or composing its substance was present, though in far different form, at the beginning,—that the Almighty gathered together in this part of the universe all the materials out of which to create all the forms of things which it was his pleasure to evolve here through all time,—that in that nebulous mass were revolving, not only the gases which were at last to combine in various manners and proportions to form the rocky crust and the watery investment of the earth, but that in that dense and noisome cloud floated also the elements of all the beautiful objects that furnish the daily enchantments of life. Flowers and trees, birds and fishes, locusts and mastodons, all things, from the tiniest animalcule to man, were there, unmodelled, not even in embryo,—their separate existences then only in the mind of God. There, Christian and Saracen, Jew and Gentile, Caucasian and Negro, Hindoo and Pariah, all the now heterogeneous natures which are as oil and water, were blended in one common vapor.

Finally the condensation of all the gaseous elements began, and the aëriform masses became liquid, and the waters,—what mineral waters they were, when they were saturated with granite and marble, diamonds, rubies, arsenic, and iron!—thus deposited by the vapor, left a gas above them light enough to bear some faint resemblance to our air. Still this atmosphere was surcharged with vapors which no lungs could tolerate, whether of man or reptile; and other steps must be taken to clear it of its unwholesome properties. Then did the Almighty will introduce, one after another, the germs of plants,—first of all, the lower orders, the ferns, which seek the shade, and the lichens, which grow in damp and dark recesses, mosses,

which cling to bare rocks, living almost on air and water alone,—everything which needed not bright sunlight to invigorate it nor soil to cling to. Year by year and age by age did these humble plants extract their nourishment from the murky vapors that shrouded the earth, and, after fashioning those gases into a living tissue of stems and leaves, year after year did they die and lay their remains upon the rocks, accumulating by slow steps a soil which would in time be capable of giving holding-ground to mightier plants. The trees came,—and gigantic they must have been; and every species of tree, shrub, and herb now upon the earth, and of all animals that walk, fly, or swim, was introduced before the creation of man.

It was as if the elements were too gross for the constitution of man, when they were first collected from the nebulous mass,—as if they needed to go through the intermediate forms of plants and animals, passing in succession from one to another, before they could be permitted to enter into the bodies of those beings who were to be in God's likeness. But, in very truth, the elements were unaltered by their many transmigrations. It was the divine act of God which caused every plant to spring forth and gave birth to every living thing. Every seed and every egg was at the first formed by Him. No sudden effort of man's will, such as that by which Pygmalion was believed to have animated the work of his chisel, nor any industrious current of electricity, passed for uninterrupted weeks through the purest gum, and stimulated by the enthusiasm of a Cross, can transform the worm to a breathing being, or reach the human climax by slow steps, even if the first one be in the humble form of a louse. When a new plant appeared, it was the hand of God that formed the seed. When a new species of animal came upon the earth, it was the same Power that created it. But the materials were not new; "out of the dust of the earth" was man created.

Oxygen, Hydrogen, Carbon, and Nitrogen,—do not turn away from us, gentle reader, we will not be grimly scientific, but a few of the terms of

science must be employed, even here,—these four elements are the chief ingredients of all vegetable and animal structures. When separated from their connections, three of them are gases; and the fourth, in union with one of the others, is also a gas. In various combinations they form literally the dust of the earth, they make rock and water, vapor and air. In the hand of the Almighty, they are so many plastic elements, that form now a plant of the lowliest condition, now a magnificent oak, now a fish, and now a man. And the germ of each organized being bequeathes to its offspring the power to reproduce its likeness,—so that each succeeding generation is a repetition of its predecessor. There is no change in plants and animals from the first; the same materials in the same proportions that were selected by the earliest trees for their composition are chosen now; and in form and function the last animal is a precise copy of the first of his race.

If we attempt to trace a particle of matter, we shall find its wanderings endless. Annihilation is a term which is not applicable to material things. Matter is never destroyed; it rarely rests. Oxygen, for instance, the most important constituent of our atmosphere, is the combining element of all things, the medium of communication between the kingdoms of Nature, the agent of the interchanges that are continually taking place among all created things. Oxygen keeps life in man, by combining with his blood at every inhalation; it is absorbed by flowers, to be employed in the perfection of the fruit; many minerals are incapable of the various uses of society, until oxygen has attacked and united with them. It gives us lime and soda, the oil of vitriol, and common salt; the mineral pigments in common use are impossible without it; and the beautiful colors of our autumn leaves are due to the combination of oxygen with their juices. It enters into all plans and operations with a helping hand; animals and plants owe their lives to it; but when the shadow of death begins to fall upon them, it is as ready to aid in their destruction. Like calumny, which blackens whatsoever is suspected, oxygen pounces upon the failing and completes their ruin. The processes of

fermentation and putrefaction cannot commence in any substance, until it has first taken oxygen into combination. Thus, cans of meat, hermetically sealed, with all the air first carefully expelled, undergo no change so long as the air does not get access to them. If the minutest opening remain, the oxygen of the atmosphere combines with the contents of the can, and fermentation or putrefaction follows. Rust, which takes the keen edge from the knife, is only another name for oxydation: keep the knife bright, and no oxygen dares touch it; but the slightest blemish is made a loophole for the entrance of the ever-watchful enemy, who never again leaves it until its destruction is complete.

All the elements have a great love of society; they cannot live alone; they have their likes and their dislikes; they contract alliances which endure for a time, but are dissolved in favor of stronger attractions.

We have mentioned the names of several natural elements. Let us see what they are, and what they have to do with man and the kingdoms of Nature. Beginning with man, let us see what becomes of him in course of time, what physical metamorphoses he undergoes, to what vile but excellent uses he is put.

That which forms the bone and muscle of a man this year may be upon his own table in the shape of potatoes or peaches one summer later. When Hamlet talked of turning the clay of Alexander into the bung of a beer-barrel, he spoke the simple truth. In that great play, Shakspeare appears to have had the transformations of material things much in his mind; for we find him alluding, in several passages, to the reciprocity which subsists between the elements of animate and inanimate things, and between the different members of the same kingdom;—as when, in conversation with the king about the dead Polonius, he makes Hamlet say, "A man may fish with the worm that hath eat of a king, and eat the fish that hath fed of the

worm"; or where, over the grave of Ophelia, he traces the two ancient heroes back to their mother earth, in words some of which we have quoted.

The ancient mythology, which shadowed forth some truth in all its fables, turned these facts of Nature to its purpose. The gods of Greece, when they saw fit to remove a human being from life, sometimes reproduced him in another form of beauty, without any intermediate stages of decay. Apollo seemed to have a particular fancy for planting the boys and girls whom he had loved where he might enjoy their fragrant society. Thus, a boy named Cyparissus, who had the misfortune to kill a favorite deer, was so unwilling to be consoled, that he besought Apollo to make his mourning perpetual; and the kind god changed him into a cypress, which is still a funereal tree. The modest virgin Daphne, who succeeded in escaping the violence of his passion, was transformed into a laurel, which is ever green and pure. And the sweet youth Hyacinthus, beloved of Apollo, being accidentally killed by a quoit which the god of day was throwing, that divinity, in his grief, caused those sweet flowers which bear his name to spring from his blood, where it fell upon the ground. It is only in the annihilation of the intervals of time between different forms of existence that these old metamorphoses, which Ovid relates, are fabulous. If our readers will bear us company a few steps, through ways which shall have diversions enough to forbid weariness, we will endeavor to satisfy them that these apparent fables are very near to every-day truths. We must begin with some plain statements.

The air which we expel from the lungs at every breath has a large proportion of carbonic acid. Let a man be shut up in an air-tight room for a day, and he will have changed nearly all the oxygen in it into this carbonic acid, and rendered it unfit for animal life. Dogs, cats, and birds would die in it. But, poisonous as it is to man and other animals, it is a feast to plants. They want it all day and every day; not in the night,—at that time they have a taste for oxygen. This effete air, which men and animals exhale, so

charged with carbonic acid, the plants drink in through every pore. They take it from the mouth of man, appropriate it to their daily uses, and in time render it back to him mingled with other ingredients in wholesome fruit. Carbonic acid is death when it combines with the blood,—as it does when we inhale it; but not so when it enters the stomach in small quantities. One inspiration of it is enough to make us dizzy,—as when we enter an old well or stoop over a charcoal fire; but a draught of water fully charged with it is exhilarating and refreshing, as we know by repeated experiences at marble fountains that meet us on so many city-corners.

If plants had souls, they would be pure ones, since they can bear such contamination and not be harmed,—nay, since even from such foul food as we give them they can evolve results so beautiful. We give them our cast-off and worn-out materials, and they return us the most beautiful flowers and the most luscious fruits.

Beside carbonic acid, there are two other principal materials, which are every day passing off in an effete state, though capable of being transferred to the uses of plants. But when an animal dies, the whole substance is then at Nature's disposal. We must set aside a great deal of it for the ants and flies, who will help themselves in spite of us. If any one has never seen a carcass rapidly disappearing under the steady operations of the larvae of the flesh-fly, he has yet to learn why some flies were made. The ants, too, carry it off in loads larger, if not heavier, than themselves. But carcasses of animals may go to decay, undisturbed by the ravages of these useful insects. That is, the limited partnership of Oxygen, Hydrogen, & Co., under which they agreed to carry on the operations of sheep, fox, or fish, having terminated by the death of the animal, the partners make immediate use of their liberty and go off in inorganic form in search of new engagements, leaving sulphur, phosphorus, and the other subordinate elements of the animal, to shift for themselves. They were in the employ of a sheep; they

will now carry on a man or an oak-tree, a colony of insects, or something else. Under the form of carbonate of ammonia, the four elements diffuse themselves through the air, or are absorbed by the earth, and offer themselves at once to the roots and leaves of the trees, as ready to go on with their vivifying operations as they were in behalf of the animals. There are some plants which seem not to be left to the chances of securing their nourishment from the carbonate of ammonia that the air and the soil contain, but are contrived so as to entrap living animals and hold them fast while they undergo decomposition, so that all their gases may be absorbed by them alone. Thus, "the little Sundew exudes a gluey secretion from the surface of its leaves, which serves to attract and retain insects, the decay of whose bodies seems to contribute to its existence." And the *Dionaea*, or Venus's Fly-trap of the Southern States, has some leaves which fold together upon any insect that alights upon their upper surface; and by means of a row of long spines that fringes the leaves, they prevent his escape. The more active the struggles of the captive, the closer grows the hold of the leaf, and speedily destroys him. The plant appears to derive nutriment from the decomposition of its victims. "Plants of this kind, which have been kept in hot-houses in England, from which insects were carefully excluded, have been observed to languish, but were restored by placing little bits of meat upon their traps,—the decay of these seeming to answer the same purpose."

The four elements already referred to are by no means all the material ingredients of animal bodies. There are, also, phosphorus, lime, magnesia, soda, sulphur, chlorine, and iron; and if you believe some chemists, there is hardly a mineral in common use that may not be found in the human body. We doubt, however, whether lead, arsenic, and silver are there, without the intervention of the doctor.

What becomes of the phosphorus and the rest, when an animal dies? Oh, they take up new business, too. They are as indispensable to the animal

frame as the four most prominent ingredients. We eat a great deal of bread and meat, and a little salt,—but the little salt is as important to continued life as the large bread. There is hardly a tissue in the body from which phosphorus, in combination with lime, is absent; so that the composition of lucifer-matches is by no means the most important use of this element. The luminous appearance which some putrefying substances, particularly fish, present at night, is due to the slow combustion of phosphorus which takes place as this element escapes into the air from the decomposing tissues.

The necessity for the steady supply of phosphorus and lime to the body is the cause of the popularity of Mapes's superphosphate of lime as a manure. The farmers who buy it, perhaps, do not know that their bones and other parts are made of it, and that this is the reason they must furnish it to their land; for between the land and the farmer's bones are two or three other factories that require the same material. All the farmer knows is, that his grass and his corn grow better for the superphosphate. But what he has not thought of we will tell you,—that man finds his phosphate of lime in the milk and meat of the cow, and she finds her supply in the grass and corn, which look to the farmer to see that their stock of this useful mineral compound does not fall short. Thus in milk and meat and corn, which constitute so large a part of our diet, we have always our phosphate of lime. There are many other sources whence we can derive it, but these will do for the present. And thus, when an animal dies and has no further use for his phosphate of lime, it is washed into the soil around, after decomposition of the body has set it free, and goes to make new grass and corn. Bone-earth (pounded bones) is a common top-dressing for grass-lands.

A small proportion of sulphur is found in flesh and blood. We prove its presence in the egg by common experience. An egg—from which it escapes more easily than from flesh—discovers its presence by blackening silver, as every housekeeper knows, whose social position is too high for bone egg-

spoons or too low for gold ones. This passion which sulphur entertains for silver is very strong, as every one knows who has ever been under that wholesome discipline which had its weekly recurrence at the delightful institution of Dotheboy's Hall; and what Anglo-Saxon ever grew up, innocent of that delectable vernal medicine to which we refer? Has he not found all the silver change in his pocket grow black, suggesting very unpleasant suspicions of bogus coin? The sulphur, being more than is wanted in the economy of the system, has made its escape through every pore in his skin, and, of course, fraternizes with the silver on its way. But it was of the sulphur which is natural to the body and always found there that we were speaking. When the animal dies, and the vital forces give way to chemical affinities, when the phosphorus and the rest take their departure, the sulphur, too, finds itself occupation in new fields of duty.

Chlorine and sodium, two more of the elements of animal structures, produce, in combination, common salt,—without which our food would be so insipid, that we have the best evidence of its being a necessary article of diet. The body has many uses for salt. It is found in the tears, as we are informed by poets, who talk of "briny drops" and "saut, saut tears"; though why there, unless to keep the lachrymal fluid from spoiling, in those persons who bottle up their tears for a long time, we cannot divine.

Perhaps we had better take the rest into consideration together,—the magnesia and iron, and whatever other elements are found in the body. Though some of them are there in minute quantities, the structure cannot exist without them,—and for their constant and sufficient supply our food must provide.

To see what becomes of all these materials after we have done with them, we must extend our inquiries among the articles of ordinary diet and ascertain from what sources we derive the several elements.

It has been sometimes believed that none but animal food contains all the elements required for the support of life. Thanks to Liebig, we have discovered that vegetable substances also, fruits, grains, and roots, contain them all, and, in most cases, in very nearly the same proportions as they are found in animals. We are not lecturing on dietetics; therefore we will not pause to explain why, although either bread or meat alone contains the various materials for flesh and bone, it is better to combine them than to endeavor to subsist on one only.

Whither, then, go these elements when man has done with them? The answer is,—All Nature wants them. Every plant is ready to drink them up, as soon as they have taken forms which bring them within its reach. As gases, they are inhaled by the leaves, or, dissolved in water, they are drunk up by the roots. All plants have not the same appetites, and therefore they can make an amicable division of the supply. Grasses and grains want a large proportion of phosphate of lime, which they convert into husks. Peas and beans have little use for nitrogen, and resign it to others. Cabbages, cauliflowers, turnips, and celery appropriate a large share of the sulphur.

The food of plants and that of animals have this great difference: plants take their nourishment in inorganic form only; animals require to have their food in organic form. That is, all the various minerals, singly or combined, which compose the tissues of plants and animals,—carbon, hydrogen, phosphorus, and the rest, which we have already named,—are taken up by plants in mineral form alone. The food of animals, on the other hand, consists always of organized forms. There is no artificial process by which oxygen, carbon, and hydrogen can be brought into a form suitable for the nourishment of animals. As oxygen, carbon, and hydrogen, they are not food, will not sustain our life, and human art cannot imitate their nutritious combinations. Artificial fibrine and gluten (organic principles) transcend our power of contrivance as far as the philosopher's stone eluded the grasp

of the alchemists. We know exactly how many equivalents of oxygen, hydrogen, carbon, and nitrogen enter into the composition of each of the animal elements; but we can no more imitate an organic element than we can form a leaf. What we cannot do the vegetable world does for us. Thus we see why it was necessary that the earth should be clothed with vegetation before animals could be introduced. A field-mouse dies and decays, and its elements are appropriated by the roots around its grave; and we can easily imagine the next generations of mice, the children and grandchildren of the deceased rodent, feasting off the tender bark which was made out of the remains of their parent. The soil of our gardens and the atmosphere above it are full of potential tomatoes, beans, corn, potatoes, and cabbages,—even of peaches of the finest flavor, and grapes whose aroma is transporting.

Plants, as well as animals, have their peculiar tastes. Cut off the supply of phosphate of lime from a field of corn, and it will not grow. You can easily do this by planting the same land with corn for three or four successive years, and your crop will dwindle away to nothing, unless you supply the ground every year with as much of the mineral as the corn takes away from it. All plants have the power of selecting from the soil the materials necessary to their growth; and if they do not find them in the soil, they will not grow. It is now a familiar fact, that, when an old forest of deciduous trees has been felled, evergreens will spring up in their places. The old oaks, hickories, and beeches, as any observer would discover, pass their last years in repose, simply putting out their leaves and bearing a little fruit every year, but making hardly any new wood. An oak may attain to nearly its full size, in spread of branches, in its first two hundred years, and live for five or six hundred years longer in a state of comparative rest. It seems to grow no more, simply because it has exhausted too much of the material for its nourishment from the ground around its roots. At least, we know, that, when we have cut it down, not oaks, but pines, will germinate in the same soil,—

pinus, which, having other necessities and taking somewhat different food, find a supply in the ground, untouched by their predecessor. Hence the rotation of crops, so much talked of by agriculturists. Before the subject was so well understood, the ground was allowed to lie fallow for a year or two, when the crops began to grow small, that it might recover from the air the elements it had lost. We now adopt the principle of rotation, and plant beans this year where last year we put corn.

It is not merely that plants deprive themselves of their future support by exhausting the neighboring earth of the elements they require. Some of them put into the ground substances which are poisonous to themselves or other plants. Thus, beans and peas pour out from their roots a very notable amount of a certain gum which is not at all suited to their own nourishment,—so that, if we plant beans in the same spot several successive seasons, they thrive very poorly. But this gum appears to be exactly the food for corn; if, therefore, we raise crops of beans and corn alternately, they assist each other. Liebig gives the results of a series of experiments illustrating the reciprocal actions of different species of plants. Various seeds were sprouted in water, in order to observe the nature of the excretions from their roots. It was found "that the water in which plants of the family of the *Leguminosae* (beans and peas) grew acquired a brown color, from the substance which exuded from their roots. Plants of the same species, placed in water impregnated with these excrements, were impeded in their growth, and faded prematurely; whilst, on the contrary, corn-plants grew vigorously in it, and the color of the water diminished sensibly, so that it appeared as if a certain quantity of the excrements of the *Leguminosae* had really been absorbed by the corn-plants." The oak, which is the great laboratory of tannin, not only lays up stores of it in its bark and leaves, but its roots discharge into the ground enough of it to tan the rootlets of all plants that venture to put down their suction-hose into the same region, and their spongioles are so effectually closed by this process, that they can no longer

perform their office, and the plant that bears them dies. Plants whose roots ramify among the roots of poppies become unwilling opium-eaters, from the exudation of this narcotic principle into the ground, and are stunted, like the children of Gin Lane.

The Aquarium furnishes a very interesting example of the mutual dependence of the three natural kingdoms. Here, in a box holding a few gallons of water and a little atmospheric air, is a miniature world, secluded, and supplying its own wants. Its success depends on the number and character of the animals and plants being so adapted as to secure just the requisite amount of active growth to each to sustain the life of the other: that the plants should be sufficient to support, by the superfluities of their growth, the vegetarians among the animated tribes that surround them; and that all the animal tribes of the aquarium, whether subsisting upon the vegetables or on their smaller and weaker fellow-creatures, should restore to the water in excrements the mineral substances which will enable the plants to make good the daily loss occasioned by the depredations of the sea-rovers that live upon them. Thus an aquarium, its constituents once correctly adjusted, has all the requisites for perpetuity; or rather, the only obstacle to its unlimited continuance is, that it is a mortal, and not a Divine hand, that controls its light and heat.

In the examination of the materials appropriated by plants from the soil, we find that mineral substances are sometimes taken up in solution in larger amount than the growth of the plant and the maturation of its fruit require, and the excess is deposited again, in crystalline form in the substance of the plant. If we cut across a stalk of the garden rhubarb, we can see, with the aid of a microscope, the fine needle-shaped crystals of oxalate of potash lying among the fibres of the plant,—a provision for an extra supply of the oxalic acid which is the source of the intense sourness of this vegetable. When the sap of the sugar-maple is boiled down to the consistence of syrup

and allowed to stand, it sometimes deposits a considerable amount of sand; indeed, this is probably always present in some degree, and justifies, perhaps, the occasional complaint of the grittiness of maple-sugar. But it is a native grit, and not chargeable upon the sugar-makers. It is nothing less than flint, which the roots of the maple absorbed, while it was dissolved in water in the soil. The sap, still holding the flint in solution, flows out, clear as water, when the tree is tapped; but when it is concentrated by boiling, the silicious mineral is deposited in little crystals, so that the bottom of the pan appears to be covered with sand. We could not select a more interesting example of the very wide diffusion of some compound substances than this one of silicic acid. It is found in the mineral and vegetable kingdoms. Being a mineral, it cannot be appropriated to animal uses, without being decomposed and transformed into an organic condition; but in the numerous species of plants whose stalks require stiffening against the winds,—in the grasses and canes, including all our grains, the sugar-cane, and the bamboo,—a silicate (an actual flint) is taken up by the roots and stored away in the stalks as a stiffener. The rough, sharp edge of a blade of grass sometimes makes an ugly cut on one's finger by means of the flint it contains. Silex is the chief ingredient in quartz rock, which is so widely diffused over the earth, and enters into the composition of most of the precious stones. The ruby, the emerald, the topaz, the amethyst, chalcedony, carnelian, jasper, agate, and garnet, and all the beautiful varieties of rock crystal, are mostly or entirely silex. Glass is a compound of silex and pearlash. One who is curious in such things may make glass out of a straw, by burning it and heating the ashes with a blowpipe. A little globule of pure glass will form as the ashes are consumed. The following curious instance, quoted by that interesting physiologist, Dr. Carpenter, shows the same effect upon a large scale. A melted mass of glassy substance was found on a meadow between Mannheim and Heidelberg, in Germany, after a thunder-storm. It was, at first, supposed to be a meteor; but, when chemically examined, it proved to

consist of silex, combined with potash,—in the form in which it exists in grasses; and, upon further inquiry, it was ascertained that a stack of hay had stood upon the spot, of which nothing remained but the ashes, the whole having been ignited by the lightning.

There is nothing in Nature more striking to the novice than the first suggestions of the various, and apparently contradictory, at least unexpected, positions in which the same mineral is found. Now carbon is one of the minerals whose exchanges are peculiarly interesting. Chemists say that the diamond is the only instance in Nature of pure carbon: it burns in oxygen under the influence of intense heat, and leaves no ashes. Next to this—strange gradation!—is charcoal, which comes within a very little of being a diamond. But just that little interval is apparently so great, that none but a chemist would suspect there was any relationship between them. Then come all those immense beds of coal which compose one of the geological strata of the earth's crust, a stratum that was formed before the appearance of the animated creation, when the earth was clothed with a gigantic forest, whose mighty trunks buried themselves with their fallen leaves, and became, in time, a continuous bed of carbonaceous stone.

If we look at the vegetable and animal kingdoms, we find carbon entering into the composition of every tissue. But there are certain tissues and anatomical elements (as physicians say) which are formed largely of carbon and have no nitrogen whatever. These are oils and fats and everything related to them. What will be chiefly interesting, however, to our readers, is the power of transformation of one of these substances into another. Starch, gum, and sugar can all be changed into fat. The explanation of it is in the fact, that these substances are all chemically alike,—that is, they all have nearly the same proportions of carbon, oxygen, and hydrogen, and no nitrogen; but by slight differences in the combination of these elements, they exist in Nature as so many distinct substances. Their approach to

identity is further confirmed by the fact, that starch can be made into gum, and either of them into sugar, in the laboratory. The transformation of starch and gum into sugar is also constantly going on in the ripening of fruits. When country-dames make currant-jellies and currant-wine, they know very well, that, if they allow the berries to get dead-ripe, their jelly will not be so firm as when they seize an early opportunity and gather them when first fully red. They may also have observed that jelly made late, besides being less firm, is much more likely to candy. At first, the currants contain hardly any sugar, but more gum and vegetable jelly (glue); when dead-ripe, they have twelve times as much sugar as at first, and the gum and glue are much diminished. The gummy and gluey materials have been transformed into sugar. Every ripe fruit gives us evidence of the same manufacture of sugar that has gone on under the stimulus of the sun's rays; and in the greatest source of sugar, the cane, the process is the same. A French physician, M. Bernard, has, within the last twelve years, discovered that the liver of animals is constantly making sugar out of all kinds of food, while the lungs are all the time undoing the work of the liver and turning it back into its chemical elements. And although, in the laboratory of the liver, it is discovered that no alimentary substance is quite deficient in sweetness, yet there, as elsewhere, starch and gum yield a far greater amount of it than animal substances.

We have stated that starch and gum can be turned into sugar by art,—but as no chemist has yet succeeded in imitating an animal substance, the change of these three into fat takes place only in the body. There are proofs enough within general observation, that one object of this portion of our diet is the supply of fat. The Esquimaux fattens on his diet of blubber and train-oil; the slaves on the sugar-plantations grow fat in the boiling-season, when they live heartily on sugar; the Chinese grow fat on an exclusively rice diet,—and rice is chiefly starch. But one of the most interesting observations of the transformation of sugar into a fat is that made by Huber

upon bees. It was the discovery, that bees make their wax out of honey, and not of pollen, as was formerly believed. When Huber shut up some bees in a close hive, and kept them supplied with pure honey or with sugar alone, they subsisted upon it, and soon began to build the comb. Wax is a fat, and the honey which is eaten by the bee is partly transformed into wax in his body. In about twenty-four hours after his stomach has been filled with honey, thin plates of wax appear on the scales of his abdomen, having oozed through eight little openings in the scales and there hardened. Of this they build their cells.

We have wandered far from the consideration of the propensity of certain species of plants to take up special compound substances from the earth; but the wide-spread silex, with which we set out, displayed so interesting a field of observation, that it could not be resisted, and encouraged a disposition to rove, which has been to us instructive and entertaining. To return to plants,—we find they make use of compounds for certain special ends; but, as we have seen, the whole vegetable kingdom uses the eight or ten primitive elements which it has in common with the animals, and out of these alone forms the infinite variety of products which we derive from it for food and various economical and aesthetical purposes. Among the many processes of Nature whose contemplation fills us with ever new delight, this power of the adaptation of a few means to an infinite number of ends is one of the most enchanting. We endeavor to explain by chemical laws the reduction of the materials which earth and air furnish, to a form in which they can be appropriated by the tree; by endosmose and exosmose we think we have overcome the obstacles to a clear comprehension of the circulation of the sap; and by a cell-theory we believe we have explained the whole growth of wood and leaves and fruit. But what microscope or what alembic shall ever tell us why a collection of tubes and cells in one tree creates the most wholesome and delicious fruit, while in another an organization precisely similar, so far as we can discern, produces only harsh and

poisonous berries? why the acacia tribe elaborate their gum, the pine family turpentine, the almond prussic acid, the sorrels oxalic acid? why the tall calisaya-tree of the Andes deposits in its bark the valuable medicine cinchona, and the oak, the hemlock, the tea-plant, and many others, make use of similar repositories to lay up stores of tannic acid? The numberless combinations of the same materials, and the wonderful power which rests in a single seed to bring about with unvarying uniformity its own distinct result, attest to us every day the admirable wisdom and goodness of the Creator.

These regular, every-day transformations of material elements from rock to tree, from tree to man, and back through a continual circuit, would repay us for spending our leisure hours in studying it, with our own eyes as well as with the eyes of others. The glance we have given is sufficiently suggestive to turn the attention of our readers that way. Before parting with them, however, we wish to make a few excursions into the natural world, to follow out some of the more peculiar and unexpected migrations of material atoms. Suppose we take a little marble,—which, in chemical constitution, is carbonate of lime,—that very marble, for instance, which forms the palaces of Venice, against which the waters of the Mediterranean have dashed for so many centuries, and have not dashed in vain. In their perpetual washing, they have worn away the stone and carried off its particles,—an insignificant amount, it is true, but, little as it is, it has not remained unused. For that very carbonate of lime, which once shared the proud state of the "glorious city in the sea," now helps to form the coarse shells of oysters, or is embodied in the vast coral reefs that shoot out from the islands of the West Indies, or is deposited year after year by dying shell-fish, which are slowly carpeting the ocean-bed with their remains. Much of this same Venice marble has doubtless been appropriated by fishes from the sea-water which dissolved it, been transformed into their bones, cast upon the soil of Italy, disintegrated, and imbibed by the thirsty roots of forests in sight of the

very walls from which it parted. And who can say that parts of it do not now adorn the necks of some Venetian dames, in coral, or more costly pearls? What says Ariel to the orphaned Ferdinand?

Full fathom five thy father lies;
Of his bones are coral made;
Those are pearls that were his eyes:
Nothing of him that doth fade
But doth suffer a sea-change
Into something rich and strange.

This is but a hint of the mutability of created things. Marble, sea-shells, the chalk-cliffs of Dover, the limestone fossils which preserve for us animal forms of species long since extinct, the coral formations that are stretching out in dangerous reefs in so many seas of the tropics, are all identical in their chief ingredient, and, as we see, are by natural processes and various accidents constantly interchanging their positions.

It ought to be consoling to those who think a great deal of their bodies, to reflect, that, if we may tend "to base uses," we may also tend to very noble ones. In the course of their transmigrations, the elements of a worthless individual may get into far better company than they have before enjoyed,—may enter into brains that immortalize their owner and redeem the errors of the old possessor. Whoever bases his merit on a long line of ancestors who have nothing but a perpetuated name to boast of, may be likened to the last of many successive tenants of a house who have hired it for their temporary uses. The inheritance of a brave spirit and a noble mind is a sufficient justification for a reasonable pride; but not so with the heritage of materials which are continually interchanging with the clod.

There need be nothing humiliating in such thoughts; the operations of Nature are always admirable. But when the relics of humanity are

deliberately appropriated to such mechanical or scientific purposes as we shall relate, before they have entirely lost their original (we should say latest) form, then most men would look upon the act as in some sort a desecration. With what holy horror would the ancient Egyptians regard the economical uses to which their embalmed bodies were appropriated a few centuries ago! In the words of Ambrose Paré, the great surgeon of five French kings in the sixteenth century, is a full account of the preparation and administration of "mummie,"—that is, Egyptian mummies, powdered and made into pills and potions,—"to such as have falne from high places or have beene otherwise bruised." The learned physician enters his protest against the use of it, (which he says is almost universal with the faculty,) as quite inefficacious and disgusting. His disgust, however, arises principally from the fact that the "mummie" prepared by the apothecaries must have been derived "from the carcasses of the basest people of Egypt; for the nobelmen and cheefe of the province, so religiously addicted to the monuments of their ancestors, would never suffer the bodyes of their friends and kindred to be transported hither for filthy gaine and detested use."

If such traffic be base, what shall we say of some priests of Nicaragua, who renovate their burial-grounds by exhuming the bones of the dead, with the earth that surrounds them, and selling the mass to the manufacturers of nitre? No sentiment of reverence for the sepulchres of their fathers incites them to resist the inroads of foreign pirates,—for they manufacture their fathers' bones into gunpowder.

Let us turn away from the revolting picture. The glimpses of Nature's revolutions which we have enjoyed are more agreeable. We are no advocates for any attempts of preserving the human body from decomposition; that which will restore the beloved forms of friends most readily to their primitive elements, and avert the possibility of anything so

dear remaining to excite our aversion or disgust, or becoming a pestilential agent, we would cordially encourage. There can be no doubt that use would soon render cremation as little disagreeable to the feelings as consigning the precious remains to slow decay and food for worms; and few will long be pained at the thought of mingling at once with the common earth and air, and returning to usefulness in other forms, after the soul has passed to heavenly spheres to enjoy the blessings of immortal life.

* * * * *

CHIP DARTMOUTH.

It is wonderful how Nature provides for the taking off and keeping down of her monsters,—creatures that carry things only by force or fraud: your foxes, wolves, and bears; your anacondas, tigers, and lions; and your cunning or ferocious men of prey, of whom they are the types. Storms may and must now and then rage and ravage, volcanoes must have their destructive fits, and the darkness must do its mean and tyrannical things while men are asleep; but calmness and sunshine triumph immeasurably on the whole. Of the cubs of iniquity, only here and there an individual escapes the crebrous perils of adolescence, develops into the full beast, and occupies a sublime place in history; whereas the genial men of sunshine, plenty as the fair days of summer, pass quietly over from the ruby of life's morning to the sapphire of its evening, too numerous to be written of or distinctly remembered. There are, it is quite true, enough biographies of such in existence to read the world to sleep by for ages. It can hardly keep awake at all, except over lives of the other sort; hence, one of great and successful villany is a prize for the scribe. In the dearth of such, let us content ourselves with briefly noticing one of the multitude of abortive cubs, its villany nipped—as Nature is wont to nip it—in the promising bud of its

tenderness. Many a flourishing young rogue suddenly disappears, and the world never knows how or why. But it shall know, if it will heed our one-story tale, how Chip Dartmouth of these parts was turned down here,—albeit we cannot at present say whether he has since turned up elsewhere.

Our hero was baptized simply Chipworth, in compliment to a rich uncle, who was expected on that account to remember him more largely in his will,—as he probably did; for he soon left him a legacy of twenty thousand dollars, on the express condition that it should accumulate till he was of age, and then be used as a capital to set the young man up in business. As the inheritance of kingdoms spoils kings, so this little fortune, though Chip could not finger a mill of it during his minority, all the while acted on him like a controlling magnet, inducing a strong repellency to good advice and a general exaltation of views, so that, when he came into possession of it, he was already a fast young man in almost every respect. He had settled it as the maxim of his life to gain fast and spend fast; and having had considerable opportunity to spend before he had any to gain, he had on becoming a business man, some secret deficits to make good before he could really be as rich as people supposed him. As his deficits had not been made by daylight, so daylight must have nothing to do in wiping them out; and hence darkness became more congenial than its reverse to all his plans, and he studied, as he thought, with singular success, the various tricks of blinding people to the state of his finances, as well as of bettering it. While he was supposed to be growing rich very rapidly, he really was doing so about half as fast as everybody thought. Chip would not steal,—that was vulgar. But he would take every possible advantage of other people by keeping close his own counsels and pumping out theirs. He would slander a piece of property and then buy it. He would monopolize on a short market, and fill his purse by forestalling. Indeed, he was, altogether, one of the keen, and greatly admired in business circles.

It was not easy for Chip to love any being but himself,—not even a woman. But his smart figure, for which Nature and the tailors had done their best, set the general female imagination into the most lively action. Many were the dreams about him,—day-dreams and night-dreams,—that were dreamed in front of all manner of little filigree bird nest bonnets and under snowy nightcaps; and at the slightest encouragement on his part, no doubt, the idea of himself which had been manufactured in many minds would have been fallen in love with. The reality certainly would not have been. Miss Millicent Hopkins wore one of the caps set for Chip, and her he professed vehemently to love. But she was the daughter of a millionaire of a very set temper, who had often said and sworn that his daughter should not have any man who had not proved by more than mushroom or retail success in business that he was able and likely to better her fortune. Miss Millicent must plainly either be run away with, or fairly won on old Hopkins's plan of wholesale, long-winded business success. Miss Millicent's good looks, if they did not amount to beauty, did, nevertheless, add something to the attractiveness of her vast pecuniary prospects. Chip had obtained the young lady's decided favor without absolutely crossing the Rubicon himself, for he had no notion of taking her without any of the funds her father had to bestow. It was arranged between them that his paternal consent should be asked, and the die or live of matrimony should depend on that. But, with confidence, or what is sometimes called brass, enough to put any sort of question, it was impossible for Chip Dartmouth to state the case to old Mr. Hopkins as it was. Having obtained a private interview, he grasped the old gentleman by the hand with an air as familiar as it was apparently cordial.

"Ah! I am very glad to see you, Mr. Hopkins, for I have been thinking what a fool I must be not to pay my addresses to Miss Millicent; and I can take no steps, you know, without your consent."

"You can take none with it, Sir," was the emphatic reply of the severe parent, with a sort of annihilating look. "I admire your prudence and frankness, my young friend; but, till you show yourself a merchant, of my own sort, I beg you will excuse me and my family from any of the steps you contemplate. Good-morning, Sir,—good-morning!"

The showing-out was irresistible, leaving nothing more to be said.

Chip now resolved that he would double his diligence in making money, out of spite to the father, if not love for the daughter. The old foggy's wealth he would have at any rate, and Millicent with it, if possible, as a sort of bonus. So, obtaining an interview with his fair intended and intending, at the earliest moment, without revealing a hint of his own diplomatic blunder, he told her that her father had refused his consent to their union because his fortune was not sufficient, and she must not expect to see him again till it was so, which he fancied would be in a much shorter time than the old gentleman supposed.

Chip had not long to wait for a chance to strike the first blow in carrying out his new resolution of fast trading. The day after his memorable rebuff, he was sitting in the choky little counting-room of a crammed commission-warehouse in India Street, musing and mousing over the various schemes that occurred to his fertile brain for increasing the profits of his business. He had already bought cotton pretty largely on speculation. Should he monopolize further, make a grand rush in stocks, or join the church and get large trust-funds into his hands on the strength of his reputation for piety? All these and a hundred other questions were getting rapidly and shrewdly discussed in his mind, when a rather stubbed man, with a square, homely face and vinegar expression, opened, or partly opened, the little glass door of the counting-room, and, looking round it more greedily than hopefully, said,—

"You don't want the cargo of the 'Orion' at a bargain?"

"Can't say I do. But walk in, Captain Grant,—walk in!"

Captain Grant did walk in, though he said it was no use talking, if Chip didn't want the cotton. Chip saw instinctively, in the sad, acid look of his visitor, that he was anxious to sell, and could be made to take a despondent view of the market. Taking him by the button, he said, rather patronizingly,

—

"I know, Captain, you ship-owners want to keep your ships at work at something besides storage. But look there," pointing to the bales of cotton filling the immense floor; "multiply that pile by four and add the basements of two churches, and you see a reason why I should not buy above the level of the market. Now, taking that into consideration, what do you ask for your two hundred and fifty bales in the 'Orion?'"

"Seven cents."

"I know somebody who would feel rich, if he could sell at that," returned Chip, with a queer grin. "No, no, Captain Grant, that won't do at all. Prices are sinking. If I should buy at that figure, every sign of margin would fade out in a fortnight. I haven't five bales that have been bought at any such price."

It was true, he had not; for they had been bought at seven-and-a-half and eight.

"Well, I will say six-and-a-half at sixty days, to you," said the humiliated Grant.

"My dear Sir," replied Chip, "you don't begin to tempt me. I must burn all my foreign correspondence and forget the facts before I can begin to look at

anything beyond six cents and ninety days."

"Ninety days won't do," said Mr. Grant, tersely. "If we must sacrifice, it must be for something a bank will look at, Mr. Dartmouth. But I want the ship cleared, and if you will say six at two months for the whole, it's a bargain, bad as it is for me."

"Not a bargain for me to be in a hurry about; but I'll think of it. Hold on till to-morrow. But, on the whole, you needn't do that. It wouldn't be an object."

"But I will do it, if you say so, till noon to-morrow."

"Better say five-and-three-fourths and have it done to-day," said Chip, "for I may not give that to-morrow. But if you hold on, and I buy anything at six, it shall be your lot."

Captain Grant, beginning to believe that he should, after all, sell a little above the bottom of the market, took his leave for his home among the Waltham hills, a little less grouty than when he entered.

That same night, Chip, after having dropped in at numerous resorts of the fast men, in most of which somewhat of his conscience, such as it was, dropped out, was proceeding homeward through Devonshire Street, with the brightest of his wits still about him. It was a raw night, one of the rawest ever got up by a belated equinoctial, with almost nothing stirring in the streets but the wind, and the loose shutters and old remnants of summer awnings left to its tender mercies. Aeolus, with these simple instruments of sound, added to the many sharp corners of city architecture, managed to get up something of a symphony, enough almost to make up for the nocturnal cats, now retired to silence and the snuggest attainable quarters. The hour was one of the short ones ayont the twal, and sleep reigned everywhere

except in the daily-newspaper-offices and in the most fashionable of the grog-shops. Besides Chip, the only living thing in Devonshire Street was a thinly-clad stripling, with a little roll of yellowish tissue-paper in his hand, knocking and shaking feebly at a door which grimly refused to open. His powers of endurance were evidently giving way, and his grief had become both vocal and fluent in the channel of his infant years.

"What's the matter, my boy?" asked Chip,— "locked out, hey?"

"No,—bo-hoo. No, Sir, the door's blowed to and froze up, and I can't git this pos'crip' up to the office."

"Oh, oh! you're the telegraph-boy, are you?"

"Yes, Sir."

"Most froz'n, aren't you?"

"O-oo-oo, that I be, Sir."

Here a very bright idea struck Chip, and he inquired,—

"Is this all that's coming?"

"Boo-hoo. Yes, Sir. They've sent good-night once before, and this is the pos'crip'. The wires is shut off now, and some of the papers is shut off, too; for I've been to three before this, and can't git into nary one on 'em."

"Never mind, my poor fellow; I belong up here. I'll take the sheets and send 'em round to all the other papers that are open. Never mind; you take that, and go right home to your mother."

"Thank you, Sir," said the shivering lad, and, giving up the yellow roll and taking the loose coppers offered him in the quickest possible time, he

scampered off around the corner of Water Street and left Chip in company with two temptations.

"Now," thought Chip, "it will be certainly a clean and gentlemanly thing, if, after having relieved this poor little devil of his trouble and responsibility, I should oblige the still poorer devil of a concern up-stairs by giving 'em this postscript of foreign news, which, by working so late, they will probably have exclusively. That would be most truly honest, benevolent, and philanthropic. It would make at least one newspaper my friend, and, on the whole, it is something of a temptation. But let me see what it will cost."

Giving the black door a vigorous push, he entered, and by the gas-burner on the first landing discovered that the postscript in his possession gave the state of the Liverpool cotton-market a day later than the body of the dispatch, which had already gone into type, and, what was more to the purpose, announced a rise of a penny-and-a-half on the pound. Chip clutched the gauzy sheets in his fist, closed the door as softly as possible, and yielded himself a doomed captive to temptation number two. Here was a little fortune on the cotton he had in store at any rate, and, if he really had in his grasp all the news of the rise, he might make by it a plump ten thousand dollars out of Captain Grant's "Orion." But to this end he must be sure that not a lisp of the rise would be published in the morning papers, and he must see Captain Grant and close his bargain for the "Orion's" cargo before the wires should begin to furnish additional news by the "Africa" to the evening papers. They would not, after obtaining such news, lose a moment in parading it on their bulletin-boards, and Captain Grant might get hold of it before reaching the little counting-room in India Street. Chip, of course, saw what to do, and did it. Waiting in one of the little "meals-at-all-hours" saloons till he heard the churning of the press-engines, he sallied out and bought of the overloaded carriers the earliest copies of the morning

papers, and made himself sure that the foreign news did not disclose any change of the cotton-market. The next thing was to transfer himself to Captain Grant's residence in Waltham,—exactly whereabouts in Waltham he did not know, but, of course, he could easily find out,—and, without exciting the grouty old salt's suspicions of false play, make sure of the cotton at his own price. On the whole, he thought it safer, as well as cheaper, to use the early train than to hire a special team.

Arrived in Waltham, to his great vexation, it appeared, after much inquiry, that Captain Grant lived full three miles from the station,—and what was worse, every omnibus, hack, buggy, and dog-cart was engaged for a muster in one direction or a cattle-show in another. Nothing on wheels could be hired at any price,—at least, none could be found in an hour's search from one hotel or livery-stable to another. Chip, whose sleepless night and meditated fraud had not left much of the saint in him, swore the whole of Waltham as deep as the grimmest view of predestination would allow. And he restrained himself from being still more profane only lest his wrath should awaken inconvenient suspicions. After all, there was one old tavern a little way out, where possibly a one-horse affair could be raised. The Birch House was a sort of seedy, dried-up, quiet, out-of-the-way inn, whose sign-post stood forth like a window without sash, the rectangular ligneous picture of a man driving cattle to Brighton having long ago been blown out of its lofty setting and split to pieces by the fall. What was the use of replacing it? No one was likely to call, who did not already know that the Widow Birch still kept tavern there, and just how she kept it. It was doubtful if a new sign would attract a single new customer. Indeed, since the advent of railroads, a customer was not a common occurrence any way, though there still remained a few that could be depended on, like the Canada geese, in their season, and their custom was handsomely profitable. The house, a white wooden one, with greenish blinds, had two low stories, the first of which was nearly level with the ground. There was a broad, low

entry running through the middle, and on either side two rather spacious square rooms. One of those in front had a well-sanded, well-worn pine floor, with a very thirsty-looking counter across one corner, supporting a sort of palisade that appeared to fortify nothing at all,—a place, however, which had evidently been moist enough in the olden times. In the other front room was a neat carpet, plain, old-fashioned furniture, and a delightful little plantation of fresh and cozy flower-pots, surrounding a vase full of gold-fishes, and overhung by a bright-eyed, mellow-throated canary, the whole of that paradise being doubtless under the watch and care of little Laura Birch. This was the ladies' parlor,—the grand reception-room, also, of any genteel male guest, should one for a wonder appear. Little Laura, however, was no longer as little as she had been,—though just as innocent, and ten times as bewitching to most people who knew her. You could not but particularly wish her well, the moment her glad, hopeful, playful, confiding, half-roguish eye met yours. With the most conscientious resolution to make herself useful, under her mother's thrifty administration, in the long, clean New England kitchen which stretched away behind the square dining-room, interposed between it and the dry bar-room, she had a taste for books and a passion for flowers, which absorbed most of her thoughts, and gained her more chidings from her mother for their untimely manifestations than her handiest services gained thanks or any signs of grateful recognition. She and the flowers, including the bird and the fishes, seemed to belong to the same sisterhood. She had copied their fashion of dress and behavior, rather than the Parisian or any imported style,—and so her art, being all learned from Nature, was quite natural. On the very morning in question, she was engaged in giving this little conservatory the benefit of her thorough skill and affectionate regard, when good Dame Birch broke in upon her with,—

"Why, Laury, what are you thinking about? It's always just so. Here is a gentleman in the bar-room, and he's a'most sure to order breakfast, and

them eels isn't touched, and not a thing ready but cold victuals and pie. Them eels would be so nice and genteel! and you know they won't keep."

"But you didn't tell me to fry them now, mother," said Laura.

"But I told you to fix 'em all ready to fry."

"Well, mother," replied Laura, "I'll come as soon as these things are set to rights. It won't do to leave them just so."

"Well, it's always just so," said the maternal Birch. "I must do it myself, I see. Don't be all day, Laury,—now don't!"

She disappeared, muttering something about "them plaguy flower-pots."

In point of fact, Chip Dartmouth was all this while in the aforesaid dry bar-room, engaged in an earnest colloquy with Frank Birch, a grown-up son of the landlady, a youth just entered on the independent platform of twenty-one, Laura being three years younger. Chip had arrived rather out of breath and excited, having got decidedly ahead of the amenities that would have been particularly expedient under the circumstances. Approaching a door of the bar-room, which opened near its corner towards the barn, and which stood open at the time, he descried Frank within busily engaged mending harness.

"Hallo! young man, I say, hurry up that job, for I've no time to lose."

"Well, I'm glad on't," retorted Frank, hardly looking up from his work, "for I ha'n't."

"Look here!" said Chip, entering, "you're the man I've been looking for. I must have a ride to Captain Grant's, straight off, at your own price."

"Maybe you must, but I'm goin' to the Concord cattle-show, and Captain Grant's is four miles out of the way. I can't think of goin' round, for I shall be too late, any way."

"Never mind that, my young friend, if you 'r' 'n such a hurry, put on the string and look to me for the damage."

"Maybe you can't pay it," replied Frank, looking rather scornful.

"The Devil!" exclaimed Chip, "are all the Waltham people born idiots?"

"No! some of 'em are born governors," said Frank, "and Boston people may find it out one of these days."

On this, Landlady Birch intervened, taking the bar-room in her way from the parlor to the kitchen.

"What is that you say, Frank? The gentleman can have as good a breakfast here as he can have anywhere out of Boston, I'm sure, though I say it myself. We don't have so many to cook for, and so, perhaps, we take a little more pains, Sir,—ha! ha!"

And with that good Mrs. Birch put on a graciousness of smile worthy of the most experienced female Boniface in Anglo-Saxondom.

"The gentleman don't want any breakfast, mother; he only wants a ride round to Captain Grant's, and he ha'n't got the manners to ask for it, like a gentleman;—he *must* have it. I say he mus'n't in my buggy, for I a'n't goin' that way."

"Why, son, the gentleman of course expects to pay for it."

"Yes, Madam," said Chip, "I am willing and expect to bleed freely."

Frank. "Well, I should like to know what you mean by that? *I* don't want your blood, or that of any other Boston squirt."

Mrs. Birch (to Chip, after a reproving glance at Frank). "I think we can accommodate you, Sir. The buggy is at the blacksmith's, and will be done in half-an-hour. If you want, you can have breakfast while you are waiting; and you will find a comfortable fire in the parlor to sit by, at any rate."

With this, Mrs. Birch made her exit, to hurry matters on the cook-stove.

"There! that's her, all over!" grumbled Frank. "If she can sell a meal of victuals, she don't care what becomes of me. But I'll let her know the mare's mine, and the buggy's mine, all but the harness; and I tell *you*, Sir, I'll see the mare drowned in Charles River and the buggy split into kindling-wood, before you shall have a ride to Captain Grant's this day."

"But here's a five-dollar-bill," quoth Chip, displaying a small handful of banknotes.

Frank. "You may go to thunder with the whole of 'em! I tell you I've set my foot down, and I won't take it up for my own mother,—and I'm sure I won't for anything that ever was or will be under your clo'es."

With this, he jerked up the harness and went off to the barn, with an air that convinced Chip that the controversy between mother and son was not likely to be decided in his favor at a sufficiently early hour to answer his purpose. But where else should he go, or what else should he do? As he was a little more inclined now to bet on calmness than on passion, he decided to take a seat in the parlor, and keep it, at least, till he could dispose of his present doubt. Easily might he have measured three miles over the Waltham hills, in the bracing morning-air, with his own locomotive apparatus, while he had been looking in vain for artificial conveyance. But if that plan had

occurred to him at all at first, it would have been dismissed with contempt as unbusinesslike. He must not, by any possibility, appear to Captain Grant to be so madly anxious to close the bargain. He did a little regret neglecting the service of his own proper pegs, but it was now entirely too late to walk, and he must ride, and at a good pace, too, or lose the entire benefit of the news which the lightning had so singularly confided to his honest hands. The feeling with which he flung himself into that quiet, little, economical parlor was, probably, even more desperate than Richard's, when he offered his kingdom for a horse. It was, in fact, just the feeling, of all others in the world, to prevent a man's getting a horse. Had he carried it into a pasture full of horses, it would have prevented him from catching the tamest of them. But the good influences of the Universe, that encourage and strengthen the noble martyrs of truth and workers of good in their arduous labors, do sometimes also help on villains to their bad ends. Never were troubled waters more quickly smoothed with oil, never were the poles of a magnet more quickly reversed, than Chip's rage and rancor abated after he entered that door. Not that he relaxed his purpose at all, or felt any essential change of his nature, but his temper was instantly turned the right side up for success. He was, of course, unconscious of the cause,—for it is certainly nothing wonderful, even in the neighborhood of Boston, to see a neat Yankee lass, in her second or third best dress, putting things to rights of a morning, with a snowy handkerchief over her head, its corners drawn into a half-knot under her sweet chin, and some little ruddy outposts on her cheeks, ready, on the slightest occasion, to arouse a whole army of blushes. Laura had just given the finishing touch to her flower culture, changed the water of her fishes, replenished the seed-bucket of the canary, and was about leaving the room. Almost any man would have been glad of an excuse to speak to her. Chip could have made an excuse, if one had not been ready-made, that was to him very important, as well as satisfactory.

"Miss Birch, I presume?"

"Yes, Sir," said Laura, with a curtsy, not quite so large as those that grow in dancing schools, but, nevertheless, very pretty.

"Well, Miss Birch," said Chip, blandly advancing and taking her nice little hand, half covered with her working-mitts,—whereat the aforesaid outposts promptly did their duty,—"or shall I call you Miss Susan Birch?"

"No, Sir, my name is Laura," said the girl, shrinking a little from a contact which rather took her by surprise.

"Oh, Laura!—that is better yet," proceeded Chip. "Now, Miss Laura, I have got myself into a terrible scrape; can you help me out of it?"

"I can't tell, indeed, Sir, till I know what it is," said Laura, with a bright twinkle of reassurance.

"Well, it is this:—I have mortally offended your brother,—for so I take him to be by his looks,—and I most sincerely repent it, for he owns the only team left in Waltham. If I cannot hire that team for an hour, I lose money enough to buy this house twice over. I want you to reconcile us. Will you offer my apology and prevail on him to take this and be my coachman for an hour?" asked Chip,—slipping a gold eagle into her hand with the most winning expression at his command.

"Oh, yes, Sir,—I'm sure I'll try without that, Sir. He will be glad to oblige you, when he knows how you need it," she said, offering to return the coin.

"No, no, Miss Laura, I want to pay him well; and if you succeed,—why, no money can pay *you*, Miss Laura; I don't profess to be rich enough to do it."

Here the outposts gave another alarm, and again the hosts of the ruby uniform were gathering hurriedly in their two muster-fields.

"Why, I will go and try, Sir," said Laura, so much confused by the novelty and magnitude of the circumstances that she opened the closet-door before opening the only one that led out of the room.

Fairly out of Chip's presence, she saw instantly and instinctively the worthlessness of that gold eagle, however genuine, compared with her sisterly love, in her mission to Frank. So she ran directly to her mother in the long kitchen, and, planking the American eagle upon the sloppy little table where the eels were rapidly getting dressed, said,—

"Why, mother, that gentleman wants to hire Frank to carry him to Captain Grant's, and I'm sure he ought to go without hiring. I'll go right out and see him."

"That's right, Laury; tell him he ought to be ashamed of himself!"

"Oh, no, mother, I won't tell him any such thing," said Laura, laughingly, as she hopped and skipped towards the barn.

"Well, Frank, how's Nell Gwyn, this morning?" cheerily cried Laura to Frank, who seemed to be getting his harness into a worse snarl, in his grouty attempts to get it out of one.

"The mare's well enough, if she hadn't been insulted."

"Why, that's abominable, Frank! But let me get that snarl out."

"You get it out! You get out yourself, Laule."

"Why, that's all I'm good for, Frank; I always pick out the snarls in the house, you know, and I should like to try it once in the barn."

"The tarnal old thing's bewitched, I believe," said Frank, allowing his sister to interfere and quietly untwist and turn right side out the various parts which he had put wrong by all sorts of torsion. "I'll teach Boston chaps to know that there are some things they can't have for money! When Nell and I have agreed to have a good time, we a'n't goin' to be ordered off nor bought off;—we'll *have* it."

"So *I* say, Frank. But suppose *I* wanted you to give *me* a ride, Frank?"

"Why, Laule, you know I would go to the North Pole with you. If Mam would only let *you* go to Concord with me, I'd wait till noon for you."

"Well, maybe she will, Frank. She wants you to carry that man to Captain Grant's bad enough to let me go in the afternoon."

"But I told him I wouldn't carry him,—and, gol darn it, I won't!"

"Of course you won't carry him on his own account, or for the sake of his money,—but for my sake perhaps you will."

"Well, Sis, perhaps I will. But, mind, before I do, Mam shall promise, sartin sure, to let you go by half-past twelve o'clock, and not a minit later."

"Well, I'll see she does; you harness Nell, and get the buggy. The man says he's sorry he spoke to you so. If he's carried to Captain Grant's and back, I'll answer for it's being the best for all of us."

She was off to the house like a bird, and the rest of her diplomacy was too simple and straightforward to need special record.

As the buggy was at the door before the table presented the savory temptation of fried eels, Chip declined breakfast at present, but decidedly

promised to take it on his return. He dropped in on Captain Grant, as he was careful to tell that gentleman, having had business in Waltham that morning, and thinking he might perhaps save him a journey to town. The ship-owner had just finished the news of the morning papers, for which he had sent a messenger express to the post-office, and said, after the cordial salutation which a rough sort of man always gives in his own house,—

"Well, Mr. Dartmouth, I see the market is as close-reefed as ever. Maybe you think I will sell at five and three-fourths to-day, but I've concluded to make a floating warehouse of the 'Orion' for the winter, rather than do that."

"I don't blame you for that, my friend; but in the present state of advices, six at two months is the highest mill that will do. If you will close the 'Orion's' cargo at that, I am your man."

"What I've said, I'll do, Sir, of course," said the tough old salt; "and since you've taken the trouble to come out here and save my lame toes, let's nail the bargain with a bottle of my old Madeira,—some of the ripest this side of the herring-pond, I'll be bound."

"Not a drop, I thank you; for, besides being a teetotaller, Captain, I'm behind time to-day, and must bid you good-morning."

"Well, Sir, I'm much obliged to you; the bill of sale shall be at your counting-room directly; the clerk will receive the notes and deliver the cotton. Good-morning, Sir,—good-morning!"

In truth, Chip had not the slightest objection to wine, as wine, even had it not been the ripest on this continent; but, like any other mitigated villain, he did not quite relish taking wine with the man he was basely cheating. He would much rather partake of Ma'am Birch's fried eels and coffee, especially if Laura Birch should, peradventure, be the Hebe of such an

ambrosial entertainment. She was not, however,—and the disappointment considerably overclouded the commercial victory of the morning. Madam Birch herself did the honors of whatever sort, while Chip played a fantasia solo at the *table d'hôte*. The good lady enlarged volubly on her destitution of help, and how, if she had any such as we get now-a-days, they were more plague than profit,—how Laura was getting ready to go with Frank to the cattle-show, and she herself was likely to be the only living mortal in the house for the rest of the day.

"Such a son as you have is a fortune, Madam; and as for the daughter, she is a gem, a genuine diamond, Madam."

"Ha! ha! do you really think so, Sir?" said the mother, evidently gratified with the superlativeness of the compliment. "Well, they do say children are jewels.—but I've found, Sir, they are pretty troublesome and pretty costly jewels. Mine, as you say, are very good children,—though Frank is pretty wilful, and Laury is always gettin' her head above the clouds. Oh, dear! they want a great deal done for 'em,—and the more you do, the more you may do. Frank is bewitched to sell out and go to Kansas or Californy, or, if he stays here, he must go to college or be a merchant. And Laury, even she isn't contented; she wants to be some sort of artist, make statters or picters, —or be a milliner, at least. So you see I haven't a minute's peace of my life with 'em."

Of course Chip saw it, and the more's the pity.

"All the better, Madam," said he. "Young America must go ahead. There's nothing to be had without venturing. If I can ever be of service to either of your children in forwarding their laudable ambition, I am sure it will give me the greatest pleasure."

"You are very kind, Sir, but I only wish you could persuade 'em to let well alone, and at least not try the world till they know more of it."

"Not touch the water till they have learned to swim, eh? That's not quite so easy, Madam. Never fear; I'll be bound, a boy that can say *No* like yours is perfectly safe anywhere; and as to Laura, why, Madam, I never heard of an angel getting into difficulty in the wickedest of worlds."

"Our old minister, Parson Usher that was, used to say some of the Bible angels fell,—and I am sure, Sir, the human angels have a worse chance. They are about the only ones that run any risk at all."

"True, true enough, Ma'am, in one point of view. Too much care cannot be taken to select the society in which young people are to move. In the right society, such a girl as Laura would win homage on every side, and make herself happy by making everybody else so."

"I believe you are right there, Sir," said Mrs. Birch, quite charmed with such beautiful appreciation of what she felt to be Laura's excellence; "and I don't wonder sometimes that she should be discontented with the society she has here, poor girl!"

"When you see the sun begin to shine in the morning, you may be sure enough it will keep rising all the forenoon," said Chip, with the air of a great moral philosopher, conscious of having made a decided impression. And suddenly recollecting how valuable was his time in town, and that the train would be due in five minutes, he swallowed the last of his coffee, paid his bill, told the landlady how happy he was to have made her acquaintance and that of her interesting family, promised he would never stop in Waltham without calling, and strode away.

The lightning flashed from a good many eyes in the telegraph-office when the morning members of the associated press inquired why they had not been served with the latest news,—why, in fact, the only item of any significance was reserved for the evening papers of the day. Not a press of all the indignant complainants was ready to admit that it had locked up its forms and gone to bed before the wires had completed their task. Very bitter paragraphs testified, the next day, that, in the opinion of many sage and respectable editors, the wires had been tampered with by speculators. The poor little half-frozen telegraph-boy was closely catechized, first by the officers of the telegraph-company, and afterwards by certain shrewd detectives, but no clue could be got to the fine gentleman who so generously relieved him of his responsibility, and no result followed, except his dismissal and the employment of another lad of more ability and probably less innocence. Captain Grant was the man most likely to have come to a discovery in the matter, and most heartily did he curse his luck—his "usual luck"—of giving away a fortune by selling a cargo a day too soon. But being kept at home by uncomfortable toes, no suspicious mortal, such as abound in the lounging-rooms of insurance-offices and other resorts of business-men in town, happened ingeniously to put his suspicions on a scent, and he did not come within a league of the thought that Chip Dartmouth could have had anything to do with the strange and blamable conduct of the wires. As he made no proclamation of his loss, and no other case of sale during the abeyance of the news came to the knowledge of the parties interested, the matter, greatly to Chip's comfort, fell into entire oblivion before a fortnight had passed. The understanding was, that, though great mischief might have been done, none had been,—and that somebody had simply made waste-paper of the little yellow thunderbolt-scrawls.

For the first fortnight, Chip's nervousness, not to say conscience, very much abated the pleasure of the many congratulations he received from his friends, and from hundreds of people whom he had never before known as

his friends. He couldn't get through the streets any day without meeting the solidest sort of men, with whom he had never exchanged a word in his life, but whose faces were as familiar as that of the Old-South clock, who took him by the hand quite warmly, and said,—

"Ah, Mr. Dartmouth, permit me to congratulate you on your good-fortune. You have well deserved it. I like to see a young man like you make such a ten-strike, especially when it comes in consequence of careful study of the market."

The truth was, Chip had been playing a pretty hazardous game in the cotton-market, chiefly at the risk of other parties; and the slice he had so feloniously carved out of poor Captain Grant was quite small compared with the gains he had managed to secure by thus venturing a little of his own and a great deal of other people's money. The shrewd minds in the secrets of the business world were not slow to see that he must have realized at least a hundred thousand units of commercial omnipotence by the operations of the first week after the rise. Everybody was glad of an opportunity to speak to such a man. Even Mr. Hopkins, immensely retired as he was, driving into State Street about noon one genial day to receive a bank dividend or two, stepped considerably out of his way, in walking from his low-hung turnout to the door of one of the banks, in order to catch Mr. Dartmouth's notice, and say to him, "Good-morning, Mr. Dartmouth! I hope you are very well, Sir!" Chip recognized the salutation with a superb nod, but without the accompaniment of any verbal rhetoric which was audible above the buzz of the pavement; and the retired millionaire passed on about his business.

"Ah!" thought Chip, "I am getting to be a merchant of the right sort, I see,—and by the time he is ready to change that low-hung little chariot for

the hard, angular ebony with raven plumes, I shall be ready to step into the other plump little vehicle, which is really so nice and cozy."

But we must leave Chip to the easy task of ballooning upward in public estimation, with his well-inflated bank-account. He was, in fact, reformed by his great commercial success to this extent, that his vices had become of the most distinguished and unvulgar grade. He was now courted by the highest artists in iniquity, and had the means of accomplishing results that none but men who are known to be really rich can command. He, therefore, now quitted all vulgar associations, and determined not to outrage any of the virtues, except under varnish, gilding, and polish that would keep everything perfectly respectable. Let him trust to that as long as he can.

Don't talk of the solitude of a night in the primeval forests, however far from the abodes of man;—the squirrels and the partridges may be asleep then and there, but the katydids are awake, and, with the support of contralto and barytone tree-toads, manage to keep up a concert which cannot fail to impress on you a sense of familiar and friendly company. Don't talk of the loneliness of a deserted and ruinous castle;—the crickets have not left it, and, if you don't have a merry time with their shrill jokes, it will be your own fault. But if you would have a sense of being terribly alone, come from long residence in some quiet country-home on the border of a quiet country-village, into the hurry-skurry of a strange city, just after nightfall. Here is an infinite brick-and-stone forest, stern, angular, almost leafless. Here is a vast, indistinguishable wilderness of flitting human shapes, not one of which takes half so much notice of you as a wild bush would. Speak to one; it answers without the slightest emotion, and passes on. Your presence is absolutely no more to any soul of them, provided they have souls, than if you were so much perfectly familiar granite. You feel, that, with such attention as you receive, such curiosity as you excite, you must be there hundreds of years to be either recognized or missed.

Had you been a stranger in Boston, one moist and rather showery summer-evening, not a year after the events we have narrated, you might have been recovered from the sense of loneliness we have described by observing one pretty female figure hurrying along the crowded sidewalk with a very large and replete satchel, and without any of the *sang-froid* which characterizes city pedestrianism. You might have noticed that this one human being, like yourself, was evidently not at home. Every glare of gas-light revealed a deeply-flushed face, eyes that had been weeping and which were now flashing with a wild earnestness and an altogether preternatural resolution. A gazelle, started by the huntsman's pack, could not have thrown more piercing glances at every avenue of escape than this excited girl did at every cross street, and indeed at everything but the human faces that passed her. All of them she shunned, with a look that seemed equally anxious to avoid the known and the unknown. She should seem to have narrowly escaped some peril, and was carrying with her a secret not to be confided to friend or stranger, certainly not to either without due consideration. Had you watched her, as the crowds of people, returning from the various evening amusements, died away in the streets, you would have seen the deep color of her cheeks die away also to deadly paleness; had you been sufficiently clairvoyant, you might have seen how two charming rows of pearls bit the blanched lips till the runaway blood came back into the sad gashes, how the tears welled up again, and with them came relief and fresh strength just as she was about to faint and drop in the street. Then returned again the throb of indignant resolution, as her mind recurred to the attempted ruin of her paradise by a disguised foe; then succeeded shame and dread lest the friends she had left in her childhood's rural home should know how differently from her fond anticipations had turned out the first week of her sojourn in the great city. She was most thoroughly resolved, that, if possible, they should not know anything of the wreck of her long-cherished hopes till she had found some foothold for new

ones. She felt that she was a Yankee girl in the metropolis of New England, with wit, skill, and endurance equal to any employment that ever falls to the lot of Yankee women; but having given up the only chance which had ever opened to her, how could she find another? Were she of the other sex, or only disguised in the outer integuments of it, with the trifling sum in her purse, she would get lodgings at the next hotel, and seek suitable employment without suspicion. In the wide wilderness of a city there was not an acquaintance she did not dread to meet, in her present circumstances, even worse than death itself, or, what is next door to it, a police-station.

The streets had emptied themselves of their rushing throngs, the patter of feet and the murmur of voices had given place to measured individual marches here and there, the dripping of cave-spouts and the flapping of awnings could be heard tattling of showers past and future, and the last organ-grinder had left the ungrateful city to its slumbers, when the poor girl first became conscious that she had been lugging hither and thither her entire outfit of wardrobe, valuables, and keepsakes. Aggravated by fatigue, her indecision as to how she should dispose of herself was gradually sinking into despair, and the official guardians of the night, who had doubtless noticed her as she passed and repassed through their beats, were beginning to make up their official minds, generally and severally, that the case might by-and-by require their benevolent interference, when she was startled by a female voice from behind.

"Arrah, stop there, ye rinaway jade! I know ye by yer big bag, ye big thafe, that ye are!"

Glad at any voice addressed to her, and gladder at this than if it had been more familiar or more friendly, our forlorn maiden turned and said, in the sweetest voice imaginable,—

"Oh, no, my friend, I am not a thief."

"Och, I beg your pardon, honey! I thought sure it was Bridget, that's jist rin away wid a bagful of her misthress's clo'es and a hape o' mine, and it's me that's bin all the way down to Pat Mahoney's in North Street to git him to hunt her up; and the Blessed Mother forgive me, whin I seen you in the dark, stalin' along like, wi' that bag, I thought it was herself it was, sure. Och, ye're a swate lass, I see, now; but what makes ye out this time o' night, dear?"

"Well, I'm too late for the train, you see, and I really don't know what to do or where to go," said the Yankee girl, putting on the air natural to such circumstances, with the readiness of her race.

"Och, I see, that's the mailing o' the bag, thin. Poor thing! ye jist come along wid me. I'll lift the bag for ye, me darlint, an' I'll pit clane sheets on Bridget's bed, and ye're welcome to slape there as long as ye like; for the Blessed Mother knows it's powerful tired ye're lookin', it is. I'm cook for more nor twinty years for the Hopkinses in Bacon Street, and I can make ye jist as welcome in my quarthers as if it was nobody but meself that owned it at all at all."

"Oh, my dear woman, I thank you kindly! That bag was beginning to grow heavy," replied the overjoyed outcast; and presently, with a ready eye to business, she added, "And since Bridget is gone, who knows but I can take her place? I came to the city on purpose to find something to do, and I can do anything that is not dishonest."

"Och! the likes o' ye take her place? Niver a bit of it! Why! I see by the gas-light ye're a leddy as iver was at all at all; and ye could niver come in the shoes of sich a thafe as Bridget Maloney, as is gone, and the Divil catch her!"

"No, no, not in her shoes to steal anything, I hope; but I can do housework, sweep, make beds, sew, and make myself useful,—as I will show, if I can have a trial."

"An' ye may well say that's a hape more nor *she* iver could. But if it's a thrial ye want, it's me that'll give't ye as soon as ye plase. I'll answer for ye's to Misthress Millicent,—and that's what I niver did for Bridget, and it's right glad I am of that. Now niver fear, me darlint, it's a powerful good place, it is too, to thim as kapes the right side o' Misthress Millicent; for she's the only daughter, and the mother is dead and gone, poor soul!"

They were now approaching the opulent mansion over the *cuisine* of which our special police-woman had so long had the honor of presiding. Almost delighted enough with her capture to forget, if not forgive, her fugitive fellow-servant Bridget, the florid and fat Aunt Peggy Muldoony hurried along as if the bag were a feather, her words flowing like a spring flood, and introduced her charge at a postern-door into her own house, as she called it. This was, in fact, a very comfortable and somewhat spacious dwelling, which stood almost distinct in the rear of the mansion in which the Hopkins family proper resided, so that there should be ample accommodations for servants, and the steam of cooking could not annoy the grand parlors. Here we might leave the beautiful waif, so strangely picked up in the dark street, to the working of her own genius. She had fallen into a place which had control of all the chamber-work of a modern palace, with ample assistance. Aunt Peggy, her guardian angel, at once instructed her in the routine of the duties, and she very soon had occasion to wonder how the care of so many beautiful flowers, vases, statues, pictures, and objects of splendor and taste, not to speak of beds that the Queen of Sheba might have envied, could have been committed to a domestic who could be tempted to run away with a few hundred dollars' worth of silks and laces. The legal owner himself could hardly enjoy his well-appointed paradise better than

she did, in keeping every leaf up to its highest beauty. It must require a pretty strong dose of tyranny to drive her away, she thought.

But tyranny, if it were there, did not show itself. After a number of serious, but vain attempts, on the part of Miss Millicent, to gratify her curiosity by unravelling the mystery of her new servant, whose industry, skill, and taste produced visible and very satisfactory effects in every part of the mansion, she settled down to the conclusion, that, finally, a treasure had fallen to her lot which it was best for her to keep as carefully as possible and make the most of. She could now smile and assume airs of great condescension when her worthy female friends complained of careless, incompetent, and unfaithful domestics, and have the pleasure of being teased in vain to know what she did to be so well served.

The satisfaction of Miss Millicent at having found and attached to her service a young woman of such superlative domestic genius and taste, who seemed to be so thoroughly contented with her situation, was especially enhanced by the fact, that her own marriage was approaching, an occasion which any bride of good sense would wish to have free from the annoyance of slack and untrustworthy Bridgets.

A few months after the period of which we have been speaking, the long-expected event of the last paragraph was evidently on the eve of accomplishment. There was sitting in the distinguished parlor of Mr. Hopkins, himself, occupying an easy-chair of the most elaborate design and costly materials. It had all manner of extensibilities,—conveniences for reclining the trunk or any given limb at any possible angle,—conveniences for sleeping, for writing, for reading, for taking snuff,—and was, withal, a marvel of upholstery-workmanship and substantial strength. Another still more exquisite combination of rosewood, velvet, spiral springs, and cunning floral carving, presenting a striking resemblance to that great

ornament of the English alphabet, the letter S, held Miss Millicent Hopkins, in one curve, face to face with Mr. Chipworth Dartmouth, already known to the reader, in the other. Near by the half-recumbent millionaire, at a little gem of a lady's writing-desk, sat Mr. Frank Sterling, the junior partner of the distinguished law-firm of Trevor and Sterling, engaged in reading to all the parties aforesaid a very ingenious and interesting document, which he had drawn up, according to the general dictation of Mr. Hopkins aforesaid. It was, in fact, a marriage-settlement, of which the three beautifully engrossed copies were to be signed and sealed by all the parties in interest, and each was to possess a copy. Frank Sterling read over the paragraphs which settled enormous masses of funds around the sacred altar where Hymen was so soon to apply his torch, with great professional coolness, as well as commendable rapidity; but when he came to the conclusion, and, looking at both father and daughter, said, that all that remained, if the draught now met their approbation, was, to have witnesses called in and add the signatures, he betrayed a little personal feeling, which it behooves the reader to understand.

Frank Sterling, though one of the best fellows in the world, with a joyous face, a bright eye, a hearty laugh, and the keenest possible relish for everything beautiful and good, was a bachelor, because a mate quite to his judgment and taste had never fallen in his way. With Mr. Hopkins, he had been, for a year or two, a favorite lawyer. Professional business had often brought him to the house, and at Miss Millicent's parties he had often been a specially licensed guest. There had been a time, he felt quite sure, when, if he had pushed a suit, he could have put his name where that of Dartmouth stood in the marriage-settlement, and, as he glanced at Miss Millicent, as she sat in the mellow light of the purplish plate-glass of that superb parlor, she seemed so beautiful and queenly that he almost wished he had done it. Was it quite fit that such a woman should be thrown away upon one of the mere beasts of the stock-market? The air with which Chip took his victory

was so exactly like that matter-of-course chuckle with which he would have tossed over the proceeds of a shrewd bargain into his bank-account, that the young lawyer's soul was shocked at it, and he almost wished he had prevented such a shame. However, his discretion came to the rescue, and told him he had done right in not linking his fortunes to a woman who, however beautiful, was too passive in her character to make any man positively happy. Had it been his ambition to spend his life in burning incense to an exquisitely chiselled goddess, here was a chance, to be sure, where he could have done it on a salary that would have satisfied a *pontifex maximus*; but, with a fair share of the regard for money which characterizes his profession, Mr. Sterling never could make up his mind to become a suitor for the hand of Miss Millicent, nor get rid of the notion that he was to bless and be blessed by some woman of positive character and a taste for working out her own salvation in her own way,—some woman who, not being made by her wealth, could not be unmade by the loss of it. It was, therefore, only a momentary sense of choking he experienced, as he laid the manuscripts on the leaf of Mr. Hopkins's chair, and said,—

"Shall I ring the bell, Sir?"

"If you please, Mr. Sterling. Now, Millicent, dear, whose name shall have the honor of standing as witness on this document? There is Aunt Peggy,—is good at using pothooks, but not so good at making them. Her mark won't exactly do."

"Why, father! I shall, of course, have my little favorite, Lucy Green; her signature will be perfectly beautiful. And by the way, Mr. Dartmouth, here is a thing I haven't thought of before. With this Lucy of mine for an attendant, I am worth about twice as much as I should have been without her, and yet no mention has been made of this in the bargain."

"Ha! ha!" said Chip. "Thought of in good time. Let Mr. Sterling add the item at once. I am content."

"First, however, you shall see the good girl herself, Mr. Dartmouth, and then we can have a postscript—or should I say a codicil?—on her account. John, please say to Lucy, I wish her to come to me. After all the stocks and bonds in the world, Mr. Dartmouth, our lives are what our servants please to make them."

"True, indeed, my love; but the comfort is, if we are well stocked with bonds of the right sort, servants that don't suit can be changed for those that do."

"And the more changes, the worse, commonly;—an exception is so rare, I dread nothing like change. The chance of improving a bad one is even better, I think."

"I don't believe there is anything good in the flunkey line that money won't buy. I have always found I could have anything I wanted, if I saw fit to pay its price. Money, no matter what simpletons preach, money, my dear, is"——

"Why, Lucy, what is the matter?" exclaimed Miss Millicent, with some surprise and anxiety, as she saw the girl, who had just entered, instead of advancing, awkwardly shrink on one side into a chair behind the door, with a shudder, as if she had trod on a reptile. The next moment she was at her side, earnestly whispering something in her ear, evidently an explanation of the circumstances of the case, to which Lucy had hitherto been an entire stranger.

"Pray, excuse me, Ma'am," was the girl's scarce audible response to some request.

"It is only to write your name, Lucy."

"Not to *such* a paper, for the world!"

"Not to oblige me?"

"I would do anything, Ma'am, to oblige you, but that would not. Never! never!" said the excited girl, catching another glimpse of Chip, who was now looking obliquely at the whispering couple, and drumming with his fingers on the rosewood of that part of the letter S from which his intended had just risen, as if he were hurriedly beating a *reveille* to rally his faltering impudence. "No, Ma'am;—it is too bad, it is too bad, it is too"——Here her utterance became choked, her cheeks pallid as death, and her form wilted and fell like a flower before the mower's scythe. Millicent prevented the fall, while Sterling rang for water, and Chip, peering about with more agitation than any one else, finally remarked,—

"The girl must be sick;—better take her out."

The young lawyer, with the aid of a servant, did bear her to another apartment, where, after the usual time and restoratives, she recovered her consciousness, and the maiden blood again revealed tints that the queen of flowers might envy. Chip and the millionaire remained in the parlor, while the others were taking care of the proposed witness, and great was the anxiety of the former that their absence should not be prolonged. Suddenly he recollected a forgotten engagement of great importance, pulled out his watch, fidgeted, suggested that the lawyer and Miss Millicent should be recalled, that the papers might be signed before he went. Mr. Hopkins was of that opinion, and sent a servant to call them. Miss Millicent came, but could not think of completing the contract without the signature of her favorite domestic. Argument enough was ready, but she was fortified by a sentiment that was more than a match for it. Mr. Hopkins was all ready, and

would have the matter closed as soon as the lawyer arrived, affirming that his daughter would have too much sense, at last, to stand out on such a trifle.

In the mean time, the supposed Miss Lucy having had time to collect her scattered senses, there occurred the following dialogue between her and Frank Sterling, whose curiosity, not to speak of any other interest, had been thoroughly roused by the strange patient for whom he had just been acting in a medical, rather than legal capacity.

Frank. "We are all right, now, I think, Miss Lucy,—and they are waiting for us in the parlor, you know."

Lucy. "That paper must not be signed, Sir. If Miss Millicent knew what I do about that man, he would be the last man in the world she would think of for a husband."

Frank. "But he is one of the merchant princes,—respectable, of course. What harm can you know of him?"

Lucy. "If he is not so great a villain as he might be, let him thank my escape from Mrs. Farmthroy's the night I came here. If he is to be at home here, I shall not be; but before I leave, I wish to restore him what belongs to him. Excuse me a moment, Sir, and I will fetch it."

"A regular previous love-affair," thought Frank, and expected her to return, bringing a small lot of erotic jewelry to be returned to Chipworth, as the false-hearted donor thereof. Great was his surprise, when, instead of that, she brought a small parcel or wad of yellowish paper, variegated with certain scrawls of rapid writing, of the manifold sort.

"Why, that," said Frank, after unfolding the half-dozen sheets, all of the same tenor, "is a set of news-dispatches, and of a pretty ancient date, too."

Lucy. "But it is his property, Sir; and though worthless itself, being worth as much as he is, it may be valuable to him."

Frank. "Yes, yes. I begin to see. Cotton-Market. This reminds me of the case of our client Grant. Why, pray, how did you come by these?"

Lucy. "Perhaps I ought not to tell you all. But if I may rely on your honor as a gentleman, I will."

Frank. "As a gentleman, a man, and a lawyer, you may trust me that every word shall be sacredly confidential."

Lucy. "Well, Sir, my name is not Lucy Green, but Laura Birch. My mother keeps the Birch House in Waltham; and this man, whom you call a merchant prince, came to my mother's the very day after the date on them papers, and hired my brother to carry him to Captain Grant's. When he took out his pocketbook to pay, which he did like a prince, perhaps, he probably let these papers fall. At any rate, no one else could have dropped them; and I saved them, thinking to give them to him when he should call again. I have seen him but once since, at a place where, through his interest, I supposed I had obtained a situation to learn the milliner's trade. I needn't say why I did not return his property then. If, now, I had in my possession even an old shoestring that had ever been his, I would beg you to return it to him, and find out for me where I can go never to see him."

Frank. "But I shall take care of these dispatches. There's a story about these papers, I see. Here's a ray of daylight penetrating a dark spot. Two links in the chain of circumstances, to say the least. Captain Grant's unfortunate sale of cotton to Dartmouth just before the rise, and the famous

lost dispatch found on Dartmouth's track to Grant. Did you see him have these papers, Miss Lucy—I beg your pardon—Miss Laura?"

Lucy. "No, Sir; but I know he left them, just as well as if I had seen them in his hands."

Frank. "True, true enough in fact, but not so good in law."

Lucy. "Is there anything by which the law can reach him, Sir? Oh, I should be so glad, if the law could break off this match, even if it cannot break his neck; and he deserves that, I am afraid, if ever a villain did."

Frank. "Yes,—there's enough in this roll to banish such a fellow, if not to hang him. And it shall be done, too."

Lucy. "And Miss Millicent be saved, too? Delightful!"

Sterling, with the roll of yellow paper in his fist, now returned to the parlor, where Mr. Hopkins impatiently opened upon him, before he could close the door.

"Well, Mr. Counsellor, we are all waiting for you. Mr. Dartmouth has urgent business, and is in haste to go. We shall be holden in heavy damages, if we detain him."

"He will be in more haste to go by-and-by, Sir. I have some papers here, Sir, which make it necessary that this marriage-contract should stand aside till some other matters can be settled, or at least explained. I refer to these manifold dispatches, detailing the latest news of the Liverpool cotton-market, by the fraudulent possession of which on the part of somebody, a client of mine, Captain Grant of Waltham, was cheated out of a small fortune. Perhaps Mr. Dartmouth knows who went to Waltham one morning to close a bargain before the telegraph-news should transpire. It is rather

remarkable that certain lost dispatches should have been found in that man's track."

Whether Chip Dartmouth heard three words of this harangue may be doubted. The sight of that yellowish paper did the business for him. His expression vibrated from that of a mad rattlesnake to that of a dog with the most downcast extremities. At last he rushed to the door, saying he "would stand no such nonsense."

"But you will have to stand it!"

Chip was gone. Mr. Hopkins was in a state of amazement; and Millicent, if she did not swoon, seemed to herself in a trance. Neither of them could see in the cause anything to account for the effect. How could a merchant prince quail before so flimsy a piece of paper? Mr. Sterling explained. Mr. Hopkins begged the matter might not be made public,—above all things, that legal proceedings should be avoided.

"No," said Sterling,—*"I shall punish him more effectually. The proof, though strong as holy writ, would probably fail to convict him in court. Therefore I shall let him off on these conditions: He shall disgorge to Captain Grant his profits on that cotton with interest, relinquish Miss Millicent's hand, if she so pleases, and, at any rate, relieve Boston of his presence altogether and for good. He may do it as soon as he likes, and as privately."*

This course at once met the approbation of all parties, and was carried out.

What became of Squire Sterling, whether he married the mistress of that mansion or her maid, this deponent saith not; though he doth say that he did marry one of them, and had no cause to regret the same.

* * * * *

SEEN AND UNSEEN.

The wind ahead, the billows high,
A whited wave, but sable sky,
And many a league of tossing sea
Between the hearts I love and me.

The wind ahead: day after day
These weary words the sailors say;
To weeks the days are lengthened now,—
Still mounts the surge to meet our prow.

Through longing day and lingering night
I still accuse Time's lagging flight,
Or gaze out o'er the envious sea,
That keeps the hearts I love from me.

Yet, ah, how shallow is all grief!
How instant is the deep relief!
And what a hypocrite am I,
To feign forlorn, to 'plain and sigh!

The wind ahead? The wind is free!
Forever more it favoereth me,—
To shores of God still blowing fair,
O'er seas of God my bark doth bear.

This surging brine *I* do not sail,
This blast adverse is not my gale;

'Tis here I only seem to be,
But really sail another sea,—

Another sea, pure sky its waves,
Whose beauty hides no heaving graves,—
A sea all haven, whereupon
No hapless bark to wreck hath gone.

The winds that o'er my ocean run
Reach through all heavens beyond the sun;
Through life and death, through fate, through time,
Grand breaths of God, they sweep sublime.

Eternal trades, they cannot veer,
And, blowing, teach us how to steer;
And well for him whose joy, whose care,
Is but to keep before them fair.

Oh, thou God's mariner, heart of mine,
Spread canvas to the airs divine!
Spread sail! and let thy Fortune be
Forgotten in thy Destiny!

For Destiny pursues us well,
By sea, by land, through heaven or hell;
It suffers Death alone to die,
Bids Life all change and chance defy.

Would earth's dark ocean suck thee down?
Earth's ocean thou, O Life, shalt drown,
Shalt flood it with thy finer wave,
And, sepulchred, entomb thy grave!

Life loveth life and good: then trust
What most the spirit would, it must;
Deep wishes, in the heart that be,
Are blossoms of Necessity.

A thread of Law runs through thy prayer,
Stronger than iron cables are;
And Love and Longing toward her goal
Are pilots sweet to guide the Soul.

So Life must live, and Soul must sail,
And Unseen over Seen prevail,
And all God's argosies come to shore,
Let ocean smile, or rage and roar.

And so, 'mid storm or calm, my bark
With snowy wake still nears her mark;
Cheerly the trades of being blow,
And sweeping down the wind I go.

PERCIVAL.

Among my letters is one from Dr. E.D. North, desiring me to furnish any facts within my reach, relating to the scientific character and general opinions of the late James G. Percival. This information Dr. North proposed to incorporate into a memoir, to be prefixed to a new edition of Percival's Poems. The biographer, with his task unfinished, has followed the subject of his studies to the tomb.

Dr. North's request revived in me many recollections of Percival; and finally led me to draw out the following sketch of him, as he appeared to my eyes in those days when I saw him often, and sometimes shared his pursuits. Vague and shadowy is the delineation, and to myself seems little better than the reminiscence of a phantom or a dream. Percival's life had few externalities,—he related himself to society by few points of contact; and I have been compelled to paint him chiefly by glimpses of his literary and interior existence.

My acquaintance with him grew out of some conversations on geological topics, and commenced in 1828, when he was working on his translation of Malte-Brun's Geography. The impression made on me by his singular person and manners was vivid and indelible. Slender in form, rather above than under the middle height, he had a narrow chest, and a peculiar stoop, which was not in the back, but high up in the shoulders. His head, without being large, was fine. His eyes were of a dark hazel, and possessed

uncommon expression. His nose, mouth, and chin were symmetrically, if not elegantly formed, and came short of beauty only because of that meagreness which marked his whole person. His complexion, light without redness, inclined to sallow, and suggested a temperament somewhat bilious. His dark brown hair had become thin above the forehead, revealing to advantage that most striking feature of his countenance. Taken all together, his appearance was that of a weak man, of delicate constitution,—an appearance hardly justified by the fact; for he endured fatigue and privation with remarkable stanchness.

Percival's face, when he was silent, was full of calm, serious meditation; when speaking, it lighted up with thought, and became noticeably expressive. He commonly talked in a mild, unimpassioned undertone, but just above a whisper, letting his voice sink with rather a pleasing cadence at the completion of each sentence. Even when most animated, he used no gesture except a movement of the first and second fingers of his right hand backward and forward across the palm of the left, meantime following their monotonous unrest with his eyes, and rarely meeting the gaze of his interlocutor. He would stand for hours, when talking, his right elbow on a mantel-piece, if there was one near, his fingers going through their strange palmistry; and in this manner, never once stirring from his position, he would not unfrequently protract his discourse till long past midnight. An inexhaustible, undemonstrative, noiseless, passionless man, scarcely evident to you by physical qualities, and impressing you, for the most part, as a creature of pure intellect.

His wardrobe was remarkably inexpensive, consisting of little more than a single plain suit, brown or gray, which he wore winter and summer, until it became threadbare. He never used boots; and his shoes, though carefully dusted, were never blacked. A most unpretending bow fastened his cravat of colored cambric. For many years his only outer garment was a brown

camlet cloak, of very scanty proportions, thinly lined, and a meagre protection against winter. His hat was worn for years before being laid aside, and put you in mind of the prevailing mode by the law of contrast only. He was never seen with gloves, and rarely with an umbrella. The value of his entire wardrobe scarcely exceeded fifty dollars; yet he was always neat, and appeared unconscious of any peculiarity in his costume.

An accurate portrait of him at any period of his life can scarcely be said to exist. His sensitive modesty seems to have made him unwilling to let his features be exposed to the flaring notoriety of canvas. Once, indeed, he allowed himself to be painted by Mr. George A. Flagg; but the picture having been exhibited in the Trumbull Gallery of Yale College, Percival's susceptibility took alarm, and he expressed annoyance,—though whether dissatisfied with the portrait or its public exposure I cannot say. The artist proposed certain alterations, and the poet listened to him with seeming assent. The picture was taken back to the studio; objectionable or questionable parts of it painted out; the likeness destroyed for the purpose of correction; and Percival was to give another sitting at his convenience. That was the last time he put himself within painting reach of Mr. Flagg's easel.[A]

[Footnote A: I remember to have seen an excellent portrait of him, by Alexander, in the studio of that artist, in the year 1825; but in whose possession it now is, I am unable to say.]

In those days of our early acquaintance, he occupied two small chambers, one of which fronted on the business part of Chapel Street (New Haven). His books, already numerous, were piled in double tiers and in heaps against the walls, covering the floors also, and barely leaving space for his sleeping-cot, chair, and writing-table. His library was a *sanctum* to which the curious visitor hardly ever gained admittance. He met even his friends at

the door, and generally held his interviews with them in the adjoining passage. Disinclined to borrow books, he was especially averse to lending. Dr. Guhrauer's assertion respecting Leibnitz, that "his library was numerous and valuable, and its possessor had the peculiarity that he liked to worm in it alone, being very reluctant to let any one see it," applies equally well to Percival.

He was rarely visible abroad except in his walks to and from the country, whither he often resorted to pass not hours only, but frequently entire days, in solitary wanderings,—partly for physical exercise,—still more, perhaps, to study the botany, the geology, and the minutest geographical features of the environs; for his restless mind was perpetually observant, and could not be withheld from external Nature, even by his poetic and philosophic meditation. In these excursions, he often passed his fellow-mortals without noticing them. A friend, if observed, he greeted with a slight nod, and possibly stopped him for conversation. Once started on a subject, Percival rarely quitted it until it was exhausted; and consequently these interviews sometimes outlasted the leisure of his listener. You excused yourself, perhaps; or you were called away by some one else; but you had only put off the conclusion of the discourse, not escaped it. The next time Percival encountered you, his first words were, "As I was saying,"—and taking up the thread of his observations where it had been broken, he went straight to the end.

The excellent bookstore of the late Hezekiah Howe, one of the best in New England, and particularly rich in those rare and costly works which form a bookworm's delight, was one of Percival's best-loved lounging-places. He bought freely, and, when he could not buy, he was welcome to peruse: He read with marvellous rapidity, skipping as if by instinct everything that was unimportant; avoiding the rhetoric, the commonplaces, the falsities; glancing only at what was new, what was true, what was

suggestive, he had a distinct object in view; but it was not to amuse himself, nor to compare author with author; it was simply to increase the sum of his own knowledge. Perhaps it was in these rapid forays through unbought, uncut volumes, that he acquired his singular habit of reading books, even his own, without subjecting them to the paper-knife. People who wanted to see Percival and obtain his views on special topics were accustomed to look for him at Mr. Howe's, and always found him willing to pour forth his voluminous information.

His income at this time was derived solely from literary jobs, and was understood to be very limited. What he earned he spent chiefly for books, particularly for such as would assist him in perfecting that striking monument of his varied and profound research, his new translation and edition of Malte-Brun. For this labor the time had been estimated, and the publishers had made him an allowance, which, if he had worked like other men, would have amounted to eight dollars a day. But Percival would let nothing go out of his hands imperfect; a typographical error, even, I have heard him say, sometimes depressed him like actual illness. He translated and revised so carefully, he corrected so many errors and added so many footnotes, that his industry actually devoured its own wages; and his eight dollars gradually diminished to a diurnal fifty cents.

Percival made no merely ceremonial calls, few friendly visits, and attended no parties. If he dropped in upon a family of his acquaintance, he rarely addressed himself to a lady. Otherwise there was nothing peculiar in his deportment; for, if silent, he was not embarrassed,—and if he talked, it was without any appearance of self-consciousness.

Judging from his isolated habits, some persons supposed him misanthropic. Let me give one instance of his good-nature. One of the elder professors of Yale had fallen into a temporary misappreciation with the

students, who received his instructions, to say the least, with an ill-concealed indifference. They whispered during his lectures, and in other ways rendered themselves strenuously disagreeable to the sensitive nerves of the professor. Indignant at such behavior toward a worthy and learned man, who had been his own instructor, Percival proposed a plan for stopping the annoyance. It was, that a number of old graduates, professors, and others, himself being one, should attend the lectures, listen to them with the respect they merited, and so, if possible, bring the students to a sense of propriety and of the advantages they were neglecting.

No, Percival was not a misanthrope. During an acquaintance of twenty-five years, I never knew him do an act or utter a word which could countenance this opinion. He indulged in no bitter remarks, cherished no hatred of individuals, affected no scorn of his race; on the contrary, he held large views concerning the noble destinies of mankind, and expressed deep interest in its advancement toward greater intelligence and virtue. The local affections he certainly had, for he was gratified at the prosperity of his fellow-townsmen, proud of his native State, and took a pleasure in defending her name from unjust aspersions. Patriotic, too,—none more so,—he rejoiced in the welfare of the whole country, knew its history thoroughly, and bestowed on its military heroes, in particular, a lively appreciation, which was singular, perhaps, in a man of such gentle habits and nature. I cannot forget the excited pleasure with which we visited, when on the geological survey of Connecticut, Putnam's Stairs at Horseneck, and Putnam's Wolf-Den in Pomfret. At the latter place, Percival's enthusiasm for the heroic hunter and warrior led him to carve his initials on a rock at the entrance of the chasm. It was the only place during the tour where he left a similar memorial.

American statesmen he admired scarcely less than American soldiers; nor did he neglect any information within his reach concerning public men and

measures. It was singular to observe with what freedom from excitement he discussed the most irritating phases of party,—speaking of the men and events of his own day with as much philosophic calmness as if they belonged to a previous century; not at all deceived, I think, by the temporary notoriety and power which frequently attend the political bustler,—quite positive, indeed, that many of our "great men" were far inferior to multitudes in private life. Webster he respected greatly, and used to regret that his fortune was not commensurate with his tastes. Like a true poet, he believed devoutly in native genius, considered it something inimitable and incommunicable, and worshipped it wherever he found it.

Percival was indifferent and even disinclined to female society. There is a common story that he had conceived an aversion to the whole sex in consequence of a youthful disappointment in love. I know nothing concerning this alleged chagrin, but I am confident that he cherished no such antipathy. He never, in my hearing, said a hard thing of any woman, or of the sex; and I remember distinctly the flattering and even poetic appreciation with which he spoke of individual ladies. Of one who has since become a distinguished authoress of the South, he said, that "her conversation had as great an intellectual charm for him as that of any scholar among his male acquaintances." Of a lady still resident in New Haven, he observed, that "there was a mysterious beauty in her thoughtful face and dark eyes which reminded him of a deep and limpid forest-fountain." But although he did not hate women, he certainly was disinclined to their society,—an oddity, I beg leave to say, in any man, and a most surprising eccentricity in a poet. Constitutional timidity may have founded this habit during youth; for, as I have already observed, his modesty was sensitive and almost morbid. Then came his multitudinous studies, which absorbed him utterly, and in which, unfortunately for Percival, if not for the ladies, these last took so little interest that conversation was not mutually desirable. A remark he made to a scientific friend, who had just been

married, will, perhaps, throw some light on the subject. "How is this?" said he; "I thought you were wedded to science." This was all the felicitation he had to offer; and without asking for the bride, he plunged into the discussion which was the object of the visit.

In 1835 commenced the geological survey of Connecticut, and I became Percival's companion in labor. To him was intrusted the geology proper, and to myself the mineralogy and its economical applications. During the first season, we prosecuted our investigations together, travelling in a one-horse wagon, which carried all our necessary implements, and visiting, before the campaign ended, every parish in the State. Great was the wonder our strange outfit and occupation excited in some rustic neighborhoods; and very often were we called upon to enlighten the popular mind with regard to our object and its uses. This was never a pleasant task to Percival. He did not relish long confabulations with a sovereign people somewhat ignorant of geology; and, moreover, his style of describing our business was so peculiar, that it rarely failed to transfer the curiosity to himself, and lead to tiresome delays. In New Milford, an inquisitive farmer requested us, in a somewhat ungracious manner, to give an account of ourselves. Percival replied, that we were acting under a commission from the Governor to ascertain the useful minerals of the State; whereupon our utilitarian friend immediately demanded to be informed how the citizens at large, including himself, were to be benefited by the undertaking,—putting question on question in a fashion which was most pertinacious and almost impertinent. Percival became impatient, and tried to hurry away. "I demand the information," exclaimed the New Milfordite; "I demand it as my right. You are only servants of the people; and you are paid, in part, at least, out of my pocket." "I'll tell you what we'll do," said Percival; "we can't stop, but we'll refund. Your portion of the geological tax,—let me see,—it must be about two cents. We prefer handing you this to encountering a further delay." Our

agricultural friend and master did not take the money, although he did the hint,—and in sulky silence withdrew from our company.

Driving through the town of Warren, we stopped a farmer to inquire the way to certain places in the vicinity. He gave us the information sought, staring at us meanwhile with a benevolently inquisitive expression, and, at last, volunteering the remark, that, if we wanted a job, we had better stop at the factory in the hollow. We thanked him for his goodness, and thought, perhaps, of Sedgewick geologizing by the road-side, and getting a charitable half-crown flung at him by a noble lady who was on her way to dine in his company at the house of a mutual acquaintance.

Let us grant here one brief parenthesis of respect and astonishment to the scientific knowledge and philological acumen of a distinguished graduate of Yale College, and member of Congress, whom we encountered on our travels. Hearing us speak of mosaic granite, a rock occurring in Woodbridge, to which we had given this name, from the checker-like arrangement of its felspathic ingredient, he concluded that we attributed its formation to the era of Moses, and asked Percival what evidence he had for such an opinion. Small blame to him, perhaps, for the blunder, but it seemed a very droll one to geologists.

In Greenwich, the extreme southwestern town of the State, we encountered an incident to which my companion would sometimes refer with a slight degree of merriment. In general, he was no joker, no anecdotist, and had but a feeble appreciation of droll sayings or humorous matters of any kind. But in Greenwich he heard a memorable phrase. Among the tavern-loungers was a man who had evidently seen better days, and who, either for that reason or because of the large amount of rum he had swallowed, entertained a lofty opinion of himself, and discoursed *de omnibus rebus* in a most consequential fashion. He soon made himself a

sort of medium between ourselves and his fellow-loafers. Overhearing us say that we wished to pass the New York frontier for the sake of tracing out the strata then under examination, he proceeded with much pomposity to declare to his deeply curious auditory, that "it was his opinion that the Governor of the State should confer upon these gentlemen *discretionary powers* to pass the limits of Connecticut, whenever and wherever, in the prosecution of their labors, the interests of science required them so to do." After this, we rarely crossed the State line but Percival observed, "We are now taking advantage of our discretionary powers."

Of the few stories Percival told me, here is one. In one of our country-places, a plain, shrewd townsman fell into chance conversation with him, and entertained him with some account of a neighbor who had been seized with a mania for high Art, and had let loose his frenzy upon canvas in a deluge of oil-colors. If I mistake not, Percival was invited to inspect these productions of untaught and perhaps unteachable genius. They were vast attempts at historical scenes, in which the heads and legs of heroes were visible, but played a very secondary part in the interest, compared with a perfect tempest of drapery, which rolled in ungovernable masses, like the clouds of a thunder-storm.

"What do you think of them?" inquired Percival.

"Well, I don't claim to be a judge of such things," replied his cicerone; "but the fact is, (and I told the painter so,) that, when I look at 'em, about the only thing I can think of is a resurrection of old clothes."

In the town of Lebanon, an incident occurred which affected us rather more seriously. Turning a corner suddenly, we came upon an old man digging up cobble-stones by the road-side and breaking them in pieces with an axe. "A brother-geologist," was our first impression. At that moment the

old man sprang toward us, the axe in one hand and half a brick in the other, shouting eagerly,—

"I guess Mr. ——" (name indistinguishable) "will be glad to see you, gentlemen."

"For what?"

"Why, he has got several boxes of jewels; and I gave an advertisement in the paper."

"Whose are they?"

"King Jerome's."

"And who is he?"

"The king of the world!" shouted the maniac, still advancing with a menacing air, and so near the wagon by this time that he might almost have hit Percival with his axe.

Without pausing to hear more about the jewels, a sudden blow to the horse barely enabled us to escape the reach of our fellow-laborer before he had time to use his axe on our own formations.

In the following year, when Percival was pursuing the survey by himself, on horseback, some of the elements of this adventure were repeated, but reversed after a very odd fashion. The late Dr. Carrington, of Farmington, who told me the tale, being ten miles from home on a professional excursion, drove up to a tavern and found himself welcomed with extraordinary emphasis by the innkeeper. The Doctor was just the person he wanted to see; the Doctor's opinion was very much needed about that strange man out there; he wished the Doctor to have a talk with him, and

see whether he was crazy or not. The fellow had been there a day or two, picking up stones about the lots; and some of the boys had been sent to watch him, but could get nothing out of him. This morning he wanted to go away, and ordered his horse; but the neighbors wouldn't let it be brought up, for they said he was surely some mad chap who had taken another man's horse. Thus talking, the landlord pointed out Percival, surrounded by a group of villagers, who, quietly, and under pretence of conversation, were holding him under a sort of arrest. The Doctor rushed into the circle, addressed his friend Percival by name, spoke of the survey, and thus satisfied the bystanders, who, guessing their mistake, dispersed silently. No open remonstrance was needed, and perhaps Percival never understood the adventure in which he thus unconsciously formed the principal character.

While we were in Berlin, the native town of Percival, he related to me several incidents of his earlier life. His father was discussing some geographical question with a neighbor; and the future geologist, then a boy of seven or eight, sat by listening until the ignorance of his elders tempted him to speak. "Where did you learn that?" they asked, in astonishment. With timid reluctance, he confessed that he had been reading clandestinely Morse's large geography, of which there was a copy in a society-library kept at his father's house. The book, he added, had an indescribable attraction for him; and even at that almost infantile age he was familiar with its contents. It was this reading of Morse, perhaps, which determined his taste for those geographical studies in which he subsequently became so distinguished. With him, as with Humboldt and Guyot, geography was a term of wide signification. Far from confining it to the names and boundaries of countries, seas, and lakes, to the courses of rivers and the altitudes of mountains, he connected with it meteorology, natural history, and the leading facts of human history, ethnology, and archaeology. He knew London as thoroughly as most Americans know New York or Philadelphia, and yet he had never crossed the Atlantic.

An instance of the minuteness of his geographical information was related to me by the Rev. Mr. Adam, a Scottish clergyman, long resident at Benares, but subsequently settled over the Congregational Church in Amherst, Massachusetts. On his way to visit me at New Haven, he met in the stage-coach a countryman of his, who soon opened a controversy with him respecting the course of a certain river in Scotland. The discussion had continued for some time, when another passenger offered a suggestion which opened the eyes of the debaters to the fact (not unfrequently the case in such controversies) that they were both wrong. "How long since you were there, Sir?" they asked; and the reply was, "I never was in Scotland." "Who are you, Sir?" Mr. Adam wanted to ask, but kept the question until he could put it to me. I did not feel much hesitation in telling him that the stranger must have been Percival; and Percival it was, as I afterwards learned by questioning him of the circumstance.

But we must return to Berlin, in order to hear one more of Percival's stories. Passing a field, half a mile from his early home, he told an incident connected with it, and related to his favorite study of natural history. The field had belonged to his father, who, besides being the physician of Berlin, indulged a taste for agriculture. Just before the harvest season, it became palpable that this field, then waving with wheat, was depredated upon to a wasteful extent by some unknown subjects of the animal kingdom. Having watched for the pilferers in vain by day, the proprietor resolved to mount guard by night, and accordingly ambushed himself in the invaded territory. Near midnight, he saw his own flock of geese, hitherto considered so trustworthy, approach silently in single file, make their entry between the rails, and commence transferring the wheat-crop into their own crops, after a ravenous fashion. Having eaten their fill, they re-formed their column of march, with a venerable gander at the head, and trudged silently homeward, cautiously followed by their owner, who noticed, that, on regaining his door-yard, they set up a vociferous cackle, such as he had repeatedly heard

from them before at about the same hour. It was a most evident attempt to establish an *alibi*; it was as much as to say, "If you miss any wheat, we didn't take it; we are honest birds, and stay at home o'nights, Dr. Percival." The next morning, however, a general decapitation overtook the flock of feathered hypocrites. "It was a curious instance of the domestic goose reverting to its wild habit of nocturnal feeding," remarked my narrator, dwelling characteristically upon the natural-history aspect of the fact.

Percival was almost incapable of an irrelevancy. The survey was the business in hand, and he rarely discoursed much of things disconnected with it, except, perhaps, when we were retracing our routes, or when the labors of the day were over. Of poets and poetry he was not inclined to speak. I never heard him quote a line, either his own or another's, nor indulge in a single poetic observation concerning the objects which met us in our wanderings. Indeed, he confessed that he no longer felt disposed to write verses, being satisfied that his productions were not acceptable to the prevailing taste; although he admitted that he composed a few stanzas occasionally, in order to make trial of some unusual measure or new language. He told me that he had versified in thirteen languages; and I have heard from others that he had imitated all the Greek and German metres.

Of politics, foreign and domestic, he talked frequently, but always philosophically and dispassionately, much as if he were speaking of geological stratification. His views of humanity were deduced from a most extensive survey of the race in all its historical and geographical relations. He distinctly recognized the fact of its steady advance from one stage to another, in accordance with a plan of intellectually organic development, as marked as that detected by the geologist in the gradual preparation of the earth for the abode of our species. The slowness and seeming vacillation of man's upward movement could not stagger his faith; for if it had taken thousands of ages to make earth habitable, why should it not take thousands

more to bring man to his completeness? Equally free was he from misgiving on account of the remaining presence of so much misery and wretchedness; for these he considered as the indispensable stimuli to progress. Even war, he used to say, is sometimes necessary to the welfare of nations, as sickness and sorrow plainly are to that of individuals; although, to his moral sense, the human authors of this scourge were no more admirable than the devisers of any private calamity. Improvements in knowledge he regarded as the only elements of real progress; and these he looked upon as true germinal principles, bound up organically in the constitution of the human soul. Indeed, that philosophical calmness which was characteristic of him seemed to flow in some measure from his settled persuasion that the same matchless wisdom and benevolence he recognized throughout Nature wrought with a still higher providence and a more earnest love for man and would make all things finally conduce to his welfare. It was clear that he drew a profound tranquillity from the thought that he was a part of the vast and harmonious whole.

Concerning his religious views he was exceedingly taciturn. He had no taste for metaphysical or theological discussions, although his library contained a large number of standard works on these subjects. Religion itself he never alluded to but with the deepest respect. Talking to me of Christianity, he quoted the observation of Goethe, that "it had brought into the world a light never to be extinguished." He spoke of Jesus with poetic, if not with Christian fervor. He contrasted his teachings and deeds with the prevailing maxims and practice of the people among whom he appeared, with the dead orthodoxy of its religious teachers, and with the general ignorance and hypocrisy of the masses. "Had I lived in such a state of society," he said, "I am certain that it would have driven me mad."

He expressed an earnest esteem for the doctrines of the Evangelical clergy, and even approved, though more moderately, the religious

awakenings which occur under their labors. He described to me, with some particularity, a revival he had witnessed in his native town, when young; and repeated some of the quaint exhortations of the lay brethren, all in a manner perfectly serious, but calculated, perhaps, to leave the impression, that such views of religion were not necessary to himself, although they might be quite suited to the minds of others.

The rational theology he regarded as anti-poetic in influence, and of very doubtful efficacy in working upon the masses. He appreciated, however, the honesty and superior culture of the Unitarian scholars and clergy of Boston, with many of whom he had been on terms as intimate as his shyness accorded to any one.

He attended church but once with me while we were engaged in the survey. We heard a discourse from a Rev. Dr. E——, upon the conduct of the young ruler who inquired his duty of Christ. The speaker argued from the sacred narrative a universal obligation to devote our possessions to religious purposes,—and upheld, as an example to all men, the self-devotion of a young missionary (then somewhat known) who had despised a splendid fortune, offered him on condition of his remaining at home, and had consecrated himself to the Christianization of Africa.

"How did you like the sermon?" I inquired of Percival.

"I consider it an animating and probably useful performance," he replied; "but it does not accord with comprehensive conceptions of humanity, inasmuch as its main inference was drawn from the exception, and not from the rule. There always have been, and probably always will be, men possessed of the self-immolating or martyr spirit. Such instances are undoubtedly useful, and have my admiration; but they cannot become general, and never were meant to be."

During the survey, we were invited to pass an evening in a family remarkable for its musical talent, and I remember distinctly the evident pleasure with which Percival listened to the chorus of organ tones and rich cultivated voices. In general, however, his appreciation of music was subordinate to his study of syllabic movement in versification; and it was with reference chiefly to poetic measure, I have been told, that he acquired what mastery he had over the accordion and guitar.

Percival's favorite topics, when evening came and we rested from our stony labors, were the modern languages and the philosophy of universal grammar. They seemed to have filled the niches in his heart, from which he had banished, or tried to banish, the Muses. The subtle refinements of Bopp were a perpetual luxury to him; he derived language from language as easily as word from word; and, once started in the intricacies of the Russian or the Basque, there was no predicting the end of the discourse. Thus were thrown away, upon a solitary listener, midnight lectures which would have done honor to the class-rooms of Berlin or the Sorbonne. In looking at such an instance of intellectual pleasure and acumen, as connected in no small degree with the study of foreign languages, one cannot avoid associating together the unsolved mystery of that discrepancy of tongues prevailing in different countries with the disagreeing *floras* and *faunas* of the same regions,—each diversity bearing alike the unmistakable marks of Omnipotent design for the happiness and improvement of man.

The perfection of his memory was amazing. During the year following the survey, when we had frequent occasion to compare recollections, I observed that no circumstance of our labors was shadowy or incomplete in his memory. He could refer to every trifling incident of the tour, recall every road and path that we had followed, every field and ledge that we had examined, particularize the day of the week on which we had dined or supped at such a tavern, and mention the name of the landlord. I asked him

how he was able to remember such minutiae. He replied, that it was his custom, on going to bed, to call up, in the darkness and stillness, all the incidents of the day's experience, in their proper order, and cause them to move before him like a diorama through a spiritual morning, noon, and evening. "It has often appeared to me," he said, "that in this purely mental process I see objects more distinctly than I behold them in the reality."

But his memory doubtless gained an immense additional advantage from his habitual seclusion, from his unconcern with the distracting customs of society, and, most of all, from the imperturbable abstraction under which he studied and observed. With him there was no blending of collateral subjects, no permitted intrusion of things irrelevant or trivial, so that the channels of his thoughts were always single, deep, and traceable. It was a mental straightforwardness and conscientiousness, as rare, perhaps, as moral rectitude itself.

In diet, Percival was the most abstemious person I ever knew. His health was uniformly good,—the specimens of a geologist, when he collects them himself, being as favorable to digestion and appetite as the pebbles to a chicken; yet, I am persuaded, my companion in no case violated the golden rule of leaving the table unsated. No matter how long had been his fast, he showed no impatience of hunger, made no remark upon the excellence of any dish, found fault with nothing, or, at most, only seemed to miss drinkable coffee and good bread, articles seldom to be met with in the country. He ate slowly, selecting his food with the discrimination which ought to belong to a chemist or physiologist, and then thought no more about it. Alcoholic drinks he never tasted, except an occasional glass of wine, to which his attention perhaps had been called on account of its age or superior excellence. Even then it was not the flavor which interested him, so much as the history, geographical and other.

Peculiar as he was in his own habits of diet, he offered no strictures upon the practice of others, however different, unless it ran into hurtful excesses. The maxim of Epictetus in the "Enchiridion," "Never preach how others ought to eat, but eat you as becomes you," seemed to be his rule. Indeed, Percival was one of those rare men who withhold alike censure and praise respecting the minor matters of life. Not that he was without opinions on such subjects; but, to obtain them, one was forced to question him. On the whole, I do not think it would be going too far to apply to him the above-named moralist's description of the wise man:—"He reproveth nobody, praises nobody, blames nobody, nor even speaks of himself; if any one praises him, in his own mind he condemns the flatterer; if any one reproveth him, he looks with care that he be not unsettled in the state of tranquillity that he has entered into. All his desires depend on things within his power; he transfers all his aversions to those things which Nature commands us to avoid. His appetites are always moderate. He is indifferent whether he be thought foolish or ignorant. He observes himself with the nicety of an enemy or a spy, and looks on his own wishes as betrayers."

Percival's solitary habits, combined with the invariable seriousness of his manner, led many persons to believe him melancholy, and even disposed to suicide. He did, indeed, confess to me, that he sometimes felt giddy on the edge of a precipice. This was his nearest approach, I am confident, to the idea of self-destruction. While we were examining the great iron furnaces of Salisbury, he told me that he was afraid of walking near the throat of a chimney when in blast, and that more than once he had turned and run from the lurid, murky orifice, lest a sudden failure of self-control should cause him to reel into the consuming abyss. No,—Percival neither felt nor expressed disgust with life. On the contrary, he was strongly attached to it; the acquisition of knowledge clothed it with inexpressible value; the longest day was ever too short to fulfil his designs. Like the wise, laborious men of all ages, he almost repined at the swiftness of the years. "I am amazed at the

flight of time," he said to me, on the arrival of his forty-second birthday; "it seems only a year since I was thirty-two;—I have lost ten years of my life."

Before entering upon the survey of Connecticut, he was not specially devoted to any one branch of physics, although his tastes inclined him most toward geology. While he could sympathize perfectly, he said, with those who threw their whole force into a single study, he felt himself attracted equally by the entire circle of Nature, and thought omniscience a nobler object of ambition than any one science. He admitted that the search after all knowledge is incompatible with eminence in any particular department; but he believed that it affords higher pleasure to the mind, and confers ability to do signal service to mankind in pointing out the grand connections, the general laws, of Nature.

It is not, perhaps, widely known, that Percival was a well-informed botanist. He studied this branch when a medical student under Professor Ives, and assisted his instructor in laying out a small botanical garden, the plants of which were arranged after the natural orders of Jussieu. Soon after finishing his medical education, he gave a course of lectures on botany in Charleston, South Carolina, before a very select audience, composed mostly of Ladies. The only drawback to the lecturer's success was his excessive timidity. As an evidence of the assiduity with which he botanized, it may be mentioned that he had seen the *Geranium Robertianum* (a plant which nestles in the sunny clefts of our trap mountains) in bloom, during every month of the year. One year he found its blossoms in December, another in January, and so on, until the round of the monthly calendar was completed.

Percival was an earnest advocate of popular education. He manifested much interest in the first systematic attempt (at the instance of Mr. James Brewster) to furnish the people of New Haven with popular instruction in the form of lectures. At a public dinner, given by Mr. Brewster, on the

occasion of opening the building in which rooms had been fitted up for these lectures, the late Mr. Skinner gave the toast, "Our mechanics, the right arm of New Haven," and Percival followed with, "Science, the right eye which directs the right arm of New Haven." He believed most fully in the superiority of intelligent labor. He pointed out cases in which a college-training had been connected with signal eminence in mechanical invention, and said, that, according to his observations, persons engaged in industrial pursuits usually succeeded in proportion to the thoroughness of their education.

Percival himself gave a course of lectures, or rather, lessons, in New Haven,—not in the building above mentioned, for his natural timidity was too great to encounter a public audience, but in the theological lecture-room of Yale College. They were on the German language, and consisted chiefly of translations of prose and poetry into English, intermingled with philosophical commentaries on the peculiarities of the original. It was pure grammar; he did not talk German, and claimed no acquaintance with the niceties of pronunciation; but all his listeners, most of whom were graduates, were struck with his perfect mastery of the subject.

Percival held one peculiar opinion concerning a branch of college education. He objected to the modern practice of teaching the natural sciences by means of a profusion of drawings, models, showy experiments, and other expedients addressing the mind so strongly through the eye. While these might be allowable in popular lectures, before audiences lacking in early intellectual discipline, where amusement was a consideration, and where without it the public ear could not be secured, he thought that the collegian should study differently,—that his understanding should be taxed severely, and that he should be inured, from the first, to rigid attention, in order to a lasting remembrance of the truths offered to him. It would be a useful exercise for the instructor, he thought, to elucidate

obscure phenomena and complicated structures by words only, assisting himself, perhaps, occasionally, by extemporaneous drawings. Such a course would inspire the scholar with deference for his teacher, and confidence in his own ability to acquire a similar grasp of the subject. While there is certainly some truth in this opinion, it would not be difficult, perhaps, to invalidate its general force. Why should the ear be the only admitted means of acquiring knowledge? Nature, the greatest of teachers, does not judge thus: she conveys half her wisdom to us by sight, instead of by faith; she gives her first lessons to the infant through the eye. Would Percival, in looking for his attentive audiences, have preferred a congregation of blind men?

Speaking of literary composition, he said that he often took great pains with his productions, shifting words and phrases in many ways, before satisfying himself that he had attained the best form of expression; and he assured me that these slowly elaborated passages were the very ones in which he afterwards recognized the most ease and nature, and which others supposed him to have thrown off carelessly. I asked him how it was that children, in their unpremeditated way, expressed themselves with so much directness and beauty. They have but a single idea to present at a time, he said; they seize without hesitation on the first words that offer for its expression, unperplexed by any such choice of terms as would surely occur to maturer minds; and most important of all, perhaps, they are wholly unembarrassed by limiting qualifications arising from a fuller knowledge of the subject.

His prose style is a rare exemplification of classic severity and perspicuousness. In each paragraph the ideas arrange themselves in faultless connection, like the molecules of a crystal around its centre. The sentences are not long, the construction is simple, the words are English in its purity, without admixture of foreign phrase or idiom. But the most striking

peculiarity of his diction is the utter absence of ornament; for Percival evidently held that the chief merits of composition are clearness and directness. Poetic imagery, brilliant climaxes and antitheses, fanciful or grotesque turns of expression, he rejected as unfavorable to that simple truth for which he studied and wrote. This dry, almost mathematical style, was no necessity with him; few men, surely, have had at command a richer vocabulary, English and foreign, than Percival; few could have adorned thought with more or choicer garlands from the fields of knowledge and imagination.

To letter-writing he had a great aversion. I have never seen a letter or note from him to which his signature was attached. The autograph-fanciers, therefore, will find a scanty harvest when they come to forage after the name of Percival. His handwriting corresponded in some sense with his character. It was fine; the lines straight and parallel; the letters completely formed, though without fulness of curve; no flourishes, and no unnecessary prolongations of stroke, above or below the general run of the line. There were few erasures, the punctuation was perfect, and the manuscript was fit for the press as it left his hand.

Literary criticism he rarely indulged in, being too disinclined to praise or blame, and too intensely devoted to the acquisition of positive knowledge. If he commented severely upon anything, it was usually the slovenly diction of some of our State Surveys, or the inaccuracies of translations from foreign languages.

His only published criticism, of which I am aware, was discharged at a phrenological lecturer, whose extraordinary assumptions and *ad-captandum* style had excited his disgust. Percival did not reverence the science of bumps, and believed, in the words of William Von Humboldt, that "it is one of those discoveries which, when stripped of all the *charlatanerie* that

surrounds them, will show but a very meagre portion of truth." Dr. Barber, an Englishman, and a somewhat noted teacher of elocution, having been converted to the phrenological faith, delivered certain magniloquent lectures on the same to the citizens of New Haven, and took pay therefor, after the manner of his sect. Percival responded with a sharp newspaper pasquinade, entitled "A Lecture on Nosology." At the head of the article was a wood-cut of a gigantic nose, mapped out into faculties. "Gentlemen, the nose is the most prominent feature in this bill," commenced the parody. "The nose is the true seat of the mind; and therefore, gentlemen, Nosology, or the science of the nose, is the true phrenology. He, who knows his nose, foreknows; for he knows that which is before him. Therefore Nosology is the surest guide to conduct. Whatever progress an individual may make, his nose is always in advance. But society is only a congeries of individuals; consequently its nose is always in advance,—therefore its proper guide. The nose, rightly understood, will assuredly work wonders in the cause of improvement; for it is always going ahead, always first in every undertaking, always soonest at the goal. The ancients did not neglect the nose. Look at their busts and statues! What magnification and abduction in Jove! What insinuation and elongation in the Apollo! Then [Greek: nous] (intellect) was surely the nose,—[Greek: gnosis] (knowledge) noses,—[Greek: Minos] my nose. What intussusception, what potation, and, as a necessary consequence, alas! what rubification! But I have seen such noses. Beware of them!—they are bad noses,—very bad noses, I assure you.... Do not, I pray you, consider me irreverent, if I say that Nosology will prove highly favorable to the cause of religion. This is indeed an awful subject, and I would not touch it on slight grounds; but I sincerely believe that what I say is true. Nosology will prove highly favorable to the cause of religion! Does not the nose stand forth like a watchman on the walls of Zion, on the look-out for all assailants? and when our faces are directed upwards in devotion, does not the nose ascend the highest and most especially tend

heavenward?... Nosology is a manly science. It stands out in the open light. It does not conceal itself behind scratches and periwigs,—nor does it, like certain false teachers mentioned by St. Paul, go about from house to house, leading astray silly women.....Finally, gentlemen, you may rest assured that Nosology will not gently submit to insult. *Noli me tangere!* Who ever endured a tweak of the nose? It will know how to take vengeance. As Jupiter metamorphosed the inhospitable Lycians into frogs, so its contemners will suddenly find themselves [Greek: Barbarophonoi]!"

Percival has been thought over-tenacious of his opinions. He was certainly very circumspect in changing them. I have witnessed, however, several instances in which he yielded to the force of evidence in the modification of his views. He seemed to recognize geology, in particular, as a progressive science, in which new facts are constantly accruing, and therefore compelling re-adaptations of our views. He felt, indeed, in respect to all knowledge, the mathematics excepted, that modifications of belief, in well-regulated minds, are unavoidable, as the result of new information. Approach to higher truth through the sciences he seemed to regard under the aspect of that of besiegers to a beleaguered fortress. Principles and deductions, which were a boon and a triumph for us yesterday, lose their value to-day, when a new parallel of approach has been attained. He lost his interest in what was abandoned, necessary as it had been to the present position, only in the advantage of which, and its sure promise of what was still higher, he allowed himself to rejoice.

But where evidence was wanting, he was never to be moved to a change by any amount of importunity or temptation. This trait of character made him somewhat impracticable as a collaborator, in the philological task he was employed to perform under Dr. Noah Webster. Disagreements were to have been anticipated from the striking contrasts in their minds. They agreed in industry; but Webster was decided, practical, strongly self-reliant,

and always satisfied with doing the best that could be done with the time and means at command. Percival was timid and cautious, and, from the very breadth of his linguistic attainments, undecided. He often craved more time for arriving at conclusions. When he happened to differ from the great lexicographer, he would never yield an iota of his ground. These differences led to an early rupture in the engagement, almost before two letters of the alphabet had been completed. He much preferred to relinquish a profitable undertaking to going forward with it under circumstances not agreeable to his elevated standard of literary accuracy and completeness. He felt that he could live on bread and water, or even give up these, if necessary; but he could not violate his convictions of what was true and right. He was a perfect martyr to his literary and scientific conscientiousness.

He evinced the same spirit in respect to the geological survey. As his mind was not satisfied, he would not make known his results to the Legislature. They demanded the report, and he asked for an extension of time. Thus he continued his labors from year to year, upon a stipend scarcely adequate to cover his expenses. Instead, however, of nearing the goal, he only receded from it. New difficulties met him in the work; fresh questions arose, in the progress of geology itself, that called for reexaminations. His notes swelled to volumes, and his specimens increased to thousands. He was in danger of being crushed under the weight of his doubts and his materials. At last, the people clamored for the end of the work. The Legislature became peremptory, and forced Percival to acquiesce.

In 1842 (seven years from the commencement of the survey) he rendered an octavo report of four hundred and ninety-five pages, in the introduction to which he observes,—"I regret to say, I have not had the means allowed me for additional investigations, nor even for a proper use of my materials, either notes or specimens. The number of localities from which I have

collected specimens I have estimated at nearly eight thousand; the records of dips and bearings are still more numerous. The report which follows is but a hasty outline, written mainly from recollection, with only occasional reference to my materials, and under circumstances little calculated for cool consideration. It was written, however, with an intention to state nothing of the truth or probability of which I did not feel satisfied. None can regret more than I do its imperfection; still I cannot but hope that it will contribute something towards the solution of the problem of the highest practical as well as scientific importance, the exact determination of the geological system of the State."

Of this remarkable production it may very briefly be said, that it will ever remain a monument to the scientific and literary powers of its author. It describes every shade of variation in the different rocks, and their exact distribution over the surface of the State. This it accomplishes with a minuteness never before essayed in any similar work. The closeness and brevity of his descriptions make it one of the driest productions ever issued on geological science, scarcely omitting the work of Humboldt, in which he sought to represent the whole of geology by algebraic symbols. Percival's work actually demands, and would richly repay, a translation into the vernacular of descriptive geology,—the language and mode of illustration employed by Murchison and Hitchcock. In its present form, it is safe to say, it has never found a single reader among the persons for whose benefit it was written.

It is no part of my plan to speak of his poetical reputation. This I leave to others better able to do him justice. Indeed, he had nearly abandoned poetical composition before our acquaintance began. But it is safe, perhaps, to say here, that his writings have placed him among the first of our national poets; and had he resumed this species of composition, he could scarcely have failed of maintaining, in the fullest manner, his poetic fame. He

possessed all the qualities reckoned essential to poetical excellence. We have already spoken of his astonishing memory, a trait regarded of such importance to the poet by the ancients as to have led them to call the Muses the daughters of this mental faculty. His powers of abstraction and imagination were no less remarkable,—while for extreme sensitiveness he was unsurpassed. His judgment was clear, and his appreciation of language refined to the last degree. His musical feeling, too, as well of time as of harmony, was intense; while he had at command the universal stores of literature and science.

In closing these reminiscences, I cannot avoid noticing some of the useful impressions exerted by Percival upon the literary community amidst which he passed so large a portion of his life. To some the influence of such a recluse will doubtless seem insignificant. The reverse, however, I am persuaded, was the fact. Few students came to New Haven without bringing with them, imprinted on their youthful memories, some beautiful line of his poetry. Few had not heard of his universal scholarship and profound learning. Next to an acquaintance with the teachers from whom they expected to derive their educational training, their curiosity led them to inquire for Percival. The sight of this modest, shrinking individual, as the possessor of such mines of intellectual wealth, it may well be understood, produced the deepest interest. In him they recognized a man superior to the clamor of vulgar gratification; his indifference to gain, to luxury, and every form of display, his constant preference of the spiritual over the sensual, was always an impressive example to them. The indigent student took fresh courage as he saw in him to what a narrow compass exterior wants might be reduced; the man of fashion and the fop stood abashed before the simplicity of his dress and daily life. And wherever the spirit of classic literature had been imbibed, and the capacity acquired of perceiving the severe worth of the true philosopher, the inspection of such a character, compared with the mere description of it in history, was like the difference between a statue

and a living, breathing man. As at early dawn or in the gray twilight his slender form glided by, the thoughtful and poetic scholar could scarce refrain from uttering to himself,—“There goes Diogenes or Chrysippus! There goes one, by the side of whom many a bustler in letters is only a worthless drone, many an idolized celebrity a weak and pitiful sham!” Such a character as Percival's, in the presence of a scholastic community, was a perpetual incentive to industry and manliness; and although he rarely spoke in its hearing, and has left us fewer published works than many others, still I believe that thousands yet live to thank him for lessons derived from the simple survey of his daily life.

Though there is little likelihood that his example of self-abnegation and devotion to study will be followed by many of our youth, nevertheless, the occurrence of such a model now and then in the republic of letters constitutes a pleasing as well as useful phenomenon,—if for no other reason, because it breaks in upon the monotony of literary biography, and communicates a portion of that picturesqueness to scholastic life which belongs to Nature in everything else. That his course was fraught with happiness to himself cannot be doubted; that it was beneficial also to his fellow-men is equally true; and though he may be judged less leniently by minds incapable of pronouncing that to be a character honorable in the sight of God or man, which deviates from their own standard or creed,—to others, who recognize the highest possible cultivation of the mental faculties and unsullied purity of life as the noblest ends of our being, he will ever occupy a position shared by few of mortal race.

* * * * *

ZELMA'S VOW.

IN TWO PARTS.

PART FIRST. HOW IT WAS MADE.

Who does not remember his first play?—the proudly concealed impatience which seemed seething in the very blood,—the provoking coolness of old play-goers,—the music that rather excited than soothed the fever of expectation,—the mystery of mimic life that throbbed behind the curtain,—the welcome tinkle of the prompter's bell,—the capricious swaying to and fro of that mighty painted scroll,—its slow uplift, revealing for an instant, perhaps, the twinkle of flying dancers' feet and the shuffle of belated buskins? And then, the unveiled wonders of that strange, new world of canvas and pasteboard and trap-doors,—people, Nature, Art, and architecture, never before beheld, and but faintly conceived of,—the magic of shifting scenes,—the suddenness and awfulness of subterranean and aerial descents and ascents,—the solemn stage-walk of the heroine,—the majestic strut of the hero,—the princely sweep of velvet,—the illusive sparkle of paste,—the rattle of Brobdignagian pearls,—the saucy tossing of pages' plumes,—the smiles, the wiles, the astonishing bounds and bewildering pirouettes of the dancing Houries,—the great sobs and small shrieks of persecuted beauty,—the blighting smile of the villain,—the lofty indifference of supernumeraries!

It was the first play of our heroine, Zelma Burleigh, and of her Cousin Bessie. The morning before, a fragrant May morning, scores of summers ago, Roger Burleigh, a stout Northumbrian Squire, had rolled himself, in his ponderous way, into the snug family-parlor at the Grange, and addressed his worthy dame with a bluff—

"Well, good wife, wouldn't like to go see the players to-night?"

Ere the good lady could collect herself to reply with the decorous deliberateness becoming her years and station, an embroidery-frame at her

side was overturned, and there sprang eagerly forward a comely young damsel of the pure Saxon stock, with eyes like England's violets,—clear, dewy, and wide-awake,—cheeks and lips like its rose-bloom, and hair which held tangled in close, golden folds its fickle and flying sunshine.

"Ay, father!" she cried, "that we would! Zelma and I have never seen any players, save the tumblers over at the Hall, on Sir Harry's birthday, and we are in sad need of a little pleasuring."

"Who spoke to you, or of you, Mistress Bessie?" replied the Squire, playfully. "And what is all your useless, chattering life but pleasuring? The playhouse is but a perilous place for giddy-brained lasses like you; but for once, harkee, for *once*, we'll venture on taking you, if you'll promise to keep your silly head safe under the mother-hen's wing."

"Not so close but that I can get a peep at the players now and then," said Bessie, archly. "They say there are some handsome young men and a pretty woman or two among them. Eh, Zelma?"

"Handsome young men!—pretty women!" exclaimed the Squire, with an explosive snort of contempt. "An arrant set of vagabonds and tramps,—of ranting, strutting, apish creatures, with neither local habitations nor names of their own. And what does Zelma know about them? Out with it, girl!"

The person thus addressed, without lifting the folds of a heavy window-curtain which concealed her, replied in a quiet, though somewhat haughty tone,—

"I saw them all, yesterday afternoon, on their way to Arden. I found them near the entrance to our avenue. One of their carts had broken down, and somebody was hurt. I dismounted to see if I could be of any assistance. My pony pulled away from me and ran up the road. One of the young men

caught her for me. I told Cousin Bessie I thought him handsome and proud enough for a lord. I think so still. That is all I know of the players."

"And, gad, that's enough! Take *you* to the play, indeed! Why, we shall have you strolling next, like your"—Here the Squire, for some reason known to himself, suddenly paused and grew very red in the face. Dame Margery took the word, and, in a tone meant to be severe, but which was only dry, remarked,—

"Zelma is quite too young to go to the play."

"Just one week younger than my Cousin Bessie. So, please you, aunt, I will wait a few days," was the quiet reply from the invisible.

"Right cleverly answered, lass!" said the Squire, with a good-humored chuckle. "Well, we will try you, too, for once; but mind, if I find you making eyes at any of the villains, I'll cut you off with a shilling."

"That is more than I look for from you, Uncle Roger," replied the hitherto hidden speaker, emerging from the window-seat, holding in her hand the fashionable and interminable novel of "Sir Charles Grandison." As she spoke, she laughed lightly, but her voice was somewhat cold and bitter, and there was in her laugh more of defiance than merriment.

"Oh, *don't*, Zella!" exclaimed the Squire, with a look of comic deprecation,—*"don't* speak in that way to your old uncle! He's blunt and rough-spoken, but he means kindly, and does kindly, in his way,—*don't* he?"

"Yes, that he does!" said the young girl, frankly; "and I beg his pardon for my pettishness."

Zelma Burleigh, as she stood thus, a faint, regretful smile softening the habitual *hauteur* of her face, was beautiful, and something more; yet nobody in the country round about the Grange had ever dreamed of calling her "a beauty." She was a tall, gracefully-formed girl, with that strong, untamable character of figure and feature, and that peculiar, sun-tinted, forest-shadowed hue of the skin, which betray the slightest admixture of gypsy blood. In fact, Zelma Burleigh was the fruit of a strange *mésalliance* between the younger brother of the Squire, a reckless, dissipated soldier of fortune, and a beautiful Spanish Zineala, whom he met in a foreign campaign, and whom he could not bind to himself by any tie less honorable than marriage. She was said to be of Rommany blood-royal, and was actually disowned by her tribe for *her mésalliance*. She followed the camp for a few years, the willing, though sad and fast-fading slave of her Ishmaelitish lord, himself the slave of lawless passions, yet not wholly depraved, —fitfully tender and tyrannic,—and when, at last, he fell in some inglorious skirmish, she buried him with her own hands, and wept and fasted over his shallow grave till she died. There was a child, but she had no look of the father to charm that poor, broken heart back to life; she was left in the camp and became a little "Daughter of the Regiment." At last, however, she was taken to England by a faithful comrade of the dead soldier, who sought out her uncle and left her in his care, taking leave of the frightened, clinging little creature with a grim, unspoken tenderness, and a strange quiver of his gray moustache.

Roger Burleigh, after having made himself sure of the legitimacy of the child, adopted the poor, wild thing, made her the companion of his daughter, and honestly strove to treat her, at all times, with parental care and affection.

Here, in the hospitable circle of an English home, the orphan alien had grown up with her kinsfolk, but not of them,—proud, reticent, ambitious,

secretly hating the monotonous duties and pursuits, the decorous forms and prescribed pleasures of the social and domestic life around her. Nomadic and lawless instincts stirred in her blood; vague longings for freedom and change, though in wandering, peril, and want, sometimes filled her soul with the spirit of revolt and unrest.

In her bluff uncle's house all were kind, and one, at least, was fond. Her Cousin Bessie, gay and tender heart, had found the southern exposure of her nature, and had crept up it, and clambered over it, and clasped it, and bloomed against it, and ripened on it, till nothing cold, hard, or defiant could be seen on that side. And Zelma seemed well content to be the sombre background and strong support of so much bloom, sweetness, and graceful dependence.

Nothing could be more unlike than the two cousins. Bessie was small, her form inclining to fulness, her face childlike in dimpled smiles and innocent blushes,—betraying no lack of intellect, but most expressive of a quiet, almost indolent amiability. Zelma was large, but lithe, supple, and vigorous, with a pard-like freedom and elasticity of movement,—dark, with a subdued and changing color,—the fluttering signal of sudden emotion, not the stationary sign of robust health. She had hair of a glistening blackness, which she wore turned back from a strong, compact forehead, in the somewhat severe style which imperial beauty has rendered classic in our time. Her eyes were of the Oriental type,—full, heavy-lidded, ambushed in thick, black lashes,—themselves dark and unfathomable as the long night of mystery which hangs over the history of her wild and wandering race, those unsubduable, unseducible children of Nature,—the voluntary Pariahs of the world. Sad were those eyes always, but with a vague, uncommunicable sadness; soft they were in times of quiet; beautiful and terrible they could be, with live gleams of suddenly awakened passion.

With but one affection not poisoned by a sense of obligation and condescension, and that a sentiment in which her intellect had little share, a gentle, protective, household love, which quickened no daring fancy, inspired no dream of freedom or power, Zelma's mind was driven in upon itself, and out of the seclusion and triteness of her life fashioned a fairy world of romance and beauty. With the high-wrought, sentimental fictions of the day for her mental aliment, she grew more and more distinct and apart from the actual, prosaic existences around her; the smouldering fires of genius and ambition glowed out almost fiercely at times, through the dark dream of her eyes, startling the dullest apprehension, as she moved amid a narrow circle of country gentry, the fox-hunting guests of her uncle, the prim gossips of her aunt, the gay lovers and companions of her cousin, an unrecognized heroine, an uncrowned tragedy-queen.

The small provincial town of Arden possessed no playhouse proper, but, after a good deal of hesitation and discussion, the venerable Hall of St. George, the glory of all Ardenites, had been accorded to the players, "for a few nights only."

On the night of the first performance, Squire Burleigh and his family arrived betimes, and took their places with some bustle and ceremony.

The master of Burleigh Grange appeared in the almost forgotten glory of his court suit,—a coat of crimson velvet, a flowered waistcoat, satin knee-breeches, and a sword at his side. The mistress wore an equally memorable brocade, enormous bouquets thrown upon a silvery ground, so stiff and shiny that it seemed a texture of ice and frozen flowers. Her hair was cushioned and powdered; she looked comely and stately, and wore her lustres well. The pretty Bessie was attired in maidenly white muslin, an India fabric of marvellous fineness, with a sash and streamers of blue, and the light fleecy curls of her hair unadorned save by a slight pendent spray of

jasmines. Her cousin's dress, though in reality less costly, was more striking, being composed of materials and colors which admirably harmonized with the darkness and richness of her beauty. Her lustrous black hair was arranged as usual; but a wreath, formed of some delicate vine hung thick with drooping scarlet blossoms, ran like flowering flame around her head. Like the sumptuous exotic of Zenobia, it was an ornament which seemed to bloom out of the character of the woman.

Bessie cast about her bright, innocent looks of girlish curiosity, which yet shrank from any chance encounter with the furtive glance or cool stare of admiration. Zelma sat motionless and impassive. Her eyes wandered naturally, but coldly, over the audience, seeming to take no cognizance of any face, strange or familiar; but when they were lifted above the crowd, to the old carved ceiling of the hall, or dropped upon the beautiful hands which lay listlessly folded in her lap, the cold, blank look she had set against the world went out of them. Then, in their mystic depths of brooding, introverted thought, new spheres of life, rarer, brighter, fairer, seemed rounding into form and dawning like stars.

Mrs. Margery Burleigh sat with her face turned from the stage, to dissemble the secret impatience with which she awaited the uprolling of the curtain, and slowly waved to and fro a huge, flowered fan, which charged the air with a heavy Indian perfume.

At length, soft, mournful music arose from the orchestra, and every heart stirred to the premonitory waver and lift of the curtain. Slowly it rose, and discovered a mourning apartment, with a lady in mourning, sitting in a mourning chair, and attended by a mourning maid. The play was Congreve's tragedy of "The Mourning Bride," one of the best of a class of sentimental and stilted dramatic productions which the public of our great-grandfathers meekly accepted,—quaffing the frothy small-beer of rant and

affectation, in lieu of deep draughts of Nature and passion, the rich, red wine of human life, poured generously forth by the dramatists of a better era. The excesses of fashion then prevailing, hoops, high heels, powder, and patches, were not more essentially absurd and artificial than such representations of high-life and high-tragedy.

"The Mourning Bride" contains a few situations in which real passion can have play, some fine points and poetic passages, and its moral tone is at least respectable,—not great things to say of a famous tragedy, certainly, but they give it an honorable distinction over many plays of its time. There figure in it one or two characters which can be made interesting, and even impressive, by uncommon power in the actor; though they were usually given, at the period of which I write, in a manner sufficiently tame to suit the dullest of courts,—likely to disturb neither my lord in his napping nor my lady in her prim flirting.

Zara, the Captive Queen, is beyond comparison the strong character of this play. There is a spice and fire even in her wickedness, which make her terribly attractive, and give her a more powerful hold on the sympathies than the decorous and dolorous Almeria, for all her virtuous sorrows and perplexities. Zara's passion is of the true Oriental type, leaping from the extremes of love and hate with the fierceness and rapidity of lightning.

It is a character in which several great actresses have distinguished themselves,—chief among them Siddons. On the memorable night at Arden, however, it was but wretchedly rendered by a tall, small-voiced, flaxen-haired young woman, who stalked about the stage in high-heeled shoes and prodigious hoops, and declaimed the most fiery passages with an execrable drawl. The remainder of the company were barely passable as strolling players, with the exception of the actor who personated Osmyn. This was a young man named Bury, of respectable parentage and education,

it was said, and considerable reputation, though his aspiring buskin had never yet trod the London boards. He was a handsome, shapely person, with an assured, dashing manner, and a great amount of spirit and fire, which usually passed with his audience, and always with himself, for genius.

His voice was powerful and resonant, his elocution effective, if not faultless, and his physical energy inexhaustible. Understanding and managing perfectly his own resources, he produced upon most provincial critics the impression of extraordinary power and promise, few perceiving that he had already come into full possession of his dramatic gifts.

Only finely-trained ears could discover in this sounding, shining metal the lack of the sharp, musical ring of the genuine coin. Young men grew frantic in applause of his bold action, his stormy declamation, his startling *tours de force*; while young women wondered, wept, languished, and swooned. It was said, that, whenever he died in Romeo, Pierre, or Zanga, numbers of his fair slain were borne out of the playhouse, to be revived with difficulty by the application of salts and the severing of stay-lacings.

But his effects, though so positive, were superficial and evanescent,—audible, visible, and, as it were, physical. There was always wanting that fine shock of genuine passion, striking home to kindred passions in the breasts of his auditors, and sending through every nerve a magnetic shiver of delight,—that subtile, mysterious element of genius, playing like quick flame along the dullest lines of the poet and charging them with its own life and fire.

In the virtuous, but negative character of Osmyn there was little room for effective declamation; our actor was fain to content himself with being interesting, through the misfortunes of the Prince of Valentia, his woful lawful love, and the besettings of an unreturned passion. In this he

succeeded so well, that the feminine portion of his audience grew tender with Almeria, and despairing with Zara.

In the first scene with Almeria, who was a shade worse than the Zara of the night, the young actor indulged himself in a cool, comprehensive glance at the house, over her fair shoulders. As his keen gaze swept round the small aristocratic circle, it encountered and seemed to recognize the face of Zelma Burleigh, now kindling with a new enthusiasm, which was never wholly to die out of her breast. There was something in the watchful, absorbed gaze of her great dark eyes so unlike the wondering or languishing looks usually bent by women upon the rising actor, that on the instant he was struck, pierced, by those subtle shafts of light, to the heart he had believed till then vowed alone to the love of his art and the schemes of a sleepless ambition.

Reluctantly he withdrew his regard from a face which bespoke a character of singular originality and force, not wanting either in womanly pride or tenderness,—a face in which beauty itself was so subordinate to something higher, more ineffable, that one could scarcely define feature or color through the illuminated and changeful atmosphere of soul which hung about it,—the shadows of great thoughts, the light mists of dreamy and evanescent fancy.

It was toward the close of the second act, when Sir Harry Willerton, of Willerton Hall, entered his box, accompanied by three or four dashing companions, who, it was soon whispered about, were titled young bloods from London.

Sir Harry Willerton was a fresh, frank-looking young gallant,—fast, from the fiery impulses of youth and a high spirit,—not pricked on by vanity, nor goaded by low passions,—not heartless, not *blasé*,—the only kind of a rake for whom reformation is possible or reclamation worth the while.

Sir Harry was not fond of tragedy; and after five minutes' strained attention to the players, he turned his eyes from the stage, and began casting easy, good-humored glances of curiosity or recognition over the audience. He bowed to all his neighbors with a kindly familiarity, untainted by condescension, but most courteously, perhaps, to the party from the Grange. He liked the bluff Squire heartily,—as who did not? Then his eye—a laughing blue eye it was—rested and lingered, not on the dark, dramatic face of Zelma, but on the pretty, girlish head of her cousin.

Bessie sat with her face partly averted from the baronet's gay party, and her gaze fixed intently upon the stage. Sir Harry could only see half the rose of one cheek, and the soft sweep of golden hair which lightly shaded it; and feasting his fancy on that bit of fluctuating color, entangled in the meshes of a tremulous screen of curls, he settled himself to await the close of the act.

It was with a child's eager interest and pliant imagination that Bessie looked and listened,—susceptible, credulous, unfastidious. To her, the Osmyn of the night was radiant with all heroic qualities and manly graces, the weakly simulated sorrow of Almeria brought real tears to her eyes, and she drew her white shoulders forward with a shudder when the wooden Zara kindled into cursing and jealous rage. Illusions most transparent to others hoodwinked her senses; her willing fancy supplied feeling, and even made up for deficiencies of art in the players, till the mimic world before her became more real than reality.

Not so with Zelma. She was satisfied, even charmed, with the personation of Osmyn; but, from the first, she could not abide either of the heroines, who, each in her part, strove to outdo the other in mincing, mouthing, attitudinizing, and all imaginable small sins against Nature and Art. She saw at once, by the sure intuitions of genius, how everything they did could be done better, and burned to do it. The part of Almeria she soon

dismissed from her thoughts, as mere milk-and-water; but she saw that in that of Zara there was a stream of lava, though dulled and crusted over by the coldness of the actress, which might be made to sweep all before it. Her critical dissatisfaction with the personation became, at last, little short of torture; there was an involuntary lowering of her dark brows, a scornful quiver of her spirited nostril, she bit her lip with angry impatience, and shrugged her shoulders with irrepressible contempt.

In the great scene where Zara surprises Almeria in the cell of Osmyn, it was astonishing how the flaxen-haired representative of the Captive Queen managed to turn her fiery rain of curses into a little pattering shower of womanish reproaches. It was really a masterly performance, in its way.

At this point Zelma threw herself back in utter weariness and disgust, exclaiming, audibly,—"Miserable!—most miserable." When, looking round, she saw the traces of her cousin's innocent emotion, the flush and tearfulness which bespoke her uncritical sympathy with passions so unskilfully represented, she could not suppress a smile at such childish simplicity. And yet this was also her first play.

The tragedy was succeeded by a farce, at which Bessie laughed as heartily as she had wept a little while before, but which was utterly distasteful to Zelma; and at an alarmingly late hour, for that quiet community, the green curtain came heavily plunging down on the final scene of all, and the audience dispersed to their homes.

On the day following, Sir Harry Willerton's guests returned to town, but, to their surprise, unaccompanied by their host, who seemed to have suddenly discovered that his presence was needed on his estate. So he remained. Soon it was remarked that a singular intimacy had sprung up between him and Squire Burleigh, with whom, at length, the larger portion of his time was passed, either in following the hounds or dining at the

Grange. There were rumors and surmises that the attractions which drew the young baronet to his bluff neighbor's hospitable hall were not the Squire's hearty cheer, old wine, and older stories, but a pair of shy, yet tender eyes,—red lips, that smiled a wordless welcome, and sometimes pouted at a late coming,—cheeks whose blushes daily grew warmer in love's ripening glow,—a voice whose tones daily grew deeper, and seemed freighted with more delicious meanings.

There was little discussion as to which of the young ladies of the Grange was the enchantress and the elect Lady Willerton.

"Surely," said the gossips, "it cannot be that gypsy niece of the Squire, that odd, black-browed girl, who scours over the country in all weathers, on that elfish black pony, with her hair flying,—for all the world as though in search of her wild relations. No, the blood of the Willertons would never run so low as that;—it must be sweet Miss Bessie, and she is a match for a lord."

For once the gossips were right. But it is with the poor "Rommany girl," not with the heiress of Burleigh Grange, that we have to do.

On the morning succeeding the play, Zelma Burleigh, taking in her hand an odd volume of Shakspeare, one of the few specimens of dramatic literature which her uncle's scant library afforded, strolled down a lonely lane, running back from the house, toward the high pasture-lands, on which grazed and basked the wealthy Squire's goodly flocks and herds. This was her favorite walk, as it was the most quiet, shaded, out-of-the-way by-path on the estate. She now directed her steps to a little rustic seat, almost hidden from view by the pendent branches of an old willow-tree, and close under a hawthorn-hedge, now in full, fragrant bloom. Here she seated herself, or rather flung herself down, half languidly, half petulantly, an expression of *ennui* and unrest darkening her face,—the dusky traces of a sleepless night

hanging heavily about her eyes. She opened her book at the play of "Romeo and Juliet," and began to read, not silently, nor yet aloud, but in a low, dreamy tone, in which the sounds of Nature about her, the gurgle of a brook behind the hedge, the sighing of the winds among the pendulous branches of the willow, the silver shiver of the lance-like leaves, the murmurous coming and going of bees, the loving duets of nest-building birds, all seemed to mingle and merge. As she read, a new light seemed to illumine the page, caught from her recent experience of dramatic personation and scenic effects, limited and unsatisfactory though that experience had been. In fancy, she floated over the stage, as the gay young Juliet at the masquerade; then she caught sight of young Romeo, and, lo! his face was that of the sentimental hero of the last night's tragedy, but ennobled by the glow and dignity of genuine passion. In fancy, she sat on the balcony, communing with night and the stars,—the newly-risen star of love silvering all life for her. Then, leaning her cheek upon her hand, she poured forth Juliet's impassioned apostrophe. When she came to the passage,—

"O Romeo, Romeo!—wherefore art thou Romeo?"

she was startled by a rustling of the leaves behind her. She paused and looked round fearfully. A blackbird darted out of the hedge and away over the fields. Zelma smiled at her own alarm, and read on, till she reached the tender adjuration,—

"Romeo, doff thy name;
And for thy name, which is no part of thee,
Take all myself!"

when,—suddenly, a fragrant shower of hawthorn-blossoms fell upon the page before her, and the next instant there lightly vaulted over the hedge at her side the hero of her secret thoughts, the young player, Lawrence Bury! He stood before her, flushed and smiling, with his head uncovered, and in

an attitude of respectful homage; yet, with a look and tone of tender, unmistakable meaning, took up the words of the play,—

"I take thee at thy word.
Call me but love, and I'll be new-baptized;
Henceforth I never will be Romeo."

Poor Zelma did not have the presence of mind to greet this sudden apparition of a lover in the apt words of her part,—

"What man art thou, that, thus bescreened in night,
So stumblest on my counsel?"

She had no words at all for the intruder, but, frightened and bewildered, sprang from her seat and turned her face toward home, with a startled bird's first impulse to flight. As she rose, her book slid from her lap and fell among the daisies at her feet. The actor caught it up and presented it to her, with the grace of a courtly knight restoring the dropped glove of a princess, but, as he did so, exclaimed, in a half-playful tone, looking at the volume rather than the lady,—

"I thank thee, O my master, for affording me so fair an excuse for mine audacity!"

Then, assuming a more earnest manner, he proceeded to make excuses and entreat pardon for the suddenness, informality, and presumption of his appearance before her:—

"You know, Madam," he said,— "if, indeed, you are so unfortunate as to know anything about us,—that we players are an impulsive, unconventional class of beings, lawless and irresponsible, the Gypsies of Art."

Here Zelma flushed and drew herself up, while a suspicious glance shot from her eyes;—but the stranger seemed not to understand or perceive it, for he went on quite innocently, and with increasing earnestness of tone and manner:—

"I know I have been presuming, impertinent, audacious, in thus intruding myself upon you, and acknowledge that you would be but severely just in banishing me instantly from your bright presence, and in withdrawing from me forever the light of your adorable eyes. Oh, those eyes!" he continued, clasping his hands in an ecstasy of lover-like enthusiasm, —"those wild, sweet orbs!—bewildering lights of love, dear as life, but cruel as death!—can they not quicken, even as they slay? Oh, gentle lady, be like her of Verona!—be gracious, be kind, or, at least, be merciful, and do not banish me!—

'For exile hath more terror in his look,
Much more, than death; do not say banishment!'"

He paused, but did not remove his passionate looks from the young girl's face,—looks which, though cast down, for he was much the taller of the two, had the effect of most lowly and deprecating entreaty;—and then there happened an event,—a very slight, common, natural event,—the result more of girlish embarrassment than of any conscious emotion or purpose, yet of incalculable importance at that moment, and, perhaps, decisive of the fate of two human hearts,—Zelma smiled. It was a quick, involuntary smile, which seemed to *escape* from the firm lips and half-averted eyes, flashed over the face, touched the cold features with strange radiance, and then was gone,—and, in its place, the old shadow of reserve and distrust, for the moment, darker than ever.

But to the adventurous lover that brief light had revealed his doubtful way clear before him. He saw, with a thrill of exultation, that henceforth he

had really nothing to fear from such womanly defences as he had counted on,—coldness, prejudice, disdain,—that all he had taken for these were but unsubstantial shadows. Still he showed no premature triumph in word or look, but remained silent and humble, waiting the reply to his passionate appeal, as though life or death, in very truth, were depending upon it. And Zelma spoke at last,—briefly and coldly, but in a manner neither suspicious nor unfriendly. She herself, she said, was unconventional, in her instincts, at least,—so could afford to pardon somewhat of lawlessness in another,—especially, she added, with a shy smile, in one whom Melpomene, rather than Cupid, had made mad. Still she was not a Juliet, though he, for all she knew, might be a Romeo; and only in lands verging on the tropics, or in the soul of a poet, could a passion like that of the gentle Veronese spring up, bud, and blossom, in a single night. As for her, the fogs of England, the heavy chill of its social atmosphere, had obstructed the ripening sunshine of romance and repressed the flowering of the heart—

"And kept your beautiful nature all the more pure and fresh!" exclaimed Mr. Lawrence Bury, with real or well-assumed enthusiasm; but Zelma, replying to his interruption only by a slight blush, went on to say, that she had been taught that poetry, art, and romances were all idle pastimes and perilous lures, unbecoming and unwholesome to a young English gentlewoman, whose manifest destiny it was to tread the dull, beaten track of domestic duty, with spirit chastened and conformed. She had had, she would acknowledge, some aspirations and rebellious repinings, some wild day-dreams of life of another sort; but it was best that she should put these down,—yes, doubtless, best that she should fall into her place in the ranks of duty and staid respectability, and be a mere gentlewoman, like the rest.—Here a slight shrug of the shoulders and curl of the lip contradicted her words,—yet, with a tone of rigid determination, she added, that it was also best she should cherish no tastes and form no associations which might distract her imagination and further turn her heart from this virtuous

resolution; and therefore must she say farewell, firmly and finally, to the, she doubted not, most worthy gentleman who had done her the honor to entertain for her sentiments of such high consideration and romantic devotion. She would not deny that his intrusion on her privacy had, at first, startled and displeased her,—but she already accepted it as an eccentricity of dramatic genius, a thoughtless offence, and, being, as she trusted, at once the first and the last, pardonable. She wished him happiness, fame, fortune,—and a very good morning! Then, with a wave of the hand which would have done honor to Oldfield herself, she turned and walked proudly up the lane.

Mr. Bury saw her depart silently, standing in a submissive, dejected attitude, but with a quiet, supercilious smile lightly curling his finely-cut lips; for did he not know that she would return to her haunt the next day, and that he would be there to see?

And Zelma did return the next day,—persuading herself that she was only acting naturally, and with proper dignity and independence. She argued with herself that to abandon her favorite walk or avoid her usual resting-place would be to confess, if not a fear of the stranger's presuming and persistent suit, at least, a disturbing consciousness of his proximity, and of the possibility of his braving her displeasure by a second and unpardonable intrusion. No, she would live as she had lived, freely, carelessly; she would go and come, ride and walk, just as though nothing had happened,—for, indeed, nothing *had* happened that a woman of sense and pride should take cognizance of. So, after a half-hour's strange hesitation, she took her book and went to the old place. Longer than usual she sat there, idly and abstractedly turning over the leaves of her Shakspeare, starting and flushing with every chance sound that broke on the still, sweet air; yet no presumptuous intruder disturbed her maiden meditations, and she rose wearily at last, and walked slowly homeward, saying to herself, "It is well. I

have conquered," but feeling that nothing was well in life, or her own heart, and that she was miserably defeated. Ah, little did she suspect that her clouded, dissatisfied face had been keenly scanned by the very eyes she dreaded, yet secretly longed to meet,—that her most unconscious sigh of disappointment had been heard by her Romeo of the previous day, now lying just behind the hedge, buried in the long brook-side grass, and laughing to himself a very pleasant laugh of gratulation and triumph.

That night, the good Squire of Burleigh Grange relented from his virtuous resolve, and took his wife, daughter, and niece to the play.

The piece was Howe's tragedy of "Tamerlane." Mr. Bury personated the imperial Tartar, a noble *rôle*, which so well became him, costumes and all, and brought him so much applause, that Zelma's heart was effectually softened, and she even felt a regretful pride in having received and rejected the homage of a man of such parts.

The next day, as the hour for her stroll arrived, she said to herself, "I can surely take my walks in safety now,—*he* will never come near me more." So she went,—but, to her unspeakable confusion, she found him, quietly seated in her little rustic bower, his head bared to the sunshine, and his "Hyperion curls" tossed and tumbled about by a frolicsome wind. He rose when the lady appeared, stammered out an apology, bowed respectfully, and would have retired, but that Zelma, feeling that she was the intruder this time, begged him to remain. She thought herself, simple child! merely courteous and duly hospitable, in giving this invitation; but the quick, eager ear of the actor and lover heard, quivering through the assumed indifference and cold politeness of her tones, the genuine impulse and ardent wish of her heart. So he yielded and lingered, proffering apologies and exchanging polite commonplaces.

After a little time, Zelma, to prove her freedom from embarrassment or suspicion, quietly seated herself on the rustic bench, giving, as she did so, a regal spread to her ample skirts, that there might be no vacant place beside her. The actor stood for a while before her, just going, but never gone, talking gayly, but respectfully, on indifferent topics,—till, at last, touching on some theme of deeper interest, and apparently forgetting everything but it and the fair lady, who neither expressed nor looked a desire to shorten the interview, he flung himself, with what seemed a boy's natural impulse, upon the soft, inviting turf, under the shade of the willow. There, reclining in the attitude of Hamlet at the feet of Ophelia, he rambled on from subject to subject, in a careless, graceful way, plucking up grass and picking daisies to pieces, as he talked, giving every now and then, from beneath the languid sweep of his heavy eyelashes, quick flashes of tender meaning, as fitful and beautiful as the "heat-lightnings" of summer twilights, and *apparently* as harmless.

There was something so magnetic and contagious in this frank, confiding manner, that Zelma, ere she was aware, grew unrestrained and communicative in turn. One by one, the icicles of pride and reserve, which a strange and ungenial atmosphere had hung around her affluent and spontaneous nature, melted in the unwanted sunshine, dropped away from her, and the quick bloom of a Southern heart revealed itself in smiles and blushes. The divine poet whose volume she now held clasped caressingly in both hands had prepared the way for this, by sending through every vein and fibre of her being the sweet, subtile essence of passionate thought,—the spring-tide of youth and love, which makes the story of Romeo and Juliet glow and throb with immortal freshness and vitality.

So, at length, those two talked freely and pleasantly together. They discussed the quiet rural scenery around them, the deep green valley of Arden, shut in by an almost unbroken circle of hills, and Zelma told of a

peculiar silvery mist which sometimes floated over it, like the ghost of the lake which, it was said, once filled it; they spoke of wood, stream, moor, and waterfall, sunsets and moonlight and stars, poetry and—love; floating slowly, and almost unconsciously, down the smooth current of summer talk and youthful fancies, toward the ocean of all their thoughts, whose mysterious murmurs already filled one heart at least with a tender awe and a vague longing, which was yet half fear.

The next day, and the next, and every day while the players remained at Arden, the two friends met by tacit agreement in the lane of Burleigh Grange, and, gradually, Lawrence Bury became less the actor and more the man, in the presence of a genuine woman, without affectation or artifice, stage-rant or art-cant,—one from whose face the glare of the foot-lights had not stricken the natural bloom, whose heart had never burned with the feverish excitement of the stage, its insatiable ambition, its animosities and exceeding fierce jealousies. For Zelma, she grew more humble and simple and less exacting, the more she bestowed from a "bounty boundless as the sea."

It was but a brief while, scarcely the lifetime of a rose,—the fragrant snow of the hawthorn blossoms had not melted from the hedges since they met,—and yet, in that little season, the deepest, divinest mystery of human life had grown clear and familiar to their hearts, and was conned as the simplest lesson of Nature.

To Zelma the romance and secrecy of this love had an inexpressible charm. The Zinca in her nature revelled in its wildness and adventure, in its crime against the respectable conventionalities she despised. She had a keen pleasure in the very management and concealment to which she was compelled;—her imagination, even more than her heart, was engaged in hiding and guarding this charming mystery.

On the day succeeding her first interview with the young actor in the lane, she had tried to beguile her *ennui*, while lingering in her lonely bower, by curiously peering into the nest of a blackbird, deeply hidden in the long grass at the foot of the hedge, and which she had before discovered by the prophetic murmurs of the mother-bird. She found five eggs in the nest. She took the little blue wonders in her hand, and thought what lives of sinless joy, what raptures and loves, what exultations of song and soaring slept in those tiny shells! Suddenly, there was an alarmed cry and an anxious flutter of wings in the hedge above her! She turned, and saw the mother-bird eyeing her askance. From that day the lowly nest with its profaned treasures was forsaken, and the world was the poorer in gladness and melody by five bird-lives of joy and song that might have been.

So, had any luckless intruder chanced to discover Zelma's trysting-place, thrown open to the world the hidden romance in which she took such shy and secret delight, and handled in idle gossip the delicate joys and fragile hopes of young love, it is more than likely that she would have been frightened away from bower and lane, shocked and disenchanted. But the preoccupation of her cousin and her own eccentric and solitary habits prevented suspicion and inquiry,—no unfriendly spy, no rude, untoward event, disturbed the quiet and seclusion of this charmed scene of her wooing, where Nature, Romance, and Poetry were in league with Love.

The players played out their engagement at Arden, with the usual supplement, "A few nights only by special request," and were off to a neighboring town. On their last night, after the play, Zelma met her lover by moonlight, at the trysting-place in the lane, for a parting interview.

It was there that the actor, doffing the jaunty hat which usually crowned his "comely head," and, flinging himself on his knees before his fair

mistress, entreated her to rule his wayward heart, share his precarious fortunes, and bear his humble name.

Poor Zelma, when in imagination she had rehearsed her betrothal scene, had made her part something like this:—"And then will I extend my hand with stately grace, and say to my kneeling knight, 'Arise!'—and after, in such brief, gracious words as queens may use, (for is not every woman beloved a queen?) pronounce his happy doom."

But when that scene in her life-drama came on, it was the woman, not the tragedy-queen, that acted. Naturally and tenderly, like any simple girl, she bent over her lover, laid her hand upon his head, and caressingly smoothed back from his brow the straggling curls, damp with night-dew. As she did so, every lock seemed to thrill to her touch, and to wake in her soft, timorous fingers a thousand exquisite nerves that had never stirred before. And then, with broken words and tears, and probing questions and solemn adjurations, she plighted her vows, and sought to bind to her heart forever a faith to which she trusted herself, alas! too tremblingly.

The melodramatic lover was not content with a simple promise, though wrung from the heart with sobs. "*Swear* it to me!" he said, in a hoarse stage-whisper; and Zelma, again laying her hand upon his head, and looking starward, swore to be his, to command, to call, to hold,—in life, in death, here, hereafter, evermore.

[To be continued.]

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WILLIAM SHAKESPEARE,

ATTORNEY AT LAW AND SOLICITOR IN CHANCERY.

Somewhat more than three-quarters of a century ago, George Steevens, the acutest, and, perhaps, the most accomplished, but certainly the most perverse and unreliable of Shakespeare's commentators and critics, wrote thus of Shakespeare's life: "All that is known, with any degree of certainty, concerning Shakespeare, is, that he was born at Stratford-upon-Avon; married and had children there; went to London, where he commenced actor,[A] and wrote poems and plays; returned to Stratford, made his will, died, and was buried." From 1780, when this was written, to the present day, the search after well-authenticated particulars of Shakespeare's life has been kept up with a faithfulness equal to that of Sir Palomides after the beast glatisaunt, and by as many devotees and with as much hope of glory as in the quest for the Sangreal. But the fortune of the paynim, rather than the virgin knight, has fallen to all the members of the self-devoted band, and we know little more of the man Shakespeare than was known by our great-grandfathers. For, although there have been issued to us of the present generation pamphlets professing to give new particulars of the life of Shakespeare, and tomes with even more pretentious titles, from all these there has been small satisfaction, save to those who can persuade themselves, that, by knowing what Shakespeare might have done, they know what he did, or that the reflex of his daily life is to be found in documents inscribed on parchment, and beginning, "This indenture made," etc., or "*Noverint universi per presentes*." It is with no disrespect for the enthusiasm of Mr. Knight, and as little disposition to underrate the laborious researches of Mr. Collier and Mr. Halliwell, that we thus reiterate the assertion of the world's ignorance of Shakespeare's life: nay, it is with a mingled thankfulness and sorrowful sympathy that we contemplate them wasting the light of the blessed sun (when it shines in England) and wearing out good eyes (or better barnacles) in poring over sentences as musty as the parchments on which they are written and as dry as the dust that covers them. But although we gladly concede that these labors have resulted in the

diffusion of a knowledge of the times and the circumstances in which Shakespeare lived, and in the unearthing of much interesting illustration of his works from the mould of antiquity, we cannot accept the documents which have been so plentifully produced and so pitilessly printed,—the extracts from parish-registers and old account-books,—not Shakespeare's,—the inventories, the last wills and testaments, the leases, the deeds, the bonds, the declarations, pleas, replications, rejoinders, surrejoinders, rebutters, and surrebutters,—as having aught to do with the life of such a man as William Shakespeare. We hunger, and we receive these husks; we open our mouths for bread, and break our teeth against these stones. As to the law-pleadings, what have their discords, in linked harshness long drawn out, to do with the life of him whom his friends delighted to call Sweet Will? We wish that they at least had been allowed to rest. Those who were parties to them have been more than two centuries in their graves,—

"Secure from worldly chances and mishaps. *There* lurks no treason, *there* no envy swells, *There* grow no damned grudges; *there* no storms, No noise, but silence and eternal sleep."

Why awaken the slumbering echoes of their living strife?

[Footnote A: *Commenced actor, commenced author, commenced tinker, commenced tailor, commenced candlestick-maker*:—Elegant phraseology, though we venture to think, hardly idiomatic or logical, which came into vogue in England in the early part of the last century, and which, as it is never uttered here by cultivated people, it may be proper to remark, is there used by the best writers. Akin to it is another mode of expression as commonly met with in English books and periodicals, e.g., "immediately he arrived at London he went upon the stage," meaning, as soon as he arrived, etc., or, when he arrived at London, he immediately went upon the stage. As

far as our observation extends, Lord Macaulay, alone of all Great-Britons, has neglected to add the latter lucid construction to the graces of his style.]

Yet these very law-papers, in the reduplicated folds of which dead quarrels lie embalmed in hideous and grotesque semblance of their living shapes, their lifeblood dried that lent them all their little dignity, their action and their glow, and exhaling only a faint, sickening odor of the venom that has kept them from crumbling into forgetfulness,—these law-papers are now held by some to have special interest Shakespeare-ward, as having to do with a profession for which he made preparatory studies, even if he did not enter upon its practice. Yes, in spite of our alleged ignorance of Shakespeare's life, and especially of the utter darkness which has been thought to rest upon the years which intervened between his marriage in Stratford and his joining the Lord Chamberlain's company of players in London, the question is, now, whether the next historical novel may not begin in this wise:—

CHAPTER I.

THE FUGITIVE.

At the close of a lovely summer's day, two horsemen might have been seen slowly pacing through the main street of Stratford-on-Avon. Attracting no little attention from the group of loiterers around the market-cross, they passed the White-Lion Inn, and, turning into Henley Street, soon drew their bridles before a goodly cottage built of heavy timbers and standing with one of its peaked gables to the street. On the door was a shingle upon which was painted,

Willm. Shakspeare,

Attorney at Lawe and Solicitor in Chancere.

One of the travellers—a grave man, whose head was sprinkled with the snows of fifty winters—dismounted, and, approaching the door, knocked at it with the steel hilt of his sword. He received no answer; but presently the lattice opened above his head, and a sharp voice sharply asked,—

"Who knocks?"

"'Tis I, good wife!" replied the horseman. "Where is thy husband? I would see him!"

"Oh, Master John a Combe, is it you? I knew you not. Neither know I where that unthrift William is these two days. It was but three nights gone that he went with Will Squele and Dick Burbage, one of the player folk, to take a deer out of Sir Thomas Lucy's park, and, as Will's ill-luck would have it, they were taken, as well as the deer, and there was great ado. But Will—that's my Will—and Dick Burbage, brake from the keepers in Sir Thomas' very hall, and got off; and that's the last that has been heard of them; and here be I left a lone woman with these three children, and——Be quiet, Hamnet! Would ye pour my supper ale upon the hat of the worshipful Master John a Combe?"

"What! deer-stealing?" exclaimed John a Combe. "Is it thus that he apes the follies of his betters? I had more hope of the lad, for he hath a good heart and a quick engine; and I trusted that ere now he had drawn the lease of my Wilmecote farm to Master Tilney here. But deer-stealing!—like a lord's son, or a knight's at the least. Could not the rifling of a rabbit-warren serve his turn? Deer-stealing! I fear me he will come to nought!"

The speaker remounted, and soon the two horsemen might again have been seen wending their way back through the deepening twilight.

* * * * *

There are several points that would be novel in such a passage. Among others, we would modestly indicate the incident of the two horsemen as evincing some ingenuity, and as likely to charm the reader by its freshness and originality. But one point, we must confess, is not new, and that is the representation of Shakespeare as a lawyer. The supposition, that the author of "Macbeth," "Hamlet," and "King Lear," was a bustling young attorney, is of respectable age, and has years enough upon its beard, if not discretion. It has been brought forward afresh by two members of the profession for which is claimed the honor of having Shakespeare's name upon its roll,—William L. Rushton, Esquire, a London Barrister, and John Campbell, Lord Chief Justice of the Queen's Bench.[B] Lord Campbell, indeed, addressing himself to Mr. John Payne Collier, says, (p. 21,) that this is a notion "first suggested by Chalmers, and since countenanced by Malone, yourself, and others." An assertion this which savors little of legal accuracy. For Chalmers, so far from being the first to suggest that Shakespeare passed his adolescent years in an attorney's office, was the first to sneer at Malone for bringing forward that conjecture.[C] Malone, in his first edition of Shakespeare's works, published in 1790, has this passage, in the course of a discussion of the period when "Hamlet" was produced:—

"The comprehensive mind of our poet embraced almost every object of Nature, every trade, every art, the manners of every description of men, and the general language of almost every profession: but his knowledge of legal terms is not such as might be acquired by the casual observation of even his all-comprehending mind; it has the appearance of *technical* skill; and he is so fond of displaying it, on all occasions, that I suspect he was early initiated in at least the forms of law, and was employed, while he remained at Stratford, in the office of some country attorney, who was at the same time a petty conveyancer, and perhaps, also, the seneschal of some manor court."—Vol. I. Part I. p. 307.

[Footnote B: *Shakespeare a Lawyer*. By William L. Rushton. 16mo. pp. 50. London: 1858.

Shakespeare's Legal Acquirements Considered. By John Lord Campbell, LL.D., F.R.S.E. 12mo. pp. 117. London: 1859.]

[Footnote C: Into the trap so innocently set the London *Athenaeum* thus plunges headlong:—"Chalmers, we believe, first put Shakespeare in an attorney's office. Malone *accepted the hint*."]]

To this, Chalmers, some years after, (1797,) in his "Apology for the Believers in the Shakespeare Papers which were exhibited in Norfolk Street," (some contemptible forgeries, by a young scapegrace named William Ireland, which should not have deceived an English scholar of six months' standing,) made the following reply:—

"Mr. Malone places the aspiring poet 'in the office of some country attorney, or the seneschal of some manor court'; and for this violation of probability he produces many passages from his dramas to evince Shakespeare's *technical skill* in the *forms of law*. ...But was it not the practice of the times, for other makers, like the bees tolling from every flower the virtuous sweets, to gather from the thistles of the law *the sweetest* honey? Does not Spenser gather many a metaphor from these weeds, that are most apt to grow in *fattest* soil? Has not Spenser his law-terms: his *capias*, *defeasance*, and *duresse*; his *emparlance*; his *enure*, *essoyn*, and *escheat*; his *folkmote*, *forestall* and *gage*; his *livery* and *seasin*, *wage* and *waif*? It will be said, however, that, whatever the learning of Spenser may have gleaned, the law-books of that age were impervious to the illiterature of Shakespeare. No: such an intellect, when employed on the drudgery of a wool-stapler, who had been high-bailiff of Stratford-upon-Avon, might have derived all that was necessary from a very few books; from Totell's 'Presidents,' 1572; from Pulton's 'Statutes,' 1578; and from the

'Lawier's Logike,' 1588. It is one of the axioms of the 'Flores Regii,' that, To answer an improbable imagination is to fight against a vanishing shadow."—p. 553.

And again, in his "Supplemental Apology," etc., 1799, Chalmers remarks,

"The biographers, without adequate proofs, have bound Shakespeare an apprentice to some country attorney; as Mr. Malone has sent him without sufficient warrant to the desk of some seneschal of a county court: but these are obscurities that require other lights than conjecture and assertion, which, by proving nothing, only establish disbelief."—p. 226.

So much for Chalmers's having "first suggested" the theory, of which Lord Campbell has undertaken the support. Surely his Lordship must have been verifying Rosalind's assertion, that lawyers sleep between term and term, or else he is guilty of having loosely made a direct assertion in regard to a subject upon which he had not taken the trouble to inform himself; although he professes (p. 10) to have "read nearly all that has been written on Shakespeare's *ante-Londinensian* life, and carefully examined his writings with a view to obtain internal evidence as to his education and breeding."

One exhibition of his Lordship's inaccuracy is surprising. Commenting upon Falstaff's threat, "Woe to my Lord Chief Justice!" (2d *Henry IV.*, Act V., Sc. 4,) he remarks, (p. 73,) "Sir W. Gascoigne was *continued* as Lord Chief Justice *in the new reign*; but, according to law and custom, he was removable, and he no doubt expected to be removed, from his office." Lord Campbell has yet to rival the fifth wife of the missionary who wrote the lives of "her predecessors"; but surely *he* should have known that the expectations which he attributes to Sir William Gascoigne were not disappointed, and that (although the contrary is generally believed) the

object of Falstaff's menace was superseded (by Sir William Hankford) March 29th, 1413, just eight days after the prince whom he committed to prison came to the throne,—a removal the promptness of which would satisfy the strictest disciplinarian in the Democratic party. The Records show this; but his Lordship need not have gone to them; he would have found it mentioned, and the authority cited, by Tyler in his "Memoirs of Henry the Fifth."

And while we are considering the disparity between his Lordship's performances and his pretensions, we may as well examine his fitness to bring about a "fusion of Law and Literature," which he says, with some reason, have, like Law and Equity, been too long kept apart in England. We fear, that, whatever may be the excellence of his Lordship's intentions, he must set himself seriously to the task of acquiring more skill in the use of the English tongue, and a nicer discrimination between processes of thought, before his writings will prove to be the flux that promotes that fusion.

For, in the third paragraph of his letter, he says to Mr. Collier, "I cannot refuse to communicate to you my *sentiments* upon the subject," and in the following sentence adds, that this communication of his "*sentiments*" will drive from his mind "the *recollection* of the wranglings of Westminster Hall." His Lordship probably meant to refer to the communication of his *opinions*, for which word "sentiments" is not usually substituted, except by gentlemen who remark with emphasis, "Them's my sentiments"; and he also probably intended to allude to the *memory* of the wranglings of which he is professionally a witness,—having forgotten, for a moment, that recollection is a purely voluntary act, and not either a condition or a faculty of the mind.

Again, when his Lordship says, (p. 18,) "That during this interval (A.D. 1579 to 1586) he [Shakespeare] was merely an operative, earning his bread

by manual labor, in stitching gloves, sorting wool, or killing calves, no sensible man can possibly *imagine*" we applaud the decision; but can hardly do as much for the language in which it is expressed. Lord Campbell quite surely meant to say that no man could possibly *believe*, or *suppose*, or *assent to* the proposition which he sets forth; and when (on p. 26) he again says, "I do not *imagine* that when he [Shakespeare] went up to London, he carried a tragedy in his pocket," there can be no doubt that his Lordship meant to say, "I do not *think* that when," etc. He should again have gathered from his Shakespearean studies a lesson in the exact use of language, and have learned from the lips of "that duke hight Theseus" that imagination has nothing to do with assent to or dissent from a proposition, but that

"The lunatic, the lover, and the poet
Are of imagination all compact:

* * * * *

And, as imagination bodies forth
The forms of things unknown, the poet's pen
Turns them to shapes, and gives to airy nothing
A local habitation and a name."

A Midsummer Night's Dream, Act V. Sc. 1.

We would not protract this finding of faults, and will only add, that, when his Lordship says, (p. 116,) that Henry V. "astonished the world with his universal *wisdom*" he entirely overlooks the fact, that wisdom is a faculty of the mind, or, rather, a mode of intellectual action, of which universality can no more be predicated than of folly, or of honesty, or of muscular strength; and that it is not knowledge, or at all like knowledge; which, indeed, is often acquired in a very remarkable degree by persons eminent for unwisdom. Lord Campbell might as well have said that Henry V. astonished the world with his universal prowess in the battle-field.

The censure to which Mr. Rushton's pamphlet is occasionally open in regard to style may properly be averted by the modesty of its tone and its unpretending character.

But to pass from the manner to the matter of the learned gentlemen who appear on behalf of Malone's theory. Lord Campbell, after stating, in the introductory part of his letter, that in "The Two Gentlemen of Verona," "Twelfth Night," "Julius Caesar," "Cymbeline," "Timon of Athens," "The Tempest," "King Richard II.," "King Henry V.," "King Henry VI., Part I.," "King Henry VI., Part III.," "King Richard III.," "King Henry VIII.," "Pericles," and "Titus Andronicus,"—fourteen of the thirty-seven dramas generally attributed to Shakespeare,—he finds "nothing that fairly bears upon this controversy," goes on to produce from the remaining plays, *seriatim*, such passages as in his judgment do bear upon the question, and to remark upon them, thus isolated and disconnected from each other. Mr. Rushton is more methodic and logical. He does not merely quote or cite all the passages which he has noticed in which legal terms occur, but brings together all such as contain the same terms or refer to kindred proceedings or instruments; and he thus presents his case with much more compactness and consequent strength than results from Lord Campbell's loose and unmethodical mode of treating the subject. We can arrive at the merits of the case on either presentation only by an examination of some of the more important of the passages cited.

Lord Campbell, as we have just seen, mentions "Henry VIII." as one of the fourteen plays in which he has found nothing which relates to the question in hand; but Mr. Rushton opens his batteries with the following passage from the very play just named; and to most readers it will seem a bomb of the largest dimensions, sent right into the citadel of his opponents:

"*Suff.* Lord Cardinal, the king's further pleasure is,—
Because all those things you have done of late
By your power legatine within this kingdom
Fall into compass of a *premunire*,—
That therefore such a writ be sued against you,
To forfeit, all your goods, lands, tenements,
Chattels, and whatsoever, and to be
Out of the king's protection:—this is my
charge."

King Henry VIII. Act iii. Sc. 2.

We shall first remark, that, in spite of his declaration as to "Henry VIII.," Lord Campbell does cite and quote this very passage (p. 42); and, indeed, he must have been as unappreciative as he seems to have been inaccurate, had he failed to do so; for, upon its face, it is, with one or two exceptions, the most important passage of the kind to be found in Shakespeare's works. *Premunire* is thus defined in an old law-book which was accessible to Shakespeare:—

"Premunire is a writ, and it lieth where any man sueth any other in the spirituall court for anything that is determinable in the King's Court, and that is ordeined by certaine statutes, and great punishment therefore ordeined, as it appeareth by the same statutes, viz., that he shall be out of the King's protection, and that he be put in prison without baile or mainprise till that he have made fine at the King's will, and that his landes and goods shal be forfait, if he come not within ij. moneths."—*Termes de la Ley*, 1595, fol. 144.

The object of the writ was to prevent the abuse of spiritual power. Now, here is a law-term quite out of the common, which is used by Shakespeare with a well-deployed knowledge of the power of the writ of which it is the

name. Must we, therefore, suppose that Shakespeare had obtained his knowledge of the purpose and the power of this writ in the course of professional reading or practice? If we looked no farther than Shakespeare's page, such a supposition might seem to be warranted. But if we turn to Michael Drayton's "Legend of Great Cromwell," first published, we believe, in 1607, but certainly some years before "Henry VIII." was written, and the subject of which figures in that play, we find these lines,—

"This Me to urge the *Premunire* wonne,
Ordain'd in matters dangerous and hie;
In t' which the heedlesse Prelacie were runne
That back into the Papacie did fie."

Ed. 1619, p. 382.

Here is the very phrase in question, used with a knowledge of its meaning and of the functions of the writ hardly less remarkable than that evinced in the passage from "Henry VIII.," though expressed in a different manner, owing chiefly to the fact that Drayton wrote a didactic poem and Shakespeare a drama. But Drayton is not known to have been an attorney's clerk, nor has he been suspected, from his writings, or any other cause, to have had any knowledge of the law. Both he and Shakespeare, however, read the Chronicles. Reading men perused Hall's and Holinshed's huge black-letter folios in Queen Elizabeth's time with as much interest as they do Macaulay's or Prescott's elegant octavos in the reign of her successor, Victoria. Shakespeare drew again and again upon the former for the material of his historical plays; and in writing "Henry VIII.," he adopted often the very language of the Chronicler. The well-known description of Wolsey, which he puts into the mouth of Queen Katherine,—

"He was a man
Of an unbounded stomach, ever ranking

Himself with princes; one that by suggestion
Tith'd all the kingdom: Simony was fair play:
His own opinion was his law: I' the presence
He would say untruths; and be ever double,
Both in his words and meaning; He was never,
But where he meant to ruin, pitiful:
His promises were, as he then was, mighty;
But his performance, as he is now, nothing:
Of his own body he was ill, and gave
The clergy ill example,"—

is little more than the following paragraph from Holinshed put into verse:

"This cardinal! (as you may perceive in this storie) was of a great stomach, for he compted himselfe equall with princes, and by craftie suggestion gat into his hands innumerable treasure: he forced little on simonie, [i.e., regarded it as of little consequence,] and was not pittifull, and stood affectionate in his owne opinion: in open presence he would lie and saie untruth, and was double both in speach and meaning: he would promise much and performe little: he was vicious of his bodie, and gave the clergie evill example."—Ed. 1587, vol. iii. p. 622.

Turning back from the page on which the Chronicler comments upon the life of the dead prime-minister, to that on which he records his fall, we find these passages:—

"In the meane time, the king, being informed that all those things that the cardinall had doone by his *power legatine within this realme* were in the case of the *premunire* and provision, caused his attornie, Christopher Hales, to sue out a writ of *premunire* against him. ...After this in the king's bench his matter for the *premunire* being called upon, two attorneis which he had

authorised by his warrant, signed with his owne hand, confessed the action, and so had judgement to *forfeit all his lands, tenements, goods, and cattels, and to be out of the king's protection.*"—Ib. p. 909.

If the reader will look back at the passage touching the premunire, quoted above, he will see that these few lines from Raphael Holinshed are somewhat fatal to an argument in favor of Shakespeare's "legal acquirements," in so far as it rests in any degree upon the use of terms or the knowledge displayed in that passage. Shakespeare and Drayton are here in the same boat, though "not with the same sculls."

Before we shelve Holinshed,—for the good Raphael's folios are like Falstaff in size, if not in wit, and, when once laid flat-long, require levers to set them up on end again,—let us see if he cannot help us to account for more of the "legalisms" that our Lord Chief Justice and our barrister have "smelt out" in Shakespeare's historical plays. Mr. Rushton quotes the following passages from "Richard II." :—

"York. Is not Gaunt dead? and doth not Hereford live?

* * * * *

Take Hereford's rights away, and take from time
His *charters* and his *customary rights*;
Let not to-morrow, then, ensue to-day:
Be not thyself; for how art thou a king,
But by fair sequence and succession?
Now, afore God, (God forbid I say true!)
If you do wrongfully seize Hereford's rights,
Call in the *letters patents* that he hath
By his *attorneys-general* to sue
His *livery*, and deny his *offer'd homage*,

You pluck a thousand dangers on your head."

Act ii. Sc. I.

"*Bol.* I am denied to *sue my livery* here,
And yet my *letters patents* give me leave:
My father's *goods are all distrain'd* and sold;
And these, and all, are all amiss employed.
What would you have me do? I am a subject,
And challenge law: *Attorneys are denied* me;
And therefore personally I lay my claim
To my *inheritance* of free descent."—*Ib.* Sc. 3.

And Lord Campbell, although he passes by these passages in "Richard II.," quotes, as important, from a speech of Hotspur's in the "First Part of Henry IV.," the following lines, which, it will be seen, refer to the same act of oppression on the part of Richard II. towards Bolingbroke:—

"He came but to be Duke of Lancaster,
To *sue his livery* and beg his bread."
Act iv. Sc. 3.

But, here again, Shakespeare, although he may have known more law than Holinshed, or even Hall, who was a barrister, only used the law-terms that he found in the paragraph which furnished him with the incident that he dramatized. For, after recording the death of Gaunt, the Chronicle goes on:

—
"The death of this duke gave occasion of increasing more hatred in the people of this realme toward the king; for he seized into his hands all the rents and reuenues of his lands which ought to have descended vnto the duke of Hereford by lawfull *inheritance*, in reuoking *his letters patents*

which he had granted to him before, by virtue whereof he might make his *attorneis generall* to *sue liverie* for him of any manner of *inheritances* or possessions that might from thencefoorth fall unto him, and that his homage *might* be respited with making reasonable fine," etc.—HOLINSLED, Ed. 1587, p. 496.

The only legal phrase, however, in these passages of "Richard II," which seems to imply very extraordinary legal knowledge, is the one repeated in "Henry IV.,"—"sue his livery,"—which was the term applied to the process by which, in the old feudal tenures, wards, whether of the king or other guardian, on arriving at legal age, could compel a delivery of their estates to them from their guardians. But hence it became a metaphorical expression to mean merely the attainment of majority, and in this sense seems to have been very generally understood and not uncommonly used. See the following from an author who was no attorney or attorney's clerk:—

"If Cupid
Shoot arrows of that weight, I'll swear devoutly
H'as *sued his livery* and is no more a boy."
FLETCHER'S *Woman's Prize*, Act ii. Sc. 1.

And this, from the works of a divine:—

"Our little Cupid hath *sued livery*
And is no more in his minority."
DONNE'S *Eclogues*, 1613.

Spenser, too, uses the phrase figuratively in another sense, in the following passage,—which may be one of those which Chalmers had in his eye, when, according to Lord Campbell, he "first suggested" that Shakespeare was once an attorney's clerk:—

"She gladly did of that same Babe accept,
As of her owne by *livery and seisin*;
And having over it a litle wept,
She bore it thence, and ever as her owne it kept."
Faërie Queene, B. VI. C. iv. st. 37.

So, for an instance of the phrase "fee," which Lord Campbell notices as one of those expressions and allusions which "crop out" in "Hamlet," "showing the substratum of law in the author's mind,"—

"We go to gain a little patch of ground,
That hath in it no profit but the name.
To pay five ducats, five, I would not farm it;
Nor will it yield to Norway or the Pole
A ranker rate, should it be sold *in fee*,"—
Act iv. Sc. 2.

and of which Mr. Rushton quotes several instances in its fuller form, "fee simple,"—we have but to turn back a few stanzas in this same canto of the "Faërie Queene," to find one in which the term is used with the completest apprehension of its meaning:—

"So is my lord now *seiz'd of* all the land,
As *in his fee*, with peaceable *estate*,
And quietly doth hold it in his hand,
Ne any dares with him for it debate."
Ib. st. 30.

And in the next canto:—

"Of which the greatest part is due to me, And heaven itself, by heritage *in fee*." *Ib.* C. vii. st. 15.

And in the first of these two passages from the "Faërie Queene," we have two words, "seized" and "estate," intelligently and correctly used in their purely legal sense, as Shakespeare himself uses them in the following passages, which our Chief Justice and our barrister have both passed by, as, indeed, they have passed many others equally worthy of notice:—

"Did forfeit with his life all those his lands
Which he stood *seiz'd of* to the conqueror."
Hamlet, Act i. Sc. 1.

"The terms of our *estate* may not endure
Hazard so near us," etc.—*Ib.* Act iii. Sc. 3.

Among the most important passages cited by both our authors is one that every reader of Shakespeare will recollect, when it is mentioned to him,—Hamlet's speech over the skull in the grave-digging scene. But although this speech is remarkable for the number of law-terms used in it, only one of them seems to evince any recondite knowledge of the law. This is the word "statutes," in the following sentence:—

"This fellow might be in's time a buyer of land, with his statutes, his recognizances, his fines, his double vouchers, his recoveries." Act v. Sc. 1.

The general reader supposes, we believe, and very naturally, that here "statutes" means laws, Acts of Parliament concerning real estate. But, as Mr. Rushton remarks, (Malone having explained the term before him,) "The statutes referred to by Hamlet are, doubtless, statutes merchant and statutes staple." And "a statute merchant (so called from the 13th Edward I., *De mercatoribus*) was a *bond* acknowledged before one of the clerks of the statutes merchant, and the mayor, etc., etc. A statute staple, properly so

called, was a *bond of record*, acknowledged before the mayor of the staple," etc., etc.

Here we again have a law-term apparently so out of the ken of an unprofessional writer, that it would seem to favor the Attorney and Solicitor theory. But let us see if the knowledge which its use implies was confined to Shakespeare among the dramatists of his time.

In Fletcher's "Noble Gentleman," a comedy, first performed in 1625, we find a lady, sorely pushed for ready cash, crying out,—

"Take up at any use: give bond, or land,
Or mighty *statutes*, able by their strength
To tie up my Samson, were he now alive."
Act i. Sc. 1.

And in Middleton's "Family of Love," (where, by the way, the Free-Love folk of our own day may find their peculiar notions set forth and made the basis of the action, though the play was printed two hundred and fifty years ago,) we find a female free-lovener thus teaching a mercantile brother of the family, that, although she has a sisterly disregard for some worldly restraints, she yet keeps an eye on the main chance:—

"Tut, you are master Dryfab, the merchant; your skill is greater in cony-skins and woolpacks than in gentlemen. His lands be *in statutes*: you merchants were wont to be merchant staplers; but now gentlemen have gotten up the trade; for there is not one gentleman amongst twenty but his lands be engaged in twenty statutes staple."

Act i. Sc. 3.

And in the very first speech of the first scene of the same play, the husband of this virtuous and careful dame says of the same "Gerardine," (who, as he is poor and a gentleman, it need hardly be said, is about the only honest man in the piece,)—"His lands be *in statutes*." And that poor debauchee, Robert Greene, who knew no more of law than he might have derived from such limited, though authentic information as to its powers over gentlemen who made debts without the intention of paying them, as he may have received at frequent unsolicited interviews with a sergeant or a bum-bailiff, has this passage in his "Quip for an Upstart Courtier," 1592:—

"The mercer he followeth the young upstart gentleman that hath no government of himself and feedeth his humour to go brave; he shall not want silks, sattins, velvets to pranke abroad in his pompe; but with this proviso, that he must bind over his land in a *statute merchant or staple*; and so at last forfeit all unto the merciless mercer, and leave himself never a foot of land in England."

Very profound legal studies, therefore, cannot be predicated of Shakespeare on the ground of the knowledge which he has shown of this peculiar kind of statute.

It is not surprising that both our legal Shakespearean commentators cite the following passage from "As You Like It" in support of their theory; for in it the word "extent" is used in a sense so purely technical, that not one in a thousand of Shakespeare's lay readers now-a-days would understand it without a note:—

Duke F. Well, push him out of doors, And let my officers of such a nature *Make an extent* upon his house and lands." Act iii. Sc. 1.

"Extent," as Mr. Rushton remarks, is directed to the sheriff to seize and value lands and goods to the utmost extent; "an *extendi facias*" as Lord

Campbell authoritatively says, "applying to the house and lands as a *fieri facias* would apply to goods and chattels, or a *capias ad satisfaciendum* to the person." But that John Fletcher knew, as well as my Lord Chief Justice, or Mr. Barrister Rushton, or even, perhaps, William Shakespeare, all the woes that followed an extent, the elder Mr. Weller at least would not have doubted, had he in the course of his literary leisure fallen upon the following passage in "Wit Without Money" (1630):—

"*Val* Mark me, widows
Are long *extents* in law upon men's livings,
Upon their bodies' winding-sheets; they that enjoy 'em
Lie but with dead men's monuments, and beget
Only their own ill epitaphs."
Act ii. Sc. 2.

George Wilkins, too, the obscure author of "The Miserie of Enforced Marriage," uses the term with as full an understanding, though not with so feeling an expression or so scandalous an illustration of it, in the following passage from the fifth act of that play, which was produced about 1605 or 1606:—

"They are usurers; they come yawning for money; and the sheriff with them is come to serve an *extent* upon your land, and then seize your body by force of execution."

Another seemingly recondite law-phrase used by Shakespeare, which Lord Campbell passes entirely by, though Mr. Rushton quotes three instances of it, is "taken with the manner." This has nothing to do with good manners or ill manners; but, in the words of the old law-book before cited,

—"is when a theefe hath stollen and is followed with hue and crie and taken, having that found about him which he stole;—that is called ye maynour. And so we commonly use to saye, when wee finde one doing of an unlawful act, that we tooke him with the maynour or manner."

Termes de la Ley, 1595, fol. 126, *b*.

Shakespeare, therefore, uses the phrase with perfect understanding, when he makes Prince Hal say to Bardolph,—

"O villain, thou stolest a cup of sack eighteen years ago, and wert *taken with the manner*, and ever since thou hast blush'd extempore." 1 *Henry IV*. Act ii, Sc. 4.

But so Fletcher uses the same phrase, and as correctly, when he makes Perez say to Estefania, in "Rule a Wife and Have a Wife,"—

"How like a sheep-biting rogue, *taken i' the manner*,
And ready for the halter, dost thou look
now!"—Act v. Sc. 4.

But both Fletcher and Shakespeare, in their use of this phrase, unusual as it now seems to us, have only exemplified the custom referred to by our contemporary legal authority,—"*And so we commonly use to saye, when wee finde one doing of an unlawfull act, that we tooke him with the maynour*"; though this must doubtless be understood to refer to persons of a certain degree of education and knowledge of the world.

It seems, then, that the application of legal phraseology to the ordinary affairs of life was more common two hundred and fifty years ago than now; though even now-a-days it is much more generally used in the rural districts than persons who have not lived in them would suppose. There law shares

with agriculture the function of providing those phrases of common conversation which, used figuratively at first, and often with poetic feeling, soon pass into mere thought-saving formulas of speech, and which in large cities are chiefly drawn from trade and politics. And if in the use of the law-terms upon which we have remarked, which are the more especially technical and remote from the language of unprofessional life among all those which occur in Shakespeare's works, he was not singular, but, as we have seen, availed himself only of a knowledge which other contemporary poets and playwrights possessed, how much more easily might we show that those commoner legal words and phrases, to remarks upon Shakespeare's use of which both the books before us (and especially Lord Campbell's) are mainly devoted, "judgment," "fine," "these presents," "testament," "attorney," "arbitrator," "fees," "bond," "lease," "pleading," "arrest," "session," "mortgage," "vouchers," "indentures," "assault," "battery," "dower," "covenant," "distrain," "bail," "non-suit," etc., etc., etc.,—words which everybody understands,—are scattered through all the literature of Shakespeare's time, and, indeed, of all time since there were courts and suits at law!

Many of the passages which Lord Campbell cites as evidence of Shakespeare's "legal acquirements" excite only a smile at the self-delusion of the critic who could regard them for a moment in that light. For instance, these lines in that most exquisite song in "Measure for Measure;"—"Take, oh, take those lips away,"—

"But my kisses bring again *Seals* of love, but *seal'd* in vain";—

and these from "Venus and Adonis,"—

"Pure lips, sweet *seals* in my soft lips imprinted,
What bargains may I make, still to be *sealing*!"—

to which Mr. Rushton adds from "Hamlet,"—

"A combination and a form, indeed,
Where every god did seem to set his *seal*."

Act iii. Sc. 4.

"Now must your conscience my acquittance *seal*."—Act iv. Sc. 7.

And because indentures and deeds and covenants are sealed, these passages must be accepted as part of the evidence that Shakespeare narrowly escaped being made Lord High Chancellor of England! It requires all the learning and the logic of a Lord Chief Justice and a London barrister to establish a connection between such premises and such a conclusion. And if Shakespeare's lines smell of law, how strong is the odor of parchment and red tape in these, from Drayton's Fourth Eclogue (1605):

"Kindnesse againe with kindnesse was repay'd, *And with sweet kisses covenants were sealed*."

We ask pardon of the reader for the production of contemporary evidence, that, in Shakespeare's day, a knowledge of the significance and binding nature of a seal was not confined to him among poets; for surely a man must be both a lawyer and a Shakespearean commentator to forget that the use of seals is as old as the art of writing, and, perhaps, older, and that the practice has furnished a figure of speech to poets from the time when it was written, that out of the whirlwind Job heard, "It is turned as clay to the *seal*," and probably from a period yet more remote.

And is Lord Campbell really in earnest in the following grave and precisely expressed opinion?

"In the next scene, [of "Othello,"] Shakespeare gives us a *very distinct proof* that he was acquainted with Admiralty law, as well as with the procedure of Westminster Hall. Describing the feat of the Moor in carrying off Desdemona against her father's consent, which might either make or mar his fortune, according as the act might be sanctioned or nullified, Iago observes,—

"Faith, he to-night hath hoarded a land carack:
If it prove a *lawful prize*, he's made forever";

the trope indicating that *there would be a suit in the High Court of Admiralty to determine the validity of the capture*"!—p. 91.

"Why did not his Lordship go farther, and decide, that, in the figurative use of the term, "land carack," Shakespeare gave us very distinct proof that he was acquainted with maritime life, and especially with the carrying-trade between Spain and the West Indies? We respectfully submit to the court the following passage from Middleton and Rowley's "Changeling,"—first published in 1653, but written many years before. Jasperino, seeing a lady, calls out,—

"Yonder's another vessel: Ile *board* her: if she be *lawfall prize*, *down goes her topsail*." Act i. Sig. B. 2.

And with it we submit the following points, and ask a decision in our favor. First, That they, the said Middleton and Rowley, have furnished, in the use of the phrase "lawful prize," in this passage, very distinct proof that they were acquainted with Admiralty law. Second, That, in the use of the other phrases, "board," and especially "down goes her topsail," they have furnished yet stronger evidence that they had been sailors on board armed vessels, and that the trope indicates, that, had not the vessel or lady in

question lowered her topsail or top-knot, she would then and there have been put mercilessly to the sword.

But what shall we think of the acumen and the judgment of a Chief Justice, a man of letters, and a man of the world, who brings forward such passages as the following as part of the evidence bearing upon the question of Shakespeare's legal acquirements?—

"Come; fear not you; *good counsellors lack no clients.*" *Measure for Measure*. Act i. Sc. 2.

"One that *before the judgement* carries poor souls to hell."
Comedy of Errors. Act iv. Sc. 2.

"Well, Time is the old *Justice* that examines all such offenders,—and let Time try." *As You Like It*. Act iv. Sc. 1.

"And that old common *arbitrator*, Time."
Troilus and Cressida. Act iv. Sc. 5.

"No cock of mine; you crow too like a *craven.*"
Taming of the Shrew. Act ii. Sc. 1.

"Bestial oblivion or some *craven* scruple."
Hamlet. Act iv. Sc. 4.

By which last line, according to Lord Campbell, (p. 55,) "Shakespeare shows that he was acquainted with *the law for regulating 'trials by battle'*"!

But to proceed with the passages quoted in evidence:—

"Is not this a lamentable thing, that of the skin of an innocent lamb should be made *parchment*? that parchment, being *scribbled o'er*, should undo a man? Some say, the bee stings: but I say, 'tis the bee's *wax*; for I did but *seal* once to a thing, and I was never mine own man since."—2 *Henry VI.* Act vi. Sc. 2.

Upon citing which, his Lordship exclaims,—

"Surely Shakespeare must have been employed to write *deeds* on *parchment* in *courthand*, and to apply the *wax* to them in the form of *seals*. One does not understand how he should, on any other theory of his bringing-up, have been acquainted *with these details*"!

One does not; but we submit to the court, that, if two were to lay their heads together after the manner of Sydney Smith's vestrymen, they might bring it about.

In aid of his Lordship's further studies, we make the following suggestion. He doubtless knows that one of the earliest among our small stock of traditions about Shakespeare is that recorded by Aubrey as being derived from Stratford authority, that his father was a butcher, and that "when he was a boy he exercised his father's trade, but when he kill'd a calfe, he wold do it in a high style, and make a speech." When his Lordship considers this old tradition in connection with the following passage in one of Shakespeare's earliest plays,—

"Who finds the heifer dead and bleeding fresh,
And sees fast by a butcher with an axe,
But will suspect 'twas he that made the
slaughter,"—

2 *Henry VI.* Act iii. Sc. 2.

how can he resist the conclusion, that, although the divine Williams may not have run with "Forty," it is highly probable that he did kill for Keyser? Let his Lordship also remember that other old tradition, mentioned by Rowe, that John Shakespeare was "a considerable dealer in wool," and that William, upon leaving school, "seems to have given entirely into that way of living which his father proposed to him"; and remember, also, this passage from another of Shakespeare's earliest plays:—

"He is too picked, too spruce, too affected,
too odd, as it were, too peregrinate, as I may
call it...He draweth out the *thread of*
his verbosity finer than the staple of his argument."
—*Love's Labor's Lost*. Act v. Sc. 1.

Is there not a goodly part of the wool-stapler's craft, as well as of the art of rhetoric, compressed into that one sentence by the hydraulic power of Shakespeare's genius? Does it not show that he was initiated in the mysteries of long and short staple before he wrote this, perhaps, his earliest play? But look again at the following passage, also written when his memory of his boyish days was freshest, and see the evidence that *both* these traditions were well founded:—

"So, first, the harmless sheep doth yield *his fleece*;
And, next, *his throat unto the butcher's knife.*"

Could these lines have been written by a man who had not been both a considerable dealer in wool, and a butcher who killed a calf in high style and made a speech? Who can have a doubt about this matter, when he appreciates rightly the following passage in "Hamlet," (Act v. Sc. 2,) and is penetrated with the wisdom of two wise commentators upon it?—

'Our indiscretion sometimes serves us well,
When our deep plots do pall; and that should teach us
There's a divinity that shapes our ends,
Rough-hew them how we will.'

Dr. Farmer informs me that these words are merely technical. A wool-man, butcher, and dealer in *skewers* lately observed to him that his nephew (an idle lad) could only *assist* him in making them;—he could *rough hew* them, but I was obliged to shape their ends! To shape the ends of wool-skewers, i.e., to *point* them, requires a degree of skill; any one can *rough-hew* them. Whoever recollects the profession of Shakespeare's father will admit that his son might be no stranger to such terms. "I have frequently seen packages of wool pinn'd up with skewers."—STEEVENS.

Lucky wool-man, butcher, and dealer in skewers! to furnish at once a comment upon the great philosophical tragedy and a proof that its author and you were both of a trade! Fortunate Farmer, to have heard the story! and most sagacious Steevens, to have penetrated its hidden meaning, recollecting felicitously that you had seen packages of wool pinn'd up with skewers! But, O wisest, highest-and-deepest-minded Shakespeare, to have remembered, as you were propounding, Hamlet-wise, one of the great unsolvable mysteries of life, the skewers that you, being an idle lad, could but rough-hew, leaving to your careful father the skill-requiring task to shape their ends!—ends without which they could not have bound together the packages of wool with which you loaded the carts that backed up to the door in Henley Street, or have penetrated the veal of the calves that you killed in such a high style and with so much eloquence, and which loaded the tray that you daily bore on your shoulder to the kitchen-door of New Place, yet unsuspecting that you were to become its master!

Yet we would not too strongly insist upon this evidence, that Shakespeare in his boyhood served both as a butcher's and a wool-stapler's apprentice; for we venture to think that we have discovered evidence in his works that their author was a tailor. For, in the first place, the word "tailor" occurs no less than thirty-five times in his plays. [The reader is to suppose that we are able to record this fact by an intimate acquaintance with every line that Shakespeare wrote, and by a prodigious effort of memory, and not by reference to Mrs. Clark's Concordance.] "Measures" occurs nearly thrice as often; "shears" is found no less than six times; "thimble," three times; "goose," no less than twenty-seven times!—and when we find, that, in all his thirty-seven plays, the word "cabbage" occurs but once, and then with the deliberate explanation that it means "worts" and is "good cabbage," may we not regard such reticence upon this tender point as a touching confirmation of the truth of our theory? See, too, the comparison which Shakespeare uses, when he desires to express the service to which his favorite hero, Prince Hal, will put the manners of his wild companions:—

"So, like gross terms,
The Prince will, in the perfectness of time,
Cast off his followers; and their memory
Shall as a *pattern or a measure* live
By which his Grace must mete the lives of
others."

2 *Henry IV.*, Act iv. Sc. 4.

And in writing one of his earliest plays, Shakespeare's mind seems to have been still so impressed with memories of his former vocation, that he made the outraged Valentine, as his severest censure of Proteus, reproach him with being badly dressed:—

"Ruffian, let go that rude, uncivil touch!
Thou friend of *an ill fashion*!"

Act v. Sc. 4.

Cleopatra, too, who, we may be sure from her conduct, was addicted to very "low necks," after Antony's death becomes serious, and declares her intention to have something "after the high Roman fashion." And what but a reminiscence of the disgust which a tailor of talent has for mending is it that breaks out in the Barons' defiant message to King John?—

"The King hath dispossess'd himself of us;
We will not line his thin bestained cloak."

King John, Act iv. Sc. 3.

A memory, too, of the profuse adornment with which he had been called upon to decorate some very tender youth's or miss's fashionable suit intrudes itself even in his most thoughtful tragedy:—

"The canker galls the infants of the Spring
Too oft before their *buttons* be disclos'd."

Hamlet, Act i. Sc. 3.

In "Macbeth," desiring to pay the highest compliment to Macduff's judgment and knowledge, he makes Lennox say,—

"He is noble, wise, judicious, and best knows
The fits of the season."—Act iv. Sc. 2.

Not the last fall or last spring style, be it observed, but that of the season, which it is most necessary for the fashionable tailor to know. In writing the

first scene of the "Second Part of Henry IV.," his mind was evidently crossed by the shade of some over-particular dandy, whose fastidious nicety as to the set of his garments he had failed to satisfy; for he makes Northumberland compare himself to a man who,

"Impatient of his fit, breaks like a fire Out of his keeper's arms."

And yet we must not rely too much even upon evidence so strong and so cumulative as this. For it would seem as if Shakespeare must have been a publisher, and have known the anxiety attendant upon the delay of an author not in high health to complete a work the first part of which has been put into the printer's hands. Else, how are we to account for his feeling use of this beautiful metaphor in "Twelfth Night"?

"Lady, you are the cruell'st she alive,
If you will lead these graces to the grave,
And *leave the world no copy.*"

Act i. Sc. 5.

But this part of our subject expands before us, and we must stay our hand. We merely offer these hints as our modest contribution to the attempts to decide from phrases used in Shakespeare's works what were his avocations before he became a playwright, and return to Lord Campbell and Mr. Rushton.

When Malone, in 1790, broached his theory, that Shakespeare had been an attorney's clerk, he cited in support of it twenty-four passages. Mr. Rushton's pamphlet brings forward ninety-five, more or less; Lord Campbell's book, one hundred and sixty. But, from what he has seen of it, the reader will not be surprised at learning that a large number of the passages cited by his Lordship must be thrown aside, as having no bearing

whatever on the question of Shakespeare's legal acquirements. They evince no more legal knowledge, no greater familiarity with legal phraseology, than is apparent in the ordinary conversation of intelligent people generally, even at this day. Mr. Rushton, more systematic than his Lordship, has been also more careful; and from the pages of both we suppose that there might be selected a round hundred of phrases which could be fairly considered as having been used by Shakespeare with a consciousness of their original technicality and of their legal purport. This is not quite in the proportion of three to each of his thirty-seven plays; and if we reckon his sonnets and poems according to their lines, (and both Mr. Rushton and Lord Campbell cite from them,) the proportion falls to considerably less than three. But Malone's twenty-four instances are of nearly as much value in the consideration of the question as Lord Campbell's and Mr. Rushton's hundred; for the latter gentlemen have added little to the strength, though considerably to the number, of the array on the affirmative side of the point in dispute; and we have seen, that, of the law-phrases cited by them from Shakespeare's pages, the most recondite, as well as the most common and simple, are to be found in the works of the Chroniclers, whose very language Shakespeare used, and in those of the playwrights his contemporaries.

Our new advocates of the old cause, however, quote two passages which, from the freedom with which law-phrases are scattered through them, it is worth while to reproduce here. The first is the well-known speech in the grave-digging scene of "Hamlet":—

"*Ham.* There's another: Why may not that be the skull of a lawyer? Where be his quiddits now, his quillets, his *cases*, his *tenures*, and his tricks? why does he suffer this rude knave, now, to knock him about the sconce with a dirty shovel, and will not tell him of his *action of battery*? Humph! This fellow might be in's time a great buyer of land, with his

statutes, his recognizances, his fines, his double vouchers, his recoveries: Is this the fine of his fines, and the recovery of his recoveries, to have his fine pate full of fine dirt? will his vouchers vouch him no more of his purchases, and double ones, too, than the length and breadth of a pair of indentures? The very conveyances of his lands will hardly lie in this box; and must the inheritor himself have no more? ha?"—Act v. Sc. 1.

The second is the following Sonnet, (No. 46,) not only the language, but the very fundamental conceit of which, it will be seen, is purely legal:—

"Mine Eye and Heart are at a mortal war
How to divide the conquest of thy sight;
Mine Eye my Heart thy picture's sight would *bar*,
My Heart mine Eye the freedom of that right.
My Heart doth *plead* that thou in him dost lie
(A closet never pierc'd with crystal eyes);
But the *defendant* doth that *plea* deny,
And says in him thy fair appearance lies.
To 'cide this title is *impanelled*
A *quest* of thoughts, all tenants to the Heart,
And by their *verdict* is determined
The clear Eye's *moiety*, and the dear Heart's part;
As thus: Mine Eye's due is thine outward part,
And my Heart's right, thine inward love of heart."

It would seem, indeed, as if passages like these must be received as evidence that Shakespeare had more familiarity with legal phraseology, if not a greater knowledge of it, than could have been acquired except by habitual use in the course of professional occupation. But let us see if he is peculiar even in this crowding of many law-terms into a single brief passage. We turn to the very play open at our hand, from which we have

quoted before, (and which, by the way, we have not selected as exceptional in this regard,) "The Miseries of Enforced Marriage," and find the following passage in Act V.:—

"*Doctor*. Now, Sir, from this your *oath and bond*, Faith's pledge and *seal* of conscience, you have run, Broken all *contracts*, and *forfeiture* Justice hath now in *suit* against your soul: Angels are made the *jurors*, who are *witnesses* Unto the *oath* you took; and God himself, Maker of marriage, He that hath *seal'd the deed*, As a firm *lease* unto you during life, *Sits now as Judge* of your transgression: The world *informs against you* with this voice.— If such sins reign, what mortals can rejoice? *Scarborow*. What then ensues to me? *Doctor*. A heavy *doom*, whose *execution's* Now *served upon* your conscience," etc. p. 91, D.O.P., Ed. 1825.

Indeed, the hunting of a metaphor or a conceit into the ground is a fault characteristic of Elizabethan literature, and one from which Shakespeare's boldness, no less than his genius, was required to save him; and we have seen already how common was the figurative use of law-phrases among the poets and dramatists of his period. Hamlet's speech and the Forty-sixth Sonnet cannot, therefore, be accepted as evidence of his attorneyship, except in so far as they and like passages may be regarded as giving some support to the opinion that Shakespeare was but one of many in his time who abandoned law for letters.

For we object not so much to the conclusion at which Lord Campbell arrives as to his mode of arriving at it. His method of investigation, which is no method at all, but the mere noting of passages in the order in which he found them in looking through Shakespeare's works, is the rudest and least intelligent that could have been adopted; and his inference, that, because Shakespeare makes Jack Cade lament that the skin of an innocent lamb

should be made parchment, and affirm that it is not the bee, but the bee's wax, that stings, therefore he must have been employed to write deeds on parchment and append wax to them in the form of seals, is a fair specimen both of the acuteness and the logic which his Lordship displays in this his latest effort to unite Law and Literature.

There are, however, very considerable grounds for the opinion that Shakespeare had more than a layman's acquaintance with the technical language of the law. For it must be admitted, in the first place, that he exhibits a remarkable acquaintance with it. That other playwrights and poets of his day manifest a like familiarity (as we have seen they do) precludes us, indeed, from regarding the mere occurrence of law-terms in his works as indications of early training proper to him alone. But they who, on the strength of the not unfrequent occurrence of legal phrases in many of the plays and much of the poetry of the Elizabethan period, would maintain that Shakespeare's use of them furnishes no basis for the opinion that he acquired his knowledge of them professionally, must also assume and support the position, that, in the case of contemporary dramatists and poets, this use of the technical language of conveyancing and pleading also indicates no more than an ordinary acquaintance with it, and that, in comparing his works with theirs in this regard, we may assume the latter to have been produced by men who had no professional acquaintance with the law; because, if they had such professional acquaintance with legal phraseology, its appearance in their works as well as in Shakespeare's would manifestly strengthen rather than invalidate the conclusion, that his familiarity with it was acquired as they acquired theirs. This position is, to say the least, a very difficult one to maintain, and one which any considerate student of Elizabethan literature would be very unwilling to assume. For our ignorance of the personal life of Shakespeare is remarkable only because he was Shakespeare; and we know little, if any, more about the greater number of his literary contemporaries than we do about him. It

cannot even be safely presumed, for instance, that George Wilkins, the author of the law-besprinkled passage just above quoted from the "Miseries of Enforced Marriage," was not a practising attorney or barrister before or even at the time when he wrote that play. On the contrary, it is extremely probable, nay, quite certain, that he and many other dramatic authors of the period when he flourished, (1600-1620,) and of the whole Elizabethan period, (1575-1625,) were nestling attorneys or barristers before they became full-fledged dramatists.

We are not without contemporary evidence upon this point. Thomas Nash, friend to Robert Greene, a playwright, poet, and novelist, whose works were in vogue just before Shakespeare wrote, in an "Epistle to the Gentlemen Students of the Two Universities," with which, according to the fashion of the time, he introduced Greene's "Menaphon" (1587)[D] to the reader, has the following paragraph:—

[Footnote D: Lord Campbell gives the date 1589; but see Mr. Dyce's indisputable authority. Greene's Works. Vol. I., pp. xxxvii. and ciii.]

"I will turn my back to my first text of studies of delight, and talk a little in friendship with a few of our trivial translators. It is a common practice, now-a-days, amongst a sort of shifting companions that run through every art and thrive by none, to leave the trade of Noverint, whereto they were born, and busy themselves with the endeavors of art, that could scarcely Latinize their neck-verse, if they should have need; yet English Seneca, read by candlelight, yields many good sentences, as, *Blood is a beggar*, and so forth; and if you intreat him fair in a frosty morning, he will afford you whole Hamlets,—I should say, handfuls of tragical speeches. But, oh grief! *Tempus edax rerum*,—what is that will last always? The sea, exhaled by drops, will, in continuance, be dry; and Seneca, let blood line by line and page by page, at length must needs die to our stage."

It has most unaccountably been assumed that this passage refers to Shakespeare;[E] and it is even so cited by Lord Campbell himself,—to our surprise, when we remember his professional training and experience as a sifter of evidence. But, as far as regards its reference to a leaving of law for literature, it is clearly of general application. Nash says, "It is a *common practice*, now-a-days, amongst a sort of shifting companions, etc., to leave the trade of *Noverint*, whereto *they* were born, and busy *themselves*," etc. By the trade of *Noverint* he meant that of an attorney. The term was not uncommonly applied to members of that profession, because of the phrase, *Noverint universi per presentes*, (Know all men by these presents,) with which deeds, bonds, and many other legal instruments then began. And Nash's testimony accords with what we know of the social and literary history of the age. There was no regular army in Elizabeth's time; and the younger sons of gentlemen and well-to-do yeomen, who received from their fathers little more than an education and a very small allowance, and who did not become either military or maritime adventurers, opening their oyster with a sword, entered the Church or the profession of the law in its higher or lower grade; and as at that period there was much more demand for lawyers and much less for clergymen than there is now, and the Church had ceased to be a stepping-stone to political power and patronage, while the law had become more than ever before an avenue to fame, to fortune, and to rank, by far the greater number of these young gentlemen aspired to the woolsack. But then, as now, the early years of professional life were seasons of sharp trial and bitter disappointment. Necessity pressed sorely or pleasure wooed resistlessly, and the slender purse wasted rapidly away while the young attorney or barrister awaited the employment that did not come. He knew then, as now he knows, "the rich man's scorn, the proud man's contumely"; nay, he felt, as now he sometimes feels, the tooth of hunger gnawing through the principles and firm resolves that partition a life of honor and self-respect from one darkened by conscious loss of rectitude,

if not by open shame. Happy,— yet, perhaps, oh, unhappy,—he who now in such a strait can wield the pen of a ready writer!—for the press, perchance, may afford him a support which, though temporary and precarious, will hold him up until he can stand upon more stable ground. But in the reigns of Good Queen Bess and Gentle Jamie there was no press. There was, however, an incessant demand for new plays. Play-going was the chief intellectual recreation of that day for all classes, high and low. It filled the place of our newspapers, our books, our lectures, our concerts, our picture-seeing, and, in a great measure, of our social gatherings and amusements, of whatever nature. It is hardly extravagant to say, that there were then more new plays produced in London in a month than there are now in Great Britain and the United States in a year. To play-writing, then, the needy young attorney or barrister possessed of literary talent turned his eyes at that day, as he does now to journalism; and it is almost beyond a doubt, that, of the multitudinous plays of that period which have survived and the thousands which have perished, a large proportion were produced by the younger sons of country gentlemen, who, after taking their degrees at Oxford or Cambridge, or breaking away from those classic bounds ungraduated, entered the Inns of Court, according to the custom of their day and their condition. They wrote plays in Latin, and even in English, for themselves to act; and they got the professional players to act popular plays for them on festal days. What more natural, then, than that those who had the ability and the need should seek to recruit their slender means by supplying the constant demand for new plays? and how inevitable that some of them, having been successful in their dramatic efforts, should give themselves up to play-writing! As do the great, so will the small. What the Inns-of-Court man did, the attorney would try to do. The players, though they loved the patronage of a lord, were very democratic in the matter of play-making. If a play filled the house, they did not trouble themselves about the social or professional rank of him who wrote it; and thus came

about that "common practice" for "shifting companions" to "leave the trade of Noverint" and "busy themselves with the endeavors of art"; and hence it is that the plays of the period of which we are writing have, in many passages, so strong a tinge of law.

[Footnote E: It seems clear, on the contrary, that Nash's object was to sneer at Jasper Heywood, Alexander Nevil, John Studley, Thomas Nuce, and Thomas Newton,—one or more of them,—whose *Seneca, his Tenne Tragedies translated into Englysh*, was published in 1581. It is a very grievous performance; and Shakespeare, who had read it thoroughly, made sport of it in *A Midsummer Night's Dream*.]

One reason for the regarding of Nash's sneer as especially directed against Shakespeare is the occurrence in it of the phrase, "whole *Hamlets*,—I should say, handfuls of tragical speeches," which has been looked upon as an allusion to Shakespeare's great tragedy. But the earliest edition of "Hamlet" known was published in 1603, and even this is an imperfect and surreptitiously obtained copy of an early sketch of the play. That Shakespeare had written this tragedy in 1586, when he was but twenty-two years old, is improbable to the verge of impossibility; and Nash's allusion, if, indeed, he meant a punning sneer at a play, (which is not certain.) was, doubtless, to an old lost version of the Danish tragedy upon which Shakespeare built his "Hamlet."

We have, then, direct contemporary testimony, that, at the period of Shakespeare's entrance upon London life, it was a common practice for those lawyers whom want of success or an unstable disposition impelled to a change in their avocation to devote themselves to writing or translating plays; and this statement is not only sustained by all that we know of the customs of the time to which it refers, but is strongly confirmed by the

notably frequent occurrence of legal phrases in the dramatic literature of that age.

But the question, then, arises,—and it is one which, under the circumstances, must be answered,—To what must we attribute the fact, that, of all the plays that have come down to us, written between 1580 and 1620, Shakespeare's are most noteworthy in this respect? For it is true, that, among all the dramatic writers of that period, whose works have survived, not one uses the phraseology of the law with the frequency, the freedom, and the correctness of Shakespeare. Beaumont, for instance, was a younger son of a Judge of the Common Pleas, and, following the common routine that we have noticed, after leaving the University, became an Inns-of-Court man, but soon abandoned law for literature; his friend and associate, Fletcher, was the son of a bishop, but had an uncle who was a lawyer and a diplomatist, and is himself believed to have been of the Inns of Court. Rich gleanings of law-terms might, therefore, be expected from the plays written by these dramatists; yet it may safely be asserted, that from Shakespeare's thirty-seven plays at least twice as many passages marked by legal phraseology might be produced, as from the fifty-four written by Beaumont and Fletcher, together or alone! a fact the great significance of which is heightened by another,—that it is only the vocabulary of the law to the use of which Shakespeare exhibits this proclivity. He avails himself, it is true, of the peculiar language of the physician, the divine, the husbandman, the soldier, and the sailor; but he uses these only on very rare occasions, by way of description, comparison, or illustration, when something in the scene or the subject in hand suggests them. But the technical language of the law runs from his pen as part of his vocabulary and parcel of his thought. The word "purchase," for instance, which in ordinary use means to acquire by giving value, in law applies to all legal modes of obtaining property, except inheritance of descent. And the word in this peculiar and most technical sense occurs five times in Shakespeare's thirty-seven plays, but only in a

single passage (if our memory and Mr. Dyce's notes serve us) in the fifty-four plays of Beaumont and Fletcher. Equal, or greater, is the comparative frequency with which Shakespeare uses other legal phrases; and much wider is the disparity, in this regard, between him and the other dramatic writers of his whole period,—Marlowe, Greene, Peele, Kyd, Lilly, Chapman, Jonson, Middleton, Marston, Ford, Webster, Massinger, and the undistinguished crowd.

These facts dispose in great measure of the plausible suggestion, which has been made,—that, as the courts of law in Shakespeare's time occupied public attention much more than they do at present, they having then regulated "the season," as the sittings of Parliament (not then frequent or stated) do now,[F] they would naturally be frequented by the restless, inquiring spirits of the time, Shakespeare among them, and that there he and his fellow-dramatists picked up the law-phrases which they wove into their plays and poems. But if this view of the case were the correct one, we should not find that disparity in the use of legal phrases which we have just remarked. Shakespeare's genius would manifest itself in the superior effect with which he used knowledge acquired in this manner; but his *genius* would not have led him to choose the dry and affected phraseology of the law as the vehicle of his flowing thought, and to use it so much oftener than any other of the numerous dramatists of his time, to all of whom the courts were as open as to him. And the suggestion which we are now considering fails in two other most important respects. For we do not find either that Shakespeare's use of legal phrases increased with his opportunities of frequenting the courts of law, or that the law-phrases, his use of which is most noteworthy and of most importance in the consideration of the question before us, are those which he would have heard oftenest in the course of the ordinary business of the courts in his day. To look at the latter point first,—the law-terms used by Shakespeare are generally not those which he would have heard in ordinary trials at *nisi prius* or before the

King's Bench, but such as refer to the tenure or transfer of real property, "fine and recovery," "statutes," "purchase," "indenture," "tenure," "double voucher," "fee simple," "fee farm," "remainder," "reversion," "dower," "forfeiture," etc., etc.; and it is important to remember that suits about the title to real estate are very much rarer in England than they are with us, and in England were very much rarer in Shakespeare's time than they are now. Here we buy and sell houses and lands almost as we trade in corn and cotton; but in England the transfer of the title of a piece of real estate of any consequence is a serious and comparatively rare occurrence, that makes great work for attorneys and conveyancing counsel; and two hundred and fifty years ago the facilities in this respect were very much less than they are now. Shakespeare could hardly have picked up his conveyancer's jargon by hanging round the courts of law; and we find,—to return to the first objection,—that, in his early plays, written just after he arrived in London, he uses this peculiar phraseology just as freely and with as exact a knowledge as he displayed in after years, when (on the supposition in question) he must have become much more familiar with it. Shakespeare's earliest work that has reached us is, doubtless, to be found in "King Henry the Sixth," "The Comedy of Errors," and "Love's Labor's Lost." In the very earliest form of Part II. of the first-named play, ("The First Part of the Contention betwixt the two Houses of York and Lancaster," to which Shakespeare was doubtless a contributor, the part of Cade being among his contributions,) we find him making Cade declare, (Act iv. Sc. 7,) "Men shall hold of me *in capite*; and we charge and command that wives be *as free as heart can wish or tongue can tell*." Both the phrases that we have italicized express tenures, and very uncommon tenures of land. In the "Comedy of Errors," when Dromio of Syracuse says, "There's no time for a man to recover his hair that grows bald by nature," [Hear, O Rowland! and give ear, O Phalon!] his master replies, "May he not do it by *fine and recovery*?" Fine and recovery was a process by which, through a fictitious

suit, a transfer was made of the title in an entailed estate. In "Love's Labor's Lost," almost without a doubt the first comedy that Shakespeare wrote, on Boyet's offering to kiss Maria, (Act ii. Sc. 1,) she declines the salute, and says, "My lips are no common, though several they be." This passage—an important one for his purpose—Lord Campbell has passed by, as he has some others of nearly equal consequence. Maria's allusion is plainly to tenancy in common by several (i.e., divided, distinct) title. (See Coke upon Littleton, Lib. iii. Cap. iv. Sec. 292.) She means, that her lips are several as being two, and (as she says in the next line) as belonging in common to her fortunes and herself,—yet they were no common pasture.

[Footnote F: Falstaff, for instance, speaks of "the wearing out of six fashions, which is four terms or two actions."]

Here, then, is Shakespeare using the technical language of conveyancers in his earliest works, and before he had had much opportunity to haunt the courts of law in London, even could he have made such legal acquirements in those schools. We find, too, that he uses law-terms in general with frequency notably greater—in an excess of three or four to one—than any of the other playwrights of his day, when so many playwrights were or had been Noverints or of the Inns of Court; that this excess is not observable with regard to his use of the vocabulary peculiar to any other occupation or profession, even that of the actor, which we know that he practised for many years; but that, on the contrary, although he uses other technical language correctly, he avails himself of that of any single art of occupation with great rarity, and only upon special occasions. Lord Campbell remarks, as to the correctness with which Shakespeare uses legal phrases,—and this is a point upon which his Lordship speaks with authority,—that he is amazed "by the accuracy and propriety with which they are introduced," and in another place adds, that Shakespeare "uniformly lays down good law"; and it is not necessary to be a Chief Justice of the Queen's Bench to

know that his Lordship is fully justified in assuring us that "there is nothing [of the kind (?)] so dangerous as for one not of the craft to tamper with our free-masonry." Remembering, then, that genius, though it reveals general and even particular truths, and facilitates all acquirement, does not impart facts or the knowledge of technical terms, in what manner can we answer or set aside the question that we have partly stated before,—How did it happen, that, in an age when it was a common practice for young attorneys and barristers to leave their profession and take to writing plays and poems, one playwright left upon his works a stronger, clearer, sharper legal stamp than we can detect upon those of any other, and that he used the very peculiar and, to a layman, incomprehensible language of the law of real property, as it then existed, in his very earliest plays, written soon after he, a raw, rustic youth, bred in a retired village, arrived in London? How did it happen that this playwright fell into the use of that technical phraseology, the proper employment of which, more than any other, demands special training, and that he availed himself of it with apparent unconsciousness, not only so much oftener than any of his contemporaries, but with such exact knowledge, that one who has passed a long life in the professional employment of it, speaking as it were officially from the eminent position which he has won,—Lord Campbell,—declares, that,

"While novelists and dramatists are constantly making mistakes as to the law of marriage, of wills, and of inheritance, to Shakespeare's law, lavishly as he propounds it, there can neither be demurrer, nor bill of exceptions, nor writ of error"?

Must we believe, that the man, who, among all the lawyer-playwrights of his day, showed,—not, be it noticed, (as we are at present regarding his works,) the profoundest knowledge of the great principles of law and equity, although he did that too,—but the most complete mastery of the technical phrases, the jargon, of the law and of its most abstruse branch,—

that relating to real estate,—and who used it very much the oftenest of them all, and with an air of as entire unconsciousness as if it were a part of the language of his daily life, making no mistakes that can be detected by a learned professional critic,—must we believe that this man was distinguished among those play-writing lawyers, not only by his genius, but his *lack* of particular acquaintance with the law? Or shall we rather believe that the son of the High Bailiff of Stratford, whose father was well-to-do in the world, and who was a somewhat clever lad and ambitious withal, was allowed to commence his studies for a profession for which his cleverness fitted him and by which he might reasonably hope to rise at least to moderate wealth and distinction, and that he continued these studies until his father's loss of property, aided, perhaps, by some of those acts of youthful indiscretion which clever lads as well as dull ones sometimes will commit, threw him upon his own resources,—and that then, having townsmen, perhaps fellow-students and playfellows, among the actors in London, and having used his pen, as we may be sure he had, for other purposes than engrossing and drawing precedents, he, like so many others of his time, left his trade of Noverint and went up to the metropolis to busy himself with endeavors of art? One of these conclusions is in the face of reason, probability, and fact; the other in accordance with them all.

* * * * *

But of how little real importance is it to establish the bare fact, that Shakespeare was an attorney's clerk before he was an actor! Suppose it proved, beyond a doubt,—what have we learned? Nothing peculiar to Shakespeare; but merely what was equally true of thousands of other young men, his contemporaries, and hundreds of thousands, if not millions, of those of antecedent and succeeding generations. It has a naked material relation to the other fact, that he uses legal phrases oftener than any other dramatist or poet; but with his plastic power over those grotesque and

rugged modes of speech it has nought to do whatever. That was his inborn mastery. Legal phrases did nothing for him; but he much for them. Chance cast their uncouth forms around him, and the golden overflow from the furnace of his glowing thought fell upon them, glorifying and enshielding them forever. It would have been the same with the lumber of any other craft; it was the same with that of many others,—the difference being only of quantity, and not of kind. How, then, would the certainty that he had been bred to the law help us to the knowledge of Shakespeare's life, of what he did for himself, thought for himself, how he joyed, how he suffered, what he was? Would it help us to know what the Stratford boys thought of him and felt toward him who was to write "Lear" and "Hamlet," or how the men of London regarded him who was a-writing them? Not a whit. To prove the fact would merely satisfy sheer aimless, fruitless curiosity; and it is a source of some reasonable satisfaction to know that the very people who would be most interested in the perusal of a biography of Shakespeare made up of the relation of such facts are they who have least right to know anything about him. Of the hundreds of thousands of people who giggled through their senseless hour at the "American Cousin,"—a play which, in language, in action, in character, presents no semblance to human life or human creatures, as they are found on any spot under the canopy, and which seems to have been written on the model of the Interlude of "Pyramus and Thisbe," "for, in all the play, there is not one word apt, one player fitted,"—of the people to whom this play owed its monstrous success, and who, for that very reason, it is safe to say, think Shakespeare a bore on the stage and off it, a goodly number would eagerly buy and read a book that told them when he went to bed and what he had for breakfast, and would pay a ready five-cent piece for a picture of him as he appeared in the attorney's office, to preserve as a companion to the equally veritable "portrait of the Hon. Daniel E. Sickles, as he appeared in prison." Nay, it must be confessed, that there are some Shakespearean enthusiasts ever dabbling and gabbling about

what they call Shakespeariana, who would give more for the pen with which he engrossed a deed or wrote "Hamlet," than for the ability to understand, better than they do or ever can, what he meant by that mysterious tragedy. Biography has its charms and its uses; but it is not by what we know of their bare external facts that

"Lives of great men all remind us
We can make our lives sublime,
And departing leave behind us
Footprints on the sands of time."

What the readers of Shakespeare, who are worthy to know aught of him, long to know, would have been the same, had he been bred lawyer, physician, soldier, or sailor. It is of his real life, not of its mere accidents, that they crave a knowledge; and of that life, it is to be feared, they will remain forever ignorant, unless he himself has written it.

THE MINISTER'S WOOING.

[Continued.]

CHAPTER XVI.

We suppose the heroine of a novel, among other privileges and immunities, has a prescriptive right to her own private boudoir, where, as a French writer has it, "she appears like a lovely picture in its frame."

Well, our little Mary is not without this luxury, and to its sacred precincts we will give you this morning a ticket of admission. Know, then, that the garret of this gambrel-roofed cottage had a projecting window on the seaward side, which opened into an immensely large old apple-tree, and was a look-out as leafy and secluded as a robin's nest.

Garrets are delicious places in any case, for people of thoughtful, imaginative temperament. Who has not loved a garret in the twilight days of childhood, with its endless stores of quaint, cast-off, suggestive antiquity,—old worm-eaten chests,—rickety chairs,—boxes and casks full of odd comminglings, out of which, with tiny, childish hands, we fished wonderful hoards of fairy treasure? What peep-holes, and hiding-places, and undiscoverable retreats we made to ourselves,—where we sat rejoicing in our security, and bidding defiance to the vague, distant cry which

summoned us to school, or to some unsavory every-day task! How deliciously the rain came pattering on the roof over our head, or the red twilight streamed in at the window, while we sat snugly ensconced over the delirious pages of some romance, which careful aunts had packed away at the bottom of all things, to be sure we should never read it! If you have anything, beloved friends, which you wish your Charley or your Susie to be sure and read, pack it mysteriously away at the bottom of a trunk of stimulating rubbish, in the darkest corner of your garret;—in that case, if the book be at all readable, one that by any possible chance can make its way into a young mind, you may be sure that it will not only be read, but remembered to the longest day they have to live.

Mrs. Katy Scudder's garret was not an exception to the general rule. Those quaint little people who touch with so airy a grace all the lights and shadows of great beams, bare rafters, and unplastered walls, had not failed in their work there. Was there not there a grand easy-chair of stamped-leather, minus two of its hinder legs, which had genealogical associations through the Wilcoxes with the Vernons and through the Vernons quite across the water with Old England? and was there not a dusky picture, in an old tarnished frame, of a woman of whose tragic end strange stories were whispered,—one of the sufferers in the time when witches were unceremoniously helped out of the world, instead of being, as now-a-days, helped to make their fortune in it by table-turning?

Yes, there were all these things, and many more which we will not stay to recount, but bring you to the boudoir which Mary has constructed for herself around the dormer-window which looks into the whispering old apple-tree.

The inclosure was formed by blankets and bed-spreads, which, by reason of their antiquity, had been pensioned off to an undisturbed old age in the

garret,—not *common* blankets or bed-spreads, either,—bought, as you buy yours, out of a shop,—spun or woven by machinery, without individuality or history. Every one of these curtains had its story. The one on the right, nearest the window, and already falling into holes, is a Chinese linen, and even now displays unfaded, quaint patterns of sleepy-looking Chinamen, in conical hats, standing on the leaves of most singular herbage, and with hands forever raised in act to strike bells, which never are struck and never will be till the end of time. These, Mrs. Katy Scudder had often instructed Mary, were brought from the Indies by her great-great-grandfather, and were her grandmother's wedding-curtains,—the grandmother who had blue eyes like hers and was just about her height.

The next spread was spun and woven by Mrs. Katy's beloved Aunt Eunice,—a mythical personage, of whom Mary gathered vague accounts that she was disappointed in love, and that this very article was part of a bridal outfit, prepared in vain, against the return of one from sea, who never came back,—and she heard of how she sat wearily and patiently at her work, this poor Aunt Eunice, month after month, starting every time she heard the gate shut, every time she heard the tramp of a horse's hoof, every time she heard the news of a sail in sight,—her color, meanwhile, fading and fading as life and hope bled away at an inward wound,—till at last she found comfort and reunion beyond the veil.

Next to this was a bed-quilt pieced in tiny blocks, none of them bigger than a sixpence, containing, as Mrs. Katy said, pieces of the gowns of all her grandmothers, aunts, cousins, and female relatives for years back,—and mated to it was one of the blankets which had served Mrs. Scudder's uncle in his bivouac at Valley Forge, when the American soldiers went on the snows with bleeding feet, and had scarce anything for daily bread except a morning message of patriotism and hope from George Washington.

Such were the memories woven into the tapestry of our little boudoir. Within, fronting the window, stands the large spinning-wheel, one end adorned with a snowy pile of fleecy rolls,—and beside it, a reel and a basket of skeins of yarn,—and open, with its face down on the beam of the wheel, lay always a book, with which the intervals of work were beguiled.

The dusky picture of which we have spoken hung against the rough wall in one place, and in another appeared an old engraved head of one of the Madonnas of Leonardo da Vinci, a picture which to Mary had a mysterious interest, from the fact of its having been cast on shore after a furious storm, and found like a waif lying in the sea-weed; and Mrs. Marvyn, who had deciphered the signature, had not ceased exploring till she found for her, in an Encyclopaedia, a life of that wonderful man, whose greatness enlarges our ideas of what is possible to humanity,—and Mary, pondering thereon, felt the Sea-worn picture as a constant vague inspiration.

Here our heroine spun for hours and hours,—with intervals, when, crouched on a low seat in the window, she pored over her book, and then, returning again to her work, thought of what she had read to the lulling burr of the sounding wheel.

By chance a robin had built its nest so that from her retreat she could see the five little blue eggs, whenever the patient brooding mother left them for a moment uncovered. And sometimes, as she sat in dreamy reverie, resting her small, round arms on the window-sill, she fancied that the little feathered watcher gave her familiar nods and winks of a confidential nature,—cocking the small head first to one side and then to the other, to get a better view of her gentle human neighbor.

I dare say it seems to you, reader, that we have travelled, in our story, over a long space of time, because we have talked so much and introduced so many personages and reflections; but, in fact, it is only Wednesday week

since James sailed, and the eggs which were brooded when he went are still unhatched in the nest, and the apple-tree has changed only in having now a majority of white blossoms over the pink buds.

This one week has been a critical one to our Mary;—in it, she has made the great discovery, that she loves; and she has made her first step into the gay world; and now she comes back to her retirement to think the whole over by herself. It seems a dream to her, that she who sits there now reeling yarn in her stuff petticoat and white short-gown is the same who took the arm of Colonel Burr amid the blaze of wax-lights and the sweep of silks and rustle of plumes. She wonders dreamily as she remembers the dark, lovely face of the foreign Madame, so brilliant under its powdered hair and flashing gems,—the sweet, foreign accents of the voice,—the tiny, jewelled fan, with its glancing pictures and sparkling tassels, whence exhaled vague and floating perfumes; then she hears again that manly voice, softened to tones so seductive, and sees those fine eyes with the tears in them, and wonders within herself that *he* could have kissed her hand with such veneration, as if she had been a throned queen.

But here the sound of busy, pattering footsteps is heard on the old, creaking staircase, and soon the bows of Miss Prissy's bonnet part the folds of the boudoir drapery, and her merry, May-day face looks in.

"Well, really, Mary, how do you do, to be sure? You wonder to see me, don't you? but I thought I must just run in, a minute, on my way up to Miss Marvyn's. I promised her at least a half-a-day, though I didn't see how I was to spare it,—for I tell Miss Wilcox I just run and run till it does seem as if my feet would drop off; but I thought I must just step in to say, that I, for my part, *do admire* the Doctor more than ever, and I was telling your mother we mus'n't mind too much what people say. I 'most made Miss Wilcox angry, standing up for him; but I put it right to her, and says I, 'Miss

Wilcox, you know folks *must* speak what's on their mind,—in particular, ministers must; and you know, Miss Wilcox,' I says, 'that the Doctor is a good man, and lives up to his teaching, if anybody in this world does, and gives away every dollar he can lay hands on to those poor negroes, and works over 'em and teaches 'em as if they were his brothers'; and says I, 'Miss Wilcox, you know I don't spare myself, night nor day, trying to please you and do your work to give satisfaction; but when it comes to my conscience,' says I, 'Miss Wilcox, you know I always must speak out, and if it was the last word I had to say on my dying bed, I'd say that I think the Doctor is right.' Why! what things he told about the slave-ships, and packing those poor creatures so that they couldn't move nor breathe!—why, I declare, every time I turned over and stretched in bed, I thought of it;—and says I, 'Miss Wilcox, I do believe that the judgments of God will come down on us, if something a'n't done, and I shall always stand by the Doctor,' says I;—and, if you'll believe me, just then I turned round and saw the General; and the General, he just haw-hawed right out, and says he, 'Good for you, Miss Prissy! that's real grit,' says he, 'and I like you better for it.'—Laws," added Miss Prissy, reflectively, "I sha'n't lose by it, for Miss Wilcox knows she never can get anybody to do the work for her that I will."

"Do you think," said Mary, "that there are a great many made angry?"

"Why, bless your heart, child, haven't you heard?—Why, there never was such a talk in all Newport. Why, you know Mr. Simeon Brown is gone clear off to Dr. Stiles; and Miss Brown, I was making up her plum-colored satin o' Monday, and you ought to 'a' heard her talk. But, I tell you, I fought her. She used to talk to me," said Miss Prissy, sinking her voice to a mysterious whisper, "'cause I never could come to it to say that I was willin' to be lost, if it was for the glory of God; and she always told me folks could just bring their minds right up to anything they knew they must; and I just got the tables turned on her, for they talked and abused the Doctor till they fairly

wore me out, and says I, 'Well, Miss Brown, I'll give in, that you and Mr. Brown *do* act up to your principles; you certainly *act* as if you were willing to be damned';—and so do all those folks who will live on the blood and groans of the poor Africans, as the Doctor said; and I should think, by the way Newport people are making their money, that they were all pretty willing to go that way,—though, whether it's for the glory of God, or not, I'm doubting.—But you see, Mary," said Miss Prissy, sinking her voice again to a solemn whisper, "I never was *clear* on that point; it always did seem to me a dreadful high place to come to, and it didn't seem to be given to me; but I thought, perhaps, if it *was* necessary, it would be given, you know,—for the Lord always has been so good to me that I've faith to believe that, and so I just say, 'The Lord is my shepherd, I shall not want';—and Miss Prissy hastily whisked a little drop out of her blue eye with her handkerchief.

At this moment, Mrs. Scudder came into the boudoir with a face expressive of some anxiety.

"I suppose Miss Prissy has told you," she said, "the news about the Browns. That'll make a great falling off in the Doctor's salary; and I feel for him, because I know it will come hard to him not to be able to help and do, especially for these poor negroes, just when he will. But then we must put everything on the most economical scale we can, and just try, all of us, to make it up to him. I was speaking to Cousin Zebedee about it, when he was down here, on Monday, and he is all clear;—he has made out free papers for Candace and Cato and Dinah, and they couldn't, one of 'em, be hired to leave him; and he says, from what he's seen already, he has no doubt but they'll do enough more to pay for their wages."

"Well," said Miss Prissy, "I haven't got anybody to care for but myself. I was telling sister Elizabeth, one time, (she's married and got four children,)

that I could take a storm a good deal easier than she could, 'cause I hadn't near so many sails to pull down; and now, you just look to me for the Doctor's shirts, 'cause, after this, they shall all come in ready to put on, if I have to sit up till morning. And I hope, Miss Scudder, you can trust me to make them; for if I do say it myself, I a'n't afraid to do fine stitching 'longside of anybody,—and hemstitching ruffles, too; and I haven't shown you yet that French stitch I learned of the nuns;—but you just set your heart at rest about the Doctor's shirts. I always thought," continued Miss Prissy, laughing, "that I should have made a famous hand about getting up that tabernacle in the wilderness, with the blue and the purple and fine-twined linen; it's one of my favorite passages, that is;—different things, you know, are useful to different people."

"Well," said Mrs. Scudder, "I see that it's our call to be a remnant small and despised, but I hope we sha'n't shrink from it. I thought, when I saw all those fashionable people go out Sunday, tossing their heads and looking so scornful, that I hoped grace would be given me to be faithful."

"And what does the Doctor say?" said Miss Prissy.

"He hasn't said a word; his mind seems to be very much lifted above all these things."

"La, yes," said Miss Prissy, "that's one comfort; he'll never know where his shirts come from; and besides that, Miss Scudder," she said, sinking her voice to a whisper, "as you know, I haven't any children to provide for,—though I was telling Elizabeth t'other day, when I was making up frocks for her children, that I believed old maids, first and last, did more providing for children than married women; but still I do contrive to slip away a pound-note, now and then, in my little old silver teapot that was given to me when they settled old Mrs. Simpson's property, (I nursed her all through her last

sickness, and laid her out with my own hands,) and, as I was saying, if ever the Doctor should want money, you just let me know."

"Thank you, Miss Prissy," said Mrs. Scudder; "we all know where your heart is."

"And now," added Miss Prissy, "what do you suppose they say? Why, they say Colonel Burr is struck dead in love with our Mary; and you know his wife's dead, and he's a widower; and they do say that he'll get to be the next President. Sakes alive! Well, Mary must be careful, if she don't want to be carried off; for they do say that there can't any woman resist him, that sees enough of him. Why, there's that poor French woman, Madame—— what do you call her, that's staying with the Vernons?—they say she's over head and ears in love with him."

"But she's a married woman," said Mary; "it can't be possible!"

Mrs. Scudder looked reprovably at Miss Prissy, and for a few moments there was great shaking of heads and a whispered conference between the two ladies, ending in Miss Prissy's going off, saying, as she went downstairs,—

"Well, if women will do so, I, for my part, can't blame the men."

In a few moments Miss Prissy rushed back as much discomposed as a clucking hen who has seen a hawk.

"Well, Miss Scudder, what do you think? Here's Colonel Burr come to call on the ladies!"

Mrs. Scudder's first movement, in common with all middle-aged gentlewomen, was to put her hand to her head and reflect that she had not

on her best cap; and Mary looked down at her dimpled hands, which were blue from the contact with mixed yarn she had just been spinning.

"Now I'll tell you what," said Miss Prissy,— "wasn't it lucky you had me here? for I first saw him coming in at the gate, and I whipped in quick as a wink and opened the best-room window-shutters, and then I was back at the door, and he bowed to me as if I'd been a queen, and says he, 'Miss Prissy, how fresh you're looking this morning!' You see, I was in working at the Vernons', but I never thought as he'd noticed me. And then he inquired in the handsomest way for the ladies and the Doctor, and so I took him into the parlor and settled him down, and then I ran into the study, and you may depend upon it I flew round lively for a few minutes. I got the Doctor's study-gown off, and got his best coat on, and put on his wig for him, and started him up kinder lively,—you know it takes me to get him down into this world,—and so there he's in talking with him; and so you can just slip down and dress yourselves,—easy as not."

Meanwhile Colonel Burr was entertaining the simple-minded Doctor with all the grace of a young neophyte come to sit at the feet of superior truth. There are some people who receive from Nature as a gift a sort of graceful facility of sympathy, by which they incline to take on, for the time being, the sentiments and opinions of those with whom they converse, as the chameleon was fabled to change its hue with every surrounding. Such are often supposed to be wilfully acting a part, as exerting themselves to flatter and deceive, when in fact they are only framed so sensitive to the sphere of mental emanation which surrounds others that it would require an exertion not in some measure to harmonize with it. In approaching others in conversation, they are like a musician who joins a performer on an instrument,—it is impossible for them to strike a discord; their very nature urges them to bring into play faculties according in vibration with those which another is exerting. It was as natural as possible for Burr to

commence talking with the Doctor on scenes and incidents in the family of President Edwards, and his old tutor, Dr. Bellamy,—and thence to glide on to the points of difference and agreement in theology, with a suavity and deference which acted on the good man like a June sun on a budding elm-tree. The Doctor was soon wide awake, talking with fervent animation on the topic of disinterested benevolence,—Burr the mean while studying him with the quiet interest of an observer of natural history, who sees a new species developing before him. At all the best possible points he interposed suggestive questions, and set up objections in the quietest manner for the Doctor to knock down, smiling ever the while as a man may who truly and genuinely does not care a sou for truth on any subject not practically connected with his own schemes in life. He therefore gently guided the Doctor to sail down the stream of his own thoughts till his bark glided out into the smooth waters of the Millennium, on which, with great simplicity, he gave his views at length.

It was just in the midst of this that Mary and her mother entered. Burr interrupted the conversation to pay them the compliments of the morning,—to inquire for their health, and hope they suffered no inconvenience from their night-ride from the party; then, seeing the Doctor still looking eager to go on, he contrived with gentle dexterity to tie again the broken thread of conversation.

"Our excellent friend," he said, "was explaining to me his views of a future Millennium. I assure you, ladies, that we sometimes find ourselves in company which enables us to believe in the perfectibility of the human species. We see family retreats, so unaffected, so charming in their simplicity, where industry and piety so go hand in hand! One has only to suppose all families such, to imagine a Millennium."

There was no disclaiming this compliment, because so delicately worded, that, while perfectly clear to the internal sense, it was, in a manner, veiled and unspoken.

Meanwhile, the Doctor, who sat ready to begin where he left off, turned to his complaisant listener and resumed an exposition of the Apocalypse.

"To my mind, it is certain," he said, "as it is now three hundred years since the fifth vial was poured out, there is good reason to suppose that the sixth vial began to be poured out at the beginning of the last century, and has been running for a hundred years or more, so that it is run nearly out; the seventh and last vial will begin to run early in the next century."

"You anticipate, then, no rest for the world for some time to come?" said Burr.

"Certainly not," said the Doctor, definitively; "there will be no rest from overturnings till He whose right it is shall come.

"The passage," he added, "concerning the drying up of the river Euphrates, under the sixth vial, has a distinct reference, I think, to the account in ancient writers of the taking of Babylon, and prefigures, in like manner, that the resources of that modern Babylon, the Popish power, shall continue to be drained off, as they have now been drying up for a century or more, till, at last, there will come a sudden and final downfall of that power. And after that will come the first triumphs of truth and righteousness,—the marriage-supper of the Lamb."

"These investigations must undoubtedly possess a deep interest for you, Sir," said Burr; "the hope of a future as well as the tradition of a past age of gold seems to have been one of the most cherished conceptions of the human breast."

"In those times," continued the Doctor, "the whole earth will be of one language."

"Which language, Sir, do you suppose will be considered worthy of such preeminence?" inquired his listener.

"That will probably be decided by an amicable conference of all nations," said the Doctor; "and the one universally considered most valuable will be adopted; and the literature of all other nations being translated into it, they will gradually drop all other tongues. Brother Stiles thinks it will be the Hebrew. I am not clear on that point. The Hebrew seems to me too inflexible, and not sufficiently copious. I do not think," he added, after some consideration, "that it will be the Hebrew tongue."

"I am most happy to hear it, Sir," said Burr, gravely; "I never felt much attracted to that language. But, ladies," he added, starting up with animation, "I must improve this fine weather to ask you to show me the view of the sea from this little hill beyond your house, it is evidently so fine;—I trust I am not intruding too far on your morning?"

"By no means, Sir," said Mrs. Scudder, rising; "we will go with you in a moment."

And soon Colonel Burr, with one on either arm, was to be seen on the top of the hill beyond the house,—the very one from which Mary, the week before, had seen the retreating sail we all wot of. Hence, though her companion contrived, with the adroitness of a practised man of gallantry, to direct his words and looks as constantly to her as if they had been in a *tête-a-tête*, and although nothing could be more graceful, more delicately flattering, more engaging, still the little heart kept equal poise; for where a true love has once bolted the door, a false one serenades in vain under the window.

Some fine, instinctive perceptions of the real character of the man beside her seemed to have dawned on Mary's mind in the conversation of the morning;—she had felt the covert and subtile irony that lurked beneath his polished smile, felt the utter want of faith or sympathy in what she and her revered friend deemed holiest, and therefore there was a calm dignity in her manner of receiving his attentions which rather piqued and stimulated his curiosity. He had been wont to boast that he could subdue any woman, if he could only see enough of her; in the first interview in the garden, he had made her color come and go and brought tears to her eyes in a manner that interested his fancy, and he could not resist the impulse to experiment again. It was a new sensation to him, to find himself quietly studied and calmly measured by those thoughtful blue eyes; he felt, with his fine, instinctive tact, that the soul within was infolded in some crystalline sphere of protection, transparent, but adamant, so that he could not touch it. What was that secret poise, that calm, immutable centre on which she rested, that made her, in her rustic simplicity, so unapproachable and so strong?

Burr remembered once finding in his grandfather's study, among a mass of old letters, one in which that great man, in early youth, described his future wife, then known to him only by distant report. With his keen natural sense of everything fine and poetic, he had been struck with this passage, as so beautifully expressing an ideal womanhood, that he had in his earlier days copied it in his private *recueil*.

"They say," it ran, "that there is a young lady who is beloved of that Great Being who made and rules the world, and that there are certain seasons in which this Great Being, in some way or other invisible, comes to her and fills her mind with such exceeding sweet delight, that she hardly cares for anything except to meditate on him; that she expects, after a while, to be received up where he is, to be raised up out of the world and caught

up into heaven, being assured that he loves her too well to let her remain at a distance from him always. Therefore, if you present all the world before her, with the richest of its treasures, she disregards it. She has a strange sweetness in her mind, and singular purity in her affections; and you could not persuade her to do anything wrong or sinful, if you should give her all the world. She is of a wonderful sweetness, calmness, and universal benevolence of mind, especially after this great God has manifested himself to her mind. She will sometimes go from place to place singing sweetly, and seems to be always full of joy and pleasure; and no one knows for what. She loves to be alone, walking in fields and groves, and seems to have some invisible one always conversing with her."

A shadowy recollection of this description crossed his mind more than once, as he looked into those calm and candid eyes. Was there, then, a truth in that inner union of chosen souls with God, of which his mother and her mother before her had borne meek witness,—their souls shining out as sacred lamps through the alabaster walls of a temple?

But then, again, had he not logically met and demonstrated, to his own satisfaction, the nullity of the religious dogmas on which New England faith was based? There could be no such inner life, he said to himself,—he had demonstrated it as an absurdity. What was it, then,—this charm, so subtle and so strong, by which this fair child, his inferior in age, cultivation, and knowledge of the world, held him in a certain awe, and made him feel her spirit so unapproachable? His curiosity was piqued. He felt stimulated to employ all his powers of pleasing. He was determined, that, sooner or later, she should feel his power.

With Mrs. Scudder his success was immediate, she was completely won over by the deferential manner with which he constantly referred himself to

her matronly judgments, and, on returning to the house, she warmly pressed him to stay to dinner.

Burr accepted the invitation with a frank and almost boyish *abandon*, declaring that he had not seen anything, for years, that so reminded him of old times. He praised everything at table,—the smoking brown-bread, the baked beans steaming from the oven, where they had been quietly simmering during the morning walk, and the Indian pudding, with its gelatinous softness, matured by long and patient brooding in the motherly old oven. He declared that there was no style of living to be compared with the simple, dignified order of a true New England home, where servants were excluded, and everything came direct from the polished and cultured hand of a lady. It realized the dreams of Arcadian romance. A man, he declared, must be unworthy the name, who did not rise to lofty sentiments and heroic deeds, when even his animal wants were provided for by the ministrations of the most delicate and exalted portion of the creation.

After dinner he would be taken into all the family interests. Gentle and pliable as oil, he seemed to penetrate every joint of the *ménage* by a subtile and seductive sympathy. He was interested in the spinning, in the weaving,—and in fact, nobody knows how it was done, but, before the afternoon shadows had turned, he was sitting in the cracked arm-chair of Mary's garret-boudoir, gravely giving judgment on several specimens of her spinning, which Mrs. Scudder had presented to his notice.

With that ease with which he could at will glide into the character of the superior and elder brother, he had, without seeming to ask questions, drawn from Mary an account of her reading, her studies, her acquaintances.

"You read French, I presume?" he said to her, with easy negligence.

Mary colored deeply, and then, as one who recollects one's self, answered, gravely,—

"No, Mr. Burr, I know no language but my own."

"But you should learn French, my child," said Burr, with that gentle dictatorship which he could at times so gracefully assume.

"I should be delighted to learn," said Mary, "but have no opportunity."

"Yes," said Mrs. Scudder,— "Mary has always had a taste for study, and would be glad to improve in any way."

"Pardon me, Madam, if I take the liberty of making a suggestion. There is a most excellent man, the Abbé Léfon, now in Newport, driven here by the political disturbances in France; he is anxious to obtain a few scholars, and I am interested that he should succeed, for he is a most worthy man."

"Is he a Roman Catholic?"

"He is, Madam; but there could be no manner of danger with a person so admirably instructed as your daughter. If you please to see him, Madam, I will call with him some time."

"Mrs. Marvyn will, perhaps, join me," said Mary. "She has been studying French by herself for some time, in order to read a treatise on astronomy, which she found in that language. I will go over to-morrow and see her about it."

Before Colonel Burr departed, the Doctor requested him to step a moment with him into his study. Burr, who had had frequent occasions during his life to experience the sort of paternal freedom which the clergy of his country took with him in right of his clerical descent, began to summon together his faculties of address for the avoidance of a kind of conversation which he was not disposed to meet. He was agreeably disappointed, however, when, taking a paper from the table, and presenting it to him, the Doctor said,—

"I feel myself, my dear Sir, under a burden of obligation for benefits received from your family, so that I never see a member of it without casting about in my own mind how I may in some measure express my good-will towards him. You are aware that the papers of your distinguished grandfather have fallen into my hands, and from them I have taken the liberty to make a copy of those maxims by which he guided a life which was a blessing to his country and to the world. May I ask the favor that you will read them with attention? and if you find anything contrary to right reason or sober sense, I shall be happy to hear of it on a future occasion."

"Thank you, Doctor," said Burr, bowing. "I shall always be sensible of the kindness of the motive which has led you to take this trouble on my account. Believe me, Sir, I am truly obliged to you for it."

And thus the interview terminated.

That night, the Doctor, before retiring, offered fervent prayers for the grandson of his revered master and friend, praying that his father's and mother's God might bless him and make him a living stone in the Eternal Temple.

Meanwhile, the object of these prayers was sitting by a table in dressing-gown and slippers, thinking over the events of the day. The paper which Dr. H. had handed him contained the celebrated "Resolutions" by which his ancestor led a life nobler than any mere dogmas can possibly be. By its side lay a perfumed note from Madame de Frontignac,—one of those womanly notes, so beautiful, so sacred in themselves, but so mournful to a right-minded person who sees whither they are tending. Burr opened and perused it,—laid it by,—opened the document that the Doctor had given, and thoughtfully read the first of the "Resolutions":—

"Resolved, That I will do whatsoever I think to be most to God's glory, and my own good profit and pleasure *in the whole of my duration*, without any consideration of time, whether now or never so many myriad ages hence.

"Resolved, To do whatever I think to be my duty and most for the good and advantage of mankind in general.

"Resolved, To do this, whatsoever difficulties I meet with, and how many and how great soever."

Burr read the whole paper through attentively once or twice, and paused thoughtfully over many parts of it. He sat for some time after, lost in reflection; the paper dropped from his hand, and then followed one of those long, deep seasons of fixed reverie, when the soul thinks by pictures and goes over endless distances in moments. In him, originally, every moral fatuity and sensibility was as keenly strung as in any member of that remarkable family from which he was descended, and which has, whether in good or ill, borne no common stamp. Two possible lives flashed before his mind at that moment, rapidly as when a train sweeps by with flashing lamps in the night. The life of worldly expediency, the life of eternal rectitude,—the life of seventy years, and that life eternal in which the event

of death is no disturbance. Suddenly he roused himself, picked up the paper, filed and dated it carefully, and laid it by; and in that moment was renewed again that governing purpose which sealed him, with all his beautiful capabilities, as the slave of the fleeting and the temporary, which sent him at last, a shipwrecked man, to a nameless, dishonored grave.

He took his pen and gave to a friend his own views of the events of the day.

"Mr. DEAR,——We are still in Newport, conjugating the verb *s'ennuyer*, which I, for one, have put through all the moods and tenses. *Pour passer le temps*, however, I have *la belle Française* and my sweet little Puritan. I visited there this morning. She lives with her mother, a little walk out toward the seaside, in a cottage quite prettily sequestered among blossoming apple-trees, and the great hierarch of modern theology, Dr. H., keeps guard over them. No chance here for any indiscretions, you see.

"By-the-by, the good Doctor astonished our *monde* here on Sunday last, by treating us to a solemn onslaught on slavery and the slave-trade. He had all the chief captains and counsellors to hear him, and smote them hip and thigh, and pursued them even unto Shur.

"He is one of those great, honest fellows, without the smallest notion of the world we live in, who think, in dealing with men, that you must go to work and prove the right or the wrong of a matter; just as if anybody cared for that! Supposing he is right,—which appears very probable to me,—what is he going to do about it? No moral argument, since the world began, ever prevailed over twenty-five per cent. profit.

"However, he is the spiritual director of *la belle Puritaine*, and was a resident in my grandfather's family, so I did the agreeable with him as well as such an uncircumcised Ishmaelite could. I discoursed theology,—sat with

the most docile air possible while he explained to me all the ins and outs in his system of the universe, past, present, and future,—heard him dilate calmly on the Millennium, and expound prophetic symbols, marching out before me his whole apocalyptic menagerie of beasts and dragons with heads and horns innumerable, to all which I gave edifying attention, taking occasion now and then to turn a compliment in favor of the ladies,—never lost, you know.

"Really, he is a worthy old soul, and actually believes all these things with his whole heart, attaching unheard-of importance to the most abstract ideas, and embarking his whole being in his ideal view of a grand Millennial *finale* to the human race. I look at him and at myself, and ask, Can human beings be made so unlike?

"My little Mary to-day was in a mood of 'sweet austere composure' quite becoming to her style of beauty; her *naïve nonchalance* at times is rather stimulating. What a contrast between her and *la belle Française!*—all the difference that there is between a diamond and a flower. I find the little thing has a cultivated mind, enriched by reading, and more by a still, quaint habit of thinking, which is new and charming. But a truce to this.

"I have seen our friends at last. We have had three or four meetings, and are waiting to hear from Philadelphia,—matters are getting in train. If Messrs. T. and S. dare to repeat what they said again, let me know; they will find in me a man not to be trifled with. I shall be with you in a week or ten days, at farthest. Meanwhile stand to your guns.

"Ever yours,

"BURR."

CHAPTER XVII.

The next morning, before the early dews had yet dried off the grass, Mary started to go and see her friend Mrs. Marvyn. It was one of those charming, invigorating days, familiar to those of Newport experience, when the sea lies shimmering and glittering in deep blue and gold, and the sky above is firm and cloudless, and every breeze that comes landward seems to bear health and energy upon its wings.

As Mary approached the house, she heard loud sounds of discussion from the open kitchen-door, and, looking in, saw a rather original scene acting.

Candace, armed with a long oven-shovel, stood before the open door of the oven, whence she had just been removing an army of good things which appeared ranged around on the dresser. Cato, in the undress of a red flannel shirt and tow-cloth trousers, was cuddled, in a consoled and protected attitude, in the corner of the wooden settle, with a mug of flip in his hand, which Candace had prepared, and, calling him in from his work, authoritatively ordered him to drink, on the showing that he had kept her awake the night before with his cough, and she was sure he was going to be sick. Of course, worse things may happen to a man than to be vigorously taken care of by his wife, and Cato had a salutary conviction of this fact, so that he resigned himself to his comfortable corner and his flip with edifying serenity.

Opposite to Candace stood a well-built, corpulent negro man, dressed with considerable care, and with the air of a person on excellent terms with himself. This was no other than Digo, the house-servant and factotum of Dr. Stiles, who considered himself as the guardian of his master's estate, his title, his honor, his literary character, his professional position, and his religious creed.

Digo was ready to assert before all the world, that one and all of these were under his special protection, and that whoever had anything to say to

the contrary of any of these must expect to take issue with him. Digo not only swallowed all his master's opinions whole, but seemed to have the stomach of an ostrich in their digestion. He believed everything, no matter what, the moment he understood that the Doctor held it. He believed that Hebrew was the language of heaven,—that the ten tribes of the Jews had reappeared in the North American Indians,—that there was no such thing as disinterested benevolence, and that the doings of the unregenerate had some value,—that slavery was a divine ordinance, and that Dr. H. was a radical, who did more harm than good,—and, finally, that there never was so great a man as Dr. Stiles; and as Dr. Stiles belonged to him in the capacity of master, why, he, Digo, owned the greatest man in America. Of course, as Candace held precisely similar opinions in regard to Dr. H., the two never could meet without a discharge of the opposite electricities. Digo had, it is true, come ostensibly on a mere worldly errand from his mistress to Mrs. Marvyn, who had promised to send her some turkeys' eggs, but he had inly resolved with himself that he would give Candace his opinion,—that is, what Dr. Stiles had said at dinner the day before about Doctor H.'s Sunday's discourse. Dr. Stiles had not heard it, but Digo had. He had felt it due to the responsibilities of his position to be present on so very important an occasion.

Therefore, after receiving his eggs, he opened hostilities by remarking, in a general way, that he had attended the Doctor's preaching on Sunday, and that there was quite a crowded house. Candace immediately began mentally to bristle her feathers like a hen who sees a hawk in the distance, and responded with decision:—

"Den you *heard* sometin', for once in your life!"

"I must say," said Digo, with suavity, "dat I can't give my 'proval to such sentiments."

"More shame for you," said Candace, grimly. "*You* a man, and not stan' by your color, and flunk under to mean white ways! Ef you was *half* a man, your heart would 'a' bounded like a cannon-ball at dat ar' sermon."

"Dr. Stiles and me we talked it over after church," said Digo,— "and de Doctor was of my 'pinion, dat Providence didn't intend"——

"Oh, you go long wid your Providence! Guess, ef white folks had let us alone, Providence wouldn't trouble us."

"Well," said Digo, "Dr. Stiles is clear dat dis yer's a-fulfillin' de prophecies and bringin' in de fulness of de Gentiles."

"Fulness of de fiddlesticks!" said Candace, irreverently. "Now what a way dat ar' is of talkin'! Go look at one o' dem ships we come over in,—sweatin' and groanin',—in de dark and dirt,—cryin' and dyin',—howlin' for breath till de sweat run off us,—livin' and dead chained together,—prayin' like de rich man in hell for a drop o' water to cool our tongues! Call dat ar' a-bringin' de fulness of de Gentiles, do ye? Ugh!"

And Candace ended with a guttural howl, and stood frowning and gloomy over the top of her long kitchen-shovel, like a black Bellona leaning on her spear of battle.

Digo recoiled a little, but stood too well in his own esteem to give up; so he shifted his attack.

"Well, for my part, I must say I never was 'clined to your Doctor's 'pinions. Why, now, Dr. Stiles says, notin' couldn't be more absurd dan what he says 'bout disinterested benevolence. *My* Doctor says, dere a'n't no such ting!"

"I should tink it's likely!" said Candace, drawing herself up with superb disdain. "*Our* Doctor knows dere *is*,—and why? 'cause he's got it IN HERE," said she, giving her ample chest a knock which resounded like the boom from a barrel.

"Candace," said Cato, gently, "you's gittin' too hot."

"Cato, you shut up!" said Candace, turning sharp round. "What did I make you dat ar' flip for, 'cept you was so hoarse you oughtn' for to say a word? Pootty business, you go to agitatin' _your_self wid dese yer! Ef you wear out your poor old throat talkin', you may get de 'sumption; and den what'd become o' me?"

Cato, thus lovingly pitched *hors-de-combat*, sipped the sweetened cup in quietness of soul, while Candace returned to the charge.

"Now, I tell ye what," she said to Digo,—"jest 'cause you wear your master's old coats and hats, you tink you must go in for all dese yer old, mean, white 'pinions. A'n't ye 'shamed—you, a black man—to have no more pluck and make cause wid de Egyptians? Now, 'ta'n't what my Doctor gives me,—he never giv' me the snip of a finger-nail,—but it's what he does for *mine*; and when de poor critturs lands dar, tumbled out like bales on de wharves, ha'n't dey seen his great cocked hat, like a lighthouse, and his big eyes lookin' sort o' pitiful at 'em, as ef he felt o' one blood wid 'em? Why, de very looks of de man is worth everyting; and who ever thought o' doin' anyting for deir souls, or cared ef dey had souls, till he begun it?"

"Well, at any rate," said Digo, brightening up, "I don't believe his doctrine about de doings of de unregenerate,—it's quite clear he's wrong dar."

"Who cares?" said Candace,— "generate or unregenerate, it's all one to me. I believe a man dat *acts* as he does. Him as stands up for de poor,—him as pleads for de weak,—he's my man. I'll believe straight through anyting he's a mind to put at me."

At this juncture, Mary's fair face appearing at the door put a stop to the discussion.

"Bress *you*, Miss Mary! comin' here like a fresh June rose! it makes a body's eyes dance in deir head! Come right in! I got Cato up from de lot, 'cause he's rader poorly dis mornin'; his cough makes me a sight o' concern; he's allers a-pullin' off his jacket de wrong time, or doin' sometin' I tell him not to,—and it just keeps him hack, hack, hackin', all de time."

During this speech, Cato stood meekly bowing, feeling that he was being apologized for in the best possible manner; for long years of instruction had fixed the idea in his mind, that he was an ignorant sinner, who had not the smallest notion how to conduct himself in this world, and that, if it were not for his wife's distinguishing grace, he would long since have been in the shades of oblivion.

"Missis is spinnin' up in de north chamber," said Candace; "but I'll run up and fetch her down."

Candace, who was about the size of a puncheon, was fond of this familiar manner of representing her mode of ascending the stairs; but Mary, suppressing a smile, said, "Oh, no, Candace! don't for the world disturb her. I know just where she is." And before Candace could stop her, Mary's light foot was on the top step of the staircase that led up from the kitchen.

The north room was a large chamber, overlooking a splendid reach of sea-prospect. A moving panorama of blue water and gliding sails was

unrolled before its three windows, so that stepping into the room gave one an instant and breezy sense of expansion. Mrs. Marvyn was standing at the large wheel, spinning wool,—a reel and basket of spools on her side. Her large brown eyes had an eager joy in them when Mary entered; but they seemed to calm down again, and she received her only with that placid, sincere air which was her habit. Everything about this woman showed an ardent soul, repressed by timidity and by a certain dumbness in the faculties of outward expression; but her eyes had, at times, that earnest, appealing language which is so pathetic in the silence of inferior animals.—One sometimes sees such eyes, and wonders whether the story they intimate will ever be spoken in mortal language.

Mary began eagerly detailing to her all that had interested her since they last met:—the party,—her acquaintance with Burr,—his visit to the cottage,—his inquiries into her education and reading,—and, finally, the proposal, that they should study French together.

"My dear," said Mrs. Marvyn, "let us begin at once;—such an opportunity is not to be lost. I studied a little with James, when he was last at home."

"With James?" said Mary, with an air of timid surprise.

"Yes,—the dear boy has become, what I never expected, quite a student. He employs all his spare time now in reading and studying;—the second mate is a Frenchman, and James has got so that he can both speak and read. He is studying Spanish, too."

Ever since the last conversation with her mother on the subject of James, Mary had felt a sort of guilty constraint when any one spoke of him;—instead of answering frankly, as she once did, when anything brought his name up, she fell at once into a grave, embarrassed silence.

Mrs. Marvyn was so constantly thinking of him, that it was difficult to begin on any topic that did not in some manner or other knit itself into the one ever present in her thoughts. None of the peculiar developments of the female nature have a more exquisite vitality than the sentiment of a frail, delicate, repressed, timid woman for a strong, manly, generous son. There is her ideal expressed; there is the out-speaking and out-acting of all she trembles to think, yet burns to say or do; here is the hero that shall speak for her, the heart into which she has poured hers, and that shall give to her tremulous and hidden aspirations a strong and victorious expression. "I have gotten a *man* from the Lord," she says to herself; and each outburst of his manliness, his vigor, his self-confidence, his superb vitality, fills her with a strange, wondering pleasure, and she has a secret tenderness and pride even in his wilfulness and waywardness. "What a creature he is!" she says, when he flouts at sober argument and pitches all received opinions hither and thither in the wild capriciousness of youthful paradox. She looks grave and reproving; but he reads the concealed triumph in her eyes,—he knows that in her heart she is full of admiration all the time. First love of womanhood is something wonderful and mysterious,—but in this second love it rises again, idealized and refined; she loves the father and herself united and made one in this young heir of life and hope.

Such was Mrs. Marvyn's still intense, passionate love for her son. Not a tone of his manly voice, not a flash of his dark eyes, not one of the deep, shadowy dimples that came and went as he laughed, not a ring of his glossy black hair, that was not studied, got by heart, and dwelt on in the inner shrine of her thoughts; he was the romance of her life. His strong, daring nature carried her with it beyond those narrow, daily bounds where her soul was weary of treading; and just as his voyages had given to the trite prose of her *ménage* a poetry of strange, foreign perfumes, of quaint objects of interest, speaking of many a far-off shore, so his mind and life were a constant channel of outreach through which her soul held converse with the

active and stirring world. Mrs. Marvyn had known all the story of her son's love, and to no other woman would she have been willing to resign him; but her love to Mary was so deep, that she thought of his union with her more as gaining a daughter than as losing a son. She would not speak of the subject; she knew the feelings of Mary's mother; and the name of James fell so often from her lips, simply because it was so ever-present in her heart that it could not be helped.

Before Mary left, it was arranged that they should study together, and that the lessons should be given alternately at each other's houses; and with this understanding they parted.

[To be continued.]

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THE PROFESSOR AT THE BREAKFAST-TABLE.

WHAT HE SAID, WHAT HE HEARD, AND WHAT HE SAW.

Our landlady's daughter is a young lady of some pretensions to gentility. She wears her bonnet well back on her head, which is known by all to be a mark of high breeding. She wears her trains very long, as the great ladies do in Europe. To be sure, their dresses are so made only to sweep the tapestried doors of châteaux and palaces; as those odious aristocrats of the other side do not go dragging through the mud in silks and satins, but, forsooth, must ride in coaches when they are in full dress. It is true, that, considering various habits of the American people, also the little accidents which the best-kept sidewalks are liable to, a lady who has swept a mile of them is not exactly in such a condition that one would care to be her neighbor. But then

there is no need of being so hard on these slight weaknesses of the poor, dear women as our little deformed gentleman was the other day.

—There are no such women as the Boston women, Sir,—he said. Forty-two degrees, north latitude, Rome, Sir, Boston, Sir! They had grand women in old Rome, Sir,—and the women bore such men-children as never the world saw before. And so it was here, Sir. I tell you, the revolution the Boston boys started had to run in woman's milk before it ran in man's blood, Sir!

But confound the make-believe women we have turned loose in our streets!—where do *they* come from? Not out of Boston parlors, I trust. Why, there isn't a beast or a bird that would drag its tail through the dirt in the way these creatures do their dresses. Because a queen or a duchess wears long robes on great occasions, a maid-of-all-work or a factory-girl thinks she must make herself a nuisance by trailing through the street, picking up and carrying about with her—pah! that's what I call getting vulgarity into your bones and marrow. Making believe be what you are not is the essence of vulgarity. Show over dirt is the one attribute of vulgar people. If any man can walk behind one of these women and see what she rakes up as she goes, and not feel squeamish, he has got a tough stomach. I wouldn't let one of 'em into my room without serving 'em as David served Saul at the cave in the wilderness,—cut off his skirts, Sir! cut off his skirts!

I suggested, that I had seen some pretty stylish ladies who offended in the way he condemned.

Stylish *women*, I don't doubt,—said the little gentleman.—Don't tell me that a true lady ever sacrifices the duty of keeping all about her sweet and clean to the wish of making a vulgar show. I won't believe it of a lady. There are some things that no fashion has any right to touch, and cleanliness is one of those things. If a woman wishes to show that her

husband or her father has got money, which she wants and means to spend, but doesn't know how, let her buy a yard or two of silk and pin it to her dress when she goes out to walk, but let her unpin it before she goes into the house;—there may be poor women that will think it worth disinfecting. It is an insult to a respectable laundress to carry such things into a house for her to deal with. I don't like the Bloomers any too well,—in fact, I never saw but one, and she—or he, or it—had a mob of boys after her, or whatever you call the creature, as if she had been a——

The little gentleman stopped short,—flushed somewhat, and looked round with that involuntary, suspicious glance which the subjects of any bodily misfortune are very apt to cast round them. His eye wandered over the company, none of whom, excepting myself and one other, had, probably, noticed the movement. They fell at last on Iris,—his next neighbor, you remember.

—We know in a moment, on looking suddenly at a person, if that person's eyes have been fixed on us. Sometimes we are conscious of it *before* we turn so as to see the person. Strange secrets of curiosity, of impertinence, of malice, of love, leak out in this way. There is no need of Mrs. Felix Lorraine's reflection in the mirror, to tell us that she is plotting evil for us behind our backs. We know it, as we know by the ominous stillness of a child that some mischief or other is going on. A young girl betrays, in a moment, that her eyes have been feeding on the face where you find them fixed, and not merely brushing over it with their pencils of blue or brown light.

A certain involuntary adjustment assimilates us, you may also observe, to that upon which we look. Roses redden the cheeks of her who stoops to gather them, and buttercups turn little people's chins yellow. When we look at a vast landscape, our chests expand as if we would enlarge to fill it.

When we examine a minute object, we naturally contract, not only our foreheads, but all our dimensions. If I see two men wrestling, I wrestle too, with my limbs and features. When a country-fellow comes upon the stage, you will see twenty faces in the boxes putting on the bumpkin expression. There is no need of multiplying instances to reach this generalization; every person and thing we look upon puts its special mark upon us. If this is repeated often enough, we get a permanent resemblance to it, or, at least, a fixed aspect which we took from it. Husband and wife come to look alike at last, as has often been noticed. It is a common saying of a jockey, that he is "all horse"; and I have often fancied that milkmen get a stiff, upright carriage, and an angular movement of the arm, that remind one of a pump and the working of its handle.

All this came in by accident, just because I happened to mention that the little gentleman found that Iris had been looking at him with her soul in her eyes, when his glance rested on her after wandering round the company. What he thought, it is hard to say; but the shadow of suspicion faded off from his face, and he looked calmly into the amber eyes, resting his cheek upon the hand that wore the red jewel.

—If it were a possible thing,—women are such strange creatures! Is there any trick that love and their own fancies do not play them? Just see how they marry! A woman that gets hold of a bit of manhood is like one of those Chinese wood-carvers who work on any odd, fantastic root that comes to hand, and, if it is only bulbous above and bifurcated below, will always contrive to make a man—such as he is—out of it. I should like to see any kind of a man, distinguishable from a Gorilla, that some good and even pretty woman could not shape a husband out of.

—A child,—yes, if you choose to call her so,—but such a child! Do you know how Art brings all ages together?

There is no age to the angels and ideal human forms among which the artist lives, and he shares their youth until his hand trembles and his eye grows dim. The youthful painter talks of white-bearded Leonardo as if he were a brother, and the veteran forgets that Raphael died at an age to which his own is of patriarchal antiquity.

But why this lover of the beautiful should be so drawn to one whom Nature has wronged so deeply seems hard to explain. Pity, I suppose. They say that leads to love.

—I thought this matter over until I became excited and curious, and determined to set myself more seriously at work to find out what was going on in these wild hearts and where their passionate lives were drifting. I say wild hearts and passionate lives, because I think I can look through this seeming calmness of youth and this apparent feebleness of organization, and see that Nature, whom it is very hard to cheat, is only waiting as the sapper waits in his mine, knowing that all is in readiness and the slow-match burning quietly down to the powder. He will leave it by-and-by, and then it will take care of itself.

One need not wait to see the smoke coming through the roof of a house and the flames breaking out of the windows to know that the building is on fire. Hark! There is a quiet, steady, unobtrusive, crisp, not loud, but very knowing little creeping crackle that is tolerably intelligible. There is a whiff of something floating about, suggestive of toasting shingles. Also a sharp pyroligneous-acid pungency in the air that stings one's eyes. Let us get up and see what is going on.—Oh,—oh,—oh! do you know what has got hold of you? It is the great red dragon that is born of the little red eggs we call *sparks*, with his hundred blowing red manes, and his thousand lashing red tails, and his multitudinous red eyes glaring at every crack and key-hole, and his countless red tongues lapping the beams he is going to crunch

presently, and his hot breath warping the panels and cracking the glass and making old timber sweat that had forgotten it was ever alive with sap. Run for your life! leap! or you will be a cinder in five minutes, that nothing but a coroner would take for the wreck of a human being!

If any gentleman will have the kindness to stop this run-away comparison, I shall be much obliged to him. All I intended to say was, that we need not wait for hearts to break out in flames to know that they are full of combustibles and that a spark has got among them. I don't pretend to say or know what it is that brings these two persons together;—and when I say together, I only mean that there is an evident affinity of some kind or other which makes their commonest intercourse strangely significant, so that each seems to understand a look or a word of the other. When the young girl laid her hand on the little gentleman's arm,—which so greatly shocked the Model, you may remember,—I saw that she had learned the lion-tamer's secret. She masters him, and yet I can see she has a kind of awe of him, as the man who goes into the cage has of the monster that he makes a baby of.

One of two things must happen. The first, is love, downright love, on the part of this young girl, for the poor little misshapen man. You may laugh, if you like. But women are apt to love the men who they think have the largest capacity of loving;—and who can love like one that has thirsted all his life long for the smile of youth and beauty, and seen it fly his presence as the wave ebbd from the parched lips of him whose fabled punishment is the perpetual type of human longing and disappointment? What would become of *him*, if this fresh soul should stoop upon him in her first young passion, as the flamingo drops out of the sky upon some lonely and dark lagoon in the marshes of Cagliari, with a flutter of scarlet feathers and a kindling of strange fires in the shadowy waters that hold her burning image in their trembling depths?

—Marry her, of course?—Why, no, not *of course*. I should think the chance less, on the whole, that he would be willing to marry her than she to marry him.

There is one other thing that might happen. If the interest he awakes in her gets to be a deep one, and yet has nothing of love in it, she will glance off from him into some great passion or other. All excitements run to love in women of a certain—let us not say age, but youth. An electrical current passing through a coil of wire makes a magnet of a bar of iron lying within it, but not touching it. So a woman is turned into a love-magnet by a tingling current of life running round her. I should like to see one of them balanced on a pivot properly adjusted, and watch if she did not turn so as to point north and south,—as she would, if the love-currents are like those of the earth our mother.

Pray, do you happen to remember Wordsworth's "Boy of Windermere"? This boy used to put his hands to his mouth, and shout aloud, mimicking the hooting of the owls, who would answer him

"with quivering peals,
And long halloos and screams, and echoes loud
Redoubled and redoubled."

When they failed to answer him, and he hung listening intently for their voices, he would sometimes catch the faint sound of far distant waterfalls, or the whole scene around him would imprint itself with new force upon his perceptions.—Read the sonnet, if you please;—it is Wordsworth all over,—trivial in subject, solemn in style, vivid in description, prolix in detail, true metaphysically, but immensely suggestive of "imagination," to use a mild term, when related as an actual fact of a sprightly youngster.

All I want of it is to enforce the principle, that, when the door of the soul is once opened to a guest, there is no knowing who will come in next.

—Our young girl keeps up her childish habit of sketching heads and characters. Nobody is, I should think, more faithful and exact in the drawing of the academical figures given her as lessons; but there is a perpetual arabesque of fancies that run round the margin of her drawings, and there is one book which I know she keeps to run riot in, where, if anywhere, a shrewd eye would be most likely to read her thoughts. This book of hers I mean to see, if I can get at it honorably.

I have never yet crossed the threshold of the little gentleman's chamber. How he lives, when he once gets within it, I can only guess. His hours are late, as I have said; often, on waking late in the night, I see the light through cracks in his window-shutters on the wall of the house opposite. If the times of witchcraft were not over, I should be afraid to be so close a neighbor to a place from which there come such strange noises. Sometimes it is the dragging of something heavy over the floor, that makes me shiver to hear it,—it sounds so like what people that kill other people have to do now and then. Occasionally I hear very sweet strains of music,—whether of a wind or stringed instrument, or a human voice, strange as it may seem, I have often tried to find out, but through the partition I could not be quite sure. If I have not heard a woman cry and moan, and then again laugh as though she would die laughing, I have heard sounds so like them that—I am a fool to confess it—I have covered my head with the bedclothes; for I have had a fancy in my dreams, that I could hardly shake off when I woke up, about that so-called witch that was his great-grandmother, or whatever it was,—a sort of fancy that she visited the little gentleman,—a young woman in old-fashioned dress, with a red ring round her white neck,—not a necklace, but a dull stain.

Of course you don't suppose that I have any foolish superstitions about the matter,—I, the Professor, who have seen enough to take all that nonsense out of any man's head! It is not our beliefs that frighten us half so much as our fancies. A man not only believes, but knows he runs a risk, whenever he steps into a railroad car; but it doesn't worry him much.

On the other hand, carry that man across a pasture a little way from some dreary country-village, and show him an old house where there were strange deaths a good many years ago, and rumors of ugly spots on the walls,—the old man hung himself in the garret, that is certain, and ever since the country-people have called it "the haunted house,"—the owners haven't been able to let it since the last tenants left on account of the noises,—so it has fallen into sad decay, and the moss grows on the rotten shingles of the roof, and the clapboards have turned black, and the windows rattle like teeth that chatter with fear, and the walls of the house begin to lean as if its knees were shaking,—take the man who didn't mind the real risk of the cars to that old house, on some dreary November evening, and ask him to sleep there alone,—how do you think he will like it? He doesn't believe one word of ghosts,—but then he knows, that, whether waking or sleeping, his imagination will people the haunted chambers with ghastly images. It is not what we *believe*, as I said before, that frightens us commonly, but what we *conceive*. A principle that reaches a good way, if I am not mistaken. I say, then, that, if these odd sounds coming from the little gentleman's chamber sometimes make me nervous, so that I cannot get to sleep, it is not because I suppose he is engaged in any unlawful or mysterious way. The only wicked suggestion that ever came into my head was one that was founded on the landlady's story of his having a pile of gold; it was a ridiculous fancy; besides, I suspect the story of *sweating* gold was only one of the many fables got up to make the Jews odious and afford a pretext for plundering them. As for the sound like a woman laughing and crying, I never said it was a woman's voice; for, in the first place, I could only hear indistinctly;

and, secondly, he may have an organ, or some queer instrument or other, with what they call the *voce umana* stop. If he moves his bed round to get out of draughts, or for any such reason, there is nothing very frightful in that simple operation. Most of our foolish conceits explain themselves in some such simple way. And yet, for all that, I confess, that, when I woke up the other evening, and heard, first a sweet complaining cry, and then footsteps, and then the dragging sound,—nothing but his bed, I am quite sure,—I felt a stirring in the roots of my hair as the feasters did in Keats's terrible poem of "Lamia."

There is nothing very odd in my feeling nervous when I happen to lie awake and get listening for sounds. Just keep your ears open any time after midnight, when you are lying in bed in a lone attic of a dark night. What horrid, strange, suggestive, unaccountable noises you will hear! The *stillness* of night is a vulgar error. All the dead things seem to be alive. Crack! That is the old chest of drawers; you never hear it crack in the daytime. Creak! There's a door ajar; *you know you shut them all*. Where can that latch be that rattles so? Is anybody trying it softly? or, worse than any *body*, is——? (Cold shiver.) Then a sudden gust that jars all the windows;—very strange!—there does not seem to be any wind about that it belongs to. When it stops, you hear the worms boring in the powdery beams overhead. Then steps outside,—a stray animal, no doubt. All right,—but a gentle moisture breaks out all over you; and then something like a whistle or a cry,—another gust of wind, perhaps; that accounts for the rustling that just made your heart roll over and tumble about, so that it felt more like a live rat under your ribs than a part of your own body; then a crash of something that has fallen,—blown over, very like——*Pater noster, qui es in coelis!* for you are damp and cold, and sitting bolt upright, and the bed trembling so that the death-watch is frightened and has stopped ticking!

No,—night is an awful time for strange noises and secret doings. Who ever dreamed, till one of our sleepless neighbors told us of it, of that Walpurgis gathering of birds and beasts of prey,—foxes, and owls, and crows, and eagles, that come from all the country round on moonshiny nights to crunch the clams and muscles, and pick out the eyes of dead fishes that the storm has thrown on Chelsea Beach? Our old mother Nature has pleasant and cheery tones enough for us when she comes to us in her dress of blue and gold over the eastern hill-tops; but when she follows us upstairs to our beds in her suit of black velvet and diamonds, every creak of her sandals and every whisper of her lips is full of mystery and fear.

You understand, then, distinctly, that I do not believe there is anything about this singular little neighbor of mine which is as it should not be. Probably a visit to his room would clear up all that has puzzled me, and make me laugh at the notions which began, I suppose, in nightmares, and ended by keeping my imagination at work so as almost to make me uncomfortable at times. But it is not so easy to visit him as some of our other boarders, for various reasons which I will not stop to mention. I think some of them are rather pleased to get "the Professor" under their ceilings.

The young man John, for instance, asked me to come up one day and try some "old Burbon," which he said was A.1. On asking him what was the number of his room, he answered, that it was forty-'leven, sky-parlor floor, but that I shouldn't find it, if he didn't go ahead to show me the way. I followed him to his *habitat*, being very willing to see in what kind of warren he burrowed, and thinking I might pick up something about the boarders who had excited my curiosity.

Mighty close quarters they were where the young man John bestowed himself and his furniture; this last consisting of a bed, a chair, a bureau, a trunk, and numerous pegs with coats and "pants" and "vests,"—as he was in

the habit of calling waistcoats and pantaloons or trousers,—hanging up as if the owner had melted out of them. Several prints were pinned up unframed,—among them that grand national portrait-piece, "Barnum presenting Ossian E. Dodge to Jenny Lind," and a picture of a famous trot, in which I admired anew the cabalistic air of that imposing array of expressions, and especially the Italicized word, "Dan Mace *names* b. h. Major Slocum," and "Hiram Woodruff *names* g. m. Lady Smith." "Best three in five. Time: 2.40, 2.46, 2.50."

That set me thinking how very odd this matter of trotting horses is, as an index of the mathematical exactness of the laws of living mechanism. I saw Lady Suffolk trot a mile in 2.26. Flora Temple has done it in 2.24-1/2; and Ethan Allen is said to have done it in the same time. Many horses have trotted their mile under 2.30; none that I remember in public as low down in the twenties as 2.24. *Five seconds*, then, in about a hundred and sixty is the whole range of the maxima of the present race of trotting-horses. The same thing is seen in the running of men. Many can run a mile in five minutes; but when one comes to the fractions below, they taper down until somewhere about 4.30 the maximum is reached. Averages of masses have been studied more than averages of maxima and minima. We know from the Registrar-General's Reports, that a certain number of children—say from one to two dozen—die every year in England from drinking hot water out of spouts of teakettles. We know, that, among suicides, women and men past a certain age almost never use fire-arms. A woman who has made up her mind to die is still afraid of a pistol or a gun. Or is it that the explosion would derange her costume? I say, averages of masses we have; but our tables of maxima we owe to the sporting men more than to the philosophers. The lesson their experience teaches is, that Nature makes no leaps,—does nothing *per saltum*. The greatest brain that ever lived, no doubt, was only a small fraction of an idea ahead of the second best. Just look at the chess-players. Leaving out the phenomenal exceptions, the nice

shades that separate the skilful ones show how closely their brains approximate,—almost as closely as chronometers. Such a person is a "*knight*-player,"—he must have that piece given him. Another must have two pawns. Another, "pawn and two," or one pawn and two moves. Then we find one who claims "pawn and move," holding himself, with this fractional advantage, a match for one who would be pretty sure to beat him playing even.—So much are minds alike; and you and I think we are "peculiar,"—that Nature broke her jelly-mould after shaping our cerebral convolutions! So I reflected, standing and looking at the picture.

—I say, Governor,—broke in the young man John,—them hosses'll stay jest as well, if you'll only set down. I've had 'em this year, and they haven't stirred.—He spoke, and handed the chair towards me,—seating himself, at the same time, on the end of the bed.

You have lived in this house some time?—I said,—with a note of interrogation at the end of the statement.

Do I look as if I'd lost much flesh?—said he,—answering my question by another.

No,—said I;—for that matter, I think you do credit to "the bountifully furnished table of the excellent lady who provides so liberally for the company that meets around her hospitable board."

[The sentence in quotation-marks was from one of those disinterested editorials in small type, which I suspect to have been furnished by a friend of the landlady's, and paid for as an advertisement. This impartial testimony to the superior qualities of the establishment and its head attracted a number of applicants for admission, and a couple of new boarders made a brief appearance at the table. One of them was of the class of people who grumble if they don't get canvasbacks and woodcocks every day, for three-

fifty per week. The other was subject to somnambulism, or walking in the night, when he ought to have been asleep in his bed. In this state he walked into several of the boarders' chambers, his eyes wide open, as is usual with somnambulists, and, from some odd instinct or other, wishing to know what the hour was, got together a number of their watches, for the purpose of comparing them, as it would seem. Among them was a repeater, belonging to our young Marylander. He happened to wake up while the somnambulist was in his chamber, and, not knowing his infirmity, caught hold of him and gave him a dreadful shaking, after which he tied his hands and feet, and then went to sleep till morning, when he introduced him to a gentleman used to taking care of such cases of somnambulism.]

If you, my reader, will please to skip backward, over this parenthesis, you will come to our conversation,—which it has interrupted.

It a'n't the feed,—said the young man John,—it's the old woman's looks when a fellah lays it in too strong. The feed's well enough. After geese have got tough, 'n' turkeys have got strong, 'n' lamb's got old, 'n' veal's pretty nigh beef, 'n' sparragrass's growin' tall 'n' slim 'n' scattery about the head, 'n' green peas gettin' so big 'n' hard they'd be dangerous if you fired 'em out of a revolver, we get hold of all them delicacies of the season. But it's too much like feedin' on live folks and devourin' widdah's substance, to lay yourself out in the eatin' way, when a fellah's as hungry as the chap that said a turkey was too much for one 'n' not enough for two. I can't help lookin' at the old woman. Corned-beef-days she's tolerable calm. Roastin'-days she worries some, 'n' keeps a sharp eye on the chap that carves. But when there's anything in the poultry line, it seems to hurt her feelin's so to see the knife goin' into the breast and joints comin' to pieces, that there's no comfort in eatin'. When I cut up an old fowl and help the boarders, I always feel as if I ought to say, Won't you have a slice of widdah?—instead of chicken.

The young man John fell into a train of reflections which ended in his producing a Bologna sausage, a plate of "crackers," as we Boston folks call certain biscuits, and the bottle of whiskey described as being A.1.

Under the influence of the crackers and sausage, he grew cordial and communicative.

It was time, I thought, to sound him as to those of our boarders who had excited my curiosity.

What do you think of our young Iris?—I began.

Fust-rate little filly;—he said.—Pootiest and nicest little chap I've seen since the schoolma'am left. Schoolma'am was a brown-haired one,—eyes coffee-color. This one has got wine-colored eyes,—'n' that's the reason they turn a fellah's head, I suppose.

This is a splendid blonde,—I said,—the other was a brunette. Which style do you like best?

Which do I like best, boiled mutton or roast mutton?—said the young man John. Like 'em both,—it a'n't the color of 'em makes the goodness. I've been kind of lonely since schoolma'am went away. Used to like to look at her. I never said anything particular to her, that I remember, but—

I don't know whether it was the cracker and sausage, or that the young fellow's feet were treading on the hot ashes of some longing that had not had time to cool, but his eye glistened as he stopped.

I suppose she wouldn't have looked at a fellah like me,—he said,—but I come pretty near tryin'. If she had said, Yes, though, I shouldn't have known what to have done with her. Can't marry a woman now-a-days till you're so

deaf you have to cock your head like a parrot to hear what she says, and so long-sighted you can't see what she looks like nearer than arm's-length.

Here is another chance for you,—I said.—What do you want nicer than such a young lady as Iris?

It's no use,—he answered.—I look at them girls and feel as the fellah did when he missed catchin' the trout.—'To'od 'a' cost more butter to cook him 'n' he's worth,—says the fellah.—Takes a whole piece o' goods to cover a girl up now-a-days. I'd as lief undertake to keep a span of elephants,—and take an ostrich to board, too,—as to marry one of 'em. What's the use? Clerks and counter-jumpers a'n't anything. Sparragrass and green peas a'n't for them,—not while they're young and tender. Hossback-ridin' a'n't for them,—except once a year,—on Fast-day. And marryin' a'n't for them. Sometimes a fellah feels lonely, and would like to have a nice young woman, to tell her how lonely he feels. And sometimes a fellah,—here the young man John looked very confidential, and, perhaps, as if a little ashamed of his weakness,—sometimes a fellah would like to have one o' them small young ones to trot on his knee and push about in a little wagon,—a kind of a little Johnny, you know;—it's odd enough, but, it seems to me, nobody can afford them little articles, except the folks that are so rich they can buy everything, and the folks that are so poor they don't want anything. It makes nice boys of us young fellahs, no doubt! And it's pleasant to see fine young girls sittin', like shopkeepers behind their goods, waitin', and waitin', and waitin', 'n' no customers,—and the men lingerin' round and lookin' at the goods, like folks that want to be customers, but haven't got the money!

Do you think the deformed gentleman means to make love to Iris?—I said.

What! Little Boston ask that girl to marry him! Well, now, that's comin' of it a little too strong. Yes, I guess she will marry him and carry him round in a basket, like a lame bantam! Look here!—he said, mysteriously;—one of the boarders swears there's a woman comes to see him, and that he has heard her singin' and screechin'. I should like to know what he's about in that den of his. He lays low 'n' keeps dark,—and, I tell you, there's a good many of the boarders would like to get into his chamber, but he don't seem to want 'em. Biddy could tell somethin' about what she's seen when she's been to put his room to rights. She's a Paddy 'n' a fool, but she knows enough to keep her tongue still. All I know is, I saw her crossin' herself one day when she came out of that room. She looked pale enough, 'n' I heard her mutterin' somethin' or other about the Blessed Virgin. If it hadn't been for the double doors to that chamber of his, I'd have had a squint inside before this; but, somehow or other, it never seems to happen that they're both open at once.

What do you think he employs himself about?—said I.

The young man John winked.

I waited patiently for the thought, of which this wink was the blossom, to come to fruit in words.

I don't believe in witches,—said the young man John.

Nor I.

We were both silent for a few minutes.

—Did you ever see the young girl's drawing-books,—I said, presently.

All but one,—he answered;—she keeps a lock on that, and won't show it. Ma'am Allen, (the young rogue sticks to that name, in speaking of the

gentleman with the *diamond*,) Ma'am Allen tried to peek into it one day when she left it on the sideboard. "If you please," says she,—'n' took it from him, 'n' gave him a look that made him curl up like a caterpillar on a hot shovel. I only wished he hadn't, and had jest given her a little saas, for I've been takin' boxin'-lessons, 'n' I've got a new way of counterin' I want to try on to somebody.

—The end of all this was, that I came away from the young fellow's room, feeling that there were two principal things that I had to live for, for the next six weeks or six months, if it should take so long. These were, to get a sight of the young girl's drawing-book, which I suspected had her heart shut up in it, and to get a look into the little gentleman's room.

I don't doubt you think it rather absurd that I should trouble myself about these matters. You tell me, with some show of reason, that all I shall find in the young girl's book will be some outlines of angels with immense eyes, traceries of flowers, rural sketches, and caricatures, among which I shall probably have the pleasure of seeing my own features figuring. Very likely. But I'll tell you what *I* think I shall find. If this child has idealized the strange little bit of humanity over which she seems to have spread her wings like a brooding dove,—if, in one of those wild vagaries that passionate natures are so liable to, she has fairly sprung upon him with her clasping nature, as the sea-flowers fold about the first stray shell-fish that brushes their outspread tentacles, depend upon it, I shall find the marks of it in this drawing-book of hers,—if I can ever get a look at it,—fairly, of course, for I would not play tricks to satisfy my curiosity.

Then, if I can get into this little gentleman's room under any fair pretext, I shall, no doubt, satisfy myself in five minutes that he is just like other people, and that there is no particular mystery about him.

The night after my visit to the young man John, I made all these and many more reflections. It was about two o'clock in the morning,—bright starlight,—so light that I could make out the time on my alarm-clock,—when I woke up trembling and very moist. It was the heavy, dragging sound, as I had often heard it before, that waked me. Presently a window was softly closed. I had just begun to get over the agitation with which we always awake from nightmare dreams, when I heard the sound which seemed to me as of a woman's voice,—the clearest, purest soprano which one could well conceive of. It was not loud, and I could not distinguish a word, if it was a woman's voice; but there were recurring phrases of sound and snatches of rhythm that reached me, which suggested the idea of complaint, and sometimes, I thought, of passionate grief and despair. It died away at last,—and then I heard the opening of a door, followed by a low, monotonous sound, as of one talking,—and then the closing of a door,—and presently the light on the opposite wall disappeared and all was still for the night.

By George! this gets interesting,—I said, as I got out of bed for a change of night-clothes.

I had this in my pocket the other day, but thought I wouldn't read it. So I read it to the boarders instead, and print it to finish off this record with.

ROBINSON OF LEYDEN.

He sleeps not here; in hope and prayer
His wandering flock had gone before,
But he, the shepherd, might not share
Their sorrows on the wintry shore.

Before the Speedwell's anchor swung,
Ere yet the Mayflower's sail was spread,
While round his feet the Pilgrims clung,
The pastor spake, and thus he said:—

"Men, brethren, sisters, children dear!
God calls you hence from over sea;
Ye may not build by Haerlem Meer,
Nor yet along the Zuyder-Zee.

"Ye go to bear the saving word
To tribes unnamed and shores untrod:
Heed well the lessons ye have heard
From those old teachers taught of God.

"Yet think not unto them was lent
All light for all the coming days,
And Heaven's eternal wisdom spent
In making straight the ancient ways.

"The living fountain overflows
For every flock, for every lamb,
Nor heeds, though angry creeds oppose
With Luther's dike or Calvin's dam."

He spake; with lingering, long embrace,
With tears of love and partings fond,
They floated down the creeping Maas,
Along the isle of Ysselmond.

They passed the frowning towers of Briel,
The "Hook of Holland's" shelf of sand,

And grated soon with lifting keel
The sullen shores of Fatherland.

No home for these!—too well they knew
The mitred king behind the throne;—
The sails were set, the pennons flew,
And westward ho! for worlds unknown.

—And these were they who gave us birth,
The Pilgrims of the sunset wave,
Who won for us this virgin earth,
And freedom with the soil they gave.

The pastor slumbers by the Rhine,—
In alien earth the exiles lie,—
Their nameless graves our holiest shrine,
His words our noblest battle-cry!

Still cry them, and the world shall hear,
Ye dwellers by the storm-swept sea!
Ye *have* not built by Haerlem Meer,
Nor on the land-locked Zuyder-Zee!

* * * * *

ART.

THE HEART OF THE ANDES.

We Americans, amidst the confusion and stir of material interests, are not inattentive to the progress of those claims whose growth is as silent as that of the leaves around us, and whose values find no echo in Wall Street.

With the spring there has bloomed in New York a flower of no common beauty. All the fashion and influence there have been to hail this growth of our soil at its cloistered home in Tenth Street. There is but one opinion of the beauty and novelty of the stranger. It is of the "Heart of the Andes," by Mr. Frederick E. Church, we speak. This artist, now known for some years as he who has with most daring tracked to its depths the witchery and wonder of our summer skies, and the results of whose two visits to South America have ere this shown how sensitive and sure the photograph of his memory is, gives us from the *trop-plein* of his souvenirs this last and crowning page.

We hold the merit and charm of Mr. Church's works to be, that they are so American in feeling and treatment. What chiefly distinguishes America from Europe, as the object of landscape, is, that Europe is the region of "bits," of picturesque compositions, of sunflecked lanes, of nestling villages, and castle-crowned steeps,—while with us everything is less condensed, on a wider scale, and with vaster spaces.

Mr. Church has the eagle eye to measure this vastness. He loves a wide expanse, a boundless horizon. He does not, gypsy-like, hide with Gainsborough beneath a hedge, but his glance sweeps across a continent, and no detail escapes him. This is what makes the "Andes" a really marvellous picture. In intellectual grasp, clear and vivid apprehension of what he wants and where to put it, we think Mr. Church without an equal. Quite a characteristic of his is a love of detail and finish without injury to breadth and general effect. You look into his picture with an opera-glass as you would into the next field from an open window. His power is not so much one of suggestion, an appeal to the beauty and grandeur in yourself, as the ability to become a colorless medium to beauty and grandeur from without; hence the impression is at first hand, and such as Nature herself produces.

The world abounds in pictures where loving human faculty has lifted ordinary motives into our sympathy; but where the subject is the grandest landscape affluence of the world, effect, in the ordinary sense, ceases to be of value. We need the thing, and no human ennobling of it. In this picture we have it; no spectral cloud-pile, but a real Chimborazo, with the hoar of eternity upon its scalp, looks down upon the happy New-Yorker in his first May perspiration. And as the wind sets east, no yellow hint at something warming, but whole dales and plains still in the real sunshine, take the chill from off his heart. No wonder he, his wife, and his quietly enthusiastic girls throng and sit there. They are proud in their hearts of the handsome young painter. And well they may be! Never has the New World sent so native a flavor to the Old. Unlike so many others of our good artists, there is no saturation from the past in Mr. Church. No souvenir of what once was warm and new in the heart of Claude or Poussin ages the fresh work. It has a relish of our soil; its almost Yankee knowingness, its placid, clear, intellectual power, with its delicate sentiment and strong self-reliance, are ours; we delightfully feel that it belongs to us, and that we are of it.

Such is the last great work of the New York school of landscape,—a living school, and destined to long triumphs,—already appreciated and nobly encouraged. Its members are men as individual and various in their gifts, as they are harmonious and manly in their mutual recognition and fellowship.

* * * * *

REVIEWS AND LITERARY NOTICES.

Love Me Little, Love Me Long. By CHARLES READE, Author of "It is Never too Late to Mend," "White Lies," etc. New York: Harper & Brothers.

1859.

This is the last, and in many respects the best, of Mr. Charles Reade's literary achievements. Its popularity, we are informed, exceeds that of any of his former works, excepting the first two published by him, "Peg Woffington," and "Christie Johnstone," which a few years ago startled the novel-reading world by their eccentricity of style, their ingenious novelty of construction, and also by their freshness of sentiment,—comet-books, pursuing one another in erratic orbits of thought, now close upon the central light of Truth, now distantly remote from it, but always brilliant, and generally leaving a sparkling train of recollection behind. The author's subsequent productions, until the present, have been less successful; some by reason of their positive inferiority; some because of their extraordinary affectations of expression, repelling the multitude, who do not choose to risk their brains through unlimited pages of labyrinthine rhetoric; some, perhaps, because of their doubtful paternity, evidences of French origin being in many places discernible. Here, however, there appears a manifest improvement. This story is exquisitely simple in conception, and the narration is mostly full of ease and grace, although the unfolding of the plot is less direct than might have been expected from an author who professes so deep a regard for the dramatic order of development. There is, for instance, an episodal chapter of upwards of thirty pages, describing commercial England in a state of panic, which is very nearly as appropriate as a disquisition on the Primary Rocks, or an inquiry into the origin of the Cabala would be, but which is so palpably introduced for the purpose of displaying the author's financial erudition, that he feels himself called upon to apologize in a brief preface for its intrusion. In the concluding chapters, too, the various threads of interest are gathered together with very little artistic compactness. The reader is disappointed at the tameness of the culmination, compared with the vigor of the approach thereto. But otherwise there is much to be charmed with, and not a little to admire.

Mr. Reade has renounced a good number of the odd fancies which at one time pervaded him. We find no traces of the [Greek: stigmatophobia] with which he was formerly afflicted. Nouns are wedded to obedient adjectives, adverbs to their willing verbs, by the lawful mediation of the recognized authorities of punctuation, the illegitimate and licentious disregard of which, as recklessly manifested in "It is Never too Late to Mend," indicated a disposition to entirely subvert the established morals of the language. It is pleasant to see how unreservedly Mr. Reade has abandoned his functions as apostle of grammatical free-love. Of tricks of typography there are also fewer, although these yet remain in an excess which good taste can hardly sanction. We often find whole platoons of admiration-points stretching out in line, to give extraordinary emphasis to sentences already sufficiently forcible. We sometimes encounter extravagant varieties of type, humorously intended, but the use of which seems a game hardly worth Mr. Reade's candle, which certainly possesses enough illuminating power of its own, without seeking additional refulgence by such commonplace expedients.

In one of his pet peculiarities, the selection of a name for his work, the author has surpassed himself. It is a good thing to have an imposing name. In literature, as in society, a sounding title makes its way with delicious freedom. But it is also well to see to it, that, in the matter of title, some connection with the book to which it is applied shall be maintained. We are accustomed to approach a title somewhat as we do a finger-post,—not hoping that it will reveal the nature of the road we are to follow, the character of the scenery we are to gaze upon, or the general disposition of the impending population, but anticipating that it will at least enable us to start in the right direction. Now every reader of "Love me Little, Love me Long" is apt to consider himself or herself justified in entertaining acrimonious sentiments towards Mr. Reade for the non-fulfilment of his titular hint. If, in the process of binding, the leaves of this story had accidentally found their way into covers bearing other and various

appellations, we imagine that very little injury would have been done to the author's meaning or the purchaser's understanding. It is, indeed, interesting to look forward to the progress of Mr. Reade's ideas on the subject of titles. We have already enjoyed a couple of pleasing nursery platitudes; perhaps it would not be altogether out of order to expect in future a series something like the following:—

"Oh, Dear, What Can the Matter Be!?!?!?"

"One, Two, Buckle My Shoe!"

"Sing a Song of Sixpence, a Bag Full of Rye!"

"Hicory, Diccory, Dock!!!"

etc., etc.

Let us not forget, in laughing at the author's weaknesses, to acknowledge his strength. He shows in this work an inventive fancy equal to that of any writer of light fiction in the English language, and hardly surpassed by those of the French,—from which latter, it is fair to suppose, much of his inspiration is drawn, since his style is undisguisedly that of modern French romancers, though often made the vehicle of thoughts far nobler than any they are wont to convey. His portraits of character are capital, especially those of feminine character, which are peculiarly vivid and *spirituels*. He represents infantile imagination with Pre-Raphaelitic accuracy. And his descriptions are frequently of enormous power. A story of a sailor's perils on a whaling voyage is told in a manner almost as forcible as that of the "frigate fight," by Walt. Whitman, and in a manner strikingly similar, too. A night adventure in the English channel—a pleasure excursion diverted by a storm from its original intention into a life-and-death struggle—is related with unsurpassed effect. The whole work is as sprightly and agreeable a love-story as any English writer has produced,—always amusing, often flashing with genuine wit, sometimes inspiring in its eloquent energy. And

this ought to be sufficient to secure the abundant success of any book of its class, and to cause its successor to be awaited with interest.

The Choral Harmony. By B.F. BAKER and W.O. PERKINS. Boston: Phillips, Sampson, & Co. pp. 378.

The great number of music-books published, and the immense editions annually sold, are the best proof of the demand for variety on the part of choirs and singing-societies. Nearly all the popular collections will be found to have about the same proportions of the permanent and the transient elements,—on the one hand, the old chorals and hymn-tunes consecrated by centuries of solemn worship,—on the other, the compositions and "arrangements" of the editors. Here and there a modern tune strikes the public taste or sinks deeper to the heart, and it takes its place thenceforward with the "Old Hundredth," with "Martyrs," and "Mear"; but the greater number of these compositions are as ephemeral as newspaper stories. Every conductor of a choir knows, however, that, to maintain an interest among singers, it is necessary to give them new music for practice, especially new pieces for the opening of public worship,—that they will not improve while singing familiar tunes, any more than children will read with proper expression lessons which have become wearisome by repetition. Masses and oratorios are beyond the capacity of all but the most cultivated singers; and we suppose that the very prevalence of these collections which aim to please an average order of taste may, after all, furnish to large numbers a pleasure which the rigid classicists would deny them, without in any way filling the void.

This collection has a goodly number of the favorite old tunes, and they are given with the harmonies to which the people are accustomed. The new tunes are of various degrees of excellence, but most of them are constructed with a due regard to form, and those which we take to be Mr. Baker's are

exceedingly well harmonized. There is an unusual number of anthems, motets, etc.,—many of them at once solid and attractive. The elementary portion contains a full and intelligible exposition of the science. To those choirs who wish to increase their stock of music, and to singing-societies who desire the opportunity of practising new and brilliant anthems and sentences, the "Choral Harmony" may be commended, as equal, at least, to any work of the kind now before the public.

Seacliff: or the Mystery of the Westervelts. By J.W. DE FOREST, Author of "Oriental Acquaintance," "European Acquaintance," etc., etc. Boston: Phillips, Sampson, & Co. pp. 466. 12mo.

This is a very readable novel, artful in plot, effective in characterization, and brilliant in style. "The Mystery of the Westervelts" is a mystery which excites the reader's curiosity at the outset, and holds his pleased attention to the end. The incidents are so contrived that the secret is not anticipated until it is unveiled, and then the explanation is itself a surprise. The characters are generally strongly conceived, skilfully discriminated, and happily combined. The delineation of Mr. Westervelt, the father of the heroine, is especially excellent. Irresolute in thought, impotent in will, and only occasionally fretted by circumstances into a feeble activity, he is an almost painfully accurate representation of a class of men who drift through life without any power of self-direction. Mrs. Westervelt has equal moral feebleness with less brain, and her character is a study in practical psychology. Somerville, the villain of the piece, who unites the disposition of Domitian to the manners of Chesterfield, is the pitiless master of this female slave. The coquettish Mrs. Van Leer is a prominent personage of the story; and her shallow malice and pretty deviltries are most effectively represented. She is not only a flirt in outward actions, but a flirt in soul, and her perfection in impertinence almost rises to genius. All these characters

betray patient meditation, and the author's hold on them is rarely relaxed. A novel evincing so much intellectual labor, written in a style of such careful elaboration, and exhibiting so much skill in the development of the story, can scarcely fail of a success commensurate with its merits.

To Cuba and Back. A Vacation Voyage. By R.H. DANA, JR., Author of "Two Years before the Mast." Boston: Ticknor & Fields. 1859. pp. 288. 16mo.

It was, perhaps, a dangerous experiment for the author of a book of the worldwide and continued popularity of "Two Years before the Mast" to dare, with that almost unparalleled success still staring him in the face, to tempt Fortune by giving to the public another book. But long before this time, the thousands of copies that have left the shelves of the publishers have attested a success scarcely second to that of Mr. Dana's first venture. The elements of success, in both cases, are to be found in every page of the books themselves. This "Vacation Voyage" has not a dull page in it. Every reader reads it to the end. Every paragraph has its own charm; every word is chosen with that quick instinct that seizes upon the right word to describe the matter in hand which characterizes Mr. Dana's forensic efforts, and places him so high on the list of natural-born advocates,—which gives him the power of eloquence at the bar, and a power scarcely less with the slower medium of the pen. These Cuban sketches are real *stereographs*, and Cuba stands before you as distinct and lifelike as words can make it. Single words, from Mr. Dana's pen, are pregnant with great significance, and their meaning is brought out by taking a little thought, as the leaves and sticks and stones and pigmy men and women in the shady corners of the stereograph are developed into the seeming proportions of real life, when the images in the focus of the lenses of the stereoscope. We know of no modern book of travels which gives one so vivid and fresh a picture, in

many various aspects, of the external nature, the people, the customs, the laws and domestic institutions of a strange country, as does this little volume, the off-hand product of a few days snatched from the engrossing cares of the most active professional life. With a quick eye for the beauties of landscape, a keen and lively perception of what is droll and amusing in human nature, a warm heart, sympathizing readily where sympathy is required, the various culture of the scholar, and the training of the lawyer and politician, all well mixed with manly, straightforward, Anglo-Saxon pluck, Mr. Dana has, in an eminent degree, all the best qualities that should mark the traveller who undertakes to tell his story to the world.

Some statistics, judiciously introduced, of the present government, and of the institution of slavery and the slave-trade, with the author's comments upon them, give a practical value to the book at this time for all thinking and patriotic citizens, and make it one not only to be read for an hour's entertainment, but carefully studied for the important practical suggestions of its pages.

Memoir of Theophilus Parsons, Chief Justice of the Supreme Judicial Court of Massachusetts; with Notices of some of his Contemporaries. By his Son, THEOPHILUS PARSONS. Boston: Ticknor & Fields. 1859. pp. 476.

The division of the United States into so many wellnigh independent republics, each with official rewards in its gift great enough to excite and to satisfy a considerable ambition, makes fame a palpably provincial thing in America. We say *palpably*, because the larger part of contemporary fame is truly parochial everywhere; only we are apt to overlook the fact when we measure by kingdoms or empires instead of counties, and to fancy a stature for Palmerston or Persigny suitable to the size of the stage on which they act. It seems a much finer thing to be a Lord Chancellor in England than a

Chief Justice in Massachusetts; yet the same abilities which carried the chance-transplanted Boston boy, Lyndhurst, to the woolsack, might, perhaps, had he remained in the land of his birth, have found no higher goal than the bench of the Supreme Court. Mr. Dickens laughed very fairly at the "remarkable men" of our small towns; but England is full of just such little-greatness, with the difference that one is proclaimed in the "Bungtown Tocsin" and the other in the "Times." We must get a new phrase, and say that Mr. Brown was immortal at the latest dates, and Mr. Jones a great man when the steamer sailed. The small man in Europe is reflected to his contemporaries from a magnifying mirror, while even the great men in America can be imaged only in a diminishing one. If powers broaden with the breadth of opportunity, if Occasion be the mother of greatness and not its tool, the centralizing system of Europe should produce more eminent persons than our distributive one. Certain it is that the character grows larger in proportion to the size of the affairs with which it is habitually concerned, and that a mind of more than common stature acquires an habitual *stoop*, if forced to deal lifelong with little men and little things.

Even that German-silver kind of fame, Notoriety, can scarcely be had here at a cheaper rate than a murder done in broad daylight of a Sunday; and the only sure way of having one's name known to the utmost corners of our empire is by achieving a continental *_dis_repute*. With a metropolis planted in a crevice between Maryland and Virginia, and stunted because its roots vainly seek healthy nourishment in a soil impoverished by slavery, a paulopost future capital, the centre of nothing, without literature, art, or so much as commerce,—we have no recognized dispenser of national reputations like London or Paris. In a country richer in humor, and among a people keener in the sense of it than any other, we cannot produce a national satire or caricature, because there is no butt visible to all parts of the country at once. How many men at this moment know the names, much more the history or personal appearance, of our cabinet ministers? But the

joke of London or Paris tickles all the ribs of England or France, and the intellectual rushlight of those cities becomes a beacon, set upon such bushels, and multiplied by the many-faced provincial reflector behind it. Meanwhile New York and Boston wrangle about literary and social preëminence like two schoolboys, each claiming to have something (he knows not exactly what) vastly finer than the other at home. Let us hope that we shall by-and-by develop a rivalry like that of the Italian cities, and that the difficulty of fame beyond our own village may make us more content with doing than desirous of the name of it. For, after all, History herself is for the most part but the Muse of Little Peddlington, and Athens raised the heaviest crop of laurels yet recorded on a few acres of rock, without help from newspaper guano.

Theophilus Parsons was one of those men of whom surviving contemporaries always say that he was the most gifted person they had ever known, while yet they are able to produce but little tangible evidence of his superiority. It is, no doubt, true that Memory's geese are always swans; but in the case of a man like Parsons, where the testimony is so various and concurrent, we cannot help believing that there must have been a special force of character, a marked alertness and grasp of mind, to justify the impression he left behind. With the exception of John Adams, he was probably the most considerable man of his generation in Massachusetts; and it is not merely the *caruit quia vate sacro*, but the narrowness of his sphere of action, still further narrowed by the technical nature of a profession in itself provincial, as compared with many other fields for the display of intellectual power, that has hindered him from receiving an amount of fame at all commensurate with an ability so real and so various.

But the life of a strong man, lived no matter where, and perhaps all the more if it have been isolated from the noisier events which make so large a part of history, contains the best material of biography. Judge Parsons was

fortunate in a son capable of doing that well, which, even if ill done, would have been interesting. A practised writer, the author of two volumes of eloquent and thoughtful essays, Professor Parsons has known how to select and arrange his matter with a due feeling of effect and perspective. When he fails to do this, it is because here and there the essayist has got the better of the biographer. We are not concerned here, for example, to know Mr. Parsons's opinions about Slavery, and we are sure that the sharp insight and decisive judgment of his father would never have allowed him to be frightened by the now somewhat weather-beaten scarecrow of danger to the Union.

In the earlier part of the Memoir we get some glimpses of pre-Revolutionary life in New England, which we hope yet to see illustrated more fully in its household aspects.[A] The father of Parsons was precisely one of those country-clergymen who were "passing rich on forty pounds a year." On a salary of two hundred and eighty dollars, he brought up a family of seven children, three of whom he sent to college, and kept a hospitable house.

[Footnote A: Mr. Elliott, in his *New England History*, has wisely gathered many of those unconsidered trifles which are so important in forming a just notion of the character of a population. We cannot but wish that our town-historians, instead of giving so much space to idle and often untrustworthy genealogies, and to descriptions of the "elegant mansions" of Messrs. This and That, would do us the real service of rescuing from inevitable oblivion the fleeting phases of household scenery that help us to that biography of a people so much more interesting than their annals. We would much rather know whether a man wore homespun, a hundred years ago, than whether he was a descendant of Rameses I.]

Of Parsons's college experiences we get less than we could desire; but as he advances in life, we find his mind exercised by the great political and social problem whose solution was to be the experiment of Democracy at housekeeping for herself,—we see him influencing State and even National politics, but always as a man who preferred attaining the end to being known as the means,—and finally, as Chief Justice, reforming the loose habits of the bar, intolerant of gabble, and leaving the permanent impress of his energetic mind and impatient logic on the Common Law of the country.

We know nothing more striking than the dying speech recorded in the concluding chapter. At the end of a life so laborious and so useful, the Judge, himself withdrawing to be judged, murmurs,—“Gentlemen of the Jury, the facts of the case are in your hands. You will retire and consider of your verdict.” In this volume, the son has submitted the facts of the case to a jury of posterity. His case will not be injured by the modesty with which he has stated it. He has claimed less for his father than one less near to him might have done. We think the verdict must be, that this was a great man *marooned* by Destiny on an out-of-the-way corner of the world, where, however he might exert great powers, there was no adequate field for that display of them which is the necessary condition of fame.

Mr. Parsons has done a real service to our history and our letters in this volume. Accompanying and illustrating his main topic, he has given us excellent sketches of some other persons less eminent than his father, sometimes from tradition and sometimes from his own impressions. We hope in the next edition he will give us a supplementary chapter of personal anecdotes, of which there is a large number that deserve to be perpetuated in print, and which otherwise will die with the memories in which they are now preserved. The strictly professional part of the biography, illustrating the Chief Justice's more important decisions, might also be advantageously enlarged.

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